

THE
CHRONICLES
OF
ENGUERRAND DE MONSTRELET.

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OF
ENGUERRAND DE MONSTRELET.

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containing an account of the cruel civil wars between the houses of Orleans and Burgundy, of the possession of Paris and Normandy by the English, their expulsion thence, and of other memorable events that happened in the kingdom of France, as well as in other countries

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CHRONICLES OF ENGUERRAND DE MONSTRELET, VOL. 01 [OF
13] ***

THE
CHRONICLES
OF
ENGUERRAND DE MONSTRELET.

THE
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OF
ENGUERRAND DE MONSTRELET;

CONTAINING
AN ACCOUNT OF THE CRUEL CIVIL WARS BETWEEN THE
HOUSES OF
ORLEANS AND BURGUNDY;

OF THE POSSESSION OF
PARIS AND NORMANDY BY THE ENGLISH;

THEIR EXPULSION THENCE;

AND OF OTHER
MEMORABLE EVENTS THAT HAPPENED IN THE KINGDOM OF
FRANCE,
AS WELL AS IN OTHER COUNTRIES.

*A HISTORY OF FAIR EXAMPLE, AND OF GREAT PROFIT TO THE
FRENCH,*

*Beginning at the Year MCCCC. where that of Sir JOHN FROISSART finishes,
and ending
at the Year MCCCCLXVII. and continued by others to the Year MDXVI.*

TRANSLATED
BY THOMAS JOHNES, ESQ.
IN THIRTEEN VOLUMES ... VOL. I.

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1810.

TO
HIS GRACE
JOHN DUKE OF BEDFORD,
&c. &c. &c.

MY LORD,

I am happy in this opportunity of dedicating the *CHRONICLES OF MONSTRELET* to your grace, to show my high respect for your many virtues, public and private, and the value I set on the honour of your grace's friendship.

One of *MONSTRELET*'s principal characters was *JOHN DUKE OF BEDFORD*, regent of France; and your grace has fully displayed your abilities, as regent, to be at least equal to those of your namesake, in the milder and more valuable virtues. Those of a hero may dazzle in this life; but the others are, I trust, recorded in a better place; and your late wise, although, unfortunately, short government of Ireland will be long and thankfully remembered by a gallant and warm-hearted people.

I have the honour to remain,

Your grace's much obliged,

Humble servant and friend,

Thomas Johnes.

CASTLE-HILL,
March 13, 1808.

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THE *LIFE OF MONSTRELET.*

Materials for the biography of Monstrelet are still more scanty than for that of Froissart. The most satisfactory account, both of his life and of the continuators of his history, is contained in the *Memoires de l'Académie de Belles Lettres*, vol. XLIII. p. 535. by M. Dacier.

‘We are ignorant of the birthplace of Enguerrand de Monstrelet, and of the period when he was born, as well as of the names of his parents. All we know is, that he sprang from a noble family,—which he takes care to tell us himself, in his introduction to the first volume of the chronicles; and his testimony is confirmed by a variety of original deeds, in which his name is always accompanied with the distinction of ‘noble man,’ or ‘esquire.’^[1]

‘According to the historian of the Cambresis, Monstrelet was descended from a noble family settled in Ponthieu from the beginning of the twelfth century, where one of his ancestors, named Enguerrand, possessed the estate of Monstrelet in the year 1125,—but Carpentier does not name his authority for this. A contemporary historian (Matthieu de Couci, of whom I shall have occasion to speak in the course of this essay,) who lived at Peronne, and who seems to have been personally acquainted with Monstrelet, positively asserts that this historian was a native of the county of the Boulonnois, without precisely mentioning the place of his birth. This authority ought to weigh much: besides, Ponthieu and the Boulonnois are so near to each other that a mistake on this point might easily have happened. It results, from what these two writers say, that we may fix his birthplace in Picardy.

‘M. l’abbé Carlier, however, in his history of the duchy of Valois, claims this honour for his province, wherein he has discovered an ancient family of the same name,—a branch of which, he pretends, settled in the Cambresis,

and he believes that from this branch sprung Enguerrand de Monstrelet. This opinion is advanced without proof, and the work of Monstrelet itself is sufficient to destroy it. He shows so great an affection for Picardy, in divers parts of his chronicle, that we cannot doubt of his being strongly attached to it: he is better acquainted with it than with any other parts of the realm: he enters into the fullest details concerning it: he frequently gives the names of such picard gentlemen, whether knights or esquires, as had been engaged in any battle, which he omits to do in regard to the nobility of other countries,—in the latter case, naming only the chief commanders. It is almost always from the bailiff of Amiens that he reports the royal edicts, letters missive, and ordinances, &c. which abound in the two first volumes. In short, he speaks of the Picards with so much interest, and relates their gallant actions with such pleasure, that it clearly appears that he treats them like countrymen.

‘Monstrelet was a nobleman then, and a nobleman of Picardy; but we have good reason to suspect that his birth was not spotless. John le Robert, abbot of St Aubert in Cambray from the year 1432 to that of 1469, and author of an exact journal of every thing that passed during his time in the town of Cambray and its environs, under the title of ‘*Memoriaux*,’^[2] says plainly, ‘*qu’il fut né de bas*,’—which term, according to the glossary of du Cange, and in the opinion of learned genealogists, constantly means a natural son; for at this period, bastards were acknowledged according to the rank of their fathers. Monstrelet, therefore, was not the less noble; and the same John le Robert qualifies him, two lines higher, with the titles of ‘noble man’ and ‘esquire,’ to which he adds an eulogium, which I shall hereafter mention,—because, at the same time that it does honour to Monstrelet, it confirms the opinion I had formed of his character when attentively reading his work.

‘My researches to discover the precise year of his birth have been fruitless. I believe, however, it may be safely placed prior to the close of the fourteenth century; for, besides speaking of events at the beginning of the fifteenth as having happened in his time, he states positively, in his introduction, that he had been told of the early events in his book (namely, from the year 1400,) by persons worthy of credit, who had been eye-witnesses of them. To this proof, or to this deduction, I shall add, that under the year 1415, he says, that he heard (*at the time*) of the anger of the count de Charolois, afterwards Philippe le bon duke of Burgundy, because his

governors would not permit him to take part in the battle of Azincourt. I shall also add, that under the year 1420, he speaks of the homage which John duke of Burgundy paid the king of the Romans for the counties of Burgundy and of Alost. It cannot be supposed that he would have inquired into such particulars, or that any one would have taken the trouble to inform him of them if he had not been of a certain age, such as twenty or twenty-five years old, which would fix the date of his birth about 1390 or 1395.

‘No particulars of his early years are known, except that he evinced, when young, a love for application, and a dislike to indolence. The quotations from Sallust, Livy, Vegetius, and other ancient authors, that occur in his chronicles, show that he must have made some progress in latin literature. Whether his love for study was superior to his desire of military glory, or whether a weakly constitution or some other reason, prevented him from following the profession of arms, I do not find that he yielded to the reigning passion of his age, when the names of gentleman and of soldier were almost synonymous.

‘The wish to avoid indolence by collecting the events of his time, which he testifies in the introduction to his chronicles, proves, I think, that he was but a tranquil spectator of them. Had he been an Armagnac or a Burgundian, he would not have had occasion to seek for solitary occupations; but what proves more strongly that Monstrelet was not of either faction is the care he takes to inform his readers of the rank, quality, and often of the names of the persons from whose report he writes, without ever boasting of his own testimony. In his whole work, he speaks but once from his own knowledge, when he relates the manner in which the Pucelle d’Orléans was made prisoner before Compiégne; but he does not say, that he was present at the skirmish when this unfortunate heroine was taken: he gives us to understand the contrary, and that he was only present at the conversation of the prisoner with the duke of Burgundy,—for he had accompanied Philip on this expedition, perhaps in quality of historian. And why may not we presume that he may have done so on other occasions, to be nearer at hand to collect the real state of facts which he intended to relate?

‘However this may be, it is certain that he was resident in Cambray, when he composed his history, and passed there the remainder of his life. He was indeed fixed there, as I shall hereafter state, by different important employments, each of which required the residence of him who enjoyed

them. From his living in Cambray, La Croix du Maine has concluded, without further examination, that he was born there, and this mistake has been copied by other writers.

‘Monstrelet was married to Jeanne de Valbuon, or Valhuon, and had several children by her, although only two of them were known,—a daughter called Bona, married to Martin de Beulaincourt, a gentleman of that country, surnamed the Bold, and a son of the name of Pierre. It is probable, that Bona was married, or of age, prior to the year 1438,—for in the register of the officiality of Cambray, towards the end of that year, is an entry, that Enguerrand de Monstrelet was appointed guardian to his young son Pierre, without any mention of his daughter Bona. It follows, therefore, that Monstrelet was a widower at that period.

‘In the year 1436, Monstrelet was nominated to the office of Lieutenant du Gavènier of the Cambresis, conjointly with Le Bon de Saveuses, master of the horse to the duke of Burgundy, as appears from the letters patent to this effect, addressed by the duke to his nephew the count d’Estampes, of the date of the 13th May in this year, and which are preserved in the chartulary of the church of Cambray.

‘It is even supposed that Monstrelet had for some time enjoyed this office,—for it is therein declared, that he shall continue in the receipt of the Gavène, as he has heretofore done, until this present time. ‘Gave,’ or ‘Gavène,’ (I speak from the papers I have just quoted,) signifies in Flemish, a gift, or a present. It was an annual due payable to the duke of Burgundy, by the subjects of the churches in the Cambresis, for his protection of them as earl of Flanders. From the name of the tribute was formed that of Gavènier, which was often given to the duke of Burgundy, and the nobleman he appointed his deputy was styled Lieutenant du Gavènier. I have said ‘the nobleman whom he appointed,’ because in the list of those lieutenants, which the historian of Cambray has published, there is not one who has not shown sufficient proofs of nobility. Such was, therefore, the employment with which Monstrelet was invested; and shortly after, another office was added to it, that of Bailiff to the chapter of Cambray, for which he took the oaths on the 20th of June, 1436, and entered that day on its duties. He kept this place until the beginning of January, in the year 1440, when another was appointed.

‘I have mentioned Pierre de Monstrelet, his son; and it is probable that he is the person who was made a knight of St John of Jerusalem in the month of July, in 1444, although the acts of the chapter of Cambray do not confirm this opinion, nor specify the Christian name of the new knight by that of Pierre. It is only declared in the register, that the canons, as an especial favour, on the 6th of July, permitted Enguerrand de Monstrelet, esquire, to have his son invested with the order of St John of Jerusalem, on Sunday the 19th of the same month, in the choir of their church.

‘The respect and consideration which he had now acquired, gained him the dignity of governor of Cambray, for which he took the usual oath on the 9th of November; and on the 12th of March, in the following year, he was nominated bailiff of Wallaincourt. He retained both of these places until his death, which happened about the middle of July, in the year 1453. This date cannot be disputed: it was discovered in the 17th century by John le Carpentier, who has inserted it in his history of the Cambresis. But in consequence of little attention being paid to this work, or because the common opinion has been blindly followed, that Monstrelet had continued his history to the death of the duke of Burgundy in 1467, this date was not considered as true until the publication of an extract from the register of the Cordeliers in Cambray, where he was buried.^[3] Although this extract fully establishes the year and month when Monstrelet died, I shall insert here what relates to it from the ‘Memoriaux’ of John le Robert, before mentioned, because they contain some circumstances that are not to be found in the register of the Cordeliers. When several years of his history are to be retrenched from an historian of such credit, authorities for so doing cannot be too much multiplied. This is the text of the abbot of St Aubert, and I have put in italics the words that are not in the register:

“The 20th day of July, in the year 1453, that honourable and noble man Enguerrand de Monstrelet, esquire, governor of Cambray, and bailiff of Wallaincourt, departed this life, and was buried at the Cordeliers of Cambray, according to his desire. He was carried thither on a bier covered with a mat, clothed in the frock of a cordelier friar, his face uncovered: six flambeaux and three chirons, each weighing three quarters of a pound, were around the bier, whereon was *a sheet thrown over the cordelier frock. Il fut*

nez de bas, and was a very honourable and *peaceable* man. He chronicled the wars which took place in his time in France, Artois, Picardy, England, Flanders, and those of the Gantois against their lord duke Philip. He died fifteen or sixteen days before peace was concluded, which took place toward the end of July, in the year 1453.”

‘I shall observe, by the way, that the person who drew up this register assigns two different dates for the death of Monstrelet, and in this he has been followed by John le Robert. Both of them say, that Monstrelet died on the 20th of July,—and, a few lines farther, add, that he died about sixteen days before peace was concluded between duke Philip and Ghent, which was signed about the end of the month: it was, in fact, concluded on the 31st: now, from twenty to thirty-one, we can only reckon eleven days,—and I therefore think, that one of these dates must mean the day of his death, and the other that of his funeral,—namely, that Monstrelet died on the 15th and was buried on the 20th. The precise date of his death is, however, of little importance: it is enough for us to be assured, that it took place in the month of July, in 1453, and consequently that the thirteen last years of his history, printed under his name, cannot have been written by him. I shall examine this first continuation of his history, and endeavour to ascertain the time when Monstrelet ceased to write,—and likewise attempt to discover whether, during the years immediately preceding his death, some things have not been inserted that do not belong to him.

‘Before I enter upon this discussion of his work, I shall conclude what I have to say of him personally, according to what the writer of the register of the Cordeliers and the abbot of St Aubert testify of him. He was, says each of them, ‘a very honourable and peaceable man;’ expressions that appear simple at first sight, but which contain a real eulogium, if we consider the troublesome times in which Monstrelet lived, the places he held, the interest he must have had sometimes to betray the truth in favour of one of the factions which then divided France, and caused the revolutions the history of which he has published during the life of the principal actors. I have had more than one occasion to ascertain that the two above-mentioned writers, in thus painting his character, have not flattered him.

‘The Chronicles of Monstrelet commence on Easter-day,^[4] in the year 1400, when those of Froissart end, and extend to the death of the duke of

Burgundy in the year 1467. I have before stated, that the thirteen last years of his chronicle were written by an unknown author,—and this matter I shall discuss at the end of this essay. In the printed as well as in the manuscript copies, the chronicle is divided into three volumes, and each volume into chapters. The first of these divisions is evidently by the author: his prologues at the head of the first and second volumes, in which he marks the extent of each conformable to the number of years therein contained, leave no room to doubt of it.

‘His work is called Chronicles; but we must not, however, consider this title in the sense commonly attached to it, which merely conveys the idea of simple annals. The chronicles of Monstrelet are real history, wherein, notwithstanding its imperfections and omissions, are found all the characteristics of historical writing. He traces events to their source, developes the causes, and traces them with the minutest details; and what renders these chronicles infinitely precious is, his never-failing attention to report all edicts, declarations, summonses, letters, negotiations, treaties, &c. as justificatory proofs of the truth of the facts he relates.

‘After the example of Froissart, he does not confine himself to events that passed in France: he embraces, with almost equal detail, the most remarkable circumstances which happened during his time in Flanders, England, Scotland and Ireland. He relates, but more succinctly, whatsoever he had been informed of as having passed in Germany, Italy, Hungary, Poland: in short, in the different european states. Some events, particularly the war of the Saracens against the king of Cyprus, are treated at greater length than could have been expected in a general history.

‘Although it appears that the principal object of Monstrelet in writing this history was to preserve the memory of those wars which in his time, desolated France and the adjoining countries, to bring into public notice such personages as distinguished themselves by actions of valour in battles, assaults, skirmishes, duels and tournaments,—and to show to posterity that his age had produced as many heroes as any of the preceding ones. He does not fail to give an account of such great political or ecclesiastical events as took place during the period of which he seemed only inclined to write the military history. He relates many important details respecting the councils of Pisa, Constance, and of Basil, of which the authors who have written the

history of these councils ought to have availed themselves, to compare them with the other materials of which they made use.

‘There is no historian who does not seek to gain the confidence of his readers, by first explaining in a preface all that he has done to acquire the fullest information respecting the events he is about to relate. All protest that they have not omitted any possible means to ascertain the truth of facts, and that they have spared neither time nor trouble to collect the minutest details concerning them. Without doubt, great deductions must be made from such protestations: those of Monstrelet, however, are accompanied with circumstances which convince us that a dependance may be placed on them. Would he have dared to tell his contemporaries, who could instantly have detected a falsehood had he imposed on them, that he had been careful to consult on military affairs those who, from their employments, must have been eye-witnesses of the actions that he describes? that on other matters he had consulted such as, from their situations, must have been among the principal actors, and the great lords of both parties, whom he had often to address, to engage in conversation on these events, at divers times, to confront them, as it were, with themselves? On objects of less importance, such as feasts, justs, tournaments, he had made his inquiries from heralds, poursuivants, and kings at arms, who, from their office, must have been appointed judges of the lists, or assistants, at such entertainments and pastimes. For greater security, it was always more than a year after any event had happened, before he began to arrange his materials and insert them in his chronicle. He waited until time should have destroyed what may have been exaggerated in the accounts of such events, or should have confirmed their truth.

‘An infinite number of traits throughout his work proves the fidelity of his narration. He marks the difference between facts of which he is perfectly sure and those of which he is doubtful: if he cannot produce his proof, he says so, and does not advance more. When he thinks that he has omitted some details which he ought to have known, he frankly owns that he has forgotten them. For instance, when speaking of the conversation between the duke of Burgundy and the Pucelle d’Orléans, at which he was present, he recollects that some circumstances have escaped his memory, and avows that he does not remember them.

‘When after having related any event, he gains further knowledge concerning it, he immediately informs his readers of it, and either adds to or retrenches from his former narration, conformably to the last information he had received. Froissart acted in a similar manner; and Montaigne praises him for it. ‘The good Froissart,’ says he, ‘proceeds in his undertaking with such frank simplicity that having committed a mistake he is no way afraid of owning it, and of correcting it at the moment he is sensible of it.’^[5] We ought certainly to feel ourselves obliged to these two writers for their attention in returning back to correct any mistakes; but we should have been more thankful to them if they had been pleased to add their corrections to the articles which had been mistated, instead of scattering their amendments at hazard, as it were, and leaving the readers to connect and compare them with the original article as well as they can.

‘This is not the only defect common to both these historians. The greater part of the chronological mistakes, which have been so ably corrected by M. de Sainte Palaye in Froissart, are to be found in Monstrelet; and what deserves particularly to be noticed, to avoid falling into errors, is, that each of them, when passing from the history of one country to another, introduces events of an earlier date, without ever mentioning it, and intermix them in the same chapter, as if they had taken place in the same period,—but Monstrelet has the advantage of Froissart in the correctness of counting the years, which he invariably begins on Easter-day and closes them on Easter-eve.

‘To chronological mistakes must be added the frequent disfiguring of proper names,—more especially foreign ones, which are often so mangled that it is impossible to decipher them. M. du Cange has corrected from one thousand to eleven hundred on the margin of his copy of the edition of 1572, which is now in the imperial library at Paris, and would be of great assistance, should another edition of Monstrelet be called for.^[6] Names of places are not more clearly written, excepting those in Flanders and Picardy, with which, of course, he was well acquainted. We know not whether it be through affectation or ignorance that he calls many towns by their latin names, frenchifying the termination: for instance, Aix-la-Chapelle, Aquisgranie; Oxford, Oxonie,—and several others in the like manner.

‘These defects are far from being repaid, as they are in Froissart, by the agreeableness of the narration: that of Monstrelet is heavy, monotonous,

weak and diffuse. Sometimes a whole page is barely sufficient for him to relate what would have been better told in six lines; and it is commonly on the least important facts that he labours the most.

‘The second chapter of the first volume, consisting of thirteen pages, contains only a challenge from a spanish esquire, accepted by an esquire of England, which, after four years of letters and messages, ends in nothing. The ridiculousness of so pompous a narration had struck Rabelais, who says, at page 158 of his third volume,—‘In reading this tedious detail, (which he calls a little before *le tant long, curieux et fâcheux conte*) we should imagine that it was the beginning, or occasion, of some severe war, or of a great revolution of kingdoms; but at the end of the tale we laugh at the stupid champion, the Englishman, and Enguerrand their scribe, *plus baveux qu’un pot à moutarde*.’^[7]

‘Monstrelet employs many pages to report the challenges sent by the duke of Orleans, brother to king Charles VI., to Henry IV. king of England,—challenges which are equally ridiculous with the former, and which had a similar termination. When he meets with any event that particularly regards Flanders or Picardy, he does not omit the smallest circumstance: the most minute and most useless seem to him worth preserving,—and this same man, so prolix when it were to be wished he was concise, omits, for the sake of brevity, as he says, the most interesting details. This excuse he repeats more than once, for neglecting to enlarge on facts far more interesting than the quarrels of the Flemings and Picards. When speaking of those towns in Champagne and Brie which surrendered to Charles VII. immediately after his coronation, he says, ‘As for these surrenders, I omit the particular detail of each for the sake of brevity.’ In another place, he says, ‘Of these reparations, for brevity sake, I shall not make mention.’ These reparations were the articles of the treaty of peace concluded in 1437, between the duke of Burgundy and the townsmen of Bruges.

‘I have observed an omission of another sort, but which must be attributed solely to the copyists,—for I suspect them of having lost a considerable part of a chapter in the second volume. The head of this chapter is, ‘The duke of Orleans returns to the duke of Burgundy,’—and the beginning of it describes the meeting of the two princes in the town of Hêdin in 1441 (1442). They there determine to meet again almost immediately in the town of Nevers, ‘with many others of the great princes and lords of the kingdom

of France,' and at the end of eight days they separate; the one taking the road through Paris for Blois, and the other going into Burgundy.

'This recital consists of about twenty lines, and then we read, 'Here follows a copy of the declaration sent to king Charles of France by the lords assembled at Nevers, with the answers returned thereto by the members of the great council, and certain requests made by them.' This title is followed by the declaration he has mentioned, and the answer the king made to the ambassadors who had presented it to him.—Now, can it be conceived that Monstrelet would have been silent as to the object of the assembly of nobles? or not have named some of those who had been present? and that, after having mentioned Nevers as the place of meeting, he should have passed over every circumstance respecting it, to the declarations and resolutions that had there been determined upon? There are two reasons for concluding that part of this chapter must be wanting: first, when Monstrelet returns to his narration, after having related the king's answer to the assembled lords, he speaks as having before mentioned them, 'the aforesaid lords,' and I have just noticed that he names none of them; secondly, when in the next chapter he relates the expedition to Tartas, which was to decide on the fate of Guienne, as having before mentioned it, 'of which notice has been taken in another place,' it must have been in the preceding chapter,—but it is not there spoken of, nor in any other place.

'If the numerous imperfections of Monstrelet are not made amends for, as I have said, by the beauty of his style, we must allow that they are compensated by advantages of another kind. His narration is diffuse, but clear,—and his style heavy, but always equal. He rarely offers any reflections,—and they are always short and judicious. The temper of his mind is particularly manifested by the circumstance that we do not find in his work any ridiculous stories of sorcery, magic, astrology, or any of those absurd prodigies which disgrace the greater part of the historians of his time. The goodness of his heart also displays itself in the traits of sensibility which he discovers in his recitals of battles, sieges, and of towns won by storm: he seems then to rise superior to himself,—and his style acquires strength and warmth. When he relates the preparations for, and the commencement of, a war, his first sentiment is to deplore the evils by which he foresees that the poorer ranks will soon be overwhelmed. Whilst he paints the despair of the wretched inhabitants of the country, pillaged and

massacred by both sides, we perceive that he is really affected by his subject, and writes from his feelings. The writer of the cordelier register and the abbot of St Aubert, have not, therefore, said too much, when they called him, 'a very honest and peaceable man.' It appears, in fact, that benevolence was the marked feature of his character, to which I am not afraid to add the love of truth.

'I know that in respect to this last virtue, his reputation is not spotless, and that he has been commonly charged with partiality for the house of Burgundy, and for that faction. Lancelot Voesin de la Popelinere is, I believe, the first who brought this accusation against him. 'Monstrelet,' says he, 'has scarcely shown himself a better narrator than Froissart,—but a little more attached to truth, and less of a party man.' Denis Godefroy denies this small advantage over Froissart which had been conceded to him by La Popelinere. 'Both of them,' he says, 'incline toward the Burgundians.'

'Le Gendre in his critical examination of the french historians, repeats the same thing, but in more words. 'Monstrelet,' he writes, 'too plainly discovers his intentions of favouring, when he can, the dukes of Burgundy and their friends.' Many authors have adopted some of these opinions, more or less disadvantageous to Monstrelet; hence has been formed an almost universal prejudice, that he has, in his work, often disfigured the truth in favour of the dukes of Burgundy.

'I am persuaded that these different opinions, advanced without proof, are void of foundation; and I have noticed facts, which having happened during the years of which Monstrelet writes the history, may, from the manner in which he narrates them, enable us to judge whether he was capable of sacrificing truth to his attachment to the house of Burgundy.

'In 1407, doctor John Petit, having undertaken to justify the assassination of the duke of Orleans by orders from the duke of Burgundy, sought to diminish the horror of such a deed, by tarnishing the memory of the murdered prince with the blackest imputations. Monstrelet, however, does not hesitate to say, that many persons thought these imputations false and indecent. He reports, in the same chapter, the divers opinions to which this unfortunate event gave rise, and does not omit to say, that 'many great lords, and other wise men, were much astonished that the king should pardon the burgundian prince, considering that the crime was committed on

the person of the duke of Orleans.' We perceive, in reading this passage, that Monstrelet was of the same opinion with the 'other wise men.'

'In 1408, Charles VI. having insisted that the children of the late duke of Orleans should be reconciled to the duke of Burgundy, they were forced to consent.—'Sire, since you are pleased to command us, we grant his request;' and Monstrelet lets it appear that he considers their compliance as a weakness, which he excuses on account of their youth, and the state of neglect they were in after the death of their mother the duchess of Orleans, who had sunk under her grief on not being able to avenge the murder of her husband. 'To say the truth, in consequence of the death of their father, and also from the loss of their mother, they were greatly wanting in advice and support.' He likewise relates, at the same time, the conversations held by different great lords on this occasion, in whom sentiments of humanity and respect for the blood-royal were not totally extinguished. 'That henceforward it would be no great offence to murder a prince of the blood, since those who had done so were so easily acquitted, without making any reparation, or even begging pardon.' A determined partisan of the house of Burgundy would have abstained from transmitting such a reflection to posterity.

'I shall mention another fact, which will be fully sufficient for the justification of the historian. None of the writers of his time have spoken with such minuteness of the most abominable of the actions of the duke of Burgundy: I mean that horrid conspiracy which he had planned in 1415, by sending his emissaries to Paris to intrigue and bring it to maturity, and the object of which was nothing less than to seize and confine the king, and to put him to death, with the queen, the chancellor of France, the queen of Sicily, and numberless others. Monstrelet lays open, without reserve, all the circumstances of the conspiracy: he tells us by whom it was discovered: he names the principal conspirators, some of whom were beheaded, others drowned.—He adds, 'However, those nobles whom the duke of Burgundy had sent to Paris returned as secretly and as quietly as they could without being arrested or stopped.'

'An historian devoted to the duke of Burgundy would have treated this affair more tenderly, and would not have failed to throw the whole blame of the plot on the wicked partisans of the duke, without saying expressly that they had acted under his directions and by his orders contained 'in

credential letters signed with his hand.' It is rather singular, that Juvénal des Ursins, who cannot be suspected of being a Burgundian, should, in his history of Charles VI. have merely related this event, and that very summarily, without attributing any part of it to the duke of Burgundy, whom he does not even name.

'The impartiality of Monstrelet is not less clear in the manner in which he speaks of the leaders of the two factions, Burgundians or Armagnacs, who are praised or blamed without exception of persons, according to the merit of their actions. The excesses which both parties indulged in are described with the same strength of style, and in the same tone of indignation. In 1411, when Charles VI. in league with the duke of Burgundy, ordered, by an express edict, that all of the Orleans party should be attacked as enemies throughout the kingdom, 'it was a pitiful thing,' says the historian, 'to hear daily miserable complaints of the persecutions and sufferings of individuals.' He is no way sparing of his expressions in this instance, and they are still stronger in the recital which immediately follows: 'Three thousand combatants marched to Bicêtre, a very handsome house belonging to the duke of Berry (who was of the Orleans party),—and from hatred to the said duke, they destroyed and villainously demolished the whole, excepting the walls.'

'The interest which Monstrelet here displays for the duke of Berry, agrees perfectly with that which he elsewhere shows for Charles VI. He must have had a heart truly French to have painted in the manner he has done the state of debasement and neglect to which the court of France was reduced in 1420, compared with the pompous state of the king of England: he is affected with the humiliation of the one, and hurt at the magnificence of the other, which formed so great a contrast. 'The king of France was meanly and poorly served, and was scarcely visited on this day by any but some old courtiers and persons of low degree, which must have wounded all true french hearts.' And a few lines farther, he says, 'With regard to the state of the king of England, it is impossible to recount its great magnificence and pomp, or to describe the grand entertainments and attendance in his palace.'

'This idea had made such an impression on him that he returns again to it on occasion of the solemn feast of Whitsuntide, which the king and queen of England came to celebrate in Paris, in 1422. 'On this day, the king and queen of England held a numerous and magnificent court,—but king

Charles remained with his queen at the palace of St Pol, neglected by all, which caused great grief to numbers of loyal Frenchmen, and not without cause.'

'These different traits, thus united, form a strong conclusion, or I am deceived, that Monstrelet has been too lightly charged with partiality for the house of Burgundy, and with disaffection to the crown of France.

'I have hitherto only spoken of the two first volumes of the chronicles of Monstrelet; the third, which commences in April 1444, I think should be treated of separately, because I scarcely see any thing in it that may be attributed to him. In the first place, the thirteen last years, from his death in 1453 to that of the duke of Burgundy in 1467, which form the contents of the greater part of this volume, cannot have been written by him. Secondly, the nine preceding years, of which Monstrelet, who was then living, may have been the author, seem to me to be written by another hand. We do not find in this part either his style or manner of writing: instead of that prolixity which has been so justly found fault with, the whole is treated with the dryness of the poorest chronicle: it is an abridged journal of what passed worthy of remembrance in Europe, but more particularly in France, from 1444 to 1453,—in which the events are arranged methodically, according to the days on which they happened, without other connexion than that of the dates.

'Each of the two first volumes is preceded by a prologue, which serves as an introduction to the history of the events that follow: the third has neither prologue nor preface. In short, with the exception of the sentence passed on the duke of Alençon, there are not, in this volume, any justificatory pieces, negotiations, letters, treaties, ordinances, which constitute the principal merit of the two preceding ones. It would, however, have been very easy for the compiler to have imitated Monstrelet in this point, for the greater part of these pieces are reported by the chronicler of St Denis, whom he often quotes in his first fifty pages. I am confirmed in this idea by having examined into the truth of different events, when I found that the compiler had scarcely done more than copy, word for word,—sometimes from the *Grandes Chroniques* of France,—at others, though rarely, from the history of Charles VII. by Jean Chartier, and, still more rarely, from the chronicler of Arras, of whom he borrows some facts relative to the history of Flanders.

‘To explain this resemblance, it cannot be said that the editors of the *Grandes Chroniques* have copied Monstrelet, for the *Grandes Chroniques* are often quoted in this third volume, which consequently must have been written posterior to them. There would be as little foundation to suppose that Monstrelet had copied them himself, and inserted only such facts as more particularly belonged to the history of the dukes of Burgundy. The difference of the plan and execution of the two first volumes and of this evidently points out another author. But should any doubt remain, it will soon be removed by the evidence of a contemporary writer, who precisely fixes on the year 1444 as the conclusion of the labours of Monstrelet.

‘Matthieu d’Escouchy, or de Couci, author of a history published by Denis Godefroy, at the end of that of Charles VII. by Chartier, thus expresses himself in the prologue at the beginning of his work: ‘I shall commence my said history from the 20th day of May, in the year 1444, when the last book, which that noble and valiant man Enguerrand de Monstrelet chronicled in his time, concludes. He was a native of the county of the Boulonnois, and at the time of his death was governor and citizen of Cambray, whose works will be in renown long after his decease. It is my intention to take up the history where the late Enguerrand left it,—namely, at the truces which were made and concluded at Tours, in Touraine, in the month of May, on the day and year before mentioned, between the most excellent, most powerful, Charles, the well-served king of France, of most noble memory, seventh of the name, and Henry king of England his nephew.’

‘These truces conclude the last chapter of the second volume of Monstrelet: it is there where the real chronicles end; and he has improperly been hitherto considered as the author of the history of the nine years that preceded his death, for I cannot suppose that the evidence of Matthieu de Coucy will be disputed. He was born at Quesnoy, in Hainault, and living at Peronne while Monstrelet resided at Cambray. The proximity of the places must have enabled him to be fully informed of every thing that concerned the historian and his work.

‘If we take from Monstrelet what has been improperly attributed to him, it is but just to restore that which legally belongs to him. According to the register of the Cordeliers of Cambray, and the *Memoriaux* of Jean le Robert, he had written the history of the war of the Ghent-men against the duke of Burgundy. Now the events of this war, which began in the month of

April 1452, and was not terminated before the end of July in the following year, are related with much minuteness in the third volume.^[9] After the authorities above quoted, we cannot doubt that Monstrelet was the author, if not of the whole account, at least of the greater part of it: I say ‘part of it,’ for he could not have narrated the end of this war, since peace between the Ghent-men and their prince was not concluded until the 31st July, and Monstrelet was buried on the 20th. It is not even probable that he would have had time to collect the events that happened at the beginning of the month, unless we suppose that he died suddenly; whence I think it may be conjectured, that Monstrelet ceased to write towards the end of June, when the castle of Helsebecque was taken by the duke of Burgundy, and that the history of the war was written by another hand, who may have arranged the materials which Monstrelet had collected, but had not reduced to order.

‘There seems here to arise a sort of contradiction between Matthieu de Coucy, who fixes, as I have said, the conclusion of Monstrelet’s writing at the year 1444, and the register of the Cordeliers, which agrees with the *Memoriaux* of Jean le Robert; but this contradiction will vanish, if we reflect that the history of the revolt of Ghent, in 1453, is an insulated matter, having no connexion with the history of the reign of Charles VII. and that it cannot be considered as forming part of the two first volumes, from which it is detached by a space of eight years. Matthieu de Coucy, therefore, who may not, perhaps, have known of this historical fragment, was entitled to say, that the chronicles written by Monstrelet ended at the year 1444.

‘The continuator of these chronicles having reported the conclusion of the war between the Ghent-men and their prince, then copies indiscriminately from the *Grandes Chroniques*, or from Jean Chartier, with more or less exactness, as may readily be discovered on collating them, as I have done. He only adds some facts relative to the history of Burgundy, and carries the history to the death of Charles VII. This part, which is more interesting than the former, because the writer has added to the chronicles facts in which they were deficient, is more defective in the arrangement. Several events that relate to the general history of the realm are told twice over, and in succession,—first in an abridged state, and then more minutely,—and sometimes with differences so great that it seems impossible that both should have been written by the same person.^[10]

‘This defect, however, we cannot without injustice attribute to the continuator of Monstrelet,—for it is clearly perceptible that he only treats of the general history of France in as far as it is connected with that of Burgundy, and we cannot suppose that he would repeat twice events foreign to the principal object of his work. It is much more natural to believe that the abridged accounts are his, and that the first copiers, thinking they were too short, have added the whole detail of these articles from the *Grandes Chroniques* or from Jean Chartier, whence he had been satisfied with merely making extracts.

‘From the death of Charles VII. in 1461, to that of Philip duke of Burgundy, we meet with no more of these repetitions. The historian (for he then deserves the name) leaves off copying the *Chronicles*, and advances without a guide: consequently, he is very frequently bewildered. I shall not attempt to notice his faults, which are the same with those of Monstrelet, and I could but repeat what I have said before. There is, however, one which is peculiar to him, and which pervades the whole work: it is an outrageous partiality for the house of Burgundy.

‘We may excuse him for having written, under the title of a General History of France, the particular history of Burgundy, and for having only treated of that of France incidentally, in as far as it interested the burgundian princes. We may, indeed, more readily pardon him for having painted Charles VII. as a voluptuous monarch, and Louis XI. sometimes as a tyrant, at others as a deep and ferocious politician, holding in contempt the most sacred engagements. But the fidelity of history required that he should not have been silent as to the vices of the duke of Burgundy and his son, who plunged France into an abyss of calamities, and that his predilection for these two princes should not burst forth in every page.

‘The person who continued this first part of the chronicles of Monstrelet has been hitherto unknown, but I believe a lucky accident has enabled me to discover him. Dom Berthod, a learned benedictine monk of the congregation of St Vanne, having employed himself for these many years in searching the libraries and ancient rolls in Flanders for facts relative to our history, has made a report with extracts from numerous manuscripts, of which we had only vague ideas. He has had the goodness to communicate some of them to me, and among others the chronicle of Jacques du Clercq, [\[11\]](#) which begins at 1448, and ends, like the continuator of Monstrelet, at the

death of the duke of Burgundy in 1467. In order to give a general idea of the contents of the work, D. Berthod has copied, with the utmost exactness, the table of chapters composed by Jacques du Clercq himself, as he tells us in his prologue. I have compared this table and the extracts with the continuation of Monstrelet, and have observed such a similarity, particularly from the year 1453 to 1467, that I think it impossible for any two writers to be so exactly the same unless one had copied after the other.

‘As we do not possess the whole of this chronicle, I can but offer this as a very probable conjecture, which will be corroborated, when it is considered that Jacques du Clercq and the continuator of Monstrelet lived in the same country. The first resided in Arras; and by the minute details the second enters into concerning Flanders, we may judge that he was an inhabitant of that country. Some villages burnt, or events still less interesting, and unknown beyond the places where they happened, are introduced into his history. In like manner, we should discover without difficulty (if it were otherwise unknown), that the editor of the *Grandes Chroniques* was a monk of the abbey of St Denis, when he gravely relates, as an important event, that on such a day the scullion of the abbey was found dead in his bed,—and that a peasant of Clignancourt beat his wife until she died.

‘To these divers relations between the two writers, we must add the period when they wrote. We see by the preface of Jacques du Clercq, that he composed his history shortly after the death of Philip duke of Burgundy in 1467; and the continuator of Monstrelet, when speaking of the arrest of the bastard de Rubempré in Holland, whither he had been sent by Louis XI. says, that the bastard was a prisoner at the time he was writing, ‘at the end of February 1468, before Easter;’ that is to say, that he was at work on his history in the month of February 1469, according to our mode of beginning the year.

‘Whether this continuation be an abridgment of the chronicle of Jacques du Clercq or an original chronicle, it seems very clear that Monstrelet has been tried by the merits of this third volume, and that his reputation of being a party-writer has been grounded on the false opinion that he was the author of it.

‘I cannot close this essay without expressing my surprise that no one, before the publication of the article respecting Monstrelet in the register of the

Cordeliers, had suspected that part, at least, of this third volume, which has been attributed to him, could not have come from his hand. Any attentive reader must have been struck with the passage where the continuator relates the death of Charles duke of Orleans, when, after recapitulating in a few words the misfortunes which the murder of his father had caused to France, he refers the reader for more ample details to the history 'of Monstrelet:' as 'may be seen,' says he, 'in the Chronicles of Enguerrand de Monstrelet.'

'I shall not notice the other continuations, which carry the history to the reign of Francis I.; for this article has been discussed by M. de Foncemagne, in an essay read before the Academy in 1742;^{[\[12\]](#)} nor the different editions of Monstrelet. M. le Duchat, in his 'Remarques sur divers Sujets de Littérature,' and the editor of 'La nouvelle Bibliothèque des Historiens de France,' have left nothing more to be said on the subject.'

OBSERVATIONS

ON THE CHRONICLE OF ENGUERRAND DE
MONSTRELET, BY M. DE FONCEMAGNE,
MENTIONED IN THE PRECEDING PAGE,
TRANSLATED FROM THE XVITH VOLUME OF THE
'MEMOIRES DE L'ACADÉMIE DE BELLES
LETTRES,' &c.

The Chronicle of Enguerrand de Monstrelet, governor of Cambray, commences at the year 1400, where that of Froissart ends, and terminates at 1467; but different editors have successively added several continuations, which bring it down to the year 1516.

The critics have before remarked, that the first of these additions was nothing more than a chronicle of Louis XI. known under the name of the 'Chronique Scandaleuse,' and attributed to John de Troyes, registrar of the hôtel de ville of Paris. Those who have made this remark should have added, that the beginning of the two works is different, and that they only become uniform at the description of the great floods of the Seine and Marne, which happened in 1460, for the author takes up the history at that year. This event will be found at the ninth page of the Chronique Scandaleuse (in the second volume of the Brussels-edition of Comines), and at the third leaf of the last volume of Monstrelet (second order of ciphers) edition of 1603.

The second continuation includes the whole of the reign of Charles VIII. It is written by Pierre Desrey, who styles himself in the title, 'simple orateur de Troyes en Champagne.' The greater part of this addition, more especially what respects the invasion of Italy, is again to be met with at the end of the translation of Gaguin's chronicle made by this same Desrey,—at the conclusion of 'La Chronique de Bretagne,' by Alain Bouchard,—and in the

history of Charles VIII. by M. Godefroi, page 190, where it is called ‘a relation of the expedition of Charles VIII.’

M. de Foncemagne says nothing more of the other continuations, which he had not occasion to examine with the same care; but he thinks they may have been taken from those which Desrey has added to his translation of Gaguin, as far as the year 1538. This notice may be useful to those who shall study the history of Louis XI. and of Charles VIII. inasmuch as it will spare them the trouble and disgust of reading several times the same things, which they could have no reason to suspect had been copied from each other.

We should be under great obligations to the authors of rules for reading, if in pointing out what on each subject ought to be read, they would, at the same time, inform us what ought not to be read. This information is particularly necessary in regard to old chronicles, or what are called in France *Recueils de Pieces*. The greater part of the chroniclers have copied each other, at least for the years that have preceded their own writings: in like manner, an infinite number of detached pieces have been published by different editors. Thus books multiply, volumes thicken, and the only result to men of letters is an increase of obstacles in their progress.

The learned Benedictine, who is labouring at the collection of french historians, has wisely avoided this inconvenience in regard to the chronicles.^[13] A society of learned men announced in 1734 an alphabetical library, or a general index of ancient pieces scattered in those compilations known under the names of *Spicilegia*, *Analecta*, *Anecdota*, by which would be seen at a glance in how many places the same piece could be found. This project, on its appearance, gave rise to a literary warfare, the only fruit of which was to cool the zeal of the illustrious authors who had conceived it, and to prevent the execution of a work which would have been of infinite utility to the republic of letters.^[14]

THE PROLOGUE.

As Sallust says, at the commencement of his *Bellum Catalinarium*, wherein he relates many extraordinary deeds of arms done by the Romans and their adversaries, that every man ought to avoid idleness, and exercise himself in good works, to the end that he may not resemble beasts, who are only useful to themselves unless otherwise instructed,—and as there cannot be any more suitable or worthy occupation than handing down to posterity the grand and magnanimous feats of arms, and the inestimable subtleties of war which by valiant men have been performed, as well those descended from noble families as others of low degree, in the most Christian kingdom of France, and in many other countries of Christendom under different laws, for the instruction and information of those who in a just cause may be desirous of honourably exercising their prowess in arms; and also to celebrate the glory and renown of those who by strength of courage and bodily vigour have gallantly distinguished themselves, as well in sudden rencounters as in pitched battles, armies against armies, or in single combats, like as valiant men ought to do, who, reading or hearing these accounts, should attentively consider them, in order to bring to remembrance the above deeds of arms and other matters worthy of record, and especially particular acts of prowess that have happened within the period of this history, as well as the discords, wars and quarrels that have arisen between princes and great lords of the kingdom of France, also between those of the adjoining countries, that have been continued for a long time, specifying the causes whence these wars have had their origin.

I Enguerrand de Monstrelet, descended from a noble family, and residing, at the time of composing this present book, in the noble city of Cambray, a town belonging to the empire of Germany, employed myself in writing a

history in prose, although the matter required a genius superior to mine, from the great weight of many of the events relative to the royal majesty of princes, and grand deeds of arms that will enter into its composition. It requires also great subtlety of knowledge to describe the causes of many of the events, seeing that several of them have been very diversely related. I have frequently marvelled within myself how this could have happened, and whether the diversity of these accounts of the same event could have any other foundation than in party-prejudice; and perhaps it may have been the case, that those who have been engaged in battles or skirmishes have paid so much attention to conduct themselves with honour that they have been unable to notice particularly what was passing in other parts of the field of battle.

Nevertheless, as I was from my youth fond of hearing such histories, I took pains, according to the extent of my understanding until of mature age, to make every diligent inquiry as to the truth of different events, and questioned such persons as from their rank and birth would disdain to relate a falsehood, and others known for their love of truth in the different and opposing parties, on every point in these chronicles from the first book to the last; and particularly, I made inquiries from kings at arms, heralds, poursuivants, and lords resident on their estates, respecting the wars of France, who, from their offices or situations, ought to be well informed of facts, and relaters of the truth concerning them.

On their informations often repeated, and throwing aside every thing I thought doubtful or false, or not proved by the continuation of their accounts, and having maturely considered their relations, at the end of a year I had them fairly written down, and not sooner. I then determined to pursue my work to a conclusion, without leaning or showing favour to any party, but simply to give to every one his due share of honour, according to the best of my abilities; for to do otherwise would be to detract from the honour and prowess which valiant and prudent men have acquired at the risk of their lives, whose glory and renown should be exalted in recompense for their noble deeds.

And inasmuch as this is a difficult undertaking, and cannot be pleasing to all parties,—some of whom may maintain, that what I have related of particular events is not the truth,—I therefore entreat and request all noble persons who may read this book to excuse me, if they find in it some things

that may not be perfectly agreeable to them; for I declare I have written nothing but what has been asserted to me as fact, and told to me as such, and, should it not prove so, on those who have been my informants must the blame be laid. If, on the contrary, they find any virtuous actions worthy of preservation, and that may with delight be proposed as proper examples to be followed, let the honour and praise be bestowed on those who performed them, and not on me, who am simply the narrator.

This present Chronicle will commence on Easter-day, in the year of Grace 1400, at which time was concluded the last volume of the Chronicles of sir John Froissart, native of Valenciennes in Hainault, whose renown on account of his excellent work will be of long duration. The first book of this work concludes with the death of Charles VI. the most Christian and most worthy king of France, surnamed 'the well beloved,' who deceased at his hôtel of St Pol at Paris, near the Celestins, the 22d day of October 1422. But that the causes of these divisions and discords which arose in that most renowned and excellent kingdom of France may be known, discords which caused such desolation and misery to that realm as is pitiful to relate, I shall touch a little at the commencement of my history on the state, government, manners and conduct of the aforesaid king Charles during his youth.

THE
FIRST VOLUME
OF THE
CHRONICLES
OF
ENGUERRAND DE MONSTRELET.

CHAP. I.

HOW CHARLES THE WELL-BELOVED REIGNED IN
FRANCE, AFTER HE HAD BEEN CROWNED AT
RHEIMS, IN THE YEAR THIRTEEN HUNDRED AND
EIGHTY.

In conformity to what I said in my prologue, that I would speak of the state and government of king Charles VI. of France, surnamed the well-beloved, in order to explain the causes of the divisions and quarrels of the princes of the blood royal during his reign and afterward, I shall devote this first chapter to that purpose.

True it is, that the above-mentioned king Charles the well-beloved, son to king Charles V. began to reign and was crowned at Rheims the Sunday before All-saints-day, in the year of Grace one thousand three hundred and eighty, as is fully described in the Chronicles of sir John Froissart. He was then but fourteen years old, and thenceforward for some time governed his

kingdom right well. By following prudent advice at the commencement of his reign, he undertook several expeditions, in which, considering his youth, he conducted himself soberly and valiantly, as well in Flanders, where he gained the battle of Rosebeque and reduced the Flemings to his obedience, as afterward in the valley of Cassel and on that frontier against the duke of Gueldres. He then made preparations at Sluys for an invasion of England. All which enterprises made him redoubted in every part of the world that heard of him.

But Fortune, who frequently turns her wheel against those of high rank as well as against those of low degree, began to play him her tricks^[15]; for, in the year one thousand three hundred and ninety-two, the king had resolved in his council to march a powerful army to the town of Mans, and thence invade Brittany, to subjugate and bring under his obedience the duke of Brittany, for having received and supported the lord Peter de Craon, who had beaten and insulted in Paris, to his great displeasure, sir Oliver de Clisson, his constable.

On this march, a most melancholy adventure befel him, which brought on his kingdom the utmost distress, and which I shall relate, although it took place prior to the date of this history.

During the time the king was on his march from Mans toward Brittany, attended by his princes and chivalry, he was suddenly seized with a disorder which deprived him of his reason. He wrested a spear from the hands of one of his attendants, and struck with it the varlet of the bastard of Langres, and slew him: he then killed the bastard of Langres, and struck the duke of Orleans, his brother, who, although well armed, was wounded in the shoulder. He next wounded the lord de Saint Py, and would have put him to death had not God prevented it; for in making his thrust, he fell to the ground,—when, by the diligence of the lord de Coucy and others his faithful servants, the spear was with difficulty taken from him. Thence he was conducted to the said town of Mans, and visited by his physicians, who thought his case hopeless: nevertheless, by the grace of God, he recovered better health, and his senses, but not so soundly as he possessed them before this accident. From that time he had frequent relapses,—and it was necessary, during his life, perpetually to look after him and keep him under strict observance.

From this unfortunate disorder may be dated all the miseries and desolations that befel his realm; for then begun all those jealousies between the princes of his blood, each contending for the government of the kingdom, seeing clearly that he was willing to act in any manner that those near his person desired, and in the absence of their rivals craftily advising him to their own private advantage, without attending to act in concert for the general good of the state. Some, however, acquitted themselves loyally, for which after their deaths, they were greatly praised.

This king had several sons and daughters, whose names now follow, that lived to man's estate; first, Louis, duke of Aquitaine, who espoused the eldest daughter of the duke of Burgundy, but died without issue before the king his father,—John, duke of Touraine, who married the only daughter of duke William of Bavaria, count of Hainault, who also died before his father, and without issue,—Charles, married to the daughter of king Louis II. of Naples, who had issue that will be noticed hereafter: he succeeded to the crown of France on the death of his father.

He had five daughters: Isabella, the eldest, was first married to king Richard II. of England, and afterward to Charles duke of Orleans, by whom she had a daughter: Jane, married to John duke of Brittany, had many children: Michelle espoused Philip duke of Burgundy, but had no issue: Mary was a nun at Poissy: Catherine, married to Henry V. of England, had a son, Henry, who succeeded, on the death of his father, to the throne of England. King Charles had all these children by his queen, Isabella^[16], daughter to Stephen duke of Bavaria.

CHAP. II.

AN ESQUIRE OF ARRAGON, NAMED MICHEL D'ORRIS, SENDS CHALLENGES TO ENGLAND.— THE ANSWER HE RECEIVES FROM A KNIGHT OF THAT COUNTRY.

At the beginning of this year one thousand four hundred, an esquire of Arragon, named Michel d'Orris, sent challenges to England of the following tenor:

'In the name of God and of the blessed virgin Mary, I Michel d'Orris, to exalt my name, knowing full well the renown of the prowess of the english chivalry, have, from the date of this present letter, attached to my leg a piece of the greve, to be worn by me until I be delivered from it by an english knight performing the following deeds of arms.

'First, to enter the lists on foot, each armed in the manner he shall please, having a dagger and sword attached to any part of his body, and a battle-axe, with the handle of such length as I shall fix on. The combat to be as follows: ten strokes with the battle axe, without intermission; and when these strokes shall have been given, and the judge shall cry out, 'Ho!' ten cuts with the sword, to be given without intermission or change of armour. When the judge shall cry out, 'Ho!' we will resort to our daggers, and give ten stabs with them. Should either party lose or drop his weapon, the other may continue the use of the one in his hand until the judge shall cry out, 'Ho!'

'When the combat on foot shall be finished, we will mount our horses, each armed as he shall please, but with two similar helmets of iron, which I will provide, and my adversary shall have the choice: each shall have what sort of gorget he pleases: I will also provide two saddles, for the choice of my

opponent. There shall also be two lances of equal lengths, with which twenty courses shall be run, with liberty to strike on the fore or hinder parts of the body, from the fork of the body upward.

‘These courses being finished, the following combats to take place: that is to say, should it happen that neither of us be wounded, we shall be bound to perform, on that or on the following day, so many courses on horseback until one fall to the ground, or be wounded so that he can hold out no longer, each person being armed as to his body and head according to his pleasure. The targets to be made of horn or sinews, without any part being of iron or steel, and no deceit in them. The courses to be performed with the before-mentioned lances and saddles, on horseback; but each may settle his stirrups as he pleases, but without any trick.

‘To add greater authenticity to this letter, I Michel d’Orris have sealed it with the seal of my arms, written and dated from Paris, Friday the 27th day of May, in the year 1400.’

The poursuivant Aly went with this letter to Calais, where it was seen by an english knight, called sir John Prendergast, who accepted the challenge, provided it were agreeable to his sovereign lord the king of England, and in consequence wrote the following answer to the arragonian esquire:

‘To the noble and honourable personage Michel d’Orris,—John Prendergast, knight, and familiar to the most high and puissant lord the earl of Somerset, sends greeting, honour and pleasure.

‘May it please you to know, that I have just seen your letter, sent hither by the poursuivant Aly, from which I learn the valiant desire you have for deeds of arms, which has induced you to wear on your leg a certain thing that is of pain to you, but which you will not take off until delivered by an english knight performing with you such deeds of arms as are mentioned in your aforesaid letter. I, being equally desirous of gaining honour and amusement like a gentleman to the utmost of my power, in the name of God, of the blessed virgin Mary, of my lords St George and St Anthony, have accepted and do accept your challenge, according to the best sense of the terms in your letter, as well to ease you from the pain you are now suffering as from the desire I have long had of making acquaintance with some of the french nobility, to learn more knowledge from them in the honourable profession of arms. But my acceptation of your challenge must

be subject to the good pleasure of my sovereign lord the king, that he may from his especial grace grant me liberty to fulfil it, either before his royal presence in England, or otherwise at Calais before my lord the earl of Somerset.

‘And since you mention in your letter, that you will provide helmets, from which your adversary may chuse, and that each may wear such gorgets as he shall please, I wish you to know, that to prevent any unnecessary delay by any supposed subtlety of mine respecting armour or otherwise, I will also bring with me two helmets and two gorgets for you, if you shall think proper, to chuse from them; and I promise you, on my loyalty and good faith, that I will exert all my own influence and that of my friends, to obtain the aforesaid permission, of which I hope to God I shall not be disappointed.

‘Should it be the good pleasure of the king to grant his consent, I will write to the governor of Boulogne on Epiphany-day next ensuing, or sooner if it be possible, to acquaint him of the time and place of combat, that you may be instantly informed of the willingness of my heart to comply with your request.

‘Noble, honourable and valiant lord, I pray the Author of all good to grant you joy, honour and pleasure, with every kind thing you may wish to the lady of your affections, to whom I entreat that these presents may recommend me. Written at Calais, and sealed with my seal, this 11th day of June, in the year aforesaid.’

This letter was sent to the arragonian esquire; but the english knight not receiving an answer so soon as he expected, and the matter seeming to be delayed, he again wrote as follows:

‘To the honourable Michel d’Orris, John Prendergast, knight, sends greeting.

‘Since to ease you from the penance you have suffered, and still do suffer, in wearing the stump of the greve on your leg, I have consented to deliver you by a combat at arms described in your former letters, sealed with the seal of your arms; and in consequence of the request made by me and by my friends to my sovereign lord and king, who has ordained the most excellent and puissant lord of Somerset, his brother, governor of Calais, to

be the judge of our combat, as I had written to you by Aly the poursuivant, in my letter bearing date the 11th day of last June, and which you ought to have received and seen in proper time.

‘This is apparent from letters of that noble and potent man the lord de Gaucourt, chamberlain to the king of France, bearing date the 20th day of January, declaring that he had forwarded my letter to you, to hasten your journey hitherward. You will have learnt from it that the day appointed for the fulfilment of our engagement is fixed for the first Monday in the ensuing month of May; for so it has been ordained by the king, our lord, in consequence of my solicitations. I must therefore obey; and since it has pleased that monarch, for various other weighty considerations touching his royal excellence, to order my lord, his brother, into other parts on the appointed day, he has condescended, at the humble requests of myself, my kindred and friends, to nominate for our judge his cousin, my much honoured lord Hugh Lutrellier^[17], lieutenant to my aforesaid lord of Somerset, in the government of Calais. I am therefore ready prepared to fulfil our engagement in arms, under the good pleasure of God, St George and St Anthony, expecting that you will not fail to meet me for the deliverance from your long penance; and, to accomplish this, I send you a passport for forty persons and as many horses.

‘I have nothing more now to add, for you know how much your honour is concerned in this matter. I entreat therefore Cupid, the god of love, as you may desire the affections of your lady, to urge you to hasten your journey.—Written at Calais, and sealed with my arms, the 2d day of January 1401.’

THE THIRD LETTER WRITTEN AND SENT BY THE ENGLISH KNIGHT TO THE ESQUIRE OF ARRAGON.

‘To the honourable man Michel d’Orris, John Prendergast, knight, sends greeting.

‘You will be pleased to remember, that you sent, by Aly the poursuivant, a general challenge, addressed to all english knights, written at Paris on Friday the 27th day of May 1400, sealed with the seal of your arms. You must likewise recollect the answer I sent to your challenge, as an english knight who had first seen your defiance; which answer, and all that has since passed between us, I have renewed in substance, in my letters sealed

with my arms, and bearing date the last day but one of April just passed. I likewise sent you a good and sufficient passport to come hither, and perform the promises held out by your letter, addressed to you in a manner similar to that of this present letter.

‘Know, therefore, that I am greatly astonished, considering the purport of my letters, that I have not received any answer, and that you have not kept your appointment, by meeting me on the day fixed on, nor sent any sufficient excuse for this failure. I am ignorant if the god of love, who inspired you with the courage to write your challenge, have since been displeased, and changed his ancient pleasures, which formerly consisted in urging on deeds of arms, and in the delights of chivalry.

‘He kept the nobles of his court under such good government^[18] that, to add to their honour, after having undertaken any deeds of arms, they could not absent themselves from the country where such enterprise was to be performed until it was perfectly accomplished, and this caused their companions not to labour or exert themselves in vain. I would not, therefore, he should find me so great a defaulter in this respect as to banish me from his court, and, consequently, shall remain here until the eighth day of this present month of May, ready, with the aid of God, of St George and of St Anthony, to deliver you, so that your lady and mine may know that, out of respect to them, I am willing to ease you of your penance, which, according to the tenor of your letter, you have suffered a long time, and have sufficient reason for wishing to be relieved from it.

‘After the above-mentioned period, should you be unwilling to come, I intend, under God’s pleasure, to return to England, to our ladies, where I hope to God that knights and esquires will bear witness that I have not misbehaved toward the god of love, to whom I recommend my lady and yours, hoping he will not be displeased with them for any thing that may have happened.—Written at Calais, and sealed with my arms, the 2d day of May 1401.’

THE ANSWERS THE ARRAGONIAN ESQUIRE SENT TO THE LETTERS OF THE ENGLISH KNIGHT.

‘To the most noble personage sir John Prendergast, knight,

‘I Michel d’Orris, esquire, native of the kingdom of Arragon, make known, that from the ardent and courageous desire I have had, and always shall have so long as it may please God to grant me life, to employ my time in arms, so suitable to every gentleman; knowing that in the kingdom of England there were very many knights of great prowess, who, in my opinion, had been too long asleep, to awaken them from their indolence, and to make acquaintance with some of them, I attached to my leg a part of a greve, vowing to wear it until I should be delivered by a knight of that country, and, in consequence, wrote my challenge at Paris, the 27th day of May in the year 1400, and which was carried by the poursuivant Aly, as your letters, dated the 11th of December, from Calais, testify.

‘I thank you for what is contained at the commencement of your said letter, since you seem willing to deliver me from the pain I am in, as your gracious expressions testify; and you declare you have long been desirous of making acquaintance with some valiant man of France. That you may not be ignorant who I am, I inform you that I am a native of the kingdom of Arragon, not that myself nor any greater person may claim a superior rank from having been born in France; for although no one can reproach the French with any disgraceful act, or with any thing unbecoming a gentleman, or that truth would wish to hide, yet no honest man should deny his country. I therefore assure you, that I have had, and shall continue to have, the same desire for the fulfilment of my engagement, according to the proposals contained in my letter, until it be perfectly accomplished.

‘It is true that I formed this enterprise while living in Arragon; but seeing I was too far distant from England for the speedy accomplishment of it, I set out for Paris, where I staid a very considerable time after I had sent off my challenge.

‘Business^[19] respecting my sovereign lord the king of Arragon forced me to leave France; and I returned very melancholy to my own country, and surprised at the dilatoriness of so many noble knights in the amusement I offered them, for I had not any answer during the space of two years that I was detained in Arragon from the quarrels of my friends.

‘I then took leave of my lord, and returned to Paris to learn intelligence respecting my challenge. I there found, at the hôtel of the lord de Gaucourt, in the hands of Jean d’Olmedo his esquire, your letters, which had been

brought thither after my departure for Arragon. Why they were brought hither after I had set out, I shall not say any thing, but leave every one to judge of the circumstance as he may please. Your letter has much astonished me, as well as other knights and esquires who have seen it, considering your good reputation in chivalry and strict observance of the laws of arms: you now wish to make alterations in the treaty, without the advice of any one, yourself choosing the judge of the field, and fixing the place of combat according to your pleasure and advantage, which, as every one knows, is highly improper. In regard to the other letters that were found lying at the hôtel de Gaucourt at Paris, underneath is the answer to them.'

CONCLUSION OF THE SECOND LETTER OF THE ARRAGONIAN ESQUIRE.

'In answer to the first part of your letter, wherein you say you have sent me letters and a passport to fulfil my engagement in arms, at the place and on the day that you have been pleased to fix on,—know for certain, and on my faith, that I have never received other letters than those given me at the hôtel de Gaucourt the 12th day of March, nor have I ever seen any passport. Doubtless, had I received your letters, you would very speedily have had my answers,—for it is the object nearest my heart to have this deed of arms accomplished; and for this have I twice travelled from my own country, a distance of two hundred and fifty leagues, at much inconvenience and great expense, as is well known.

'In your letters, you inform me, that you have fixed on Calais as the place where our meeting should be held in the presence of the noble and puissant prince the earl of Somerset; and afterward your letters say, that as he was otherwise occupied, your sovereign lord the king of England, at your request, had nominated sir Hugh Lutrellier, lieutenant to the earl of Somerset in his government of Calais, judge between us, without ever having had my consent, or asking for it, which has exceedingly, and with just cause, astonished me,—for how could you, without my permission, take such advantages as to name the judge of the field and fix on the place of combat?

'It seems to me, that you are very unwilling to lose sight of your own country; and yet our ancestors, those noble knights who have left us such

examples to follow, never acquired any great honours in their own countries, nor were accustomed to make improper demands, which are but checks to gallant deeds.

‘I am fully aware, that you cannot be so ignorant as not to know that the choice of the judge, and of the time and place of combat, must be made with the mutual assent of the two parties; and if I had received your letters, you should sooner have heard this from me.

‘With regard to what you say, that you are ignorant whether the god of love have banished me from his court, because I had absented myself from France, where my first letter was written, and whether he have caused me to change my mind,—I make known to you, that assuredly, without any dissembling, I shall never, in regard to this combat, change my mind so long as God may preserve my life; nor have there ever been any of my family who have not always acted in such wise as became honest men and gentlemen. When the appointed day shall come, which, through God’s aid, it shall shortly, unless it be by your own fault, I believe you will need good courage to meet a man whom you have suspected of having retracted his word. I therefore beg such expressions may not be used, as they are unproductive of good, and unbecoming knights and gentlemen, but attend solely to the deeds of arms of which you have given me hopes.

‘I make known to you, that it has been told me that you entered the lists at Calais alone as if against me, who was ignorant of every circumstance, and three hundred leagues distant from you. If I had acted in a similar way to you in the country where I then was (which God forbid), I believe my armour would have been little the worse for it, and my lances have remained as sound as yours were. You would undoubtedly have won the prize. I must, in truth, suppose, that this your extraordinary enterprise was not undertaken with the mature deliberation of friends, nor will it ever be praised by any who may perchance hear of it. Not, however, that I conclude from this that you want to make a colourable show by such fictions, and avoid keeping the promise you made of delivering me;—and I earnestly entreat you will fulfil the engagement you have entered into by your letters to me, for on that I rest my delight and hope of deliverance.

‘Should you not be desirous of accomplishing this, I have not a doubt but many english knights would have engaged so to do, had you not at first

undertaken it. Make no longer any excuses on account of the letters you have sent me, for I have explained wherein the fault lay. I am ready to maintain and defend my honour; and as there is nothing I have written contrary to truth, I wish not to make any alteration in what I have said.

‘Because I would not be so presumptuous to make choice of a place without your assent, I offer the combat before that most excellent and sovereign prince my lord the king of Arragon, or before the kings of Spain^[20], Portugal or Navarre; and should none of these princes be agreeable to you to select as our judge, to the end that I may not separate you far from your country, your lady and mine, to whose wishes I will conform to the utmost of my power, I am ready to go to Boulogne on your coming to Calais,—and then the governors of these two places, in behalf of each of us, shall appoint the proper time and place for the fulfilment of our engagement according to the terms of my letter, which I am prepared to accomplish, with the aid of God, of our Lady, of my lord St Michael and my lord St George.

‘Since I am so very far from my native country, I shall wait here for your answer until the end of the month of August next ensuing; and in the mean time, out of compliment to you, I shall no longer wear the stump of the greve fastened to my leg, although many have advised to the contrary. The month of August being passed without hearing satisfactorily from you, I shall replace the greve on my leg, and shall disperse my challenge throughout your kingdom, or wherever else I may please, until I shall have found a person to deliver me from my penance. That you may place greater confidence in what I have written, I have put to these letters the seal of my arms, and to the parts marked A, B, C, my sign manual, which parts were done and written at Paris the 4th day of September 1401.’

THE CHALLENGE OF THE ARRAGONIAN ESQUIRE.

‘In the name of the holy Trinity, the blessed virgin Mary, of my lord St Michael the archangel, and of my lord St George,—I, Michel d’Orris, esquire, a native of the kingdom of Arragon, make known to all the knights of England, that, to exalt my name and honour, I am seeking deeds of arms.

‘I know full well, that a noble chivalry exists in England,—and I am desirous of making acquaintance with the members of it, and learning from them feats of arms. I therefore require from you, in the name of knighthood,

and by the thing you love most, that you will deliver me from my vow by such deeds of arms as I shall propose.

‘First, to enter the lists on foot, and perform the deeds specified in my first letter; and I offer, in order to shorten the matter, to show my willingness and diligence to present myself before your governor of Calais within two months after I shall have received your answer sealed with the seal of your arms, if GOD should grant me life and health. And I will likewise send, within these two months, the two helmets, two saddles, and the measure of the staves to the battle-axes and spears.

‘I beg of that knight, who, from good will, may incline to deliver me, to send me a speedy, honourable, and agreeable answer, such as I shall expect from such noble personages. Have forwarded to me a good and sufficient passport for myself and my companions, to the number of thirty-five horses, at the same time with your answer, by Longueville, the bearer of this letter; and that it may have the greater weight, I have signed it with my sign manual, and sealed it with my arms, dated Paris, the 1st day of January, 1402.’

THE FOURTH LETTER OF THE ARRAGONIAN ESQUIRE.

‘To the honour of GOD, Father of all things, and the blessed virgin Mary, his mother, whose aid I implore, that she would, through her grace, comfort and assist me to the fulfilment of the enterprise I have formed against all english knights,—I Michel d’Orris, a native of the kingdom of Arragon, proclaim, as I have before done in the year 1400, like as one abstracted from all cares, having only the remembrance before me of the great glories our predecessors in former times acquired from the excellent prowess they displayed in numberless deeds of arms; and longing in my heart to gain some portion of their praise, I made dispositions to perform some deeds of arms with such english knight who by his prowess might deliver me from my vow. My challenge was accepted by a noble and honourable personage called sir John Prendergast, an english knight, as may be seen by the letters I have received from him. And that the conclusion I draw may be clearly seen, I have incorporated my letters with the last letters the said sir John Prendergast has lately sent me, as they include every circumstance relative

to the fact. These letters, with my third letter, I sent back by Berry king at arms to Calais, to be delivered to sir John Prendergast.

‘The herald, on his return, brought me for answer, that he had been told by the most potent prince the earl of Somerset, governor of Calais, that he had, within the month of August, sent answers to my former letters to Boulogne, although the enterprise had not been completed. In honour, therefore, to this excellent prince, the governor of Calais, who through humility had taken charge to send the letters to Boulogne (as reported to me by the king at arms), by Faulcon king at arms in England, and in honour of chivalry, and that on no future occasion it may be said I was importunately pressing in my pursuit, I have waited for the space of one month after the expiration of the above term, for the delivery of this answer; and that my willingness and patience may be notorious, and approved by every one, I have hereafter inserted copies of all my letters. If, therefore, you do not now deliver me, I shall no more write to England on this subject,—for I hold your conduct as very discourteous and ungentlemanly, when you have so often received my request, as well by the poursuivant Aly, at present called Heugueville, in the letters delivered by him in England in the year 1401, as by other similar ones presented you by the poursuivant Graville, reciting my first general challenge, drawn up at the hôtel of my lord de Gaucourt at Plessis, the 12th day of May 1402, and by other letters sent by me to you by Berry king at arms, and which were received by that most potent prince the earl of Somerset, governor of Calais, written at Paris the 22d day of July 1402, which is apparent by these presents, and by my other letters written from Paris the 12th day of June 1403, which are here copied, presented by the herald Heugueville, to the most potent prince the earl of Somerset, governor of Calais. To all which letters I have not found any one knight to send me his sealed answer and acceptance of my propositions.

‘I may therefore freely say, that I have not met with any fellowship or friendship where so much chivalry abounds as in the kingdom of England, although I have come from so distant a country, and prosecuted my request for nearly two years; and that I must necessarily return to my own country without making any acquaintance with you, for which I have a great desire, as is clear from the tenor of all my letters. Should I thus depart from you without effecting my object, I shall have few thanks to give you, considering the pain I am suffering, and have suffered for so long a time. If

I do not receive an answer from you within fifteen days after the date of this present letter, my intention is, under the good pleasure of GOD, of our Lady, of my lords St Michael and St George, to return to my much-redoubted and sovereign lord the king of Arragon. Should you, within fifteen days, have any thing to write to me, I shall be found at the hôtel of my lord the provost of Paris.

‘I have nothing more to add, but to entreat you will have me in your remembrance, and recollect the pain I am suffering. To add confidence to this letter, I have signed it with my sign manual, and sealed it with the seal of my arms. I have also caused copies to be made of our correspondence, marked A, B, C, one of which I have retained. Written at Paris, the 10th day of May, 1403.’

In consequence of this letter, Perrin de Loharent, sergeant at arms to the king of England, calling himself a proxy in this business for the english knight, sent an answer to the esquire of Arragon, conceived in such terms as these:

‘To the most noble esquire, Michel d’Orris. I signify to you, on the part of my lord John Prendergast, that if you will promptly pay him all the costs and charges he has been at to deliver you by deeds of arms, according to the proposals in your letter, which deeds have not been accomplished from your own fault, he will cheerfully comply with your request; otherwise know, that he will not take any further steps towards it, nor suffer any knight or esquire, on this side of the sea, to deliver you, or send you any answer to your letter. If, however, you send him five hundred marcs sterling for his expenses, which he declares they have amounted to, I certify that you shall not wait any length of time before you be delivered by the deeds of arms offered in your challenge.

‘I therefore advise you as a gentleman, that should you not think proper to remit the amount of the expenses, you be careful not to speak slightly of the english chivalry, nor repeat that you could not find an english knight to accept of your offer of combat, as you have said in your last letter; for should that expression be again used, I inform you, on the part of sir John Prendergast, that he will be always ready to maintain the contrary in the defence of his own honour, which you have handled somewhat too roughly, according to the opinion of our lords acquainted with the truth, who think

sir John has acted like a prudent and honourable man. You will send your answer to this letter, and what may be your future intentions, by Châlons the herald, the bearer of these presents; and that you may have full confidence in their contents, I have signed and sealed them myself at Paris in the year 1404.'

This affair, notwithstanding the letters that have been reported, never came to any other conclusion.

CHAP. III.

GREAT PARDONS^[21] GRANTED AT ROME.

During this year, the court of Rome granted many pardons, whither an infinity of persons went from all parts of Christendom to receive them. An universal mortality took place about the time, which caused the deaths of multitudes; and in the number, very many of the pilgrims suffered from it at Rome.

[A. D. 1401.]

CHAP. IV.

JOHN OF MONTFORT, DUKE OF BRITTANY, DIES.—
THE EMPEROR DEPARTS FROM PARIS.—ISABELLA
QUEEN OF ENGLAND RETURNS TO FRANCE.

At the beginning of this year, John of Montfort, duke of Brittany, died, and was succeeded by his eldest son John, married to a daughter of the king of France, and who had several brothers and sisters^[22]. About the same time, the emperor of Constantinople^[23], who had made a long stay at Paris, at the charges of the king of France, set out, with all his attendants, for England, where he was very honourably received by king Henry and his princes; thence he returned to his own country^[24].

Many able ambassadors had, at various times, been sent from France to England, and from England to France, chiefly to negotiate with the king of England for the return of queen Isabella, daughter to the king of France and widow of king Richard II. with liberty to enjoy the dower that had been settled upon her by the articles of marriage. The ambassadors at length brought the matter to a conclusion, and the queen was conducted to France by the lord Thomas Percy, constable of England, having with him many knights, esquires, ladies and damsels, to accompany her.

She was escorted to the town of Leulinghem, between Boulogne and Calais, and there delivered to Waleran count of Saint Pol^[25], governor of Picardy, with whom were the bishop of Chartres and the lord de Heugueville to receive her. The damsel of Montpensier, sister to the count de la Marche, and the damsel of Luxembourg, sister to the count de St Pol, with other ladies and damsels sent by the queen of France, were likewise present.

When both parties had taken leave of each other, the count de St Pol conducted the queen and her attendants to the dukes of Burgundy and Bourbon, who with a large company were waiting for them on an eminence hard by.

She was received by them with every honour, and thence escorted to Boulogne, and to Abbeville, where the duke of Burgundy, to celebrate her return to France, made a grand banquet, and then, taking his leave of her, he went back to Artois. The duke of Bourbon and the rest who had been at this feast conducted her to the king and queen, her parents, at Paris. She was most kindly received by them; but although it was said that she was honourably sent back, yet there was not any dower or revenue assigned her from England, which caused many of the french princes to be dissatisfied with the king of England, and pressing with the king of France to declare war against him.

CHAP. V.

THE DUKE OF BURGUNDY, BY ORDERS FROM THE KING OF FRANCE, GOES INTO BRITTANY, AND THE DUKE OF ORLEANS TO LUXEMBOURG.—A QUARREL ENSUES BETWEEN THEM.

This same year, the duke of Burgundy went to Brittany to take possession of it in the king's name for the young duke. The country soon submitted to him, and he continued his journey to Nantes to visit the duchess-dowager, sister to the king of Navarre^[26], who had entered into engagements speedily to marry Henry IV. of England.

The duke was her uncle, and treated with her successfully for the surrender of her dower lands to her children, on condition that she received annually a certain sum of money in compensation. When this had been concluded, and the duke had placed garrisons in the king's name in some of the strong places of the country, he returned to Paris, carrying with him the young duke and his two brothers, who were graciously received by the king and queen.

The duke of Orleans had at this time gone to take possession of the duchy of Luxembourg^[27], with the consent of the king of Bohemia, to whom it belonged, and with whom he had concluded some private agreement. Having placed his own garrisons in many of the towns and castles of this duchy, he returned to France,—when shortly after a great quarrel took place between the duke of Orleans and his uncle the duke of Burgundy; and it rose to such a height that each collected a numerous body of men at arms round Paris. At length, by the mediation of the queen and the dukes of Berry and Bourbon, peace was restored, and the men at arms were sent back to the places whence they had come.

CHAP. VI.

CLEMENT DUKE OF BAVARIA IS ELECTED EMPEROR OF GERMANY, AND AFTERWARD CONDUCTED WITH A NUMEROUS RETINUE TO FRANKFORT.

This year, Clement duke of Bavaria^[28] was elected emperor of Germany, after the electors had censured and deposed the king of Bohemia. Clement was conducted by them to Frankfort, with an escort of forty thousand armed men, and laid siege to the town because it had been contrary to his interests. He remained before it forty days, during which time an epidemical disorder raged in his army, and carried off fifteen thousand of his men. A treaty was begun at the expiration of the forty days, when the town submitted to the emperor.

The towns of Cologne, Aix, and several more followed this example, and gave him letters of assurance that his election had been legally and properly made. He was after this crowned by the bishop of Mentz; and at his coronation many princes and lords of the country made splendid feasts, with tournaments and other amusements.

When these were over, the emperor sent his cousin-german the duke of Bavaria, father to the queen of France, to Paris, to renew and confirm the peace between him and the king of France. Duke Stephen was joyfully received on his arrival at Paris by the queen and princes of the blood,—but the king was at that time confined by illness.

When he had made his proposals, a day was fixed on to give him an answer; and the princes told him, that in good truth they could not conclude a peace to the prejudice of their fair cousin the king of Bohemia, who had been duly elected and crowned emperor of Germany. When the duke of Bavaria had received this answer, he returned through Hainault to the new

emperor. He related to him all that had passed in France, and the answer he had received, with which he was not well pleased, but he could not amend it.

The emperor, soon after this, proposed marching a powerful army, under his own command, to Lombardy, to gain possession of the passes, and sent a detachment before him for this purpose, but his troops were met by an army from the duke of Milan^[29], who slew many, and took numbers prisoners. Among the latter was sir Girard, lord of Heraucourt, marshal to the duke of Austria, and several other persons of distinction. This check broke up the intended expedition of the emperor.

CHAP. VII.

HENRY OF LANCASTER, KING OF ENGLAND, COMBATS THE PERCIES AND WELSHMEN, WHO HAD INVADED HIS KINGDOM, AND DEFEATS THEM.

About the month of March, in this year, great dissensions arose between Henry, king of England, and the family of Percy and the Welsh, in which some of the Scots took part, and entered Northumberland with a considerable force. King Henry had raised a large army to oppose them, and had marched thither to give them battle; but, at the first attack, his vanguard was discomfited. This prevented the second division from advancing, and it being told the king, who commanded the rear, he was animated with more than usual courage, from perceiving his men to hesitate, and charged the enemy with great vigour. His conduct was so gallant and decisive that many of the nobles of both parties declared he that day slew, with his own hand, thirty-six men at arms.

He was thrice unhorsed by the earl of Douglas's spear, and would have been taken or killed by the earl, had he not been defended and rescued by his own men. The lord Thomas Percy was there slain, and his nephew Henry made prisoner, whom the king ordered instantly to be put to death before his face. The earl of Douglas was also taken, and many others. After this victory, king Henry departed from the field of battle, joyful at the successful event of the day. He sent a body of his men at arms to Wales, to besiege a town of that country which was favourable to the Percies^[30].

[A. D. 1402.]

CHAP. VIII.

JOHN DE VERCHIN, A KNIGHT OF GREAT RENOWN,
AND SENESCHAL OF HAINAULT, SENDS, BY HIS
HERALD, A CHALLENGE INTO DIVERS
COUNTRIES, PROPOSING A DEED OF ARMS.

At the beginning of this year, John de Verchin^[31], a knight of high renown and seneschal of Hainault, sent letters, by his herald, to the knights and esquires of different countries, to invite them to a trial of skill in arms, which he had vowed to hold, the contents of which letters were as follows:

‘To all knights and esquires, gentlemen of name and arms, without reproach, I Jean de Verchin, seneschal of Hainault, make known, that with the aid of GOD, of our Lady, of my lord St George, and of the lady of my affections, I intend being at Coucy the first Sunday of August next ensuing, unless prevented by lawful and urgent business, ready on the morrow to make trial of the arms hereafter mentioned, in the presence of my most redoubted lord the duke of Orleans, who has granted me permission to hold the meeting at the above place.

‘If any gentleman, such as above described, shall come to this town to deliver me from my vow, we will perform our enterprise mounted on horseback, on war saddles without girths. Each may wear what armour he pleases, but the targets must be without covering or lining of iron or steel. The arms to be spears of war, without fastening or covering, and swords. The attack to be with spears in or out of their rests; and each shall lay aside his target, and draw his sword without assistance. Twenty strokes of the

sword to be given without intermission, and we may, if we please, seize each other by the body.

‘From respect to the gentleman, and to afford him more pleasure, for having had the goodness to accept my invitation, I promise to engage him promptly on foot, unless bodily prevented, without either of us taking off any part of the armour which we had worn in our assaults on horseback: we may, however, change our vizors, and lengthen the plates of our armour, according to the number of strokes with the sword and dagger, as may be thought proper, when my companion shall have determined to accomplish my deliverance by all these deeds of arms, provided, however, that the number of strokes may be gone through during the day, at such intermissions as I shall point out.

‘In like manner, the number of strokes with battle-axes shall be agreed on; but, in regard to this combat, each may wear the armour he pleases. Should it happen (as I hope it will not), that in the performance of these deeds of arms, one of us be wounded, insomuch that during the day he shall be unable to complete the combat with the arms then in use, the adverse party shall not make any account of it, but shall consider it as if nothing had passed.

‘When I shall have completed these courses, or when the day shall be ended, with the aid of GOD, of our Lady, of my lord St George, and of my lady, I shall set out from the said town, unless bodily prevented, on a pilgrimage to my lord St James at Compostella. Whatever gentleman of rank I may meet going to Galicia, or returning to the aforesaid town of Coucy, that may incline to do me the honour and grace to deliver me with the same arms as above, and appoint an honourable judge, without taking me more than twenty leagues from my strait road, or obliging me to return, and giving me assurance from the judge, that the combat, with the aforesaid arms, shall take place within five days from my arrival in the town appointed for it,—I promise, with the aid of GOD and my lady, if not prevented by bodily infirmity, to deliver them promptly on foot, as soon as they shall have completed the enterprise, according to the manner specified, with such a number of strokes with the sword, dagger and battle-axe, as may be thought proper to fix upon.

‘Should it happen, after having agreed with a gentleman to perform these deeds of arms, as we are proceeding toward the judge he had fixed upon, that I should meet another gentleman willing to deliver me, who should name a judge nearer my direct road than the first, I would in that case perform my trial in arms with him whose judge was the nearest; and when I had acquitted myself to him, I would then return to accomplish my engagement with the first, unless prevented by any bodily infirmity. Such will be my conduct during the journey, and I shall hold myself acquitted to perform before each judge my deeds of arms; and no gentleman can enter the lists with me more than once,—and the staves of our arms shall be of equal lengths, which I will provide and distribute when required. All the blows must be given from the bottom of the plate-armour to the head: none others will be allowed as legal.

‘That all gentlemen who may incline to deliver me from my vow may know the road I propose to follow, I inform them, that under the will of God, I mean to travel through France to Bordeaux,—thence to the country of Foix, to the kingdoms of Navarre and Castille, to the shrine of my lord St James at Compostella. On my return, if it please God, I will pass through the kingdom of Portugal,—thence to Valencia, Arragon, Catalonia, and Avignon, and recross the kingdom of France, having it understood if I may be permitted to travel through all these countries in security, to perform my vow, excepting the kingdom of France and county of Hainault.

‘That this proposal may have the fullest assurance, I have put my seal to this letter, and signed it with my own hand, in the year of the incarnation of our Lord, the 1st day of June, 1402.’

The seneschal, in consequence of this challenge, went to Coucy, where he was received very graciously by the duke of Orleans; but no one appeared to enter the lists with him on the appointed day. In a few days, he set out on his pilgrimage to the shrine of St James, during which he performed his deeds of arms in seven places, during seven days, and behaved himself so gallantly that those princes who were appointed judges of the field were greatly satisfied with him.

CHAP. IX.

THE DUKE OF ORLEANS, BROTHER TO THE KING OF FRANCE, SENDS A CHALLENGE TO THE KING OF ENGLAND.—THE ANSWER HE RECEIVES.

In the year 1402, Louis duke of Orleans, brother to the king of France, sent a letter to the king of England, proposing a combat between them, of the following tenor:

‘I Louis, by the grace of God, son and brother to the kings of France, duke of Orleans, write and make known to you, that with the aid of God and the blessed Trinity, in the desire which I have to gain renown, and which you in like manner should feel, considering idleness as the bane of lords of high birth who do not employ themselves in arms, and thinking I can no way better seek renown than by proposing to you to meet me at an appointed place, each of us accompanied with one hundred knights and esquires, of name and arms without reproach, there to combat together until one of the parties shall surrender; and he to whom God shall grant the victory shall do with his prisoners as it may please him. We will not employ any incantations that are forbidden by the church, but make every use of the bodily strength granted us by God, having armour as may be most agreeable to every one for the security of his person, and with the usual arms; that is to say, lance, battle-axe, sword and dagger, and each to employ them as he shall think most to his advantage, without aiding himself by any bodkins, hooks, bearded darts, poisoned needles or razors, as may be done by persons unless they be positively ordered to the contrary.

‘To accomplish this enterprise, I make known to you, that if God permit, and under the good pleasure of our Lady and my lord St Michael, I propose (after knowing your intentions) to be at my town of Angoulême, accompanied by the aforesaid number of knights and esquires. Now, if your

courage be such as I think it is, for the fulfilment of this deed of arms, you may come to Bordeaux, when we may depute properly-qualified persons to fix on a spot for the combat, giving to them full power to act therein as if we ourselves were personally present.

‘Most potent and noble prince, let me know your will in regard to this proposal, and have the goodness to send me as speedy an answer as may be; for in all affairs of arms, the shortest determination is the best, especially for the kings of France and great lords and princes; and as many delays may arise from business of importance, which must be attended to, as well as doubts respecting the veracity of our letters, that you may know I am resolved, with God’s help, on the accomplishment of this deed of arms, I have signed this letter with my own hand, and sealed it with the seal of my arms. Written at my castle of Coucy^[32], the 7th day of August 1402.’

THE ANSWER OF KING HENRY TO THE LETTER OF THE DUKE OF ORLEANS.

‘Henry, by the grace of God, king of England and France, and lord of Ireland, to the high and mighty prince Louis, duke of Orleans.

‘We write to inform you, that we have seen your letter, containing a request to perform a deed of arms; and, from the expressions contained therein, we perceive that it is addressed to us, which has caused us no small surprise, for the following reasons.

‘First, on account of the truce agreed on, and sworn to, between our very dear lord and cousin king Richard, our predecessor, whom God pardon! and your lord and brother,—in which treaty, you are yourself a party. Secondly, on account of the alliance that was made between us at Paris,—for the due observance of which you made oath, in the hands of our well-beloved knights and esquires, sir Thomas de Spinguchen^[33], sir Thomas Ramson, and John Morbury, and likewise gave to them letters signed with your great seal, reciting this treaty of alliance, which I shall hereafter more fully state.

‘Since you have thought proper, without any cause, to act contrary to this treaty, we shall reply as follows, being desirous that God, and all the world, should know it has never been our intention to act any way contradictory to what we have promised. We therefore inform you, that we have annulled

the letter of alliance received from you, and throw aside henceforward all love and affection toward you; for it seems to us that no prince, lord, knight, or any person whatever, ought to demand a combat from him with whom a treaty of friendship exists.

‘In reply to your letter, we add, that considering the very high rank in which it has pleased God to place us, we are not bound to answer any such demands unless made by persons of equal rank with ourselves. With regard to what you say, that we ought to accept your proposal to avoid idleness,—it is true we are not so much employed in arms and honourable exploits as our noble predecessors have been; but the all-powerful God may, when he pleases, make us follow their steps, and we, through the indulgence of his grace, have not been so idle but that we have been enabled to defend our honour.

‘With regard to the proposal of meeting you at a fixed place with one hundred knights and esquires of name and arms, and without reproach, we answer, that until this moment none of our royal progenitors have been thus challenged by persons of less rank than themselves, nor have they ever employed their arms with one hundred or more persons in such a cause; for it seems to us that a royal prince ought only to do such things as may redound to the honour of God, and to the profit of all Christendom and his own kingdom, and not through vain glory nor selfish advantage. We are determined to preserve the state God has intrusted to us,—and whenever we may think it convenient we shall visit our possessions on your side of the sea, accompanied by such numbers of persons as we may please; at which time, if you shall think proper, you may assemble as many persons as you may judge expedient to acquire honour in the accomplishment of all your courageous desires,—and should it please God, our Lady, and my lord St George, you shall not depart until your request be so fully complied with that you shall find yourself satisfied by a combat between us two personally so long as it may please God to suffer it, which mode I shall prefer to prevent any greater effusion of Christian blood. God knows, we will that no one should be ignorant that this our answer does not proceed from pride or presumption of heart, which every wise man who holds his honour dear should avoid, but solely to abase that haughtiness and over presumption of any one, whosoever he may be, that prevents him from knowing himself. Should you wish that those of your party be without reproach, be more

cautious in future of your letters, your promises and your seal, than you have hitherto been. That you may know this is our own proper answer, formed from our knowledge of you, and that we will maintain our right whenever God pleases, we have sealed with our arms this present letter. Given at our court of London, the 5th day of December, in the year of Grace 1402, and in the 4th of our reign.'

THE LETTER OF ALLIANCE BETWEEN THE DUKE OF ORLEANS AND THE DUKE OF LANCASTER.

'Louis, duke of Orleans, count de Valois, Blois and de Beaumont, to all whom these presents may come, health and greeting. We make known by them, that the most potent prince, and our very dear cousin, Henry, duke of Lancaster and Hereford, earl of Derby, Lincoln, Leicester and Northampton, has given us his love and friendship. Nevertheless, being desirous of strengthening the ties of this affection between us, seeing that nothing in this world can be more delectable or profitable:

'In the name of God and the most holy Trinity, which is a fair example and sound foundation of perfect love and charity, and without whose grace nothing can be profitably concluded,—to the end that the form and manner of this our friendship may be reputed honourable, we have caused the terms of it to be thus drawn up. First, we both hold it just and right to except from it all whom we shall think proper; and conformably thereto we except, on our part, the following persons: first, our very mighty and puissant prince and lord Charles, by the grace of God king of France; my lord the dauphin, his eldest son, and all the other children of my foresaid lord; the queen of France; our very dear uncles the dukes of Berry, Burgundy and Bourbon; those most noble princes, our dear cousins, the king of the Romans and of Bohemia; the king of Hungary, his brother and their uncles, and Becop^[34] marquis of Moravia; and also all our cousins, and others of our blood, now living, or that may be born, as well males as females, and our very dear father the duke of Milan, whose daughter we have married. This relationship must make us favourable to his honour. Also those noble princes, and our very dear cousins, the kings of Castille and of Scotland, with all the other allies of our foresaid lord. To whom must likewise be added our very dear cousin the duke of Lorraine^[35], the count of Cleves^[36],

the lord de Clisson, and all our vassals bound to us by faith and oath, whom we hold ourselves obliged to guard from ill, since they have submitted to our obedience and commands.

‘Item, The duke of Lancaster and myself will be always united in the strictest ties of love and affection, as loyal and true friends should be.

‘Item, Each of us will be, at all times and places, friendly to one another, and to our friends, and enemies to our enemies, as will be honourable and praise-worthy.

‘Item, We will each, in all times and places, aid and assist the other in the defence of his person, his fortune, honour and estate, as well by words as deeds, diligently and carefully in the most honourable manner.

‘Item, In times of war and discord we will mutually defend each other against all princes, lords and barons, with the utmost good will, and also against any corporation, college or university, by every means in our power, engines, councils, force, men at arms, subsidies, or by whatever other means we may think most efficient to make war on and oppose the enemies of either of us; and we will exert ourselves to the utmost against every person whatever, excepting those who have been before excepted, in every lawful and honourable manner.

‘Item, All the above articles we will strictly observe so long as the truces shall continue between my aforesaid sovereign lord and king and the king of England, and should a more solid peace be formed, so long as that peace shall last, without infringing an article. In witness of which we have caused these articles to be drawn up, and have appended our seal thereto. Done at Paris the 17th day of June, in the year of Grace 1396.’

THE SECOND LETTER OF THE DUKE OF ORLEANS, IN REPLY TO THAT FROM THE KING OF ENGLAND.

‘High and mighty prince Henry, king of England,—I, Louis, by the grace of God, son and brother to the kings of France, duke of Orleans, write, to make known to you, that I received, as a new year’s gift, the first day of January, by the hands of your herald Lancaster, king at arms, the letter you have written to me, in answer to the one I sent to you by Champagne, king at arms, and Orleans my herald, and have heard its contents.

‘In regard to your ignorance, or pretended ignorance, whether my letter could have been addressed to you, your name was on it, such as you received at the font, and by which you were always called by your parents when they were alive. I had not indeed given you your new titles at length, because I do not approve of the manner whereby you have attained them,—but know that my letter was addressed to you.

‘In regard to your being surprised at my requesting to perform a deed of arms with you during the existence of the truce between my most redoubted lord the king of France and the high and mighty prince king Richard, my nephew, and your liege lord lately deceased, (God knows by whose orders) as well as an alliance of friendship subsisting between us, of which you have sent me a copy,—that treaty is now at an end by your own fault; first, by your having undertaken your enterprise against your sovereign lord king Richard, whom God pardon! who was the ally of my lord the king of France by marriage with his daughter, as well as by written articles, sealed with their seals, to the observance of which the kindred on each side made oath, in the presence of the two monarchs and their relations, in their different countries.

‘You may have seen in those articles, of which you sent me a copy, that the allies of my said lord the king were excepted, and may judge whether I can honestly now have any friendship for you; for at the time I made the said alliance I never conceived it possible you could have done against your king what it is well known you have done.

‘In regard to your objection, that no knight, of whatever rank he may be, ought to request a deed of arms until he shall have returned the articles of alliance, supposing such to exist between them, I wish to know whether you rendered to your lord, king Richard, the oath of fidelity you made to him before you proceeded in the manner you have done against his person.

‘In respect to your throwing up my friendship, know, that from the moment I was informed of the acts you committed, against your liege lord, I had not any expectation that you could suppose you would place any dependance on me,—for you must have known that I could not have any desire to preserve your friendship.

‘With regard to your high situation, I do not think the divine virtues have placed you there. God may have dissembled with you, and have set you on

a throne, like many other princes, whose reign has ended in confusion. And, in consideration of my own honour, I do not wish to be compared with you.

‘You say, you shall be always eager to defend your honour, which has been ever unblemished. Enough on that head is sufficiently known in all countries.

‘As for your intentions of visiting your possessions on this side of the sea, without informing me of your arrival, I assure you, that you shall not be there long without hearing from me; for, if God permit, I will accomplish what I have proposed, if it be not your fault.

‘In regard to your telling me, that your progenitors have not thus been accustomed to be challenged by those of less degree than themselves,—who have been my ancestors, I need not be my own herald, for they are well known to all the world. And in respect to my personal honour, through the mercy of God, it is without reproach, as I have always acted like a loyal and honest man, as well toward my God as to my king and his realm: whoever has acted, or may act otherwise, though he hold the universe in his hand, is worthless, and undeserving of respect.

‘You tell me, that a prince ought to make his every action redound to the honour of God, to the common advantage of all Christendom, and the particular welfare of his kingdom, and not through vain glory, nor for selfish purposes. I reply, that you say well; but if you had acted accordingly in your own country, many things done there by you, or by your orders, would not have taken place.

‘How could you suffer my much redoubted lady the queen of England to return so desolate to this country after the death of her lord, despoiled, by your rigour and cruelty, of her dower, which you detain from her, and likewise the portion she carried hence on her marriage? The man who seeks to gain honour is always the defender and guardian of the rights of widows and damsels of virtuous life, such as my niece was known to lead. And as I am so nearly related to her, acquitting myself toward God and toward her, as a relation, I reply, that to avoid effusion of blood, I will cheerfully meet you in single combat, or with any greater number you may please, and that through the aid of God, of the blessed virgin Mary, and of my lord St Michael, so soon as I shall receive your answer to this letter, whether body to body or with any greater number than ourselves, you shall find me doing

my duty, for the preservation of my honour, in such wise as the case may require.

‘I return you thanks, in the name of those of my party, for the greater care you seem to have of their healths than you had for that of your sovereign and liege lord.

‘You tell me, that he who is not void of discernment in regard to his own condition will be desirous of selecting irreproachable companions. Know, that I am not ignorant who I am, nor who are my companions; and I inform you, that you will find us loyal and honest, for such we have been ever reported. And, thanks to God, we have never done any thing by word or deed but what has been becoming loyal gentlemen. Do you and your people look to yourselves, and write me back your intention as to what I have offered, which I am impatient to know. That you may be assured this letter has been written by me, and that, through God’s aid, I am resolved to execute my purpose, I have put to it the seal of my arms, and signed it with my own hand, on the morrow of the feast of our Lady, the 26th day of March, 1402.’

THE REPLY OF KING HENRY TO THIS SECOND LETTER OF THE DUKE OF ORLEANS.

‘Henry, king of England and lord of Ireland, to Louis de Valois, duke of Orleans.

‘We write to inform you, that we have received, the last day of this present month of April, the letter you have sent to us by Champagne king at arms and your herald Orleans, intending it as an answer to the one from us, received by you, on the 26th day of last January, from the hands of Lancaster king at arms, our herald. Your letter is dated the 26th day of March, in the year 1402, and we have heard its contents.

‘Considering all things, more especially the situation in which it has pleased God to place us, we ought not to make you any reply to the request you make, nor to the replications since your first letter. However, as you attack our honour, we send you this answer, recollecting we did reply to your first request, which you pretended arose from the hot spirit of youth, and your earnest desire to gain renown in arms. It seems by your present letter, that

this desire has taken a frivolous turn, and that you wish for a war of words, thinking that by defaming our person, you may overwhelm us with confusion, which God grant may fall, and more justly, on yourself! We are therefore moved, and not without cause, to make answer to the principal points of your letter, in manner as will hereafter to you more plainly appear, considering that it does not become our state nor honour to do so by chiding; but in respect to such frivolous points, replete with malice, we shall not condescend to make any answer, except declaring that all your reproaches are false.

‘First, in regard to the dignity we hold, that you write you do not approve it, nor the manner by which we have obtained it. We are certainly very much surprised at this, for we made you fully acquainted with our intentions before we departed from France; at which time you approved of it, and even promised us aid against our very dear lord and cousin, king Richard, whom God pardon! We would not accept of your assistance; and we hold your approbation or disapprobation of our undertaking of little worth, since it has pleased God, by his gracious favour, to approve of it, as well as the inhabitants of our kingdom. This is a sufficient reply to such as would deny our right,—and I am confident in the benign grace of God, who has hitherto guarded us, that he will continue his gracious mercy and bring the matter to so happy a conclusion that you shall be forced to acknowledge the dignity we enjoy, and the right we have to it.

‘In regard to that passage in your letter, where you speak of the decease of our very dear cousin and lord, whom God pardon! adding, God knows how it happened, and by whom caused,—we know not with what intent this expression has been used; but if you mean, or dare to say, that his death was caused by our order or consent, it is false, and will be a falsehood every time you utter it,—and this we are ready to prove, through the grace of God, in personal combat, if you be willing and have the courage to dare it.

‘As to your saying, that you would have preserved the alliance made between us, if we had not undertaken such offensive measures against our very dear lord and cousin, who was so intimately related to your lord and brother by marriage and treaties sealed with their seals, adding, that at the time you made the alliance with us, you never imagined we should have acted against our very dear lord and cousin, as is publicly known to have

been done by us,—we reply, we have done nothing against him but what we would have dared to do before God and the whole world.

‘You say, that we might have seen in the bond of alliance what persons were excepted in it, and whether our very dear and well beloved cousin, the lady Isabella, your much honoured lady and niece, was not comprehended in those excepted. We know that you excepted them in general; but when, at your request, I entered into this alliance, you did not make any specific exceptions of them, like to what you did respecting your fair uncle of Burgundy; and yet the principal cause of your seeking our friendship, and requesting this alliance to be made, was your dislike to your uncle of Burgundy, which we can prove whenever we please, and then all loyal men will see if you have not been defective in your conduct as to our alliance; and though hypocrisy may not avail before God, it may serve to blind mankind.

‘When you maintain that, after you were acquainted with the pretended act done by us against our aforesaid lord and cousin, you lost all hope that I would abide by any agreement entered into with you, or any other person, we must suppose that you no longer wish to preserve any friendship with us; but we marvel greatly that some time after we were in possession of the dignity to which it has pleased God to raise us, you should send to us one of your knights wearing your badges, to assure us that you were eager to remain our very sincere friend, and that, after your lord and brother, the friendship of no prince would be so agreeable to you as ours. You charged him also to assure us, that the bonds of alliance between us had been sealed with our great seals, which he said you would not that any Frenchman should know.

‘You have afterward made us acquainted, by some of our vassals, with your good inclinations, and the true friendship you bore us; but since you wish not any connexion with us, considering the state we hold, (such is your expression) we know not why we should wish your friendship,—for what you formerly wrote to us does not correspond with your present letters.

‘When you say, that in respect to the dignity we now enjoy, you suppose that divine virtue has not assisted us, adding, that God may have dissembled his intentions, and, like too many other princes, have caused us to reign to our confusion,—assuredly many persons speak thoughtlessly, and judge of

others from themselves, so that the all-powerful God may turn their judgments against themselves, and not without cause. And as for the divine virtue having placed us on the throne, we reply, that our Lord God, to whom we owe every praise and duty, has shewn us more grace than we deserve; and it is solely to his mercy and benignity we are indebted for what he has been pleased to bestow upon us,—for certainly no sorceries nor witchcrafts could have done it; and however you may doubt, we do not, but have the fullest confidence that, through the grace of God, we have been placed where we are.

‘In regard to your charge against us for our rigour against your niece, and for having cruelly suffered her to depart from this country in despair for the loss of her lord, and robbed her of her dower, which you say we detain, after despoiling her of the money she brought hither,—God knows, from whom nothing can be concealed, that so far from acting towards her harshly, we have ever shewn her kindness and friendship; and whoever shall dare say otherwise lies wickedly. We wish to God that you may never have acted with greater rigour, unkindness, or cruelty, towards any lady or damsel than we have done to her, and we believe it would be the better for you.

‘As to the despair you say that she is in for the loss of our very dear lord and cousin, we must answer as we have before done; and in regard to her dower, of the seizure of which you complain, we are satisfied, that if you had well examined the articles of the marriage you could not, if you had spoken truth, have made this charge against us.

‘In regard to her money, it is notorious, that on her leaving this kingdom we had made her such restitution of jewels and money, (much more than she brought hither) that we hold ourselves acquitted; and we have, beside, an acquittance under the seal of her father, our lord and brother, drawn up in his council, and in your presence, as may be made apparent to all the world, and prove that we have never despoiled her, as you have falsely asserted.

‘You ought therefore to be more cautious in what you write: for no prince should write any thing but what is the truth, and honourable to himself, which is what you have not hitherto done. We have, however, answered your letter very particularly, in such wise, that through the aid of God, of

our Lady, and of my lord Saint George, all men of honour will think our reply satisfactory, and our honour preserved.

‘With regard to your companions, we have not any fault to find, for we are not acquainted with them; but as to yourself, considering all things, we do not repute very highly of you. And when you return thanks to those of your family for having felt more pity than we have done for our king and sovereign liege lord, we reply, that by the honour of God, of our Lady, and of my lord St George, when you say so you lie falsely and wickedly, for we hold his blood dearer to us than the blood of those on your side, whatever you may falsely say to the contrary; and if you say that his blood was not dear to us in his lifetime, we tell you that you lie, and will falsely lie every time you assert it. This is known to God, to whom we appeal, offering our body to combat against yours, in our defence, as a loyal prince should do, if you be willing or dare to prove it.

‘I wish to God that you had never done, or procured to be done, any thing more against the person of your lord and brother, or his children, than we have done against our late lord,—and in that case we believe that you would find your conscience more at ease^[37].

‘Although you think us undeserving of thanks for our conduct to those on your side, we are persuaded that we have acted uprightly before God and man, and not in the manner you falsely pretend,—considering that, after our faithful lieges and subjects, we have good reason to love those of France, from the just right God has given us to that crown; and we hope, through his aid, to obtain possession of it. For their preservation, we the more willingly shall accept a single combat with you, as it will spare the effusion of blood, as a good shepherd should expose himself to save his flock; whereas your pride and vain glory would triumph in their death,—and, like the mercenary shepherd to whom the flock does not belong, on seeing the wolf approach, you will take to flight, without ever attending to the safety of your sheep, confirming the quarrel of the two mothers before Solomon; that is to say, the true mother who had pity on her child, while the other cruelly wished to have the child divided, if the wise judge had not prevented it.

‘As you declare in your letter, that you are willing to meet us, body against body, or with a greater or lesser number of men, in the defence of your

honour, we shall thank you to perform it, and make known to you, that, through God's assistance, you shall see the day when you shall not depart without the deed being accomplished according to one or other of these proposals, and to our honour.

‘Since you are desirous to have the time ascertained when we shall visit our possessions on your side of the sea, we inform you, that whenever it may please us, or we may judge it most expedient, we shall visit those possessions accompanied by as many persons as we shall think proper, for the honour of God, of ourself, and of our kingdom, which persons we esteem as our loyal servants and subjects, and friends, to assert our right,—opposing however, with God's aid, our body against yours, in defending our honour against the false and wicked aspersions you are inclined to throw on it, if you have the courage to meet us, which, if it please God, shall be soon, when you shall be known for what you are.

‘God knows, and we wish all the world to know, that this our answer does not proceed from pride or presumption of heart, but from your having made such false charges against us, and from our eager desire to defend our right with every means that God, through his grace, has granted us. We have therefore made the above answer; and that you may be assured of its truth, we have sealed with our arms this present letter.’

Notwithstanding these letters and answers that passed between the king of England and the duke of Orleans, they never personally met, and the quarrel remained as before.

CHAP. X.

WALERAN COUNT DE SAINT POL SENDS A CHALLENGE TO THE KING OF ENGLAND.

In this same year, Waleran count de St Pol sent a challenge to the king of England, in the following words:

‘Most high and mighty prince Henry, duke of Lancaster,—I Waleran de Luxembourg, count de Ligny and de St Pol, considering the affinity, love, and esteem I bore the most high and potent prince Richard, king of England, whose sister I married^[38], and whose destruction you are notoriously accused of, and greatly blamed for;—considering also the disgrace I and my descendants would feel, as well as the indignation of an all-powerful God, if I did not attempt to revenge the death of the said king, my father-in-law;—

‘I make known to you by these presents, that I will annoy you by every possible means in my power, and that personally, and by my friends, relations and subjects, I will do you every mischief by sea and land, beyond the limits of the kingdom of France, for the cause before said, and no way for the acts that have taken place, and may hereafter take place, between my very redoubted lord and sovereign, the king of France, and the kingdom of England.

‘This I certify to you under my seal, given at my castle of Luxembourg, the 10th day of February, in the year 1402.’

This letter was carried to the king of England by a herald of count Waleran; and thereto the king, Henry, made answer, that he held his menaces cheap, and that it was his will that count Waleran should enjoy his country and his subjects.

The count de St Pol, having sent this challenge, made preparations to begin the war against the king of England and his allies. He also caused to be made, in his castle of Bohain, a figure to represent the earl of Rutland^[39], with an emblazoned coat of arms, and a portable gibbet, which he got secretly conveyed to one of his forts in the country of the Boulonois; and thence he caused them to be carried by Robinet de Robretanges, Aliaume de Biurtin, and other experienced warriors, to the gates of Calais. There the gibbet was erected, and the figure of the earl of Rutland hung on it by the feet; and when this was done, the above persons returned to their fort.

When the english garrison in Calais saw this spectacle in the morning, they were much surprised thereat, and without delay cut the figure down, and carried it into the town. After that time, they were more inclined than ever to do mischief to the count Waleran and his subjects.

CHAP. XI.

CONCERNING THE SENDING OF SIR JAMES DE BOURBON, COUNT DE LA MARCHE, AND HIS TWO BROTHERS, BY ORDERS FROM THE KING OF FRANCE, TO THE ASSISTANCE OF THE WELSH,—AND OTHER MATTERS.

In this year, sir James de Bourbon^[40], count de la Marche, accompanied by his two brothers, Louis^[41] and Jean^[42], with twelve hundred knights and esquires, were sent, by orders from the king of France, to the port of Brest in Brittany,—thence to embark for Wales, to the succour of the Welsh against the English. They found there a fleet of transports ready provided with all necessaries, on board of which they embarked, intending to land at Dartmouth, but the wind proved contrary. Having noticed seven sail of merchantmen coming out of this harbour, fully laden, making sail for Plymouth, they chaced them so successfully that their sailors abandoned their ships, and, taking to their boats, made their escape as well as they could. The count de la Marche took possession of the vessels and all they contained, and then entered Plymouth harbour, which they destroyed with fire and sword.

Thence he sailed to a small island, called Sallemue^[43]; and having treated it in the same manner as Plymouth, he created some new knights,—among whom were his two brothers, Louis count de Vendôme, and Jean de Bourbon his youngest brother, and many of their companions. When the count de la Marche had tarried there for three days, suspecting that the English would collect a superior force to offer him battle, he set sail for France; but shortly after a tempest arose that lasted for three days, in which twelve of his ships and all on board perished. With much difficulty, the

count reached the port of St Malo with the remainder, and thence went to Paris to wait on the king of France.

This same year, duke Philip of Burgundy made grand feasts for the solemnization of the marriage of his second son Anthony, count of Rethel, who was afterwards duke of Brabant, with the only daughter of Waleran count of St Pol,—which daughter he had by the countess Maud, his first wife, sister to king Richard of England. These feasts were very magnificent, and well attended by many princes and princesses, with a noble chivalry, and they were all supported at the sole expense of the duke of Burgundy.

[A. D. 1403.]

CHAP. XII.

THE ADMIRAL OF BRITTANY, WITH OTHER LORDS, FIGHTS THE ENGLISH AT SEA.—GILBERT DE FRETUN MAKES WAR AGAINST KING HENRY.

In the beginning of this year, the admiral of Brittany, the lord de Penhors, the lord du Chastel^[44], the lord du Boys, with many other knights and esquires of Brittany, to the amount of twelve hundred men at arms, assembled at Morlens^[45], and embarked on board thirty vessels at a port called Chastel-Pol^[46], to engage the English, who had a large fleet at sea on the look-out for merchantmen like pirates. On the following Wednesday, as the English were cruising before a port called St Matthieu^[47], the Bretons came up with them, and chaced them until sun-rise the ensuing morning, when they engaged in battle. It lasted for three hours; but the Bretons at last gained the victory, and took two thousand prisoners, with forty vessels with sails, and a carrack. The greater part of the prisoners were thrown overboard and drowned, but some escaped by promising punctual payment of their ransom.

About this same time, an esquire, named Gilbert de Fretun, a native of the country of Guines, sent his challenge to the king of England, to avoid paying him his homage; and in consequence, this Gilbert collected many men at arms, and made such exertions that he provided himself with two vessels well equipped, and carried on a destructive war against the king as long as the truces between the kings of France and England were broken, from which event great evils ensued.

CHAP. XIII.

THE UNIVERSITY OF PARIS QUARRELS WITH SIR CHARLES DE SAVOISY AND WITH THE PROVOST OF PARIS.

At this period, when the university of Paris was making its annual processions, much dissention arose between some of its members, as they were near to St Catherine du Val des Escoliers, and the grooms of sir Charles de Savoisy, chamberlain^[48] to the king of France, who were leading their horses to drink in the river Seine. The cause of the quarrel was owing to some of the grooms riding their horses against the procession, and wounding some of the scholars,—who, displeased at such conduct, attacked them with stones, and knocked some of the riders off their horses.

The grooms, on this, returned to the hôtel de Savoisy, but soon came back armed with bows and arrows, and accompanied by others of their fellow-servants, when they renewed the attack against the scholars, wounding many with their arrows and staves even when in the church. This caused a great riot. In the end, however, the great number of scholars overpowered them, and drove them back, after several of them had been soundly beaten and badly wounded.

When the procession was concluded, the members of the university waited on the king, to make complaints of the insult offered them, and demanded, by the mouth of their rector, that instant reparation should be made them for the offence which had been committed, such as the case required,—declaring, at the same time, that if it were not done, they would all quit the town of Paris, and fix their residence in some other place, where they might be in safety.

The king made answer, that such punishment should be inflicted on the offenders as that they should be satisfied therewith. In short, after many conferences, in which the members of the university urged their complaints to the king, as well as to the princes of the blood who composed his council, it was ordered by the king, to appease them, that the lord Charles de Savoisy, in reparation for the offence committed by his servants, should be banished from the king's household, and from those of the princes of the blood, and should be deprived of all his offices. His hôtel was demolished, and razed to the ground; and he was besides condemned to found two chapelries of one hundred livres each, which were to be in the gift of the university.

After this sentence had been executed, sir Charles de Savoisy quitted France, and lived for some time greatly dispirited in foreign countries, where, however, he conducted himself so temperately and honourably^[49], that at length principally, through the queen of France and some great lords, he made his peace with the university, and, with their approbation, returned again to the king's household.

Not long after this event, sir William de Tigouville^[50], provost of Paris, caused two clerks of the university to be executed: the one named Legier de Monthilier, a Norman, and the other Olivier Bourgeois, a Breton, accused of having committed divers felonies. For this reason, notwithstanding they were clerks, they were led to execution, and, although they loudly claimed their privileges, as of the clergy, in hopes of being rescued, they were hung on the gibbet. The university, however, caused the provost to be deprived of his office, and to be sentenced to erect a large and high cross of free stone, near the gibbet on the road leading to Paris, on which the figures of the two clerks were carved. They caused him also to have their bodies taken down from the gibbet, and placed in a cart, covered with black cloth; and thus accompanied by him and his sergeants, with others bearing lighted torches of wax, were they carried to the church of St Mathurin, and there delivered by the provost to the rector of the university, who had them honourably interred in the cloisters of this church; and an epitaph was placed over them, to their perpetual remembrance.

CHAP. XIV.

THE SENESCHAL OF HAINAULT PERFORMS A DEED OF ARMS WITH THREE OTHERS, IN THE PRESENCE OF THE KING OF ARRAGON.—THE ADMIRAL OF BRITTANY UNDERTAKES AN EXPEDITION AGAINST ENGLAND.

In this same year, an enterprise of arms was undertaken by the gallant seneschal of Hainault, in the presence of the king of Arragon^[51].

The combatants were to be four against four, and their arms battle-axes, swords and daggers: the combat was to be for life or death, subject, however, to the will of the judge of the field.

The companions of the seneschal were, sir James de Montenay, a knight of Normandy, sir Tanneguy du Chastel, from the duchy of Brittany, and a notable esquire called Jean Carmen^[52]. Their adversaries were from the kingdom of Arragon,—and their chief was named Tollemache de Sainte Coulonne, of the king of Arragon's household, and much beloved by him: the second, sir Pierre de Monstarde^[53]: the third, Proton de Sainte Coulonne; and the fourth, Bernard de Buef.

When the appointed day approached, the king had the lists magnificently prepared near to his palace in the town of Valencia. The king came to the seat allotted for him, attended by the duke de Caudie^[54], and the counts de Sardonne^[55] and d'Aviemie^[56], and a numerous train of his nobility. All round the lists scaffolds were erected, on which were seated the nobles of the country, the ladies and damsels, as well as the principal citizens of both sexes. Forty men at arms, richly dressed, were ordered by the king to keep the lists clear; and between their barriers was the constable of Arragon, with

a large company of men at arms, brilliantly equipped, according to the custom of the country.

Within the field of combat were two small pavilions for the champions, who were much adorned with the emblazonry of their arms, to repose in, and shelter themselves from the heat or the sun. On the arrival of the king, he made known to the seneschal, by one of his knights, that he and his companions should advance first into the field, since it had been so ordered, as the Arragonians were the appellants. The seneschal and his companions, on receiving this summons, instantly armed themselves, and mounted their coursers, which were all alike ornamented with crimson silk trappings that swept the ground, over which were besprinkled many escutcheons of their arms. Thus nobly equipped, they left their lodgings, and advanced toward the barriers of the lists. The before named esquire marched first, followed by sir Tanneguy and sir James de Montenay; and last of all, the seneschal, conducted by the seneschal du Chut; when, having entered the lists, they made their reverences on horseback to king Martin of Arragon, who paid them great honour.

They then retired to their tents, and waited an hour and a half for their opponents, who arrived, like the others, in a body on horseback. Their horses' trappings were of white silk, ornamented with escutcheons of their arms. When they had made their reverences to the king, they retired also to their tents, which were pitched on the right, where they all remained for full five hours thus armed. The cause of this delay was owing to the king and his council wishing to accommodate the matter and prevent the combat. To effectuate this, many messages were sent from the king to the seneschal, proposing that he should not proceed farther; but he prudently made answer, that this enterprise had been undertaken at the request of Tollemache, and that he and his companions had come from a far country, and at great trouble and expense, to gratify his wish, which he and his companions were determined upon doing.

At length, after much discussion on each side, it was concluded that the combat should take place. The usual proclamations were then made in the king's name; and the king at arms of Arragon cried out loudly and clearly, that the champions must do their duty. Both parties instantly issued forth of their tents, holding their battle-axes in their hands, and marched proudly towards each other.

The Arragonians had settled among themselves that two of them should fall on the seneschal, in the hope of striking him down: both parties were on foot, and they expected he would be at one of the ends of the lists above the others, but he was in the middle part. When they approached, the seneschal stepped forward three or four paces before his companions, and attacked Tollemache, who had that day been made a knight by the king's hand, and gave him so severe a blow with his battle-axe on the side of his helmet as made him reel and turn half round. The others made a gallant fight with their opponents; but sir James de Montenay, throwing down his battle-axe, seized sir James^[57] de Monstarde with one of his hands under his legs, and, raising him up with his dagger in the other, was prepared to stab him; but, as the affair on all sides seemed to be carried on in earnest, the king put an end to the combat.

According to appearances, the Arragonians would have had the worst of it had the combat been carried to extremities; for the seneschal and those with him were all four very powerful in bodily strength, well experienced in all warlike exercises, and equal to the accomplishment of any enterprise in arms that might be demanded from them.

When the champions were retired to their tents, the king descended from his seat into the list, and requested of the seneschal and Tollemache, in a kind manner, that the remaining deeds of arms might be referred to him and his council, and he would so act that they should all be satisfied.

The seneschal, then falling on one knee, humbly entreated the king that he would consent that the challenge should be completed according to the request of Tollemache. The king replied, by again requiring that the completion of the combat should be referred to his judgment; which being granted, he took the seneschal by the hand, and placed him above himself, and Tollemache on the other side. He thus led them out of the lists, when each returned to his hôtel and disarmed. The king sent his principal knights to seek the seneschal and his companions, whom, for three days, he entertained at his palace, and paid them as much honour as if they had been his own brothers. When he had reconciled them with their opponents, he made them fresh presents; and they departed thence on their return to France, and the seneschal to Hainault.

About this time the admiral of Brittany, the lord du Chastel, and many other knights and esquires of Brittany and Normandy, to the amount of twelve hundred or more, embarked on board several vessels at St Malo, and put to sea, intending to land at Dartmouth. Notwithstanding the admiral and some others were adverse to going ashore there, the lords du Chastel and some others made their landing good, thinking they would be followed by the rest, which was not the case. They attacked the English, who were assembled in a large body; but, though the combat lasted some time, the Bretons and Normans were defeated, and the lord du Chastel slain,—with him two brothers, sir John Martiel, a norman knight, and many more. About one hundred prisoners were made,—among whom was the lord de Bacqueville, who afterward ransomed himself by dint of money. The admiral and those that had remained with him, or were wounded, returned to their country, afflicted and disconsolate at their loss^[58].

CHAP. XV.

THE MARSHAL OF FRANCE AND THE MASTER OF THE CROSS-BOWS, BY ORDERS FROM THE KING OF FRANCE, GO TO ENGLAND, TO THE ASSISTANCE OF THE PRINCE OF WALES.

Nearly at this time, the marshal of France and the master of the cross-bows^[59], by orders from the king of France and at his expense, collected twelve hundred fighting men. They marched to Brest in Brittany, to embark them, for the assistance of the Welsh against the English, on board of six score vessels with sails which were lying there. As the wind was contrary, they there remained fifteen days; but when it became favourable, they steered for the port of Haverfordwest,—which place they took, slaying all the inhabitants but such as had fled. They wasted the country round, and then advanced to the castle of Haverford, wherein was the earl of Arundel, with many other men at arms and soldiers.

Having burnt the town and suburbs under the castle, they marched away, destroying the whole country with fire and sword. They came to a town called Tenby, situated eighteen miles off, where they found the prince of Wales^[60], with ten thousand combatants, waiting for them, and thence marched together to Carmarthen, twelve miles from Tenby.

Thence they marched into the country of Linorquie^[61], went to the Round Table^[62], which is a noble abbey, and then took the road to Worcester, where they burnt the suburbs and adjoining country. Three leagues beyond Worcester, they met the king of England, who was marching a large army against them.

Each party drew up in order of battle on two eminences, having a valley between them, and each waiting for the attack of its opponent. This contest,

who should commence the battle, lasted for eight days; and they were regularly every morning drawn up in battle-array, and remained in this state until evening,—during which time, there were many skirmishes between the two parties, when upwards of two hundred of either side were slain, and more wounded.

On the side of France, three knights were slain, namely, sir Patroullars de Tries, brother to the marshal of France^[63], the lord de Martelonne, and the lord de la Valle. The French and Welsh were also much oppressed by famine and other inconveniencies,—for with great difficulty could they gain any provision, as the English had strongly guarded all the passes.

At length, on the eighth day that these two armies had been looking at each other, the king of England, seeing the enemy were not afraid of him, retreated in the evening to Worcester, but was pursued by some French and Welsh, who seized on eighteen carts laden with provision and other baggage; upon which the French and Welsh then marched back to Wales. While these things were passing, the french fleet was at sea, having on board some men at arms to defend it, and made for a port which had been pointed out to them, where they were found by their countrymen on their retreat from England.

The marshal de Tries and the master of the cross-bows, having embarked with their men on board this fleet, put to sea, and made sail for the coast of France, and arrived at St Pol de Leon without any accident.

However, when they were disembarked, and had visited their men, they found they had lost upwards of sixty men, of whom the three knights before mentioned were the principal. They thence departed, each man to his home, excepting the two commanders, who went to wait on the king and the princes of the blood at Paris, by whom they were received with much joy.

CHAP. XVI.

A POWERFUL INFIDEL, CALLED TAMERLANE, INVADES THE KINGDOM OF THE KING BAJAZET, WHO MARCHES AGAINST AND FIGHTS WITH HIM.

In this year, a great and powerful prince of the region of Tartary, called Tamerlane, invaded Turkey, belonging to king Bajazet, with two hundred thousand combatants and twenty-six elephants. Bajazet was very powerful, and had been one of the principal chiefs who had conquered and made prisoner the count de Nevers in Hungary, as is fully described in the Chronicles of master John Froissart.

When Bajazet heard that Tamerlane had thus invaded his territory, and was wasting it with fire and sword, he issued a special summons throughout his country, so that within fifteen days he had assembled an army of three hundred thousand fighting men, but had only ten elephants. These elephants of each party had small castles on their backs, in which were many men at arms, who grievously annoyed the enemy. Bajazet marched this force against Tamerlane, and found him encamped on a high mountain to the westward, called Appady, having already destroyed or burnt very many good towns, and the greater part of the country.

When the two chiefs were in sight of each other, they drew up their armies in battle-array^[64]. The combat soon began, and lasted full six hours; but at last Bajazet and his army were defeated, and he himself made prisoner. Forty thousand Turks were slain, and ten thousand of their enemies. After this success, Tamerlane sent larger detachments of his army to the principal towns in Turkey,—all of which, or the greater part, surrendered to him,—so that Tamerlane, in one campaign, conquered nearly the whole of Turkey.

CHAP. XVII.

CHARLES KING OF NAVARRE NEGOTIATES WITH THE KING OF FRANCE, AND OBTAINS THE DUCHY OF NEMOURS.—DUKE PHILIP OF BURGUNDY MAKES A JOURNEY TO BAR-LE-DUC AND TO BRUSSELS.

At this same season, Charles^[65] king of Navarre came to Paris to wait on the king. He negotiated so successfully with the king and his privy council that he obtained a gift of the castle of Nemours, with some of its dependant castlewicks, which territory was made a duchy. He instantly did homage for it, and at the same time surrendered to the king the castle of Cherbourg, the county of Evreux^[66], and all other lordships he possessed within the kingdom of France, renouncing all claim or profit in them to the king and to his successors, on consideration, that with this duchy of Nemours the king of France engaged to pay him two hundred thousand gold crowns of the coin of the king our lord.

When this was done, duke Philip of Burgundy left Paris to go to Bar-le-Duc, to attend the funeral of his sister the duchess of Bar^[67], who had died there. After this ceremony, he went to his town of Arras, where the duchess was, and there celebrated the feast of Easter. He then went to Brussels in Brabant, to the duchess's, grandmother^[68] to his wife, who had sent for him, to resign into his hands the government of the country; but he was there seized with an alarming illness, and caused himself to be carried to Halle, as will be more fully shewn hereafter.

[A. D. 1404.]

CHAP. XVIII.

THE DUKE OF BURGUNDY DIES IN THE TOWN OF HALLE, IN HAINAULT.—HIS BODY IS CARRIED TO THE CARTHUSIAN CONVENT AT DIJON, IN BURGUNDY.

At the beginning of this year, the good duke of Burgundy, Philip, son to king John, and brother to Charles the rich, caused himself to be carried in a litter from the town of Brussels, in Brabant, to Halle, in Hainault. That the horses which carried him might travel more safely, and he be less shaken, labourers advanced before the litter, with spades and pick-axes to repair and smooth the roads.

When at Halle, he fixed his lodgings near to the church of our Lady, at an hôtel bearing the sign of the Stag; and, finding his disorder increase, he sent for his three sons, namely, John count de Nevers, Anthony and Philip. On their arrival, he entreated and commanded them to be loyal and obedient, during their lives, to king Charles of France and to his successors, and made them promise obedience on their love to him. This engagement the three princes readily granted to their lord and father, who then assigned to each such lordships and estates as they were to hold after his decease, and specified the manner in which he intended they should enjoy them. All these, and various other arrangements, were wisely ordered by the duke in a manner becoming such a prince, who had a good memory in his last moments. When he had finished these matters, he died in this hôtel. His body was then opened, and his bowels interred in the church of our Lady at Halle; but his body being well embalmed, was placed in a leaden coffin,

and carried to the towns of Douay and Arras, magnificently attended, and in a manner suitable to his rank.

At Arras the corpse was placed in his chapel, where a solemn service was performed. The duchess Margaret^[69] there renounced her claim to his moveables, from fear of the debts being too great, by placing her girdle with her purse and keys on the coffin, as is the usual custom in such cases,—and demanded that this act should be put into writing by a public notary there present.

The body was afterward conveyed to Burgundy, and interred in the church of the Carthusians near Dijon, which church he had founded and ornamented at his own expense. His heart was carried to the church of Saint Denis, and placed near to his royal ancestors, from whom he was descended.

The duke, in addition to the three before mentioned sons, had three daughters, namely, the archduchess of Austria^[70], the countess of Holland^[71], wife to William count of Hainault, and the duchess of Savoy^[72].

There were great lamentations at his death, not only by his children but generally by the greater part of the lords of France and of his own countries; for he had prudently and ably governed the affairs of France, in conjunction with his elder brother the duke of Berry, by whom he was much regretted.

After his decease, John count of Nevers, his eldest son, took possession of the county and duchy of Burgundy: his second son, Anthony, was declared heir to the duchy of Brabant, after the death of his great aunt the duchess, who immediately resigned to him the duchy of Limbourg^[73]. Philip, his third son, inherited the county of Nevers and barony of Draxi, but not to enjoy them during the life of his mother. The three brothers began to govern their territories with a high hand, and held many councils together, and with their most confidential advisers, on the manner in which they should conduct themselves towards the king their sovereign lord.

CHAP. XIX.

WALERAN COUNT DE ST POL LANDS A LARGE FORCE ON THE ISLE OF WIGHT, TO MAKE WAR AGAINST ENGLAND, BUT RETURNS WITHOUT HAVING PERFORMED ANY GREAT DEEDS.

In this year, Waleran count de St Pol assembled at Abbeville, in Ponthieu, about sixteen hundred fighting men,—among whom were numbers of the nobility, who had made great provision of salted meats, biscuit, wines, brandy, butter, flour, and other things necessary on board of ships. From Abbeville the count led them to the port of Harfleur, where they found vessels of all descriptions to receive them.

When they had remained there some few days to arrange their matters, and to recommend themselves to the protection of St Nicholas, they embarked on board these vessels, and sailed for the Isle of Wight, which lies opposite to the harbour of Southampton. They landed on the island, making a bold countenance to face their enemies, of whom indeed they had seen but little on their landing,—for all, or at least the greater part of the islanders, had retreated to the woods and fortresses.

Several new knights were created by the count, namely, Philippe de Harcourt, Jean de Fosseux, the lord de Guiency and others, who went to burn some miserable villages, and set fire to a few other places. During this, a sensible priest of the island came to the count to treat for the ransom and security of the island, for which he gave the count to understand a very large sum of money would be paid to him and his captains. He too readily listened to this proposal; for it was a deception on the part of the priest to delay their operations, and amuse them with words, until the English should arrive to fight with them.

Count Waleran was at length informed of this plan, and, in consequence, re-embarked with his men on board the vessels; and they returned to the place whence they had come, without doing any thing more. Many of the nobles were much displeased at this conduct, because they had expended large sums in laying in their purveyances. The countries through which his men at arms returned were greatly harrassed by them,—and this caused much murmuring against the count, but no redress could be obtained.

CHAP. XX.

LOUIS DUKE OF ORLEANS IS SENT BY THE KING TO THE POPE AT MARSEILLES.—THE DUKE OF BOURBON IS ORDERED INTO LANGUEDOC, AND THE CONSTABLE INTO ACQUITAINE.

The king of France, with the advice of his great council, sent Louis duke of Orleans, accompanied by about six hundred knights, to pope Gregory, to remonstrate with him on the necessity of establishing an union in the church. He travelled through Champagne and Burgundy to Lyon, and thence to Marseilles, where the pope and his court then were. He received the duke most honourably and magnificently, and, after he had heard the object of his mission, gave him his apostolical letters, containing certain conditions, preparatory to the attempt of an union.

The duke, on receiving them, took leave of the pope, and returned to Paris to the king, who had near his person the dukes of Berry, Burgundy, Brittany and Bourbon, and many other great lords, secular and ecclesiastical. In their presence, he delivered the apostolical letters which contained, among other things, an offer from the pope to procure the union of the whole church; and, should it be necessary, to obtain so desirable an object, his holiness was willing to resign the papacy, and to act in whatever way touching this matter his council should judge expedient, and conformable to reason and justice.

The king, his council, the lords present and the university, were well satisfied, when they had heard the contents of the pope's letter.

About this time, John^[74] count of Clermont, son and heir to the duke of Bourbon, was ordered by the king and council into Languedoc, and thence to carry on a war against the English in Gascony, who were very active in

harrassing the frontiers. He appointed Saint Flour in Auvergne as the place of rendezvous for his troops, which consisted of five hundred men at arms, and the same number of cross-bows and archers. The next in command to the count de Clermont was the viscount de Châteaubon, son to the count de Foix^[75]. They carried on a severe warfare, and put several forts under the king's obedience,—such as the castles of St Pierre, St Mary, Châteauneuf, and many more. After he had left these forts well garrisoned, he concluded the campaign, and returned to the king at Paris, by whom he was most graciously received.

Shortly afterward, the lord Charles d'Albreth^[76], constable of France, was sent into the duchy of Aquitaine, accompanied by Harpedane, a knight of great renown in arms. They laid siege to the castle of Carlefin^[77], the garrison of which had done much mischief to the king's subjects, and laid the whole adjoining country under contribution. The siege lasted for six weeks, when a treaty was concluded with the garrison by the constable, which allowed them to march out in safety with all their wealth; and he agreed also to pay them a certain sum of money, which was raised on the inhabitants of the country adjoining the castle. When the constable had garrisoned the castle with his own men, he returned to king Charles at Paris.

CHAP. XXI.

THE DEATH OF DUKE ALBERT, COUNT OF HAINAULT, —AND OF MARGARET DUCHESS OF BURGUNDY, DAUGHTER TO LOUIS EARL OF FLANDERS.

This year died duke Albert, count of Hainault, Holland and Zealand. He was son to Louis of Bavaria, formerly emperor of Germany, and left issue two sons and a daughter,—namely, William, the eldest, and John, surnamed ‘sans pitié,’ who was promoted to the bishoprick of Liege, notwithstanding he was not then consecrated. The daughter was married to John duke of Burgundy^[78]. Duke Albert was interred in the collegiate church of the Hague, in Holland.

In this year also died Margaret duchess of Burgundy, widow of the late duke Philip, at her dower-house in Arras. Her illness was very short, and she departed this life on the Friday before mid-lent Sunday. Her three sons, John duke of Burgundy, Anthony duke of Limbourg, and her youngest son Philip, were in the utmost grief at this event in the town of Lille, where she was buried in the collegiate church of St Peter, near to her father the earl Louis of Flanders.

After her decease, John duke of Burgundy succeeded to the counties of Flanders and Artois, and Philip to the county of Nevers, according to the arrangements before mentioned. Shortly after, through the management of the duke of Burgundy, the two following marriages took place: Louis duke of Aquitaine, dauphin, and son to the king of France, with Margaret, eldest daughter to the duke of Burgundy,—and Philip count de Charolois, only son and heir to the above duke, with Michelle daughter to the king of France. These matches had been talked of during the life of the late duke Philip, and were very agreeable to the king, the queen, and the princes of the blood, excepting the duke of Orleans, whom they displeased. From that time, and

indeed somewhat before, there were appearances of jealousy and dislike between these two princes of Orleans and Burgundy; and whatever seeming affection they may have shown to each other, there was no sincere love. These jealousies were fomented in great measure by the various reports which were carried to each, by their different dependants.

The above-mentioned marriages, however, were agreed on, and proper acts drawn up, signed and mutually interchanged, for the security of them, between all the parties.

A very heavy tax was about this time imposed on all the inhabitants throughout France, by the king and his council at Paris; but the duke of Burgundy would not consent that it should be levied,—which conduct gained him universal popularity throughout the kingdom.

[A. D. 1405.]

CHAP. XXII.

JOHN DUKE OF BURGUNDY, AFTER THE DEATH OF THE DUCHESS MARGARET, IS RECEIVED BY THE PRINCIPAL TOWNS IN FLANDERS AS THEIR LORD.

At the commencement of this year, the duke of Burgundy, having paid his duty to the king of France at Paris, set out for Flanders, attended by his brothers and a large company of the nobles of that country. He was most honourably and kindly received every where by his subjects, who made him handsome presents, more especially those of Ghent, Bruges, Ypres, and other great towns.

They took the usual oaths of fidelity to him, promising to serve him faithfully, as they were bound to do. He then forbade all his subjects to pay the tax last imposed at Paris by the king and his council, as has been mentioned. This conduct greatly increased the hatred the duke of Orleans bore him,—for at that time the public affairs were governed according to his pleasure, insomuch that a stop was put to the marriages before mentioned, between the children of the king and the duke of Burgundy; and the duke of Orleans was desirous to find out some other match for his nephew, the duke of Aquitaine, which highly displeased the duke of Burgundy when it came to his knowledge.

The duke instantly sent his ambassadors to the king, the queen, and the great council,—but they had no very agreeable answer to bring back to their master, by reason of which they returned as speedily as they could to Flanders. Having heard their account, he consulted his most confidential ministers as to the manner in which he should act. They advised him to set

out immediately for Paris,—for that, being on the spot, he could pursue his business with the king and council with more urgency, and greater expectation of success, than by ambassadors. He assented to this advice, and made his preparations to go thither as speedily as he could.

At this period, pope Benedict XIII.^[79], who resided and kept his court in the county of Provence, imposed a tax of a tenth on his clergy. This tax was intended to hasten the union of our holy mother church, and was to be paid at two terms, namely, at Easter, and on the feast of St Remy.

CHAP. XXIII.

DUKE WILLIAM COUNT OF HAINAULT PRESIDES AT A COMBAT FOR LIFE OR DEATH, IN HIS TOWN OF QUESNOY, IN WHICH ONE OF THE CHAMPIONS IS SLAIN.

A mortal combat was this year fought in the town of Quesnoy, in the presence of duke William count of Hainault, judge of the field, between a gentleman named Bournecte, of the county of Hainault, appellant, and another gentleman called Sohier Bunaige, of the county of Flanders. The cause of quarrel was, that Bournecte declared and maintained that Sohier had killed and murdered one of his near relations; and in this case, duke William had ordered lists to be prepared at his expense, as was usual in such like instances.

The duke had in vain attempted several times to reconcile them,—but finding them unwilling to consent, he ordered them to appear before him at a certain time and place, to decide their difference by combat. On the appointed day, the appellant entered the lists, accompanied by some of his nearest kindred, and was soon followed by the defendant.

Proclamation was then made in the duke's name, by a herald, that no one should dare to give any hindrance to the combatants, under pain of death,—and then the champions were told to do their duty. After this last proclamation, the appellant first left his pavilion, and advanced to meet the defendant. When they had thrown each their lances without effect, they drew their swords, and fought for a short time; but Bournecte soon overcame his adversary, and made him publicly avow the truth of the charge he had made against him, and for which he called him to the combat. The vanquished man was speedily condemned by the duke to be beheaded;—which sentence was instantly executed, and the conqueror led in triumph

to his hôtel. He was greatly honoured and respected by all the nobility,—and it was reported that the duke of Orleans had been present at this combat in disguise.

CHAP. XXIV.

THE COUNT DE SAINT POL MARCHES AN ARMY BEFORE THE CASTLE OF MERCQ, WHERE THE ENGLISH FROM CALAIS MEET AND DISCOMFIT HIM.

In the month of May of this year, Waleran de Luxembourg, count de Ligny and de St Pol, governor for the king of France in Picardy, assembled in that country and in the Boulonois from four to five hundred men at arms, five hundred genoese cross-bows, and about one thousand Flemings on foot, from the country about Gravelines. He marched them from St Omer to Tournehen, and thence advanced to lay siege to a castle called Mercq, in the possession of the English, who from that place, and other garrisons, had greatly harrassed the Boulonois and the adjacent countries.

The count caused many engines to be erected against this castle, which much annoyed the garrison, who defended themselves courageously. The count saw he could not gain the place by storm without great difficulty and loss of men, and in consequence lodged his army in the houses of the town that were surrounded by old ditches, which he had repaired to secure himself against his enemies, as well from Calais as from other garrisons. On the morrow, he made an attack on the lower court of the castle, which was carried by storm; and the assailants gained great numbers of horses, cows, sheep and mares. At this attack, sir Robert de Birengueville, knight, was wounded so that he died shortly after.

On this same day, about one hundred men at arms sallied out from Calais, and having viewed the French at their ease, returned to their town, and instantly sent a herald to the count de St Pol to say, that on the morrow they would dine with him, if he would have the goodness to wait for them. The

herald returned with the answer, that if they would come, they should be received, and find the dinner ready.

On the morrow, very early, two hundred men at arms, two hundred archers, and about three hundred men on foot, lightly armed, marched out of Calais. They carried with them ten or twelve carts laden with wines and provision. The whole were under the command of an english knight named Richards, lieutenant governor of Calais under the earl of Somerset, brother to Henry of Lancaster, at that time king of England^[80].

They advanced in good array until they were near the enemy, who, though advised of their coming by their spies, made no preparations, nor did they draw themselves up in battle without their quarters to meet them, as they should have done. They remained so long in their ditches that the English kept up a terrible discharge of arrows, by which numbers were killed and wounded, without the French being enabled to make any effectual resistance.

The Flemings, and the greater part of the infantry, shortly began to give way, and take to flight from fear of the arrows,—and the men at arms soon followed their example. The genoese cross-bows also, having, in the preceding assault on the outer court of the castle, expended all their bolts, had not provided themselves with a fresh supply, so that at this time of need they made a very poor defence.

By these means, the English, without any great loss on their side, soon discomfited the French, and remained victors on the field. The count de St Pol, with others of his companions, made off without any regard to his honour, and, passing through St Omer, returned to Therouenne.

In general, all those of his party who remained were killed, or made prisoners. The slain were about sixty in number,—and among them were the principal of the french commanders, namely, the lord de Querecqs, sir Morlet de Savences, sir Courbet de Rempeupret, sir Martel de Vaulhuon, sir Guy d’Juergny, and the lord de Fayel.

Among the prisoners were the lord de Hangestez^[81], governor of Boulogne, the lord de Dampierre^[82], seneschal of Ponthieu, the lord de Rambures^[83], George la Personne, the lord de Givenchy, with several other noble knights and esquires, to the amount of sixty or eighty.

When the battle was concluded, and the English had taken possession of all the carts and engines of war which the enemy had brought thither, and had stript the dead, they returned to their town of Calais with their prisoners, rejoicing in their victory.

On the contrary, count Waleran and those who had escaped with him were overwhelmed with despair, and not without cause. On the third day after this defeat, the English marched out of Calais with the numerous cannons and other artillery they had taken from the French before Mercq, for the town of Ardres. They amounted to about five hundred combatants; and as they had marched all night, thinking to surprise it, and that it was weakly garrisoned, they began their attack at the break of day, by placing ladders against its walls, and setting fire to different parts of it.

But through the vigilance and courage of two notable and valiant knights who were in the town, sir Mansart de Boz and the lord de Lignes, the English were repulsed. At this attack and retreat, there were from forty to fifty English slain, whom their companions carried to a large house without the walls, and set fire to it, that the enemy might be ignorant of their loss.

Confounded and dejected with their repulse and loss, they returned to Calais, where, some of those who had been at the affair of Mercq having died of the wounds which they had received from the genoese cross-bows, they wanted to put the genoese prisoners to death, saying that their bolts and arrows had been poisoned.

The count de St Pol, who had retreated to Therouenne, sent an especial summons throughout Picardy for another assembly of men at arms, in the hopes of retrieving his honour. The lord de Dampierre, sir John de Craon, lord de Dompinart^[84], sir Morlet de Querecqs, the lord de Fosseux, the lord de Chin, the lord de Houcourt, and many other nobles, came to him numerously attended. The count held many councils with them; and it was determined to march to the frontiers of the enemy's country, and to harrass them by every possible means.

As they were preparing to put their intentions into execution, the king of France sent orders to the count and the other nobles not to proceed further in this business, for that he had provided other commanders. In truth, he sent the marquis du Pont, son to the duke de Bar, the count de Dammartin^[85], and Harpedanne, a knight of high renown, with four hundred

men at arms and five hundred others, to quarter themselves at Boulogne, and other places on the frontiers of the Boulonois. The count de St Pol was not well pleased at this; but he was forced to suffer, whether willingly or not, the talk of the public, as there was no other remedy than to let the public talk on.

John duke of Burgundy was in his county of Flanders when he heard of the great defeat of the count de St Pol before Mercq. He was much vexed thereat, and sent sir John de la Vallée, knight, in haste to Gravelines, and other places on that frontier, with men at arms and cross-bows, to prevent the English from doing any injury to them. The guard of this country was also intrusted by the king of France to sir Lyonnet d'Arummes, who, night and day, most diligently attended to it.

King Henry of England, having learnt from his commander at Calais the brilliant success he had obtained over the French before Mercq, ordered an army of four or five thousand combatants to be instantly raised. He embarked this force on board the vessels prepared for it, and ordered them to cruise off Dunkirk and Neuport, and to disembark the army at Sluys.

About three thousand were landed on the strand, and marched along it about the distance of a league to attack the castle of Sluys; but the garrison, in conjunction with the inhabitants of the country, who were greatly frightened, defended it very valiantly, and, what with cannons and other offensive weapons, repulsed their enemies, killing about sixty,—among whom was the earl of Pembroke, one of their leaders^[86].

News was brought to the English, that the duke of Burgundy was marching a great force against them; on which they returned to their ships, and then to England.

The duke of Burgundy, however, was not long before he ordered a number of men at arms to be collected under the command of the lord de Croy^[87], and others his captains, to defend his country against the invasions of the English. They assembled on the frontiers of Flanders to oppose the English, should they again return to his coasts.

The duke also sent an embassy to the duke of Orleans and the great council at Paris, to demand men and money to enable him to lay siege to Calais, for he was very desirous of it; but he received a negative to the request made by

his ambassadors. The duke of Burgundy, on receiving this answer, made preparations for waiting personally on the king at Paris, the better to expedite this business; and for this purpose he went to Arras, where he held many consultations with different great lords, his vassals and dependants.

CHAP. XXV.

JOHN DUKE OF BURGUNDY GOES TO PARIS, AND CAUSES THE DAUPHIN AND QUEEN TO RETURN THITHER, WHOM THE DUKE OF ORLEANS WAS CARRYING OFF,—WITH OTHER MATTERS.

When the duke of Burgundy had concluded his business at Arras, he set out on the vigil of the Assumption of the Virgin towards Paris, accompanied by a body of men, to the amount of eight hundred combatants, secretly armed. He stopped some days at the town of Louvres, in the Isle of France, where letters were brought him, to say, that the king had recovered his health from his late illness, and that the queen and the duke of Orleans were gone to Melun, and thence to Chartres, carrying with them the duke of Aquitaine, dauphin of Vienne.

Having considered the contents of these letters, he went to bed and slept, but ordered his trumpet to sound very early, and left the town with all his men, and hastened to Paris to prevent the dauphin from leaving it. On his arrival, he was told by the Parisians, that he was already departed after his mother, which was true; upon which the duke, without dismounting or making any delay, trotted through Paris with his troops as fast as he could in pursuit of the dauphin. He overtook him between Ville-Juive and Corbeil, where the queen and the duke of Orleans were waiting dinner for him. With the dauphin were his uncle by the mother's side, Louis of Bavaria, the marquis du Pont, son to the duke of Bar, the count Dammartin, Montagu, grand master of the king's household^[88], with many other lords to attend upon him. There was in the litter with him his sister de Priaux, wife to sir James de Bourbon.

When the duke of Burgundy approached the dauphin, he made him the most respectful obeisances, and supplicated him to return and live in Paris,

where, he said, he would be better than in any other part of France; adding, that he was desirous of conversing with him on many points which touched him personally.

After this conversation, Louis of Bavaria, seeing the dauphin was inclined to comply with the request of the duke, said, 'My lord duke of Burgundy, suffer my nephew the dauphin to follow the queen his mother and the duke of Orleans, as he has had the consent of his father for so doing.'

Notwithstanding this speech, and many others that were urged on the same subject, which for the sake of brevity I omit, the duke of Burgundy caused the litter of the dauphin to be turned about, and brought him and all his attendants back to Paris, excepting the marquis du Pont, the count Dammartin, and many more of the household of the duke of Orleans.

These last galloped off toward Corbeil, where they related to the queen and the duke of Orleans how the duke of Burgundy had made the dauphin and his attendants return against their will to Paris. This intelligence alarmed and astonished them,—for they knew not what the duke of Burgundy's intentions were,—insomuch that the duke of Orleans left his dinner, which was quite ready, and went in haste to Melun, followed by the queen and their households.

The duke of Burgundy, as I have said, conducted the dauphin to Paris; and the king of Navarre, the dukes of Berry and of Bourbon, the count de la Marche, with many more great lords, and an immense crowd of the citizens of Paris, came out to meet him, and escorted him most honourably into the town. The duke of Burgundy, however, and his two brothers, as well as the lords above mentioned, kept very close all this time by the sides of the litter.

They rode on in this state, at a foot's pace, until they came to the castle of the Louvre, when the dauphin was helped out of his litter by his uncle, Louis of Bavaria, and there lodged. All the lords then retired to their houses except the duke of Burgundy, who likewise lodged there. He shortly after sent many messengers to his different countries, to order men at arms instantly to attend him at Paris. The duke kept his state at the Louvre, in the apartments of St Louis, and in those underneath, which formed part of them. The dauphin and his household were lodged in the chambers above them.

On the morrow, the rector and the soundest^[89] part of the university came to pay their respects to the duke of Burgundy, and to thank him publicly, with all humility, for his great love and affection towards the king, his family and the whole realm, of which they formed a part, being well assured of his good intentions, which were meant for its reformation and amendment, beseeching him to persevere in these his endeavours, notwithstanding any obstacles he might meet with.

On the Sunday following, the duke and all his people removed from the Louvre; and he established himself at his hôtel of Artois,—and in the adjacent streets he had strong fortifications made of palisades and barriers, to prevent any annoyance from his adversaries. He also prevailed on the king and the great council, that the chains in the Louvre, which had formerly been taken away, should be restored, and affixed to the streets as they before had been. The duke of Burgundy gained much popularity with all the Parisians for having obtained this for them.

The castle of the Louvre remained under the guard of sir Regnault d'Angiennes, to whom it had formerly been intrusted by the king. The bastille of St Anthony was committed to the care of Montagu, grand master of the king's household, on his making oath that he would not suffer any man to enter it, but when the king's council was there assembled. The dauphin, by orders of the king and council, was placed under the care of the duke of Berry.

The duke of Burgundy and his two brothers now presented a petition to the king and council, of which the contents were as follows:

‘John duke of Burgundy, Anthony duke of Limbourg, and Philip count of Nevers, brothers, your very humble subjects, relations, and obedient servants, fully sensible, by reason and justice, that every knight of your realm is bound, after God, to love, serve and obey you. We feel ourselves not only obliged to do you no harm, but held to notify to you personally whatever may be proposed against your honour or advantage. In like manner are bound all those your relations who hold great lordships under your favour. We are, as we shall make appear, very sensible of this obligation,—for we are subjects of your realm, as well as cousins-german to your blood.

‘And I John, by the grace of God and your favour, am duke of Burgundy, peer of the kingdom of France and dean of the peerage, count of Flanders and Artois,—and I Anthony, count of Rethel^[90],—and I Philip, count of Nevers and baron de Doussy,—and withal by the consent of you, our very redoubted lord, and with that of our much redoubted lady the queen, and of all the royal family, has the marriage been confirmed between the duke of Aquitaine, dauphin of Vienne, your son, and the daughter of me, duke of Burgundy,—and also that between the lady de Charolois, your daughter, and Philip, count de Charolois, my son. We have also been commanded by our late redoubted lord and father, at the time of his decease, who then made us promise that we would inviolably preserve our fidelity toward you and your kingdom, which we shall wish ever to do during our lives.

‘In order, therefore, to prevent any of our actions from being suspected, which may bring down on us the divine indignation, it seems necessary that we declare what is frequently done contrary to your honour and advantage, and principally, according to our judgment, in four points.

‘The first respects your person. Before you recovered from this last illness, by which you are not the only one who suffered, but all those who had a real affection for you, and whom you loved, suffered great affliction on your behalf, seeing matters were transacted in your council against your honour, though coloured over with a pretence of being advantageous. Many unreasonable requests were made, to which, though you had given a denial, some of the members of your council have taken on themselves to grant them, so that the requests, however unreasonable, have been complied with.

‘You have, besides, neither robes, jewels, nor plate, becoming your royal state; and when any small quantity is bought for use, it is very shortly after pawned. Your servants have not audiences from you, nor have they any profit. They are afraid of mentioning to you such things as we now state, and which so much affect your honour, although very desirous of so doing.

‘The second point regards the administration of justice throughout this realm, which was wont to excel all other kingdoms in the ministring strict justice, which is the foundation-stone of your government.

‘In former times, your officers of justice were chosen, after mature deliberation, from among the wisest of your subjects, who defended your rights, and did equal justice to the lowest as well as to those of the highest

rank; but now your rights are greatly infringed upon, and daily diminished, by which the people are very much oppressed.

‘The third point respects your domains, which are exceedingly ill managed, insomuch that many houses, castles and edifices, are falling to ruin. In like manner are your woods destroyed, your mills out of repair, your rivers and ponds robbed, and in general all the revenue of your domains are become, from their great diminution, of scarcely any value.

‘The fourth point concerns churchmen, the nobility and the people; and, first, it is a well known fact, that the clergy are grievously vexed, and suffer great losses, as well from the judges of the realm as from men at arms, and several other descriptions of persons, who take by force their provisions, ransack their houses, nay, make them ransom themselves from further injuries, by which means they have scarcely a sufficiency left to perform the divine service.

‘The nobility are frequently summoned, under pretext of aiding you in your wars, and never receive one penny for their attendance or service; and to purchase armour, horses, and other necessities for war, they are often forced to sell their properties.

‘In respect to your people, it is very certain that they must speedily be ruined, from the vexations they suffer under your bailiffs, provosts, and especially from the farmers of your domains, and under your soldiers. These grievances have been so long winked at that it may be feared that the indignation of God will be roused against you, unless you shall provide remedies for them.

‘It is notorious that your enemies, during the reigns of Philip and John, both kings of France, your noble predecessors, did infinite mischief to your realm; and that they long detained, against the will of king Richard, your ally and son-in-law, as well as against your own, his wife and your daughter. They drowned several nobles and others, who had an affection for her, broke the truces, and have wasted and set fire to several places in your kingdom, in Picardy, Flanders, Normandy, Brittany and Aquitaine, where they have done irreparable damages.

‘We do not, noble sir, advise that you should neglect the war you have undertaken against your enemies,—for that would reflect disgrace on your

honour and great council, and put an end to the dissensions that now remain among them, and the war they have on their hands against the Welsh and Scots. Should peace be made between them, greater evils might befall your kingdom than before.

‘It seems to us, as a certain truth, that you will find it very difficult to raise the necessary supplies for this war from your domains, or other sources. Two heavy taxes have been lately imposed, under pretence of supporting the wars; notwithstanding which, not one penny of their receipt has been expended on them, which may cause many evils,—for there are great discontents among the clergy, the nobility and the people; and should they rise together (which I hope will never happen), more real dangers may be the consequence than have ever yet befallen the realm. Every person in your kingdom who is loyally attached to you must feel much grief in seeing the money of your realm thus wasted.

‘We have thought ourselves, noble lord, thus bounden by our obligations to you, to lay the complaints of the nation before you; and, that we may avoid incurring your royal indignation, or that of our lady the queen, or of the princes of the blood, or others of your faithful subjects, we do not wish to make personal charges, nor to seek for any part in your government, but most humbly supplicate you to apply a remedy to the vexations we have stated, and request that you call into your presence those who may assure you of the truths we have told you, that you may seek wholesome counsel, and briefly put an end to such speculations.

‘To aid so good a work, we offer you our persons, our fortunes and our friends; and as in truth we cannot patiently see or suffer such things to be done against your honour, and that of your royal majesty, it is our intention never to cease supplicating your majesty until some efficient steps be taken to remedy them.’

Such was the petition of John duke of Burgundy and his brothers.

Another day, when the king was in a tolerably good state of health, the three before mentioned petitioners, accompanied by their uncle the duke of Berry, and many princes and knights of France, with master Regnault de Corbie, first president of the parliament, and a number of officers of state, went to the hôtel de St Pol, where they found the king, who had quitted his apartment and was in the garden. After having reverently saluted him, the

three brothers did their homages for the lordships they held under him, namely, duke John for his duchy of Burgundy, and his counties of Flanders and Artois,—Anthony duke of Limbourg, for his county of Rethel,—and Philip the younger, for his county of Nevers.

There were also a very great number of noblemen, knights and esquires, who did their homages to the king for the estates they held from him in different parts of the kingdom. When the three brothers had requested certificates from the king of the duties they had performed, they took leave of him, and departed for their hôtels.

These same days there arrived at Paris, and in the adjacent villages, full six thousand fighting men, in obedience to the summons of the duke of Burgundy and his brothers, under the command of Jean sans pitié^[91], bishop of Liege, and the count de Cleves. This force was collected to oppose the duke of Orleans, should he attempt any insult against them; for they were well informed of his not being well pleased that they had forced his nephew, the dauphin, to return to Paris, nor with the petition they had made to the king. What raised his indignation the more, and especially against the duke of Burgundy, was his knowledge that the charges in this petition attached more to him than to any other of the princes of the realm.

The duke of Orleans, not knowing what turn these matters might take, nor what measures might be pursued against his person, ordered men at arms from all quarters to his assistance. In the number, sir John Harpedanne came with his men from the frontiers of the Boulonois. From other parts came the duke of Lorraine and the count d'Alençon^[92] with a large body of men, who were quartered at Melun, and in that neighbourhood, to the amount of fourteen hundred armed with helmets, besides a great multitude of other sorts.

The whole country round Paris, the Isle of France and Brie, were sorely oppressed by the men at arms of both parties.

The partisans of the duke of Orleans bore on their pennons the motto, 'Je l'envie;' and the duke sent messengers to the queen and to king Louis^[93], who was preparing to set out for his kingdom of Naples with a powerful body of men at arms, to come to him at Melun. The king, leaving his own business, went thither, and had a conference with the queen and the duke,—

after which he returned to Paris, with the intention of negotiating between the two parties.

He held many consultations with the dukes of Berry and Bourbon, and the king's council, to attempt a reconciliation between the dukes of Orleans and Burgundy. Whilst this was passing, the duke of Orleans wrote letters to many of the principal towns in the kingdom, complaining that many defamatory and injurious reports against his person and honour had been very industriously spread through Paris, which ought not to obtain any credit until he should make answer to them. In like manner, he wrote to the university of Paris, sending ambassadors to require that the matters in dispute between him and the duke of Burgundy should be argued before them, and that they should decide which of the two was to blame.

The university, on the receipt of this letter, sent some of their principal members as ambassadors to the duke at Melun, who stated three points which they were ordered to lay before him. In the first place, they thanked him for the honour he had done them by sending them his ambassadors: secondly, they declared that they should be very happy to witness the commencement of a reformation in the kingdom; and thirdly, that they should greatly rejoice to see him and the duke of Burgundy reconciled.

The duke of Orleans, having listened to them, instantly made answer, that they had not acted wisely in supporting and advising the duke of Burgundy in his measures, which had been principally directed against himself, as they could not have been ignorant that he was son and brother to a king; that the regency of the kingdom had been given to him as the most proper person, and was in fact his right, considering the state of the king's health, and the youth of his nephew the duke of Aquitaine. He added, secondly, that those members of the university who were strangers, and from different countries, ought not to interfere in the government or reformation of the kingdom, but should leave it to him and those of the blood royal, and the king's ministers.

In reply to their third point, he said, that there was no need of pacification between him and the duke of Burgundy, because there was not any warfare, nor had any challenges passed between them.

When the ambassadors had heard these answers, they withdrew, very much confused, and returned to Paris. On the ensuing Saturday, while the duke of

Burgundy was in his hôtel d'Artois, he was informed, and it was a fact, that the queen and the duke of Orleans, with all their force, had marched from Melun, and were on their road to Paris.

The duke, on hearing this, mounted his horse, and rode to the hôtel d'Angiers, where he found the king of Sicily, the dukes of Berry and of Bourbon, with other lords of the king's council, who, when they knew of the arrival of the said duke of Orleans, were all greatly astonished; for this was in direct contradiction to their intent, and to the treaty which they were meditating between the parties.

The duke of Burgundy had a great number of men at arms, as well within Paris as without, who bore for motto on the pennons of their lances, in Flemish, *Hie Houd!* that is to say, 'I have possession!' in opposition to the device of the Orleans-party, *Je l'envie!*^[94] The greater part of the duke of Burgundy's forces drew up in battle-array on the summit of Montfaucon, to wait the arrival of their adversaries.

In the mean while, the populace of Paris rose; and multitudes armed themselves to oppose the entrance of the duke of Orleans, suspecting his intentions were to give the town up to pillage and murder. They pulled down many sheds, that no obstructions might be found in the streets to the full use of the lance, and that shelter might not be afforded against the stones thrown down from the roofs of the houses.

Many scholars armed themselves for the defence of the bridges; and true it was, that the Parisians were far more favourable to the party of Burgundy than to that of Orleans, and were willing, should there be occasion, to assist that party to the utmost of their power.

The duke of Burgundy was fully prepared to resist and combat the duke of Orleans, had he advanced as far as Paris. But the chancellor and presidents of the parliament, with other prudent men, observing the great ferment in Paris, made many visits to the hôtel d'Angiers, with a view to reconcile these princes, and avert the great mischiefs that might otherwise ensue. They likewise sent messengers to the duke of Orleans, to inform him of the state of Paris, and how very unpopular he was there. The duke and the queen, on hearing this intelligence, after a short consultation with their most confidential advisers, separated: the queen went to the Bois de Vincennes, and the duke returned with his army to Corbeil.

On the morrow, he came to Beauté; and his army was quartered near the bridge of Charenton, and in the adjacent country. During this time, the before-named princes, with many great lords and members of the council assembled, and met for several days, to consider of a reconciliation between the two parties. After some time, they at length made known to each their determination, which was, that within two days the dukes of Orleans and Burgundy should submit the whole of their disputes to the decision of the kings of Sicily and Navarre, and the dukes of Berry and Bourbon; and for the accomplishment of the decision, they were each to bind themselves by their corporal oath, and afterward to dismiss their forces. The duke of Orleans came to lodge at his hôtel at St Anthony, near the bastille.

A few days afterward, the princes before named managed the affair so well that the two dukes made up their quarrel, and apparently showed in public that they were good friends; but He who knows the inward secrets of the heart saw what little dependance was to be placed on such outward appearances.

The duke of Lorraine and the count d'Alençon, after this, returned home with their men, without entering Paris; and not long afterward, the duke of Burgundy departed, with his brothers and men at arms, for Artois, and thence to his county of Flanders, where he had a conference with his brother-in-law duke William, the bishop of Liege, the count Waleran de St Pol, the count de Namur^[95], and several others. When this was ended, he returned to his town of Arras.

[A. D. 1406.]

CHAP. XXVI.

DUKE JOHN OF BURGUNDY OBTAINS FROM THE
KING OF FRANCE THE GOVERNMENT OF
PICARDY.—AN EMBASSY FROM ENGLAND TO
FRANCE.—AN ACCOUNT OF CLUGNET DE
BRABANT, KNIGHT.

At the commencement of this year, the duke of Burgundy, by a grant from the king, the dukes of Orleans and Berry, and the whole council, obtained the government of Picardy. In consequence, sir William de Vienne, lord of St George, was ordered by him to the frontiers of the Boulonois, with six hundred men armed with helmets, and a large body of genoese cross-bows. They were encamped on these frontiers, whence they made a sharp war against the English: nevertheless, the country was not so well guarded against the inroads of the latter but that it was in several parts laid waste by them.

About this period, the ambassadors returned from England to the king and his council at Paris, namely, the earl of Pembroke and the bishop of St David's, with some others^[96], who came to request that a truce might be established between the two crowns, so that commerce might have a free course in both countries.

They also demanded, that the king of France should grant his eldest daughter, Isabella, formerly married to king Richard, in marriage to the eldest son of the king of England, who, in consideration of this match, would, instantly after its consummation, lay down his crown, and invest his son with the government of the kingdom.

These requests, having been made to the royal council, were referred a few days for consideration; but at length, they having been fully discussed, and the frauds of the English duly considered, not one of them was granted. The duke of Orleans contended, that this eldest princess of France should be given in marriage to his eldest son Charles, which afterward took place.

The english ambassadors returned home, much dissatisfied at their ill success, and the war was shortly after carried on with greater bitterness between the two nations.

Even sir Clugnet de Brabant^[97], knight of the household to the duke of Orleans, went to Harfleur with six hundred men at arms at the king's expense. He had lately obtained the office of great admiral of France, with the approbation of sir Regnault de Trie, who had resigned it, in consideration of a very large sum of money which he had received, through the intrigues of the duke of Orleans. But as he was on the point of entering Harfleur, where there were twelve gallies ready for sea, on board of which he meant to embark to make war on the English, and take possession of his new office, he was ordered, in the king's name, not to proceed further, but to return to Paris.

Shortly after, by means of the duke of Orleans, he married the dowager countess of Blois^[98], widow of count Guy de Blois, sister to the count de Namur, who was much irritated thereat;—and because an illegitimate brother of his had consented to the conclusion of this marriage, he had him seized by his men, on the first favourable opportunity, and beheaded, thus making his blood pay for the acts of his will.

The duke of Berry was at this time governor of Paris, and prevailed on the king and council to permit the Parisians to wear arms, to defend themselves, should there be occasion; and the greater part of the armour that had been kept at the palace and Louvre, since the time of the mallet insurrection, were given back to them.

CHAP. XXVII.

THE WAR IS RENEWED BETWEEN THE DUKES OF BAR AND LORRAINE.—MARRIAGES CONCLUDED AT COMPIÈGNE.—AN ALLIANCE BETWEEN THE DUKES OF ORLEANS AND BURGUNDY.

This year, the quarrels were renewed between the dukes of Bar and Lorraine, because the duke of Lorraine had straitly besieged, with a considerable force, a castle belonging to the duke of Bar, which was partly in France, and had on this account been surrendered by the marquis du Pont, son to the duke of Bar, to the king of France. However, in spite of this, the duke of Lorraine took it; and as this conduct was highly displeasing to the king, a large army was assembled in that part of France.

Sir Clugnet de Brabant, admiral of France, was ordered to march this army into Lorraine against the duke; but negotiations were entered into, so that the army was dismissed, and all those preparations ended in nothing.

About this time, the queen of France came to the town of Compiègne, accompanied by some of her children, namely, John duke of Touraine, and Isabella, who had been queen of England. The dukes of Orleans and Burgundy came thither also, as did the duchess of Holland, wife to duke William count of Hainault, with her daughter Jaqueline de Baviere, count Charles d'Angoulême, eldest son to the duke of Orleans, and many other great lords, by whom the above were attended in great state. The legate of the holy see at Rome, with many bishops, doctors and churchmen, were likewise there,—when marriages were concluded between the duke of Touraine, second son to the king of France, and Jaqueline de Baviere, and between Charles d'Orleans and Isabella, late queen of England.

Isabella was cousin-german to Charles, who had been her godfather at her baptism; but notwithstanding this difficulty, the marriage was accomplished by means of an apostolical dispensation; and very great feasts took place at Compiègne in consequence, consisting of dinners, dancings, justs and other jollities.

A few days after, when every thing had been concluded, the duchess of Holland and her brother-in-law John of Bavaria, with the consent of the queen, the dukes before named, and the royal council, took with them the new-married couple, John de Touraine and his bride, to Quesnoy le Conte in Hainault, where duke William then resided, who received them most kindly, and entertained them magnificently.

When these matters had been finished, and the dukes of Orleans and Burgundy had mutually promised love and friendship during their lives, the duke of Orleans departed, and carried his daughter-in-law, Isabella, with his son to Château-Thierry, which the king, at the solicitation of the duke, had given him.

The queen and council returned to Paris to the king, who had lately recovered from his illness; and the duke of Burgundy, with his attendants, went to Artois and Flanders. He ordered about six hundred combatants from Burgundy to guard the frontiers of the Boulonois, and make war on the English. They greatly destroyed the country round Bethune, because the count of Namur would not suffer his subjects to pay the duke of Burgundy a tax which the king had lately allowed him to raise on the whole of Artois, for the payment of these soldiers who were to guard the frontiers.

The vassals of the count de Namur, however, seeing that their refusal of payment was attended with greater loss, consented to pay the whole without delay,—and then the men at arms quitted their country.

About this time, the earl of Northumberland and lord Percy came to Paris, and waited on the king, the princes of the blood, and the lords of the council, stating their melancholy situation, and entreating to have assistance and men at arms to make war on Henry king of England. In making this request, they engaged to give up some of their friends as hostages, that they would serve him loyally and faithfully against the king of England; but in a short time they received a negative to their demand, and returned home without any aid from the king of France.

Another war broke out between the dukes of Bar and Lorraine; and sir Clugnet de Brabant, admiral of France, was sent thither with a large army. He marched it through Champagne to Lorraine, and besieged Neuf Chastel, belonging to the duke, which instantly surrendered to the king, by the advice of Ferry de Lorraine^[99], count de Vaudemont, brother to the duke.

The duke of Lorraine immediately sent ambassadors to Paris to make excuses for what had passed, who negotiated so successfully that the king was satisfied, and remanded his army, which, in going and coming back, committed great waste in all the countries through which they passed.

The duke of Burgundy, accompanied by his two brothers and many great lords, went to the town of Arras, where his duchess and his daughters were waiting for him. Shortly after, the count de Cleves came thither, and was married to Marie, daughter to the duke; and, on the morrow, the count de Penthievre^[100] espoused another, called Isabella. The town of Arras was very gay with the numerous feasts caused by these weddings.

Some days after, the duke of Limbourg and the two new-married couples, having enjoyed much festivity, took their leaves of the duke and duchess of Burgundy, and returned to their own homes.

At this period, the duke William, count of Hainault, nobly accompanied by his Hainaulters, went to Paris, where he was most handsomely received by the king, queen, and all the princes then there.

During his stay at Paris, it was declared in the parliament, and proclaimed throughout the town, that no one, whether ecclesiastic or layman, should in future pay any tax or subsidy to pope Benedict, nor to such as favoured his pretensions. This was likewise forbidden through the kingdom of France, which caused much perplexity to many well meaning persons in that realm from this schism in the church.

CHAP. XXVIII.

THE DUKE OF ORLEANS, BY THE KING'S ORDERS, MARCHES A POWERFUL ARMY TO ACQUITAINE, AND BESIEGES BLAYE AND LE BOURG.

This year, the duke of Orleans, by orders from the king, quitted Paris to march a large army of men at arms and archers, amounting to six thousand combatants, into Aquitaine, to wage war against the English. He took with him the lord Charles d'Albreth, constable of France, the marquis du Pont, son to the duke of Bar, the count de Clermont^[101], Montagu, great master of the household, with many other noble lords, who marched in a body to lay siege to Blaye, which they sorely oppressed with their engines.

In a short time, the town began to negotiate, and offered to surrender to the duke, in case the town of Le Bourg, to which he intended to lay siege, should set them the example. They also promised to deliver provision to the duke's army, during the siege of Le Bourg, at a reasonable price. The duke accepted of these terms, and besieged Le Bourg, which was strongly garrisoned by a numerous body of english and gascon men at arms. Many engines were pointed against the walls and gates by the French, which did them considerable damage; but, notwithstanding, the besieged defended themselves vigorously.

While this siege was going forward, sir Clugnet de Brabant, admiral of France, put to sea with twenty-two ships full of men at arms, to oppose the english fleet, which was also at sea in great force. The two fleets met, and had a sharp skirmish, in which many were killed and wounded on both sides; but nothing more was done, and they separated. The French, however, lost one of their ships, in which were Lionnet de Braquemont, Agieux de St Martin, and several more, attached to the duke of Orleans, who were carried by the English to Bordeaux.

The other Frenchmen, namely, sir Clugnet de Brabant, sir William de Villanes, governor of la Rochelle, sir Charles de Savoisy, and the rest, returned to Le Bourg, and related to the duke what had passed at sea.

The duke of Orleans, having remained in vain about three months at this siege, considered the strength of the place and the great mortality in his army, and held a council with his officers, when it was resolved that he should march his men at arms back to Paris.

The people of France, and some of the nobility, murmured much against him for this retreat, because there had been a very heavy tax levied for the support of this army.

CHAP. XXIX.

THE DUKE OF BURGUNDY PREVAILS ON THE KING OF FRANCE AND HIS COUNCIL, THAT HE MAY HAVE PERMISSION TO ASSEMBLE MEN AT ARMS TO BESIEGE CALAIS.

During the absence of the duke of Orleans in Aquitaine, the duke of Burgundy obtained liberty from the king of France and his council to raise a sufficient force in his own countries to lay siege to Calais. The king also promised that he should be assisted with men at arms, and as much money as could be raised in the realm.

On this being concluded, he returned to his county of Flanders, and issued his summons for all men at arms to meet him at St Omer: at the same time, he prepared many engines of war,—and particularly, he caused to be constructed in the forest of Beaulot two large bastilles, ready to be conveyed to Calais. He likewise caused many engines to be made for casting stones at different places.

On the other hand, the king had assembled a numerous body of combatants, who, like the others, traversed Picardy in their road to Saint Omer, doing much mischief to the country. Among the number were from four to five hundred Genoese, the greater part of whom were cross-bows on foot.

When all were arrived at St Omer, they were found to amount to six thousand armed with helmets, three thousand archers, and fifteen hundred cross-bows, all picked men, without including those on foot from the countries of Flanders, Cassel, and other parts, who were very numerous. There were very many carts to convey bombards, cannons, artillery, provisions, and other necessities for the war. But notwithstanding all these preparations had been made through the application of the duke of

Burgundy, and with the full approbation of the king and his council, as has been said, and that the musters were about to be made for their immediate departure, certain messengers came to the duke of Burgundy and his captains, with letters from the noble king of France, to forbid them to proceed further with this army.

The duke, on reading these orders, assembled a council of war, and remonstrated with them on the commands he had received from the king, saying it was shameful and disgraceful thus to disarm so noble an army as he had assembled. The lords, however, considering that the king's orders must be obeyed, concluded to break up the army, and to return every man to his own country; for the king had also written to the count de St Pol, to the master of the cross-bows^[102], and to other great lords, to forbid them, on any pretence, to proceed further in this expedition, under pain of incurring his indignation. Thus was this armament broken up on the night of Martinmas-day.

The duke of Burgundy, however, swore by a great oath, in the presence of many of his people, that within the month of March ensuing, he would return to St Omer with a powerful army, and thence march to make war against the English in the Boulonois, and subject them to his obedience, or die in the attempt.

The duke and his vassals left St Omer, and returned to their homes. This retreat caused great discontent throughout Picardy, and the frontiers of the Boulonois, against the king and his council, as well as against those who had raised this army, and not without cause, for the multitudes that had been collected had done infinite mischief to the country.

Sir William de Vienne, lord of St George, and lieutenant-governor of Picardy, resigned this office to the duke of Burgundy, who nominated in his place the lord de Croy. The greater part of the king's artillery was deposited in the castle of St Remy, in the expectation that they would be wanted in the ensuing season.

The duke of Burgundy, having left St Omer, passed through Hesdin, where the duchess was, to Douay, where he received the intelligence that the duchess of Brabant had been dead some little time. He was very indignant at having been forced to disband the forces he intended to march to Calais, and for that cause conceived a deep hatred against many of the king of

France's ministers,—more particularly against the duke of Orleans, for he had been told that the expedition had been countermanded by his interference.

He held a numerous council at Douay on this subject, with many of the nobles of his countries, when it was unanimously resolved, that he should personally wait on the king, to entreat that the expedition against Calais should be renewed the ensuing spring. He went, in consequence, to Paris, nobly attended. He made strong remonstrances to the king, the duke of Berry, his uncle, and others of the king's council, and heavy complaints for their having allowed him to raise so large an army, at such a great expense, and then having disgraced and dishonoured him, by ordering him to disband it, when on the point of marching to Calais.

The king, however, and his ministers, gently appeased his wrath, by informing him of many particulars which had made it proper that such measures as he complained of should have been taken, both from necessity and convenience. He was apparently satisfied with their reasons; and he was given to understand, that within a short time the king would permit him to accomplish his object of besieging Calais.

CHAP. XXX.

THE PRELATES AND CLERGY OF FRANCE ARE SUMMONED TO ATTEND THE KING AT PARIS, ON THE SUBJECT OF AN UNION OF THE CHURCH.

At this period, all the archbishops, bishops, and the principal clergy of France and Dauphiny, were summoned to Paris by order of the king, to confer with his great council on the means of establishing an universal union of the church. When all, or the greater part, were arrived, as the health of the king was very indifferent, a grand procession was made, and a solemn mass to the Holy Ghost was celebrated in the royal chapel of the palace, by the archbishop of Rheims.

On the morrow, the conference was held at the palace, when the duke of Aquitaine, dauphin of Vienne, represented the king. He was attended by the dukes of Berry, Burgundy and Bourbon, and many of the nobles. A learned Cordelier, doctor in theology in the university of Paris, opened the business, and explained the reasons of this assembly. He eloquently stated from facts the sufferings of the church, from the great perversity and discord of two popes contending for the papacy, and that it was absolutely necessary to provide a speedy remedy, otherwise the church would be ruined.

On the day after the feast of St Eloy, the king, having recovered his health, attended this conference, accompanied by the noble persons before mentioned, and was seated on his royal throne. He promised to execute whatever this assembly and the court of parliament should resolve on; and shortly afterward, a proclamation was made throughout the realm, that neither of the contending popes should dispose of any benefices or dignities in the church which might become vacant; and likewise that the sums of money usually paid into the apostolical chamber should be discontinued to

both the rival popes. It was also proclaimed, that all benefices should in future be given by the sovereign, or legal patrons, as had been formerly done, before the reservations and constitutions made by pope Clement VI. of the name.

CHAP. XXXI.

THE LIEGEOIS EJECT THEIR BISHOP, JOHN OF BAVARIA, FOR REFUSING TO BE CONSECRATED AS A CHURCHMAN, ACCORDING TO HIS PROMISE.

This same year, John of Bavaria, surnamed ‘sans pitié,’ bishop of Liege, and brother german to duke William, count of Hainault, was ejected by the Liegeois from his bishoprick, for refusing to take sacred orders, according to what he had promised and sworn to them. They elected another lord and bishop in his room, a young man of eighteen years old, or thereabout, and canon of the church of Saint Lambert of Liege. They also made the lord de Pieruels^[103], father to the new bishop, their principal maimbourg, and governor of the whole territory of Liege.

John of Bavaria had, some time before, promised to resign the bishoprick to the son of Pieruels, as was known to Anthony duke of Brabant, Waleran count de St Pol, and several other respectable persons, which promise he now refused to keep. At the instigation, therefore, of the lord de Pieruels, the Liegeois had rebelled against John of Bavaria^[104], and chosen a new lord.

Their late bishop was much angered at their conduct, and had his town of Bouillon, and other castles, well stored with every sort of warlike provision, that he might thence carry on a war against the country of Liege.

He then went to his brother duke William, in Hainault, to obtain his assistance and men at arms. In the mean time, the Liegeois assembled in great force, and marched to the town of Bouillon, which, with the castle, they took by storm, and put to death all they found therein.

John of Bavaria shortly after entered the country of Liege, near to Thuin, with four hundred combatants, and burnt many towns and houses, carrying

away a very great booty to Hainault.

The Liegeois soon after entered Hainault with a considerable army, where they destroyed the tower of Morialines, and burnt the town. They thence marched to Brabançon, and other places belonging to such knights and esquires as had invaded their country, which they plundered, and in many places burnt, wasting the country with fire and sword.

The Hainaulters assembled to repulse them; but the enemy were in such superior numbers that they returned back, without effecting any thing worth relating. War now raged between them,—and each fortified their towns as strongly as they could.

The Liegeois sent ambassadors to the pope, to lay before him the conduct of John of Bavaria, and his refusal to take orders according to his promise, requesting that he might be ejected by the apostolical authority, and that the son of the lord de Pieruels, whom they had elected, might be admitted in his room.

The pope could not accede to their request, because he had been faithfully informed that the Liegeois, after mature deliberation, had fixed on a day for John of Bavaria to take orders, and that this day was not as yet passed.

The ambassadors, therefore, returned to Liege, without having done any thing. Those who had sent them were very indignant at pope Gregory for not complying with their demands, and resolved to send another embassy to his rival pope Benedict. This pope received them most graciously, granted all their demands, and gave them his bulls for the confirmation of them. They returned home greatly rejoiced at the successful issue of their negotiation.

CHAP. XXXII.

ANTHONY DUKE OF LIMBOURG TAKES POSSESSION OF THAT DUCHY, AND AFTERWARD OF THE TOWN OF MAESTRICHT, TO THE GREAT DISPLEASURE OF THE LIEGEOIS.

Anthony duke of Limbourg, brother to John duke of Burgundy, after the death of the duchess of Brabant, succeeded to that duchy, and to its dependancies. All the Brabanters, clergy and nobles, did him homage, promising him obedience as their lawful lord, except the town of Maestricht. When he had taken possession of this duchy, he surrendered, with the consent of the duke of Burgundy, the county of Rethel to his younger brother, Philip count de Nevers, thus accomplishing the last orders of his father and mother.

As the town of Maestricht was divided between the governments of Brabant and Liege, one half belonging to each, the inhabitants said they were bound only to do homage to one of them, and to him who first had possession; and that, having formerly given their oaths to John of Bavaria, they refused to pay homage to the duke of Brabant.

The duke was ill pleased with their refusal, and resolved, with the advice of his council, to constrain them to it by force. He sought for men at arms every where; and there came to him his brother, the count de Nevers, the counts de St Pol and de Namur, the lords de St George and de Croy, on the part of the duke of Burgundy,—with several others in considerable number, sent to him by the king of France and the duke of Berry.

When his forces were all assembled from different countries, he quitted Brabant, attended by his nobles, and a large train of waggons carrying the implements of war, taking the direct road to the town of Maestricht. But on

passing through, or near the territories of Liege, he found they had collected a large army, which much impeded him in his march by breaking down the bridges, and destroying the roads, in retaliation for the affection the duke of Brabant had shewn to John of Bavaria their adversary.

The Liegeois had assembled in the town of Maestricht full twenty thousand armed men, with the new bishop at their head, being desirous that he should be received by the duke as their legal bishop and lord. This great assembly, however, separated without effusion of blood: for the duke of Brabant had entered into secret negotiations with the townsmen, who consented to receive him as their lord, and to swear to him faith and loyalty.

When this was done, the duke returned and disbanded his forces. The Liegeois, on hearing of it, instantly required those of Maestricht, that since they had sworn obedience to the duke of Brabant, they would do the same to their new bishop, who was their true lord. This demand was refused; and they sent for answer, that having done homage to John of Bavaria, and acknowledged him for their lord, they would not take another oath.

The Liegeois were very indignant at this answer, as were the governor of the town and bishop, and made preparations to wage war against them, and besiege their town, as shall hereafter be more fully described.

CHAP. XXXIII.

AMBASSADORS FROM POPE GREGORY ARRIVE AT PARIS, WITH BULLS FROM THE POPE TO THE KING AND UNIVERSITY OF PARIS.

Ambassadors arrived at Paris bringing bulls from pope Gregory^[105] to the king and the university, expressing that the pope was very ready and willing to make any concessions the king and university should think expedient for the union of the church, provided his rival Benedict would agree to similar terms. The ambassadors and their bulls were received with much joy,—and the contents of the latter were as follows:

‘Gregory, a bishop, and servant to the servants of God, sends health and his apostolical benediction to his children of the university. We are the more prepared to write to you, my beloved children, because of the sorrowful concern which you have manifested on account of the schism in the church, which, through the mercy of the all-powerful God, has much affected you.

‘Innocent VII. our immediate predecessor, of enviable remembrance to this age, was taken from us on a Saturday, the 6th of November. Our venerable brethren the cardinals of the holy roman church, of whom I was one, being by the grace of the Holy Spirit, summoned to a conclave, to elect a roman pontiff,—after many things had been discussed, all eyes were directed to me, a cardinal priest of the title of St Mark; and with unanimous consent, they elected me bishop of Rome, which honour we greatly feared, from a sense of weakness: however, we trusted in Him who does marvellous works, that he would enable us to bear this burden,—and we trusted not in ourself, but in the virtue of God, by whom we were convinced the thing had been done.

‘This pastoral office has not fallen to us for our profit, but for the glory of God and the public benefit,—to both of which we turn our thoughts and courage, in order that this poisonous schism, in which the Christian people have been so long bewildered may be destroyed. If, as we hope, so great a grace may be shewn to us to bring this about, we trust it may be shortly accomplished.

‘In order, therefore, to obviate, as much as in us lies, all obstruction on our part to the much-desired union of the church, we offer to resign our claim to the papacy, provided our adversary, or his successor, whoever he be, shall engage solemnly to make a similar renunciation; that is to say, that he renounce, fully and clearly, all claim to the papacy, and that all those whom he may have created cardinals do unite with those of our college, so that a canonical election of a roman pontiff may ensue.

‘We offer, beside, any other reasonable concessions, so that this schism may be put an end to; and that what we say may be depended on, we have sworn and promised the above at the time of our election to the popedom, in conjunction with our venerable brethren the cardinals of the same church.

‘In case that either of us be re-chosen pope, we have engaged instantly to send properly instructed commissioners to Constance, who shall both privately and publicly labour to bring about this desired union of the church.

‘Do you, therefore, my beloved children, have the goodness to exert all your strength to aid us in the accomplishment of this business, that the church may not longer labour under this disorder; and let affection aid solicitude.—Given at St Peter’s, at Rome, the 11th day of December, in the year 1406.’

When the ambassadors had fully remonstrated on the matter of their coming, and made the same offers contained in the bull of the renunciation of the popedom by Gregory, and had been well entertained at Paris, having received promises of messengers being sent to pope Benedict, they returned to their lord and master.

About the ensuing Candlemas, the king of France and the university of Paris, in consequence of the deliberations of the prelates, clergy and council, sent certain ambassadors to pope Benedict,—namely, the patriarch

of Alexandria, who was then at Paris, the bishops of Cambray and Beauvais, the abbots of Saint Denis and of Mont St Michel, the lord de Courrouille, master John Toussain, secretary to the king, and other doctors of the university, with many very respectable persons. They took the road to Marseilles, where Benedict, and some of the cardinals of his party, then resided.

These ambassadors were charged to remonstrate with him, in an amicable manner, on the offer which his rival had made to renounce the papacy, in order to effectuate an union of the church. In case he should not be willing to make a similar offer, they were to intimate to him, that if he refused, the whole realm of France and Dauphiny, in conjunction with many other countries of Christendom, would withdraw themselves from him, and no longer obey his bulls or apostolical mandates. In like manner would they act toward his adversary, were he to refuse compliance with the offers made by his ambassadors to the king of France and the university of Paris.

The ambassadors were graciously received by pope Benedict, on their arrival at Marseilles; but when they opened the matter of their embassy, and explained the subject at length, the pope replied in person, that in a short time they should have his answer,—and in the mean while, he was not forgetful that they had threatened to withdraw themselves from his obedience.

To provide a remedy against the effects of this menace, and that no cardinal might publish a constitution against such as might withdraw themselves from his obedience, or even that of his successors, he sent an envoy to the king and the university of Paris, to their great astonishment.

The pope having given an answer to the ambassadors from France, very different indeed from what they expected, they set out on their return to Paris much displeased with him. On their arrival, they related all that had passed. The patriarch, however, had remained at Marseilles, with the hope of inclining pope Benedict to an union of the church.

[A. D. 1407.]

CHAP. XXXIV.

THE DUKE OF ORLEANS RECEIVES THE DUCHY OF ACQUITAINE, AS A PRESENT, FROM THE KING OF FRANCE.—A TRUCE CONCLUDED BETWEEN ENGLAND AND FRANCE.

At the beginning of this year, the duke of Orleans, by means which he had long practised, prevailed on his brother, the king of France, to give him the duchy of Aquitaine, which he had long been wishing for.

Truces were at this time concluded between the kings of France and England, for one year only, and were proclaimed at the accustomed places. The Flemings were much rejoiced thereat, for they thought that their commerce would now be more securely carried on.

Ambassadors from England arrived at Paris from king Henry, the principal of whom was sir Thomas Erpingham, having with him an archdeacon, and several noblemen. He was presented to the king by Tassin de Servillers, and required in marriage one of the princesses, a nun at Poissy, for the prince of Wales, eldest son to king Henry. But as they demanded too great concessions with the princess, they returned without success. The lord de Hangest, whom the king had lately for his merit made master of the cross-bows, escorted them as far as Boulogne-sur-mer^[106].

CHAP. XXXV.

THE PRINCE OF WALES^[107], ACCOMPANIED BY HIS
TWO UNCLES, MARCHES A CONSIDERABLE
FORCE TO WAGE WAR AGAINST THE SCOTS.

The prince of Wales, son to king Henry, assembled, about the feast of All-saints, one thousand men at arms and six thousand archers, to make an incursion into Scotland. His uncles, the dukes of York and Somerset, and the lords Mortimer, Rôs, Cornwall, and many other nobles attended him.

Their object was to retaliate on the Scots, who had lately broken the truce, and done much mischief with fire and sword in the duchy of Lancaster. They entered Scotland, and committed great carnage wherever they passed; for the Scots were quite unprepared to receive them, nor had they any intelligence of their coming until they were in the midst of their country.

When news of this invasion was brought to the king of Scotland, he was at his town of St Jangon^[108], in the center of his realm. He assembled in haste his nobles, and as large a force as could be collected on so short notice, which he sent under the command of the earls of Douglas and Buchan, with his constable, to meet the English and combat them, should they think it advisable. When they were within six leagues of the enemy, they were informed, that the English were far superior in numbers, and they adopted other measures. They sent ambassadors to the prince of Wales to treat of peace, and they managed so well that the truce was renewed for one year.

The prince of Wales, having done great mischief to Scotland, returned to England; and the Scots disbanded their army.

CHAP. XXXVI.

THE DUKE OF ORLEANS, ONLY BROTHER TO
CHARLES VI. THE WELL-BELOVED, KING OF
FRANCE, IS INHUMANLY ASSASSINATED IN THE
TOWN OF PARIS.

This year there happened the most melancholy event in the town of Paris that had ever befallen the Christian kingdom of France by the death of a single man. It occasioned the utmost grief to the king and the princes of the blood, as well as to the kingdom in general, and was the cause of most disastrous quarrels between them, which lasted a very long time, insomuch that the kingdom was nearly ruined and overturned, as will more plainly be shewn in the continuation of this history.

This event was nothing less than the murder of the duke of Orleans, only brother to Charles the well-beloved, king of France.

The duke was, on a Wednesday, the feast-day of pope St Clement, assassinated in Paris, about seven o'clock in the evening, on his return from dinner. This murder was committed by about eighteen men, who had lodged at an hôtel having for sign the image of our Lady, near the Porte Barbette, and who, it was afterward discovered, had for several days intended this assassination.

On the Wednesday before mentioned, they sent one named Scas de Courteheuze, valet de chambre to the king, and one of their accomplices, to the duke of Orleans, who had gone to visit the queen of France at an hôtel which she had lately purchased from Montagu, grand master of the king's household, situated very near the Porte Barbette. She had lain in there of a child, which had died shortly after its birth, and had not then accomplished the days of her purification.

Scas, on his seeing the duke, said, by way of deceiving him, 'My lord, the king sends for you, and you must instantly hasten to him, for he has business of great importance to you and him, which he must communicate to you.' The duke, on hearing this message, was eager to obey the king's orders, although the monarch knew nothing of the matter, and immediately mounted his mule, attended by two esquires on one horse, and four or five valets on foot, who followed behind bearing torches; but his other attendants made no haste to follow him. He had made this visit in a private manner, notwithstanding at this time he had within the city of Paris six hundred knights and esquires of his retinue, and at his expense.

On his arrival at the Porte Barbette, the eighteen men, all well and secretly armed, were waiting for him, and were lying in ambush, under shelter of a pent-house. The night was pretty dark; and as they sallied out against him, one cried out, 'Put him to death!' and gave him such a blow on the wrist with his battle-axe as severed it from his arm.

The duke, astonished at this attack, cried out, 'I am the duke of Orleans!' when the assassins, continuing their blows, answered, 'You are the person we were looking for.' So many rushed on him that he was struck off his mule, and his skull was split that his brains were dashed on the pavement. They turned him over and over, and massacred him that he was very soon completely dead. A young esquire, a German by birth, who had been his page, was murdered with him: seeing his master struck to the ground, he threw himself on his body to protect him, but in vain, and he suffered for his generous courage. The horse which carried the two esquires that preceded the duke, seeing so many armed men advance, began to snort, and when he had passed them set out on a gallop, so that it was some time before he could be checked.

When the esquires had stopped their horse, they saw their lord's mule following them full gallop: having caught him, they fancied the duke must have fallen, and were bringing it back by the bridle; but on their arrival where their lord lay, they were menaced by the assassins, that if they did not instantly depart, they should share his fate. Seeing their lord had been thus basely murdered, they hastened to the hôtel of the queen, crying out, —'Murder!'

Those who had killed the duke, in their turn, bawled out, ‘Fire!’ and they had arranged their plan, that while some were assassinating the duke, others were to set fire to their lodgings. Some mounted on horseback, and the rest on foot, made off as fast as they could, throwing behind them broken glass and sharp points of iron to prevent their being pursued.

Report said, that many of them went the back way to the hôtel d’Artois, to their master the duke of Burgundy, who had commanded them to do this deed, as he afterward publicly confessed, to inform him of the success of their murder,—when instantly afterward they withdrew to places of safety.

The chief of these assassins, and the conductor of the business, was one called Rollet d’Auctonville^[109], a Norman, whom the duke of Orleans had, a little before, deprived of his office of commissioner of taxes, which the king had given to him, at the request of the late duke of Burgundy. From that time, the said Rollet had been considering how he could revenge himself on the duke of Orleans. His other accomplices were William Courteheuze and Scas Courteheuze, before mentioned, from the county of Guines, John de la Motte and others, to the amount of eighteen.

Within half an hour, the household of the duke of Orleans, hearing of this horrid murder, made loud complaints, and, with great crowds of nobles and others, hastened to the fatal spot, where they found him lying dead in the street. His knights and esquires, and in general all his dependants, made grievous lamentations, seeing him thus wounded and disfigured.

With many groans, they raised the body, and carried it to the hôtel of the lord de Rieux, marshal of France, which was hard by; and shortly afterward, the body was covered with a white pall, and conveyed most honourably to the church of the Guillemins^[110], where it lay, as being the nearest church to where the murder had been committed.

Soon afterward, the king of Sicily, and many other princes, knights and esquires, having heard of this foul murder of the only brother of the king of France, came with many tears to visit the body. It was put into a leaden coffin, and the monks of the church, with all the late duke’s household, watched it all night, saying prayers, and singing psalms over it.

On the morrow, his servants found the hand which had been cut off, and collected much of the brains that had been scattered over the street,—all of

which were inclosed in a leaden case and placed by the coffin.

The whole of the princes who were in Paris, except the king and his children, namely, the king of Sicily, the dukes of Berry, Burgundy and Bourbon, the marquis du Pont, the counts de Nevers, de Clermont, de Vendôme, de St Pol, de Dammartin, the constable of France and several others, having assembled, with a large body of the clergy and nobles, and a multitude of the citizens of Paris, went in a body to the church of the Guillemins. Then the principal officers of the late duke's household took the body, and bore it out of the church with a great number of lighted torches carried by the esquires of the defunct. On each side of the body were, in due order, uttering groans and shedding tears, the king of Sicily, the dukes of Berry, Burgundy and Bourbon, each holding a corner of the pall.

After the body followed the other princes, the clergy and barons, according to their rank, recommending his soul to his Creator,—and thus they proceeded with it to the church of the Celestins. When a most solemn service had been performed, the body was interred in a beautiful chapel he himself had founded and built. After the service, all the princes, and others who had attended it, returned to their homes.

Many suspicions were formed, as to the authors of this assassination of the duke of Orleans; and at first it was thought to have been perpetrated by sir Aubert de Canny, from the great hatred he bore the duke, for having carried off his wife^[111], by whom he had a son, of whom, and his education, I shall say more hereafter. The truth was soon known who were the guilty persons, and that sir Aubert was perfectly innocent of the crime.

The queen Isabella was so much alarmed the day she heard of this murder being committed thus near her hôtel, that, although she was not recovered from her lying in, she had herself carried by her brother Louis of Bavaria, and others, to a litter, and thence conveyed to the hôtel de St Pol, where she was lodged in the adjoining chamber to that of the king, for her greater security.

The night this murder was committed the count de St Pol and many others of the nobility armed themselves, and went to the hôtel de St Pol, where the king resided, not knowing how far these matters might be carried.

When the body of the duke of Orleans had been interred, as has been related, the princes of the blood assembled at the hôtel of the king of Sicily, with the council of state, whither the provost of Paris and others of the king's lawyers were summoned, and ordered by the princes to make the most diligent inquiries, by every possible means, after the perpetrators and accomplices of this base act. All the gates of Paris were commanded to be closed, except two, and those to be well guarded, that all who might pass them should be known.

Having given these orders, the lords and the council retired to their hôtels in much sorrow and grief. On the morrow, the council was again assembled at the king's palace of St Pol, in the presence of the king of Sicily, the dukes of Berry, Burgundy and Bourbon, and other great lords. On the entrance of the provost of Paris, he was asked by the duke of Berry what measures he had taken to discover the murderers of so great a prince as the king's brother. The provost replied, that he had used all diligence in his researches, but in vain,—adding, that if the king and the great lords present would permit him to search their hôtels, and those of other great lords in Paris, he made no doubt but that he should discover the murderers and their accomplices. The king of Sicily, and the dukes of Berry and Bourbon, gave him instant orders to search wherever he pleased.

The duke of Burgundy, hearing such positive orders given, began to be alarmed, and, drawing king Louis and his uncle, the duke of Berry, aside, briefly^[112] confessed to them what he had done, saying, that by the temptation of the devil he had committed the murder by means of Auctonville and his accomplices^[113]. The two princes were so much astonished and grieved at this confession that they were scarcely enabled to make him any reply, but what they did say was reproving him bitterly for having committed so base an act against his cousin-german^[114].

After this confession of the duke of Burgundy, they returned to the council-chamber, but did not immediately declare what had passed between them,—when the council broke up, and all retired to their hôtels.

On the ensuing day, which was Saturday, the lords before mentioned again assembled at ten o'clock in the morning, at the hôtel de Neelle, where the duke of Berry resided, to hold another council. The duke of Burgundy came thither as usual, attended by the count Waleran de St Pol; but when he was

about to enter the council-chamber, the duke of Berry said to him, 'Fair nephew, do not now enter the council-chamber, for it is displeasing to all the members that you should come among them.' On saying this, the duke of Berry re-entered the council-chamber, ordering the door to be closed, according to the resolutions of the council.

The duke of Burgundy was greatly confused at this,—and being unresolved how to proceed, said to the count de St Pol, 'Good cousin, what should I do?' The count replied, 'My lord, you have only to return to your hôtel, since it is not agreeable to the lords of the council that you should sit among them.' The duke said, 'Good cousin, return with me, to bear me company;' but the count answered, 'My lord, you must excuse me; for I shall go to the council, since I have been summoned to attend it.'

After these words, the duke of Burgundy, in great fear, returned to his hôtel of Artois; and to avoid being arrested, on his arrival there, he mounted a fresh horse, and, attended by six men, hastily quitted Paris by the gate of Saint Denis,—and only changing horses, but not stopping at any place, he travelled onwards until he reached his castle of Bapaume. When he had slept some little, he again continued his route with all speed to Lille in Flanders. Those whom he had left in his hôtel at Paris followed him as speedily as they could, to avoid being imprisoned, of which they were greatly afraid.

In like manner, Rollet d'Auctonville and his accomplices changed their clothes, and disguised themselves, and escaped from Paris by different ways, and went to quarter themselves in the castle of Lens in Artois, by orders of their lord and master John duke of Burgundy.

With so mean an attendance did this duke quit Paris, after the death of the duke of Orleans, leaving the great lords of France in the utmost tribulation and distress.

When those of the household of the late duke of Orleans heard of the secret departure of the duke of Burgundy, they armed themselves, to the amount of six score, having at their head sir Clugnet de Brabant, and, mounting their horses, sallied out of Paris in pursuit of the duke of Burgundy, with the intent of putting him to death, could they overtake him. The king of Sicily, learning their intentions, sent after to forbid them executing their plan,—on which they returned, very indignant, to their hôtels.

It was now publicly known throughout Paris that the duke of Burgundy had committed this murder; but the Parisians were not well pleased with the duke of Orleans, for they had learnt that he was the author of all the heavy taxes that oppressed them, and began to say among themselves in secret, 'The knotty stick is smoothed.'

This melancholy event took place in the great winter of the year 1407, when the frost lasted for sixty-six days with the greatest severity. On the thaw, the new bridge at Paris was destroyed, and fell into the Seine; and the floods did very great mischief to many parts of the kingdom of France.

I have no need, in this chapter, to speak of the great hatred and jealousy that had taken place between the dukes of Orleans and Burgundy, prior to the death of the former, as it would occupy too much room; and besides, they will be fully spoken of in the proceedings which were shortly afterward instituted,—namely, in the justification which the duke of Burgundy proposed offering publicly, in the presence of the princes of the blood, the nobility, both ecclesiastical and secular, shewing the causes why he openly avowed being the author of the death of the duke of Orleans, and likewise from the answers which the dowager-duchess of Orleans and her children made in exculpation of the late duke,—which shall all be written in this present chronicle exactly in the manner in which they were proposed in the presence of the whole royal council, and great numbers of others of different ranks.

CHAP. XXXVII.

THE DUCHESS OF ORLEANS, WITH HER YOUNGEST SON, WAIT ON THE KING IN PARIS, TO MAKE COMPLAINT OF THE CRUEL MURDER OF THE LATE DUKE HER HUSBAND.

The late duke of Orleans had married the daughter of Galeazzo duke of Milan, his cousin-german, by whom he left three sons and one daughter,—namely, Charles, the eldest, who succeeded his father in the dukedom of Orleans; Philip, count de Vertus; John, count of Angoulême. The daughter was married to Richard of Brittany. We shall say more hereafter respecting these princes, and of the fortunes that befel them.

On the 10th day of December, the duchess of Orleans, widow to the late duke, with her youngest son John, and accompanied by the late queen of England, now wife to her eldest son, set out for Paris. The king of Sicily, the dukes of Berry and Bourbon, the counts of Clermont and Vendôme, the lord Charles d'Albreth, constable of France, and many other great lords, went out of the town to meet her, attended by a number of people and horses, and thus escorted her to the hôtel de St Pol, where the king of France resided. Being instantly admitted to an audience, she fell on her knees to the king, and made a pitiful complaint to him of the very inhuman murder of her lord and husband. The king, who at that time was in his sound senses, having lately recovered from his illness, raised her up with tears, and assured her he would comply with all her request, according to the opinion of his council. Having received this answer, she returned to the hôtel of Orleans, accompanied by the before-mentioned lords.

On the following Monday, the king of France, by the advice of his parliament, resumed in court the county of Dreux, Chastel-Thierry, and

Mont d'Arcuelles, and all the lands which the king had given to his brother for his life.

On the Wednesday after St Thomas's day, the duchess of Orleans, accompanied by her youngest son,—the queen of England, her daughter-in-law,—the chancellor of Orleans, and others of her council, with many knights and esquires, who had been of the household of the late duke, all clothed in black, came to the hôtel of St Pol to have an audience of the king. She found there the king of Sicily, the dukes of Berry and Bourbon, the chancellor of France, and several others, who, having demanded an audience for her of the king, instantly obtained it.

She was led into the presence by the count d'Alençon, and with many tears, and before all the princes, again supplicated the king that he would do her justice on those who had traitorously murdered her lord and husband, the late duke of Orleans. The whole manner of this deed she caused to be declared to the king by her advocate in the parliament; and the chancellor of Orleans was by her side, who repeated to the advocate word for word what she wished to have divulged.

She had explained at length the whole history of the murder: how he had been watched, and the hour and place where the assassins had fallen on him; and how he had been betrayed by a false message from his lord and brother the king, giving him to understand that the king had sent for him,—and ending with declaring that this murder more nearly touched the king than any other person. The advocate of the duchess concluded by saying, the king was bound to avenge the death of his brother, as well in regard to the duchess and her children, from their proximity of blood, as in respect to the offence which had been committed against justice and his royal majesty.

The chancellor of France, who was seated at the king's feet, replied, with the advice of the dukes and lords present, that the king, having heard the detail of the murder of his brother, would, as speedily as possible, do strict and equal justice against the offenders. When the chancellor had said this, the king himself spoke, and said, 'Be it known to all, that the facts thus exposed, relative to the death of our only brother, affect us most sensibly, and we hold the offence as committed against our own proper person.'

Upon this the duchess, her son John, and the queen of England, her daughter-in-law, cast themselves on their knees before the king, and, with

abundance of tears, supplicated him to remember to do good justice on the perpetrators of the murder of his brother. The king raised them up, and, kissing them, again promised strict justice, and named a day for the enforcement of it. After these words they took their leave, and returned to the hôtel of Orleans.

On the second day ensuing, the king of France came from his palace to the chamber of parliament, which had been greatly adorned, and seated himself on the royal throne. He then published an act, in the presence of the dukes, princes, nobility, clergy, and commonalty of his realm, by which he ordained, that should he die before the duke of Aquitaine was of lawful age, notwithstanding this he should govern the kingdom,—and that all things should be conducted in his name by the three estates of the realm, until he should be arrived at the proper age to take the government into his own hands.

Should it happen that his eldest son should die before he came of age, he ordained that his second son, the duke of Touraine, should succeed him; and in like manner that his third son should succeed the duke of Touraine, on his death; but that until these princes should be of the proper age, the three estates should govern in their name.

These ordinances were very agreeable to the princes of the blood and council, and were confirmed by them. On the third day of January, the duchess of Orleans, for herself and children, did homage for the county of Vertus, and all the other lordships that had been held by her late husband. She took her oaths of fealty to the king himself, and, having taken her leave of him, quitted Paris a few days after, and returned with her state to Blois.

CHAP. XXXVIII.

THE DUKE OF BURGUNDY ASSEMBLES A NUMBER OF HIS DEPENDANTS, AT LILLE IN FLANDERS, TO A COUNCIL, RESPECTING THE DEATH OF THE DUKE OF ORLEANS.—HE GOES TO AMIENS, AND THENCE TO PARIS.

When the duke of Burgundy was at Lille, he called to him the nobles, clerks, and others of his council, to have their opinion respecting the death of the late duke of Orleans,—and he was greatly comforted by the advice they gave him. He went thence to Ghent to his duchess, and there summoned the three estates of Flanders, to whom he caused the counsellor, John de la Sancson, to explain publicly the reasons, article by article, why he had caused the duke of Orleans to be put to death at Paris; and as he was desirous that the whole should be made as public as possible, he ordered copies to be given of his explanation to all who might be desirous of having them. He then demanded, that they would afford him their aid, in case any thing disagreeable should happen to him in consequence of what he had done; and the Flemings promised they would assist him willingly.

In like manner did those of Lille, Douay, and the inhabitants of Artois, after they had heard the reasons for this death, and the duke's request of assistance against all the world, except the king of France and his children. The reasons he assigned for causing the duke of Orleans to be put to death were the same, or nearly the same, as those of master John Petit, when, by command of the duke of Burgundy, he publicly harangued at Paris, before the royal council, and which shall, hereafter, be very minutely given.

During this time, the king of Sicily and the duke of Berry sent messengers with letters to the duke of Burgundy at Lille, whither he was returned, to require that he would meet them without fail at Amiens, on an appointed

day, which they made known to him, in order to confer and consult together on what was to be done respecting the death of the duke of Orleans.

The duke of Burgundy returned for answer, by the messengers, that he would not fail to meet them; and, in consequence, he requested of the states of Flanders and Artois to lend him a sum of money, which was granted to him.

He made grand preparations for his journey, and assembled a very considerable force. When the day appointed approached, in company with his two brothers, the duke of Brabant and count of Nevers, with many other noblemen and gentry, to the amount of three thousand, excellently armed, and attended by several of his council, he went from Arras to Corbie, and, on the appointed day, entered Amiens, and lodged at the house of a citizen called James de Hanghart. He caused to be painted over the door of this house two lances,—the one with a sharp pointed head, and the other with a blunt one,—which many of the nobles of his company said was meant to signify, that he was prepared for war or peace, accordingly as it might be determined on.

The weather was exceedingly severe at this season, and the country was covered with snow, insomuch that the king of Sicily and the duke of Berry, accompanied by about two hundred horse, on leaving Paris, were forced to employ great numbers of peasants with shovels to clear the road for them. They arrived at Amiens on the day fixed upon; and the duke of Burgundy, with his two brothers, magnificently attended, went out of the town to meet them,—and mutual respects were paid on each side.

The king of Sicily was lodged at the hôtel of the bishop, and the duke of Berry at St Martin les jumeaux. At the time that these two princes left Paris, the duke of Bourbon^[115], and his son the count de Clermont, much grieved and melancholy at the death of the duke of Orleans, did the same, and returned to the duchy of Bourbon.

The king of Sicily and the duke of Berry had brought with them to Amiens some of the members of the royal council, to attempt, if possible, a reconciliation between the two parties of Orleans and Burgundy, for the advantage of the king and realm; but their attempts were vain, for duke John's obstinancy was so great that he would no way consent to ask the king's pardon, nor require any remission for what had passed. On the

contrary, he maintained that the king and his council should feel themselves much obliged to him for what he had done.

In support of this conduct, he had brought with him three doctors in theology, of high fame and reputation in the university of Paris,—namely, master John Petit, who afterwards argued it publicly at Paris, and two others. They declared, in the presence of these two princes and the royal council at Amiens, that it was lawful for the duke of Burgundy to act as he had done, in regard to the duke of Orleans,—adding, that if he had not done it, he would have been greatly to blame; and they were ready to maintain these two propositions against all who should say to the contrary.

When the two parties had discussed this matter for some days, and when those sent by the king perceived they could not bring it to the conclusion wished for by them, namely peace, they broke up the conference, and took their departure to Paris, having first signified to the duke of Burgundy, in the king's name, that he must not return to Paris until he was so ordered.

Duke John, however, plainly told them, he should pay no attention to this order; for that it was his intention to go to Paris as speedily as possible, to lay his charges and defence publicly before the king and the Parisians. On the morrow of the departure of the two princes, the duke of Burgundy, with his two brothers and those who had accompanied them, returned to the town of Arras, with the exception of Waleran count de St Pol, who remained for six days after them in Amiens.

When the king of Sicily and the duke of Berry, with the lords of the council, were returned to Paris, and had made their report to the king and princes, relating at length the answers which the duke of Burgundy had made, and that he had asserted the king ought to requite him in various ways for having caused the death and murder of the duke of Orleans, they were much disgusted and astonished at the great presumption and audacity of the duke of Burgundy.

It was talked of differently according to the bias of each party. Those of Orleans were much angered, and declared, that the king ought to assemble all his forces to subdue the duke of Burgundy, and punish him as his conduct deserved. While others, attached to the Burgundy-party, held a contrary opinion, thinking the duke had done a praise-worthy act toward the king and his family; and this was the opinion of the greater part of the

Parisians, by whom the duke of Burgundy was much beloved. The cause of his popularity in Paris were the hopes they entertained, that through his means the heavy taxes with which they and all France were oppressed would be taken off,—which the duke of Orleans, when alive, had been so instrumental in imposing, because he had had a great share in them.

The duke of Burgundy went shortly after to Flanders, and summoned a great number of his nobles, gentry and men at arms, to prepare themselves to accompany him to Paris,—notwithstanding the king of Sicily and the duke of Berry had forbidden him, in the king's name, to come thither until further orders. He did not, however, pay any attention to this command, but advanced, by short journeys to St Denis, whither the king of Sicily, and the dukes of Berry and Brittany, and several of the king's council, came to visit him,—and again forbade him, in the king's name, to enter Paris, if accompanied by more than two hundred men.

The duke of Burgundy, on this, quitted St Denis, in company with his brother the count de Nevers, his brother-in-law the count de Cleves, and the duke of Lorraine, with a very large body of men well armed, and entered Paris, with the intent of justifying his act and his quarrel with the late duke of Orleans, as well before the king as before all who might think proper to demand it of him.

The Parisians shewed great joy on his entering the town; and even little children sung carols in all the squares, which much displeased the king, the queen, and the princes then in Paris. He dismounted at his hôtel d'Artois, and was, in truth, greatly beloved by the common people; for they believed he was much attached to the good of the kingdom, and to the general weal. This made him more popular than the other princes of the blood,—and the people freshly remembered the heavy taxes that had been laid on them since the death of the late duke Philip of Burgundy, and principally, as they thought, by means of the duke of Orleans, who was exceedingly unpopular with them; and they considered his death, and the being delivered from his government, as a peculiar mark of God's grace, not foreseeing what was afterward to befall them and the whole kingdom of France.

When the duke of Burgundy had been some days in Paris, and had learnt from his friends and partisans how he was to conduct himself, he found means to obtain an audience of the king, when the princes, clergy and

people should be present, to hear his justification of the murder of the late duke of Orleans.

He went to the appointed place of audience well armed, and escorted by the princes and lords whom he had brought with him, and great crowds of Parisians. During his stay at Paris he was always armed, to the surprise of the other princes and members of the royal council, who were afraid to say any thing disagreeable to him, from his popularity with the citizens, and because he was ever surrounded by men at arms, and had his hôtel full of them; for he had quartered there the whole, or the greater part, of those whom he had brought with him. He had also a strong tower constructed of masonry^[116], in which he slept at nights, and his chamber was strongly guarded. The justification of the duke now follows, and shall be literally given, as delivered by doctor John Petit.

CHAP. XXXIX.

THE DUKE OF BURGUNDY OFFERS HIS JUSTIFICATION, FOR HAVING CAUSED THE DEATH OF THE DUKE OF ORLEANS, IN THE PRESENCE OF THE KING AND HIS GREAT COUNCIL.

On the 8th day of March, in the year 1407, duke John of Burgundy offered his justification for having caused the death of the late duke of Orleans, at the hôtel de St Pol at Paris, by the mouth of master John Petit, doctor of theology. There were present, in royal state, the duke of Guienne^[117], dauphin of the Viennois, eldest son and heir to the king of France, the king of Sicily, the cardinal de Bar^[118], the dukes of Berry, Brittany and Lorraine, and many counts, barons, knights and esquires, from divers countries, the rector of the university, accompanied by a great many doctors and other clerks, and a numerous body of the citizens of Paris and people of all ranks.

John Petit^[119] opened his speech in the manner following. ‘In the first place,’ said he, ‘the duke of Burgundy, count of Flanders, of Artois and of Burgundy, doubly a peer of France, and dean of the french peerage, comes hither, with all humility, to pay his reverence to his royal majesty, like an obedient subject,—to which he is bounden by four obligations, according to the decisions of the doctors of civil and canon law. The first of these obligations is,—‘Proximi ad proximum qua quisque tenetur proximum non offendere. Secunda, est cognatorum ad illos quorum de genere geniti vel procreati sunt qua tenetur parentes suos non solum non offendere, sed etiam deffendere verbo et facto. Tertia, est vassalorum ad dominum qua tenentur non solum non offendere dominum suum, sed deffendere verbo et facto. Quarta est, non solum non offendere dominum suum, sed etiam principis injurias vindicare.’

‘Now, my lord of Burgundy is a good Catholic, a prudent man, a lord of a godly life in the Christian faith, and likewise nearly connected to the king,—by which he is bound to love him as himself, and to be careful to avoid giving him any offence. He is his relation by blood, so near as to be his cousin german, which not only obliges him to be attentive not to give him offence, but on the slightest ground to defend him by speech against all who might intend to injure him. Thirdly, he is his vassal, and is therefore bound to defend him not only by words, but by deeds, with all the united strength of his power. Fourthly, he is his subject, by which he is obliged not only to defend him by word and deed against his enemies, but is bound to avenge him on such as commit, or do intend to commit, and contrive any evil attempts against his person, should such come to his knowledge.

‘Beside these obligations, he is also bounden to his royal majesty, from the daily honours and presents he is in the habit of receiving from him,—and not only as his relation, vassal and subject, as has been stated, but as his very humble knight, duke, count and peer of France; not only a peer of France from two claims, but also the dean of the peerage, which, next to the crown, is the highest rank and prerogative in the kingdom of France.

‘The king has likewise had such an affection for him, and shewn him such great honour as to make him father-in-law to the most noble and potent lord the duke of Guienne and dauphin of the Viennois, his eldest son and heir, by his marriage with the eldest daughter of my lord the duke, and has added to this honour by the marriage of the princess Michelle of France with the eldest son of my aforesaid lord of Burgundy; and as St Gregory says, ‘Cum crescunt dona et rationes donorum,’ he is obliged to defend him from every injury within his power. This he has acknowledged, does acknowledge, and will acknowledge (if it please God), and will ever retain in his heart the remembrance of these obligations, which are twelve in number,—namely, those of neighbour, relation, vassal, subject, baron, count, duke and peer, count and peer, duke, and dean of the peerage, and these two marriages.

‘These twelve obligations bind him to love, serve and obey the king, and to do him every personal reverence and honour, and not only to defend him against his enemies, but to exercise vengeance against them. In addition, that prince of noble memory, my late lord of Burgundy his father, when on his death-bed, commanded him, above all things, to behave most loyally, honourably, justly and courageously toward the person of the king of

France, his children and his crown; for he greatly feared his enemies would practise to deprive him of his crown, and that after his decease they would be too strong for him. It was for this reason, that when on his death-bed, he insisted on his sons resisting every attempt of the sort.

‘The wise and determined conduct of my lord duke of Berry, in conjunction with my above-mentioned deceased lord, must not be forgotten, in their government of the kingdom, so that not even the slightest suspicion was ever formed against them.

‘For these reasons, my lord of Burgundy could not feel greater grief of heart, or more displeasure, than in doing any thing respecting the late duke of Orleans that might anger the king. The deed that has been done was perpetrated for the safety of the king’s person, and that of his children, and for the general good of the realm, as shall be so fully hereafter explained that all those who shall hear me will be perfectly satisfied thereof.

‘My lord of Burgundy, therefore, supplicates the king to withdraw from him any hatred he may have conceived against him, and that he would show him that benignity and grace due to his loyal vassal and subject, and to one nearly related to him as he is by blood, while I shall explain the causes of justification of my lord of Burgundy, in consequence of his commands, which I cannot refuse, for the two following reasons:

‘In the first place, I am bound by my oath, given to him three years ago, to serve him. Secondly, on his perceiving that I had very small benefices, he gave me annually a considerable pension that I might continue my studies at the schools, which pension has furnished the greater part of my expenses, and will continue, under his good favour, so to do.

‘When, however, I consider the very high importance of the matter I have to discuss, and the great rank of the persons to whom I am to address myself, and, on the other hand, when I feel how weak I am in understanding, memory and language, I am seized with apprehension and fear, so that what abilities and remembrance I may have had are fled. I have no other remedy, therefore, but to recommend myself to God my Creator and Redeemer, to his glorious mother, and to my lord St John the evangelist, the prince of Theologians, that they would have the goodness to guard me from saying or doing any thing wrong, in following the advice of my lord St Austin, who says, ‘Libro quarto de doctrina Christiana circa finem; sive apud populum

vel apud quoslibet jamiamque dicturus, sive quod apud populum dicendum vel ab eis qui voluerint aut potuerint legendum est dictaturus, oret ut Deus sermonem bonum det in os ejus. Si enim regina Hester oravit pro suæ gentis salute temporali locutura apud regem ut in os ejus Deus congruum sermonem daret, quanto-magis orare debet, ut tale munus accipiat qui pro æterna hominum salute in verbo et doctrina laborat,' &c.

‘And because the matters I am to treat of are of such very great moment, it does not behove so insignificant a person as myself to speak of them, nor indeed to open my lips before so august and solemn an assembly. I therefore very humbly entreat you, my noble lords, and the whole company, that should I utter any thing improper, it may be attributed to my simplicity and ignorance, and not to malice; for the Apostle says, ‘Ignorans feci: ideoque misericordiam consecutus sum.’

‘I should be afraid to speak of such things as my subject will lead me to, and which I am charged to say, were it not for the commands of my lord of Burgundy.—After this, I now protest that I intend no injury whatever to any person, whether he be alive or dead; and should it happen that some parts of my speech seem to bear hard for or in the name of my lord of Burgundy, I pray that I may be held excused, as it will proceed from his commands, and in his justification, and not otherwise.

‘But some one may put a question to me, saying, Does it belong to a theologian to offer such justification, in preference to a lawyer? I reply, that it certainly does not belong to me, who am neither a theologian nor a lawyer; but to satisfy those who may think such a question proper, I shall say, that were I a theologian, it might become a duty under one consideration, namely, that every doctor in theology is bounden to labour in excusing and justifying his lord, and to guard and defend his honour and good name, according to the truth, particularly when his aforesaid lord is good and loyal, and innocent of all crimes.

‘I prove this consideration to be true, from the duty attached to doctors in theology to preach and say the truth at all times and in all places. They are likewise styled ‘Legis divinæ professores quia inter omnes alios doctores ipsi magis tenentur profiteri veritatem.’ Should they die for having uttered the truth, they become true martyrs.

‘It is not therefore to be wondered at, if I offer my poor abilities in the justification of my before-mentioned lord, since he has afforded me the means of pursuing my studies, and, if God please, will continue so to do. If ever there were a proper time and place to bring forward the justification of my lord of Burgundy, it is at this moment, and before this assembly; and such as may find fault with me for so doing are, I think, to be blamed, for every man of honour and good sense will hold me excused. In the hope, therefore, that no one will bear me ill will for this justification, I shall produce an authority for it from St Paul.

‘ON COVETOUSNESS.

“*Radix omnium malorum cupiditas, quam quidem appetentes erraverunt a fide,*’ 1 Tim. vi. which may be thus translated, Covetousness is the root of all evil; for the moment any one is in her net, he follows her doctrine:—she has even made apostates of some who have been too much seduced by her. This proposition contains three dogmas: first, that covetousness is the motive of all evil to such as she has entangled by her wiles; secondly, that she has caused many apostates, who, having denied the catholic faith, have turned to idolatry; thirdly, that she has made others traitors, and disloyal to their kings, princes, and lords paramount.

‘These three propositions I shall bring forward as my major, and then add a minor, for the complete justification of my said lord of Burgundy. I may indeed divide these into two parts; the first consisting of my major, and the second of my minor. The first will comprehend four others, and discuss the first subject of my theme,—the second the second,—and the third the third. In the fourth article, I propose to bring forward some facts as the groundwork of my lord’s justification.

‘In regard to the first article, that covetousness is the root of all evil, I may bring forward an instance to the contrary from the holy Scriptures, which declares, *‘Initium omnis peccati superbia.’* Eccles. x. *‘Ergo, non est cupiditas radix omnium malorum.’*

‘Since the holy church says that pride is the foundation of sin, covetousness is not the root of all evil,—and thus the words of St Paul do not seem true. In answer to this I say, from St John the evangelist, *‘Nolite diligere mundum nec ea quæ in eo sunt. Si quis diligit mundum, non est charitas*

Patris in eo: quoniam omne quod est in mundo aut est concupiscentia carnis, aut oculorum, aut superbia vitæ, quæ non est ex Patre sed mundo: et mundus transibit, et concupiscentia carnis; sed qui facit voluntatem Dei vivet in æternum.'

'That is to say, Do not love the world, nor place your sole happiness in worldly things; for the pleasures of this world consist in covetousness and in a love of the flesh,—in the pursuit of worldly riches and vain honours, which are not the passions given us by God. All worldly things are transitory,—and the world dies and its desires with it; but he who does the will of God will enjoy everlasting glory with him.

'It appears clearly from this quotation from St John that there are three sorts of covetousness, which include within them every sin, namely, covetousness of vain honours,—covetousness of worldly riches,—covetousness of carnal delights; and it was thus understood by the Apostle when he said, 'Radix omnium malorum cupiditas.'

'Covetousness being understood to appear in the three forms aforesaid, and mentioned by St John,—the first of which is that of vain honours, which is nothing more than a wicked desire, and a disordered inclination to deprive another of his honours or lordships,—this passion is called by St John *superbia vitæ*, and contains within it every vice, namely, pride, vain-glory, anger, hatred and envy; for when he who is possessed by this passion cannot accomplish his will, he becomes enraged against God, and against those that stand in his way, and thus commits the sin of anger, which increases soon against the person in possession of the aforementioned superiority, to so great a degree that he practises to put him to death.

'The second covetousness is called 'the covetousness of worldly riches,' which is the passion to take away from another his wealth and moveables, and is called by the evangelist *concupiscentia oculorum*. It includes within it usury, avarice, and rapine.

'The third covetousness is the *concupiscentia carnis*, which is merely disorderly desires for carnal delights, or perhaps indolence; as, for example, when a monk or other religious cannot endure to go to matins, because he is more comfortable in his bed. Sometimes it consists in gluttony, as when any one devours too much meat or wine, because they are pleasing to his tongue

and savoury to his palate. At other times, it may shew itself in luxury, and in other shapes and manners which it is unnecessary to explain.

‘My first article is therefore clear, when I said, that ‘covetousness was the root of all evil,’ if we understand it as the apostle did, when he said, ‘*Radix omnium malorum cupiditas: et hoc de primo articulo hujus primæ partis.*’

‘To enter on the subject of the second article of my major, I shall take it for granted that the greatest possible crime on earth is the crime of high treason, for the highest honour under heaven consists in the royal majesty. Can there then be a greater crime than any injury offered to the royal majesty? As this crime, therefore, is the deepest, the punishment of it should be the most severe.

‘There are two sorts of kingly dignity,—the one divine and perpetual, the other human and temporal; and in like manner, there are two kinds of high treason,—the first the crime of treason against the divine, and the second against the human majesty. That of high treason against the divine majesty may be again divided into two parts; first, when an injury is offered personally to our Sovereign Lord God and Creator, such as heresy and idolatry; secondly, when they are committed against the spouse of our holy Lord God JESUS CHRIST,—namely the holy Church, and when any schism or division is introduced within it. I therefore mean to say, that heretics and idolaters commit the crime of high treason in the first degree, and schismatics in the second.

‘The crime of human high treason may be divided into four degrees: first, consisting of offences done personally against the prince,—of offences done to the person of the queen, his spouse,—of such as are done personally against their children,—and fourthly, of injuries done to the public state. As the crime of high treason has been ever considered as one of the most atrocious, the laws have ordained much severer punishments against it than for any others. In cases of heresy and human high treason, a man may be accused after his death, and a process may be carried on against him: should he be convicted of heresy, his body is taken up from the grave, his bones put into a bag, carried to the place of execution, and burnt. In like manner, should any one be convicted after his decease of human high treason, his body is taken up from the grave, his bones put into a sack, all his wealth in

land or moveables is confiscated to the prince, and his children declared incapable of holding lands or of succeeding to any property.

‘Having distinguished the crimes of high treason, I shall now proceed to prove the second article of my major by authorities and examples, namely, that covetousness has made many apostates, who have denied the catholic faith, and worshipped idols. I have found many instances to prove this, but it would take up too much time to relate the whole: I shall confine myself to three only.

‘OF JULIAN THE APOSTATE.

‘The first example is Julian the apostate, who was a Christian and a churchman; but to arrive at the imperial dignity of emperor of Rome, he denied the catholic faith and his baptism, and adored idols, telling the Christians, by way of colouring his apostacy, ‘*Christus vere dicit in evangelio suo, Nisi quis renunciaverit omnibus que possidet, non potest meus esse discipulus.*’ Saying, ‘You who wish to be Christians cannot possess any thing.’

‘You must know, that this Julian was a churchman, very learned, and of high descent; and it was said that he might, had he laboured for it, have been pope; but as the popedom was at that time in a state of poverty, he cared not for it,—and the imperial dignity being the highest in the world, he was very eager to obtain it by any means. Having considered that the pagans were sufficiently strong to refuse to be governed by any Christian, he denied his baptism and the catholic faith, and adopted the pagan religion in the adoration of idols. He also persecuted the Christians, and defamed the name of JESUS CHRIST, which he looked to as one means of succeeding to the empire.

‘The reigning emperor shortly after died; and the pagans, knowing that Julian was of high birth, great learning, and the most bitter persecutor of the Christians in the world, and who said more than anyone else against our holy mother the church, elected him emperor.

‘I will now tell you the horrible death that put an end to his days. During his government, the Persians rebelled against Rome. He collected a large army to subdue them, and swore on the altars of his damned gods, that should he

return victorious, he would utterly destroy all Christendom. In the course of his march with the army, he passed a city called Cesarea, in the country of Cappadocia, where he met a very learned doctor in theology, who was bishop of that town, and who is now known by the name of St Basil.

‘He was an excellently good man, and, by means of the truth of his doctrines, all the inhabitants of that country were become Christians.

‘St Basil waited on the apostate Julian, made his obeisance to him, and presented him with three barley-loaves. The emperor was indignant at the present, and said, ‘Does he send me mare’s food? I will return the compliment by sending him horse-meat, namely, three bushels of oats.’

‘The good man excused himself, saying that it was such bread as he and those of that country eat. The emperor, however, swore, that on his return, he would destroy the town so completely that a plough should pass over the ground, and make a field of the spot where the town now stood, which field should bear wheat—‘Itaque juravit quod faceret eam fariferam et non austeram’—and marched on with his army.

‘St Basil and the Christians took counsel together how they could save the city from this threatened destruction, and imagined it would be best to offer the emperor all their jewels and treasure to appease his anger. They likewise proposed going in procession to a church of our Lady, situated on a mountain near the city, and to remain there for three days to pray to God to save them and their city from ruin.

‘On the third night, St Basil had a vision, in which he saw a great company of angels and saints assembled before a lady, who thus spoke to one of the saints, called the chevalier Mercure: ‘Thou hast always been a faithful servant to my son and to me; and on this account I command thee to go and kill the emperor Julian, that false apostate, who so bitterly persecutes the Christians, and says such infamous things of my son and me.’ She instantly restored Mercury to flesh and blood, who, like a good knight, took his lance and shield from the roof of the church where it had been affixed after his interment there, and went as he was commanded. When he overtook Julian, he thrust his lance through his body in the presence of his servants: having withdrawn his lance, he threw it across his neck, and none of the emperor’s attendants knew who he was.

‘St Basil, after this vision was ended, hastened to the church wherein was the tomb of the knight, and found neither body nor lance, nor shield. He called to him the keepers of the church, and asked them what was become of the lance and shield? They replied, that in the preceding night they had been carried away, but knew not how or by whom.

‘St Basil returned instantly to the mountain, and related his vision to the clergy and people, adding that he had just visited the church where the knight had been buried, but that neither his shield nor lance was to be found, which was a strong confirmation of the truth of the vision.

‘The whole town, shortly after this, visited the church; and the shield and lance were seen hanging to the roof, as formerly, over the tomb of the knight,—but the point of the lance was covered with blood.

‘It was imagined that this action had required but one day and two nights, and that on the second night the body had been replaced in the tomb, and the arms under the roof. The point of the lance was covered with the blood of Julian the apostate, as has been mentioned; and the chronicle adds, that when slain, he received the blood in his hand, saying, *Vicisti me Galilæe!* that is to say, ‘Thou hast conquered me, Galilean!’ alluding to JESUS CHRIST, and throwing his blood in the air.

‘The same chronicle says, that one of the counsellors and sophists of this Julian had a similar vision respecting his miraculous death, and that he came to St Basil to be baptised, like a good Christian. He told him he had been present when the emperor was killed, and saw him throw his blood from his hand up into the air. Thus ended miserably the life of Julian the apostate.

‘We have another example in the monk Sergius, who was a Christian of the church, but through covetousness got admitted into the company of Mohammed, and became his apostle. This monk, considering that Mohammed was a great captain in the armies of Syria and other countries beyond sea, and that the principal lords of the country were almost all destroyed by the plague, leaving only children behind them, said to Mohammed, ‘If you will follow my advice, I will shortly make you the greatest and most respected lord in the universe.’

‘Mohammed consented to his proposals; and it was agreed that Mohammed should conquer the whole country by force of arms, and make himself lord of it. The monk was to renounce the Christian religion, and compose a new religious code, in the name of Mohammed. This was done; and all the countries of Arabia, Syria, Africa, Fez, Morocco, Granada, Persia, Egypt, with several others that had been Christians, were converted, or the greater part of them, to the religion of Mohammed, six hundred years after the incarnation of our Lord.

‘Mohammed gave to this monk great abundance of worldly riches, which his covetousness received to the eternal damnation of his soul.

‘The third example is that of the prince or duke of Simeon, one of the twelve tribes of the children of Israel. He was a very powerful prince, and his name was Zambry, and was so smitten with concupiscence, and carnal desires, for a pagan lady, who would not submit to his will unless he consented to adore her idols, that he apostatised, and not only adored idols himself, but induced many of his people and subjects to do the same. The holy Scriptures thus speak of him: ‘At illi comederunt et adoraverunt deos earum. Initiatusque est Israel Beelphegor. Et iratus Dominus ait ad Moysem, tolle cunctos principes populi, et suspende illos contra solem in patibulis, &c. et paulopost: et ecce unus de filiis Israel intravit coram fratribus suis ad scortum madianitem, &c. Quod cum vidisset surrexit de medio multitudinis Phinees, et arrepto pugione ingressus est post virum Israelitem in lupinar, et perfodit ambos simul in locis genitalibus. Et occisi sunt viginti quatuor millia hominum. Et sic Phinees placavit Deum. Et ideo innocentius inde miseria conditionis humanæ ait. Extrema libidinis turpitude: quæ non solum mentem effæminat, sed etiam corpus aggravat. Omne namque peccatum quodcunque fecerit homo extra corpus est; qui autem fornicatur in corpus suum peccat.’

‘That is to say, This duke and a great part of his people committed fornication with pagan and saracen women of the country of Moab, who induced them to worship their idols. God was much angered thereat, and said to Moses, who was their sovereign commander, ‘Take all the princes of the people and hang them up on a gibbet in the face of the sun.’ ‘But why,’ said he, ‘hang all the princes?’ Because part of them were consenting to this crime, and the other part, though not following their example, were neglectful to avenge such heavy offences against God, their Creator.

‘Moses instantly assembled all the princes and people of Israel, and told them what God had commanded him. The people began to weep, because the offenders were so powerful the judges dared not condemn them,—and duke Zambry had full twenty-four thousand men of his tribe.

‘This duke quitted the assembly, and, in the presence of all the people, entered the house of the pagan lady, the mistress of his heart, who was the handsomest woman of the country. A valiant man, named Phineas, roused by this insult to his God, stepped forth, and said, ‘I vow to God, that I will instantly avenge this offence.’ He departed without saying more, or having any commands from Moses, and having entered the lady’s house found her in dalliance with her lover, when, with a knife or dagger, he pierced their bodies through, and instantly put them to death. The twenty-four thousand adherents of the duke wished to revenge his death in battle, but, through God’s grace, they were the weaker, and were all slain.

‘This example of the valiant man Phineas is worthy of notice,—for he was so much enamoured with the love of God, and so grieved on seeing the daring insult offered to him, that he was regardless of exposing his own life to danger; nor did he wait for the orders of Moses to perform the act,—but he did it because he saw that the judges would not do their duty, some through neglect, others from fear of duke Zambry.

‘See what praise and recompense he received for this act, as it is written in the holy Scriptures: ‘Dixit Dominus ad Moysem, Phinees filius Heleazari filii Aaron sacerdotis avertit iram meam a filiis Israel, quia zelo meo commotus est contra eos ut non ipse delerem filios Israel in zelo meo idcirco loquere ad eum. Ecce do ei pacem fæderis mei et erit tam ipsi quam semini ejus pactum sacerdotii sempiternum: quia zelatus est pro Deo suo, et expiavit scelus filiorum Israel.’

‘That is to say, That the act he had done was so agreeable to God that he rewarded him, by ordaining that none but such as were of his blood should be anointed priests; and this is confirmed by the writings in the Old Testament: ‘Placuit et cessavit seditio, et reputatum est ei ad justitiam usque in sempiternum.’ Scribitur in Psalmo. Which means, That this action redounded to the honour, glory and praise of Phineas and his family for ever.

‘Thus it plainly appears, that concupiscence and disorderly lusts had so entangled the duke Zambry in their snares that he became an idolater, and worshiped idols.—Here concludes the third example of my second article.

‘Respecting the third article of my major, I must show from the authority of the Bible, which none dare contradict, that covetousness has made many become disloyal, and traitors to their sovereigns; but although I could produce numerous instances from the Scriptures and other writings, I shall confine my examples to three only.

‘OF LUCIFER.

‘The first instance is that of Lucifer, the most perfect of all the creatures God had made, of whom the prophet Isaiah says, ‘*Quomodo cecidisti de cœlo Lucifer, qui mane orieberis: qui dicebas in corde tuo, conscendam supra astra Dei, exaltabo solium meum, ascendam supra altitudinem nubium et similis ero altissimo. Veruntamen ad infernum detraheris in profundum laci.*’ Scrib. Is. xiv.

‘Lucifer, as the prophet writes, considering himself as the most perfect of creatures, said, within his own mind, ‘I will exert myself so greatly that I will place myself and my throne above the angels, and rival God;’ that is to say, he would have the same obedience paid to him. For this end, he deceived numbers of angels, and brought them over to his party, so that they were to do him homage and obedience, as to their sovereign lord, and be no way subject to GOD; and Lucifer was to hold his government in like manner to GOD, and independent of all subjection to him.

‘Thus he wished to deprive GOD, his Sovereign and Creator, of the greater part of his power, and attribute it to himself, being induced to it by covetousness, which had taken possession of his mind.

‘St Michael, on discovering his intentions, came to him, and said, that he was acting very wrong; and that, since GOD had formed him the most perfect of his creatures, he was bounden in gratitude to pay him greater reverence and obedience than all the others, for the gracious favours that had been shewn him. Lucifer replied, that he would do no such thing. St Michael answered, that neither himself nor the other angels would suffer him to act so injuriously to their Sovereign Lord and Creator. In short, a

battle ensued between them,—and many of the angels took part on either side, but the greater number were for St Michael.

‘St Michael slew Lucifer with a perdurable death,—and he and his legions were cast out of heaven by force, and thrown into hell. Their sentence is in the xiith chap. of the Revelations: ‘Michael et angeli ejus preliabantur cum dracone, et draco pugnabat et angeli ejus cum eo;’ et paulum post,—‘et projectus est in terram draco ille, et angeli ejus missi sunt cum eo. Et audivi vocem magnam in cœlo dicentem, nunc facta est salus, et virtus, et regnum Deo nostro;’—which means, That St John saw in a vision this battle, and how Lucifer was cast with his angels from heaven into hell. When the battle was won, he heard a loud voice proclaiming through the heavens, ‘At present, peace is restored to our Lord God and to his saints.’—Thus ends the first example of the third article.

‘The second instance refers to the fair Absalon, son to David king of Jerusalem.—Absalon, considering that his father was become old and very feeble, practised a conspiracy against him, and had himself anointed king. He collected ten thousand fighting men, whom he marched toward Jerusalem, to put his father to death and take possession of the town.

‘King David received intelligence of what was intended, and in consequence fled from the city of Jerusalem, with some of his faithful friends, to a town beyond Jordan, whither he summoned his adherents. A battle was shortly proposed in the forest of Lendeue, whither Absalon came with a large force of men at arms, leading them as their prince. His constable and other knights advised him to remain within the forest, for it was strongly situated. This he did; but as he was one of the most expert knights in the world, he would himself form his army into three battalions: the first was put under the command of Joab, his constable; the second was given to Bisay, brother to Joab; and the third was commanded by Eschey, son to Jeth. When the battle took place, it was very severe and hard fought; but the party of Absalon was slain or put to flight.

‘It happened, as Absalon was flying on his mule after the defeat of his party, that he passed under an oak, whose spreading branches caught hold of his hair, and thus suspended him, while his mule galloped from under him. Absalon had that day taken off his helmet from his head, the more readily to escape,—and his hair was extremely thick and long, reaching to his girdle,

and got twisted among the branches, so that he seemed to hang there miraculously, as a punishment for the disloyal treason he had formed against his father and sovereign.

‘Absalon was seen in this situation by one of the men at arms of Joab, constable to king David,—and he hastened to tell Joab of it, who replied, ‘When thou sawest him, why didst thou not kill him? and I would have given thee ten golden besants, and a handsome girdle.’ The man answered, —‘If thou wouldst have given me ten thousand besants, I should not have dared to have touched him, or done him the least evil; for I was present when the king commanded thee, and all his men at arms, saying, ‘Save me my child Absalon! Oh, save him from being slain!’”

‘Joab said, ‘that the commands of the king were contrary to his honour and safety; and that so long as Absalon should live, the king would be always in peril, and we shall not have peace in the kingdom. Lead me where Absalon is.’ And the man led him to where Absalon was hanging by his hair. Joab, on seeing him, thrust his lance thrice into his body, near to the place of his heart, and then had him thrown into a ditch and covered with stones; for according to the laws of God, all traitors against their fathers and sovereigns were to be put to death and covered with stones.

‘When David heard of the death of his son, he went into an upper chamber, and wept bitterly, uttering these words: ‘Fili mi Absalon, fili mi quis mihi tribuat ut ego moriar pro te Absalon fili mi^[120].’

‘It was told to Joab and the other captains, that David was inconsolable for the loss of Absalon, which made them very indignant; and Joab went to David, and said,—‘Confudisti hodie vultus omnium servorum tuorum qui salvam fecerunt animam tuam. Diligis odientes te, et odio habes diligentes te, et ostendisti hodie quia non curas de ducibus tuis, et de servis tuis, et vere cognovi modo quod si Absalon viveret, et nos omnes occubuissemus tunc placeret tibi. Nunc igitur surge et precede et alloquens satisfac servis tuis: juro enim tibi per dominum, quod si non exieris, ne unus quidem remansurus sit tecum nocte hac; et pejus erit hoc tibi, quam omnia mala, quæ venerunt super te ab adolescentia tua usque in præsens.’ Scribitur, 2 Reg. xix.

‘That is to say, The good knight Joab went to the king, and said to him without disguising his sentiments, ‘Thou hatest those who love thee, and art

fond of such as hate thee: thou wouldst that we, who have risked our lives in battle to save thee, had perished, so that Absalon had lived. Thy captains and people are so wroth against thee that, unless thou arise and seat thyself at thy gate to thank them cheerfully as they enter thereat, they will deprive thee of thy kingdom, and choose another king; and no greater misfortune will have befallen thee from thy youth to this day, unless thou dost as I have advised.'

'The king, feeling the justice of what Joab had said, went and seated himself at the gate to thank his men at arms on their entrance, and made them good cheer.

'In this example, it is to be noticed, that Joab killed Absalon contrary to the king's express orders, because they were prejudicial to the honour of God, of the king, and of the people.

'Notwithstanding that Joab slew Absalon, they had always been intimate friends, insomuch that Joab had made peace for him with his father David for a murder which he had committed on the eldest of the king's sons, and for which Absalon had been a fugitive from the kingdom four years.

'Some may, however, argue the contrary, because king David, when on his death-bed, charged his son Solomon, who was to succeed him, to punish Joab; but I am sure it was not for the above-mentioned act,—for although Joab, at the time he slew Absalon, was a good and loyal knight, he committed too great faults toward the end of his days. The first, when he killed a very good knight and man at arms, called Amasa,—and, secondly, by putting that excellent knight Abner to death treacherously, namely, by embracing him, and at the same time, thrusting a knife into his body; and as king David had not punished Joab for these two enormous crimes himself, he felt such compunctions of conscience for it on his death-bed, that he ordered king Solomon to have it done when he should be deceased, and punish him in this mortal life, that Joab might escape perpetual damnation, saying thus: 'Tu scis quæ fecerit mihi Joab filius Sarviæ quæ fecerit duobus principibus exercitus Israel, Abner filio Ner, et Amasæ filio Jether, quos occidit, et effudit sanguinem belli in pace. Facias ergo juxta sapientiam tuam, et non deduces caniciem ejus pacifice ad infernos.' Scribitur, 2 Reg. xi.

‘Which means, ‘That the two knights, chiefs of the chivalry of Israel, had been disloyally slain, when at peace with God and man. I am hurt in mind for having been too lenient towards him; and if thou dost not punish him for these two crimes, thou wilt cause the damnation of his soul.’

‘I must here remark, that there is no knight so perfect but who may commit a fault, and one indeed so great as to do away all his former good actions. And therefore men do not at justs and at battles cry out, ‘The brave for ever!’ (*Aux preux!*) but men always cry out, ‘The sons of the brave!’ (*Aux fils de preux!*) after the deaths of their fathers. For no knight can be judged *preux* (valiant, or brave) till after his death^[121].

‘My third instance shall be of Athalia, queen of Jerusalem, of whom the holy Scriptures say,—‘Athalia vero mater regis Ochosiæ, videns filium suum mortuum surrexit et interfecit omne semen regium. Tollens autem Josaba filia regis Joran et soror Ochosiæ Joas filium Ochosiæ furata est eum de medio filiorum regis qui interficiebantur et nutricem ejus de triclinio et abscondit eum a facie Athaliæ ut non interficeretur,’ &c. 4 Reg. xi.

‘Which, being translated, means, That the wicked Athalia, observing king Ochosias, her son, was dead, and had left but very young children to succeed him, through lust of governing the kingdom, slew all the king’s children excepting Joas, who, through the courage of a valiant lady, inspired thereto by the grace of God, was carried away from his cradle, and sent by her secretly to the high priest, who educated him until he was seven years old.

‘This wicked queen reigned tyrannically for seven years, when the high-priest had her put to death by those who lay in wait for the purpose. He then caused the young child to be anointed king, who, notwithstanding his youth, being only seven years of age, governed his kingdom excellently well, through the advice of the high-priest and other prudent counsellors. The holy Scriptures say, ‘Joas regnavit 40. annis in Hierusalem fecitque rectum coram Domino cunctis diebus quibus docuit eum Joiada sacerdos.’

‘Thus you have the third example, which shows how the concupiscence of vain honours is nothing more than a disorderly passion, to take by force the possessions of another. This it was that made queen Athalia a murderess, false and disloyal, and induced her to obtain, by a succession of crimes, the government of the kingdom of Jerusalem.

‘You have heard how she was privily slain by such as lay in wait for her, which is a lawful manner of slaying tyrants, and is the death which all such ought to suffer.—With this I conclude the third article of my major.

‘I come now to my fourth article; to which I propose adding eight facts, by way of conclusion, and eight others as corollaries, the stronger to lay my foundation for the justification of my aforesaid lord of Burgundy. I shall first lay it down as law, that any subject-vassal, who by an artful desire of obtaining the realm of his sovereign lord and king, shall employ any witchcraft, or other illegal means, against his corporal safety, sins most grievously, and commits the crime of high treason, in the first degree, and, consequently, is deserving a double death.

‘I secondly prove my proposition, by adding, that any subject-vassal who is an enemy to his sovereign lord sins mortally. My conclusion is therefore true,—and that he is a tyrant I shall prove by my lord St Gregory, who says:

‘*Tyrannus est proprie qui non dominus reputatur.*

Non juste principatur; aut non principatu decoratur.

Nam sicut regnum rectus principatus dicitur.

Sic dominium perversum tyrannis nuncupatur.’

‘It appears plain, that whoever commits the crime of high treason against the person of the prince is guilty of the highest possible offence, and is deserving of a double death. By the first death, I mean the separation of the body from the soul, which causes a perdurable damnation; for St John the evangelist says, ‘*Qui vivit non morietur nec lædetur a morte secunda;*’ that is to say, That every human creature who shall obtain a victory over Covetousness and her three daughters, need not be afraid of the second death, namely, eternal damnation.

‘The second fact is, that in cases where a subject-vassal has been guilty of this crime, he cannot be too severely or too speedily punished; but a man of rank is more deserving of punishment than a simple subject, a baron than a simple knight, a count than a baron, a duke than a count, the cousin to the king than a foreigner, the king’s brother than a cousin, the son to the king than his brother. Such is the first part of the second fact,—and I thus prove the second part; for as the obligation is greater, by many degrees, to desire to preserve the safety of the king’s person and the good of the state, so the

punishment of those who act contrary increases according to their rank; and the consequence I draw from it will prove true, namely, that the son is more bounden than the brother, the brother than the cousin, a duke than a count, a count than a baron, a baron than a knight, &c. to guard and preserve the honour of the king and the welfare of the realm; for to each of these ranks and dignities is a certain corresponding duty attached,—and the higher the rank, the greater the obligation, for the larger the possessions, and the more noble the person, the more he is bounden, as St Gregory, before quoted, says, ‘Cum crescunt dona et rationes donorum.’

‘To continue my argument: the nearer the person is to the king by blood or hereditary honours, should he commit such crimes, it is by far more scandalous than if they were done by others removed at a greater distance from royalty. It is more scandalous for a duke or a potent lord, nearly related to the king, to practise his death, in order to gain his kingdom, than it would be for a poor subject no way related to the king; and being more iniquitous, the more deserving punishment.

‘I shall, in the third place, prove my proposition by saying, Where there is greater danger there should be a greater degree of punishment; for the machinations of near relations to the king are of far more importance and more perilous than those of poor people. And as they are more dangerous, they are deserving of severer punishment to obviate the perils that may happen, and to check the desires that may arise in such as are so near to the crown, to gain possession of it. For this end, they may exert every influence, by force or otherwise, to grasp it, which a poorer subject would never think of doing, as he could not have any expectations of wearing it.

‘My third truth is, That it is lawful for any subject, without any particular orders from any one, but from divine, moral and natural law, to slay, or to cause to be slain, such disloyal traitors; I say it is not only lawful for any one to act thus in such cases, but it is also meritorious and highly honourable, particularly when the person is of such high rank that justice cannot be executed by the sovereign himself. I shall prove this truth by twelve reasons, in honour of the twelve Apostles.

‘The three first reasons are drawn from the authorities of three moral philosophers: three others are from three dogmas of sacred theology of St Augustin, who says, in the last part of the second book of sentences,

‘Quando aliquis dominium sibi per violentiam surripit nolentibus subditis, vel etiam ad consensum coactis: et non est recursus ad superiorem per quem de tali iudicium posset fieri. Talis enim qui ad liberationem patriæ talem tyrannum occidit, laudem et præmium accipit. Hic primum laudatur. Item debet laudari per quæ facit opus dignum laude. Idem licitum præmium et honorabile accipit, et idem debet accipere. Ille facit opus meritorium quia nullum opus est dignum, primo nisi fieret meritorium.’ To translate this briefly, the holy doctor declares, that a subject who shall put to death such a tyrant does a work deserving praise and remuneration.

‘My second authority is as follows: ‘Salisberiensie, sacræ theologiæ eximii doctoris in libro suo Policratici, li. ii. cap. 15. Sic dicit; amico adulari non licet; sed aurem tyranni mulcere licitum est, ei namque scilicet tyranno licet adulari quem licet occidere;’ that is to say, It is unlawful to flatter a friend, but not so to deceive by fair words the ears of a tyrant; for since it is lawful to put him to death, it is allowable to cheat him by flattering speeches.

‘My third authority is from several doctors, whom I class together, not to exceed the number of three, namely, ‘Ricardi de media villa, Alexandri de Hallis et Astensis, in summa qui conclusionem præfatam ponunt in iii. efforum;’ adding, for higher authority, the confirmation of St Peter the apostle, who says, ‘Subditi estote regi quasi præcellenti sive ducibus, tanquam ab eo missis ad vindictam malefactorum, audem vero bonorum, quia sic est voluntas Dei.’ Scribitur primæ Pet. ii. That is to say, It is the will of God that all should obey the king, as sovereign lord over his kingdom; and the duke, as being sent by the king to punish those who have done ill, and remunerate the good.

‘Hence it follows, that dukes are obliged, to the utmost of their power, to avenge the injuries that are done, or may be intended against the king’s person, and to oppose all such attempts as may come to their knowledge.

‘I now proceed to the authorities from moral philosophers, the first of which is,—‘Ante forum principis pluribus locis cuilibet subditorum licitum est occidere tyrannum, et non solum licitum immo laudabile.’ That is to say, It is lawful for any subject to destroy a tyrant, and not only lawful, but even honourable and worthy of praise.

‘Cicero, in libro de Officiis, ‘Laudatis illos qui illum Cæsarem interfecerunt quamvis esset sibi familiarium amicus eo quod jura imperii quasi tyrannus

usurpaverat.’ That is, Tully writes, in his noble book on morality, That those who killed Julius Cæsar are praiseworthy, because Julius had usurped the government of Rome as a tyrant.

‘My third authority is from Boccacio, who, in his book ‘de Casibus virorum illustrium, s. lib. ii. cap. 15. contra filios tyrannorum,’ in speaking of the tyrant, says, ‘Shall I call him king? shall I call him prince? shall I preserve my allegiance to him? Oh no: he is an enemy to the public welfare. May I employ conspiracies and open force against him? It is very proper and necessary so to do,—for there is not a more agreeable sacrifice than the blood of a tyrant, and it is insupportable to receive blame for having done good.’

‘I come now to my three authorities from the civilians. As I am no lawyer, it will suffice if I mention the judgments that have been given without producing them; for in my life I never studied the canon nor civil law more than two years, and twenty years have passed since that time, so that what little I may have learnt I have quite forgotten since the period of my studies.

‘The first authority of the civil law is, That any one may put to death deserters from the laws of chivalry; and who can be a greater deserter from chivalry than him who deserts the person of his king, the fountain of chivalry, and without whom it cannot long exist?

‘Secondly, It is lawful for every one to kill thieves and robbers, who infest forests and rob on the highways,—because they are particularly the enemies of the public weal, and consequently plotting to destroy all travellers: consequently, it is lawful to kill a tyrant, who is continually practising against his king, the sovereign lord, and against the public good.

‘Thirdly, If it be lawful for any one by the civil and imperial law to put to death a thief found by night in a house, it is much more so to slay a tyrant, who day and night devises the death of his sovereign lord. This consequence clearly follows, and will be apparent to any man of sound understanding, if he consider it, and the antecedent texts from holy writ.

‘Before I touch on the three examples from the holy Scriptures, I wish to reply to some objections that may be made to what I say, in arguing thus: All murder is forbidden by every law, divine, natural, moral and civil. Whatever may be said to the contrary, I shall prove it from Scripture: ‘Non

occides,' in Joh. xx. is one of the divine commandments, which forbids any kind of murder. That it is forbidden by the natural law, I prove by this quotation,—‘Natura enim inter homines quandam cognationem constituit qua hominem homini insidiari nefas est.’

‘I prove it forbidden by the moral law, from ‘Quia per id: hoc non facias aliis quod tibi non vis fieri: alterum non lædere; jus suum unicuique tribuere: hoc est morale, insuper et de naturali jure.’

‘That the civil and imperial laws forbid murder, those laws shall prove, ‘Qui hominem occidit capite puniatur, non habita differentia sexus vel conditionis. Item omne bellum omnis usus armorum vitiosus præcipue prohibitus est: nam qui vitio præcipue bellum gerit, læsæ majestatis reus est. Item regis proprium furta cohibere, adulteria punire, ipsos de terra perdere: qui enim talia sibi appropriat aut usurpat, principem injuriatur et lædit: quoniam ut dicit lex judiciorum vigor: juris et publica tutela in medio constituta est, ne quis de aliquo quantumcunque sceleribus implicito assumere valeat ultionem.’

‘To reply to the above arguments: It should be known that theologians and jurists use diversely this word *homicidium*; but, notwithstanding, they agree in the same opinion respecting the thing. The theologians say, that to kill a man lawfully is not homicide, for the word *homicidium* carries with it ‘quod sit justum propter hoc dicunt quod Moyses, Phinees, et Mathathias non commiserunt homicidia quia juste occiderunt;’ but some jurists say, that killing of a man, just or unjust, is homicide,—while others deny it, saying there are two modes of homicide, legal and illegal; and for justifiable homicide no man ought to be punished.

‘I answer, therefore, with the theologians, that the killing of a tyrant is not homicide, inasmuch as it is just and legal. According to the general law, I confess it would be homicide; but if there be shewn justifiable cause for it, no punishment, but remuneration, should follow.

‘With regard to that part of the argument which says, ‘Quod hominem homini insidiari nefas est, et quæ magis insidiatur homini,’ &c. it alludes to a tyrant who is continually practising the death of his king and sovereign lord. ‘Et homo est nefas, et perditio, et iniquitas.’ As for him who slays a man, by watching a proper opportunity for it, to save the life of his king, and preserve him from mortal peril, he does no ‘nefas,’ but acquits himself

of his duty toward his sovereign lord. 'Et homo est nefas, et perditio, et iniquitas;' and therefore he who kills such an one, by watching a proper opportunity, does it to save the life of his king.

'In regard to that passage which says, 'Non facias aliis, &c. alterum non lædere,' &c. I reply, that it makes against the tyrant, and in favour of him who slays him; for he (the tyrant) does against his king that which he would not have to be done against himself, 'et ipsum regem injuriatur et lædit.' For which reason, he who has put to death such a person, according to his deserts, has done nothing contrary to the laws, but has preserved the meaning of them, namely, true equity and loyalty towards his king and sovereign lord.

'To the other quotation from the laws that says, 'Hominem occidere, capitale esse omnis usus armorum,' &c. I answer, that there are no laws nor usages so very general but that there may be some exceptions made from them. I say, that the case of killing a tyrant is exempted, more especially when he is guilty of the crimes before mentioned. How can any greater cause of exemption be shewn than that, when the murder is done through necessity, to save the king from being put to death?

'Even when conspiracies against his royal person have been so far carried by witchcraft and otherwise, that he is disabled from administering justice; and the tyrant being found deserving of that punishment, the king, from weakness of intellect, cannot, or will not, punish him, the killing of him, in such cases, is not against the law, properly speaking, for all laws have two meanings: the first is the textual signification, the other is the 'quo animo,'—the person committing a crime has done it, and the law, as intended by those who made it, is to be explained according to the intent of its framers, and not always according to the literal sense.

'Thus the philosopher brings forward the example of citizens who made a law for the defence of their city, that no one, under pain of death, should mount the ramparts, because their city was besieged; and they were afraid, should strangers mount the walls with the inhabitants, there might arise danger to them, from these strangers, at a proper opportunity, joining their enemies, or at least making them signs to show where they might the more easily attack the town.

‘It happened, that this town was attacked at several places,—when the strangers and pilgrims who were within it, observing the enemy were much superior to the inhabitants, armed themselves and mounted the walls at the weaker parts, when they repulsed the enemy, and saved the town. The philosopher then asks, Since these pilgrims have mounted the walls contrary to the express words of the law, they have infringed it, and should they not be punished? I say no; for although they have acted contrary to the literal text of the law, they have not disobeyed the spirit of it, which was the saving of the town,—for had they not mounted the walls in its defence, it must have been taken.

‘As to the laws which declare, that none ought to administer justice but the prince, nor do any deeds of arms without his licence,—I maintain, that these laws were made for the preservation of the king’s honour and person, and for the public good.

‘Should there exist a tyrant of great power and authority, who is continually practising, by witchcraft and other means, the death of the king, and to deprive him of his kingdom,—and should that king, from weakness of intellect or want of force, be unable to punish him, and should he permit him to go on in his wickedness,—I should disregard, in this case, the law that forbids me to bear arms without the king’s licence, or to take the authority into my own hands in a general sense only. What have I to do with the literal sense of it? Am I to leave my king in such peril? By no means. I am bound to defend my king, and put to death the tyrant; for should I, by thus acting, do contrary to the text of the law, I follow the spirit of it, and the object it was directed to, namely, the preservation of the honour and life of my king; and I should think myself more deserving of praise than if I had suffered the tyrant to live on in his wickedness. I ought therefore to be rewarded, and not punished, for having done a meritorious deed, tending to a good purpose, for which end all laws were made.

‘St Paul says, *‘Littera occidit, charitas autem ædificat;’* which means, that to follow the literal sense of the holy Scriptures is death to the soul, but that we ought to obey the true meaning in all charity,—that is to say, to mark and accomplish the end for which the divine laws were made. Spiritual edification is a goodly thing.

‘Item, the laws divine, natural and human, give me authority for so doing, and by so doing I am a minister of the divine law; and it is plain, that the objections I have started, as probably to be made against what I have said, are not of any weight.

‘I come now to my three instances from the holy Scriptures, to confirm the truth of my third fact. In the first place, Moses, without any authority whatever, slew the Egyptian who tyrannised over the Israelites.

‘At this period, Moses had no authority to judge the people of Israel, for this power was not given to him until forty years after the perpetration of this act. Moses, however, was much praised for having done it. ‘*Ut patet auctoritate, Exodi ij. quia tanquam minister legis hoc facit. Ita in proposito in hoc faciendo ego ero minister legis.*’

‘The second instance is that of Phineas, who, without any orders, slew the duke Zambry, as has been related. Phineas was not punished for this, but on the contrary praised, and greatly requited in affection, honour and riches. In the affection that God shewed him, greater than before. In honour, ‘*Quia reputatum est ei ad justiciam,*’ &c. In riches, ‘*Quia per hoc acquisivit actum sacerdotii sempiternum non tantum pro se, sed pro tota tribu sua.*’

‘The third instance is that of St Michael the archangel, who, without waiting for any commands from GOD, or others, but solely from his natural love, killed the disloyal traitor to his God and Sovereign Lord,—because Lucifer was conspiring to invade the sovereignty and honour of GOD. St Michael was rewarded for his action in love, honour and wealth. In love, in that GOD had a stronger affection for him than any other, and confirmed him in his love and grace. In honour, ‘*Quia fecit eum militiæ cœlestis principum in æternum.*’ That is to say, He made him the prince of his angelic chivalry for ever. In wealth, for he gave him riches and glory to his satisfaction: ‘*Tantum quantum erat capax, de quibus loquitur. O altitudo divitiarum sapientiæ et scientiæ Dei, quam incomprehensibilia sunt judicia ejus, et investigabiles viæ ejus.*’ Ad. Rom. xi.

‘Thus my third fact has been proven by twelve reasons. The fourth is, That it is more meritorious, honourable and legal, that a tyrant should be slain by one of the king’s relations than by a stranger no way connected with him by blood,—by a duke than by a count,—by a baron than by a simple knight, and by a knight than by a common subject.

‘I thus prove my proposition. He who is related to the king has an interest to guard his honour and life against every injurious attempt, and is bounden so to do more than any stranger, and, in like manner, descending from those of high rank to the common subject. Should he fail in this his duty, the more deserving is he of punishment, while, on the contrary, by performing it, he gains the greater honour and renown. ‘Item in hoc magis relucet amor et obedientia occisoris, vel occidere præcipientis ad principem et dominum suum quia est magis honorabile si fuerit præpotens dux vel comes. Item in hoc magis relucet potentia regis quod est honorabile et quanto occisor vel dictæ occisionis præceptor non fuerit vilior et potentior tanto magis,’ &c.

‘In regard to alliances, oaths, promises and confederations, made between one knight and another, in whatever manner they be, should they be intended to the prejudice of the prince or his children, or the public welfare, no one is bound to keep them; for, in so doing, he would act contrary to the laws, moral, natural and divine. I shall now prove the truth of this: ‘Arguendo sic. Bonam æquitatem (dictamen rectæ rationis) et legem divinam boni principes in persona publica servare, et utilitatem reipublicæ debent præferre, et præsupponere in omnibus talibus promissionibus, juramentis, et confederationibus: immo excipiuntur implicite secundum dictamen rectæ rationis: bonam æquitatem et charitatis ordinem quia alias esset licitum non obedire principi immo rebellare contra principes, quod est expresse contra sacram Scripturam quæ sic dicit: ‘Obedite principibus vestris, licet etiam discolis et alibi. Subjecti estote regi præcellenti, sive iudicibus tanquam ab eo missis ad vindictam malefactorum, laudem vero bonorum.’ 1 Pet. iij. ut sup. allegatum est.

“Ex illo arguitur sic. Quandocunque occurrunt duæ obligationes ad invicem contrariæ major tenenda est, et minor dissolvenda quantum adhoc, sed in casu nostro concurrunt duæ obligationes. Et cum obligatio ad principem sit major, et alia minor obligatio ad principem tenenda est, et alia non in tali casu. Item arguendo eandem quæstionem, quandocunque aliquis facit quod est melius quamvis juravit se id non facturum, non est perjurium, sed perjurio contrarium: ut expresse ponit magister sententiarum ultima dicti tertii: sed in casu nostro melius est tyrannum in præfato casu occidere quamvis juravit se non occisurum quam presentem vivere ut tactum est superius: ergo occidere tyrannum in præfato casu quamvis juravit se non occisurum, non perjurium facit, sed perjurio contrarium. Et consequenter

Isidorus in libro de summo bono sic dicit: id non est observandum sacramentum et juramentum quo malum incaute remittitur, sed in casu nostro male et incaute promittitur. Sed non tenent promissiones jurata vel confæderationes contra principem, uxorem principis, liberos, vel reipublicæ utilitatem.'

'Seventhly, If any of the above confederations and alliances should turn out to the prejudice of the person so engaging, of his wife or his children, he is not obliged to abide by them. 'Patet hic veritas per rationes tactas prius et cum hoc probatur sic, quia observare in illo casu confæderationes contra legem charitatis qua quis magis sibiipsi, uxori propriæ vel liberis quam posset obligari cuicunque alteri virtute talis promissionis et omnia præcepta et consimilia in ordine ad charitatem patent per apostolum sic dicentem. Finis præcepti est charitas, quia in omnibus casibus et promissionibus intelligitur hoc, si in fide observaverit juxta illud frangenti fidem, &c. Item, subintelligitur si domino placuerit sed certum est quod non placeret Deo cum foret contra legem charitatis, ideo,' &c.

'In regard to the seventh proposition, namely, that it is lawful and meritorious for any subject to put to death a traitor that is disloyal to his king, by waylaying him, and whether it be lawful for him to dissemble his purposes,—I shall prove it first by the authority of that moral philosopher Boccacio, already quoted, in his second book 'De Casibus Virorum illustrium,' who, in speaking of a tyrant, says, 'Shall I honour him as prince? shall I preserve my faith to him as my lord? By no means: he is an enemy, and I may employ arms and spies against him.' This act of courage is holy and necessary; for there cannot be a more agreeable sacrifice to God than the blood of a tyrant.

'I prove this from holy writ, in the instance of Jehu: 'Occident te sacerdotes et cultores Baal, ut habetur primo reg. ex. ubi sic dicitur, Jehu Acab parum coluit Baal, ego autem colam eum amplius. Et paululum post; porro Jehu licet incidiose ut disperdat cultores Baal, dicit, sanctificate diem solennem Baal, &c. et laudatur de hoc. Item de Athalia regina vidente filium suum mortuum surrexit, et interfecit omne semen regium, ut regnaret, et Joyadas summus sacerdos insidiose fecit eam occidi. Et de hoc laudatur ut superius tactum est ad longum. Item, Judith occidit Holofernem per insidias. Et etiam de hoc laudatur pater familias quod ad zizaniæ eradicationem non voluit expectare tempus messis ne triticum simul cum zizaniis eradicaretur,

&c. Quod intelligitur in occisione tyrannorum per insidias sed et bonam cautelam et debet expectari loci et temporis opportunitas et expleri ne boni eradicentur,' &c.

‘This is the proper death for tyrants: they ought to be slain by waylaying, or other means improper to be used toward good men; and for this reason, we are bound, in many instances, to preserve our faith to our capital enemy, but not to tyrants. As the reasons for this, urged by doctors, are common, and of some length, I shall pass them over.

‘AS TO WITCHCRAFT.

‘Eighthly, Any subject and vassal who shall imagine and practise against the health of his king and sovereign lord, to put him to death by a languishing disorder, through covetousness to gain his crown and kingdom, —any one who shall cause to be consecrated, or, more properly speaking, to be directed against him swords, daggers, knives, golden rods or rings, dedicated, by means of necromancy, to the devils, or shall make invocations with characters, sorceries, charms, after having thrust sharp instruments into the bodies of dead men hung on a gibbet, and then into the mouths of such malefactors, leaving them there for the space of several days, to the horror of all who detest these abominable practices; and, beside these arts, shall wear near their bodies a piece of cloth, containing the powder of some of the bones of malefactors, sewed up, or tied, with the hair from the secret parts: I say, such as shall commit any crimes similar to the above, are not only guilty of human high treason, in the first degree, but are disloyal traitors to God their Creator, and to their king.

‘As idolaters, and false to the catholic faith, they are worthy of the double death, here and in the world to come, even when such sorceries and witchcraft shall fail of their intended effect on the king’s person. ‘Quia dicit dominus Bonaventura, lib. ii. d. 6. Diabolus nunquam satisfacit voluntati talium, nisi antequam infidelitas idolatriæ immisceatur, sicut enim ad divina miracula plurimum facit fides, &c. Et ideo experientia de effectu prædictarum superstitionum secuta in personam præfati regis probat clare ibi fuisse idolatriam et fidem perversam. Item diabolus nihil faceret ad voluntatem talium in tali casu nisi exhiberetur ei dominium quod multum affectat nec se exhibet ad tales invocationes ipsis invocantibus eum, nisi

ipsum adorent et sacrificia et oblationes offerant, aut pacta cum ipsis dæmonibus faciant. Item, doctor sanctus secunda secundæ in xi. articulo secundo dicit quod tales invocationes nunquam sortiuntur effectum nisi fuerit falsa corruptio fidei idolatria et pactio cum dæmonibus. Ejusdem opinionis videtur esse Alexander de Hallis, Ricardus de Media-villa et Astensis in summa. Et communiter omnes doctores qui de hac materia locuti sunt, et sicut falsarii monetæ et pecuniarum regis,' &c.

‘I thus perceive that all the doctors in theology agree in saying, that such sorceries, charms and witchcraft can only succeed by the work of the devil, or by his false means;—and that these sorceries, and suchlike superstitions, have not of themselves the power of hurting any one, but that the devils have the ability to injure any person so far only as shall be permitted them by God.

‘The devils will not do any thing for those that call on them, unless they perform three things, namely, pay them divine honour, which ought solely to be paid to God, by offering them homage and adoration, proving themselves false to the holy catholic faith,—and the doing of which makes them guilty of the crime of high treason.

‘*Primum Corrolarium.* Should it happen, that for the circumstances above stated, any of these invocators of the devil, idolaters, and traitors to the king, should be confined in prison, and that during the time that their process is carried to judgment, any accomplice of their crimes should deliver or cause them to be delivered from prison, he shall be punished just as these idolaters would have been, as guilty of the crime of high treason in the first and fourth degree.

‘*Secundum Corrolarium.* If any subject who shall give, or promise to give, a large sum of money to another for poisoning the king his sovereign lord, and the bargain be proven and the poisons laid, although they may fail to produce their effects, through the interference of the providence of God or other means,—those who have committed this crime are guilty of being traitors and disloyal to their sovereign, and shall suffer the double death for high treason in the first degree.

‘*Tertium Corrolarium.* Any subject who, by treachery and hypocrisy, shall during any mummeries, through malice aforethought, procure dresses for his king, and, having clothed him in such dresses, shall cause them to be set

on fire, with the intent that the king his sovereign may be burnt in them, so that he may obtain his kingdom, commits high treason in the first degree, is a tyrant and disloyal to his king, and is deserving of the double death, even should his sovereign escape, for the noble and valiant persons who may have been burnt to death in exquisite pain through his means.

‘Quartum Corrolarium est: When any subject and vassal to the king shall make alliances with those who are mortal enemies to his sovereign and kingdom, he cannot exculpate himself from being guilty of treason; more especially when he shall send advice to the men at arms of the enemy not to surrender any forts they may have gained in the kingdom,—for that when he shall be employed against them he will afford them succour. And beside, when he not only shall prevent the march of any armies against such enemies, but shall encourage them by secret and underhand means, he is a traitor to his king and country, and is deserving of the double death.

‘Quintum Corrolarium est: If any subject or vassal shall, through deceit and false information, sow the seeds of dissention between the king and queen, by telling the latter that the king hates her so mortally he is determined on having her and her children put to death, and that she has no other remedy to prevent this but flying out of the kingdom with her children; advising her strongly at the same time, to put this plan into execution, and offering to conduct her out of the realm to any castle she may please, adding with much subtilty, and by way of caution, that the queen must keep this advice very secret, lest she may be prevented from following it; and if, in order to accomplish this plan, he propose to the queen that she should undertake different pilgrimages until she be in a place of safety, intending by this means to confine her and her children in some of his prisons, and to gloss it over to the king, so that he may succeed him in his crown and kingdom. Any subject guilty of such a crime commits high treason in the second, third and fourth degrees. This is such an apparent truth that should I wish to prove it, *‘esset adjuvare cœlum facibus.’*

‘Sextum Corrolarium est: If any subject or vassal, through ambition to obtain a crown and kingdom, shall visit the pope, and impose on him, by imputing falsely and wickedly crimes and vices against his king and sovereign lord, which would be blots in his royal issue, concluding thence that such a king is unworthy to reign, and his children unfit to succeed him, and requiring most urgently of the pope that he would issue a declaration to

the effect of depriving the king and his children of the crown; and likewise declaring, that the kingdom had devolved to him and his race, requesting that the pope would grant absolution to all the vassals of the realm who should adhere to him, giving them a dispensation for the oaths of fidelity that all subjects are obliged to take to their king,—such as may commit the above crime are disloyal traitors to their sovereign, and guilty of high treason in the first and second degrees.

‘Septimum Corrolarium est: If any disloyal subject shall hinder (‘*animo deliberato*’) the union of the church, and counteract the conclusions formed by the king and clergy of this realm for the welfare and security of the holy church, and shall use, among other means, that of force, to induce the pope to incline to his iniquitous way of thinking,—such subject is a traitor to his God, to the holy church, to his king and sovereign lord, and ought to be reputed a schismatic and obstinate heretic. He is worthy of the disgraceful death, insomuch that the earth ought to open under him and swallow him up, like to Coran, Nathan and Abiran, as we read in the Bible, ‘*Aperta est terra sub pedibus eorum, et aperiens os suum devoravit eos cum tabernaculis suis, descenderuntque viri eorum in infernum operti humo.*’ Num. xvi. Psal. ‘*Aperta est terra et deglutivit Dathan,*’ &c.

‘Octavum Corrolarium est: Any subject or vassal who shall, through ambition to obtain the crown, practise the death of his sovereign and his children by secret means, such as the poisoning their food, is guilty of high treason in the first and third degrees.

‘Nonum et ultimum Corrolarium est: Every subject or vassal who shall raise a body of men at arms, who do nothing but pillage and devour the substance of the people, rob and murder whom they please, and force women, and whose captains are posted in the strong places, castles, passes, and fords and bridges of the said kingdom, and shall moreover impose heavy taxes on the people under the pretext of carrying on the war against a foreign enemy, and, when these taxes have been raised and paid into the king’s treasury, shall seize on them by force, and distribute the amount among the enemies and illwishers to the king and kingdom, in order to strengthen himself that he may obtain his damnable ends, namely, the crown and kingdom,—every subject who thus acts ought to be punished as a false and disloyal traitor to the king and realm, and as guilty of high treason in the first and fourth degrees, and deserving of the double death.

‘Thus ends the first part of my justification of my good lord of Burgundy.

‘SEQUITUR MINOR.

‘I come now to declare and prove my minor, in which I shall show, that the late Louis duke of Orleans was devoured with covetousness of vain honours and worldly riches: that to obtain for himself and his family the kingdom and crown of France, by depriving our king of them, he studied all sorts of sorcery and witchcraft, and practised various means of destroying the person of the king, our sovereign lord, and his children.

‘So greatly had ambition and covetousness, and the temptation of the hellish adversary, possessed themselves of him that, as a tyrant to his king and liege lord, he committed the crime of divine and human high treason, in every manner and degree noticed in my major; that is to say, in the first, second, third and fourth degrees.

‘In regard to the divine high treason, as that concerns the Sovereign Judge in the heavens, I shall not lay any great stress upon this article, but shall touch upon it incidentally, when I speak of human high treason. I shall therefore enumerate, article by article, how he has committed human high treason in the four degrees above stated, and shall consequently divide my minor into four heads.

‘Respecting the first charge I make, of his having committed high treason in the first degree,—that is, when the offence has been done directly against the person of the king,—it may be done two ways: the first by imagining and practising the death and destruction of the prince, his sovereign lord, which may be divided into several heads, but I shall content myself with three.

‘The first by practising the death of the prince by sorcery, charms and witchcraft; the second, by poisons, venoms and intoxication; the third, by killing or causing the prince to be killed by arms, water, fire, and other violent injections.

‘That he is guilty of the first charge, I prove thus: To cause the king our lord to die of a disorder so languishing, and so slow, that no one should divine the cause of it,—by dint of money, he bribed four persons, one of whom was an apostate monk, the others a knight, an esquire, and a varlet, to whom

he gave his own sword, his dagger and a ring, for them to consecrate to, or, more properly speaking, to make use of, in the name of the devils.

‘As suchlike sorceries can only be performed in solitude, and far from the world, these persons took up their abode for many days in the tower of Mont-Jay, near Laigny-sur-Marne. The aforesaid apostate monk, who was the principal in this diabolical work, made there several invocations to the devil, and at different times, the whole of which took place between Easter and Ascension-day; and one grand invocation on a Sunday, very early and before sun-rise, on a mountain near to the tower of Mont-jay.

‘The monk performed many superstitious acts near a bush, with invocations to the devil; and while doing these, he stripped himself naked to his shirt and kneeled down: he then stuck the points of the sword and dagger into the ground, and placed the ring near them. Having uttered many invocations to the devils, two of them appeared to him, in the shape of two men, clothed in brownish green, one of whom was called Hermias, and the other Estramain. He paid them such honours and reverence as were due to God our Saviour, after which he withdrew behind the bush.

‘The devil who had come for the ring took it and vanished; but he who was come for the sword and dagger remained,—but afterward, having seized them, he also vanished. The monk, shortly after, came to where the devils had been, and found the sword and dagger lying flat on the ground, the sword having the point broken,—but he saw the point among some powder, where the devil had laid it. Having waited for half an hour, the other devil returned, and gave him the ring, which to the sight was of the colour of red, nearly scarlet, and said to him, ‘Thou wilt put it into the mouth of a dead man, in the manner thou knowest,’ and then he vanished. The monk obeyed his instructions, thinking to burn the king our lord,—but through the providence of God, and the aid of those most excellent ladies the duchesses of Berry and Burgundy, who were present, he escaped.

‘I shall next show that the duke of Orleans was guilty of the crime of high treason in the first degree, by the alliances he contracted contrary to the interest of the king and kingdom. It is a fact, that when the king our lord and king Richard of England were firmly united in friendship, by the marriage of Richard with the eldest princess of France, king Richard would, at any risk, speak to the king our lord respecting his health; and when they

were together, he told him, that the infirmity he was subject to was caused by means used by the dukes of Orleans and of Milan, and entreated him, by the love of God, to be on his guard against them.

‘The king, after this conversation, conceived so great a hatred against the duke of Milan, and not without cause, that the herald who bore his arms dared not appear in his presence. When this came to the ears of the duke of Orleans, he took a mortal dislike to king Richard, and inquired who was the greatest enemy he had in this world. He soon learnt that it was Henry of Lancaster, to whom he made advances, and at length concluded an alliance with him, in order to destroy the king, and to strengthen himself as much as possible, to arrive at his damnable ends.

‘The duke of Orleans and Henry of Lancaster agreed mutually to labour and assist each other to accomplish the deaths of the two kings, that they might obtain the crowns of France and England,—that of France for Louis d’Orleans, and that of England for Henry of Lancaster.

‘Henry succeeded in his attempt, but, thank God! the duke of Orleans has failed. And to confirm the truth of this alliance, the duke of Orleans has ever been favourable to the English, and has assisted Henry with all his power, and particularly in regard to the siege of the castle of Bordes, when he sent to the garrison not to surrender it to the French, for that he would hinder the success of the siege, and afford them sufficient succour when there should be need of it. He also prevented many expeditions from taking place, which were intended against the English.

‘Thus he proved himself a tyrant and disloyal to his prince and to the welfare of the kingdom, and committed high treason of the first degree, in a second manner. In confirmation of this, a fact has just struck me which I will relate to you. At the time when king Richard was a prisoner, and it was the intention of Henry to have him put to death, some of the english lords said to him, that great danger might ensue from the indignation of the French. Henry replied, they need not have any fears on that head, for he had a powerful friend in France, to whom he had allied himself, namely, the duke of Orleans, brother to the king, who would not, for any attempt that might be made on king Richard, suffer the French to attack the English; and to convince them, he made them read the letters that had passed, and the

articles of the treaty concluded between them. It appears then, that the duke of Orleans has, in various ways, committed high treason of the first degree.

‘I shall now finish this article of my minor, although there be many other very horrible crimes perpetrated by the duke of Orleans of the first degree of high treason, which my lord of Burgundy reserves to charge him with at a proper opportunity, should there be a necessity for it.

‘I proceed to the second article of my minor, wherein I shall charge the duke of Orleans with being guilty of the crime of high treason, not only in the first, but also in the second degree, which consists in offending the king in the person of the queen his wife.

‘It is a fact, that about four years after the king was attacked by his unfortunate disorder, the profligate duke of Orleans never ceased imagining how he could succeed in his wicked and damnable designs, and thought that if he could prevail on the queen to quit the kingdom with her children, he would the more readily obtain his object. With this intent, he falsely informed her, that the king was very indignant against her,—and advised her, as she regarded her own life and the lives of her children, to quit the presence of the king and to leave the country.

‘He offered to conduct her and them to the duchy of Luxembourg (thinking that when there he could do with them as he pleased), and promised the queen that he would there safely guard her and her children. He added, that should the king recover from his frenzy, and should he perceive that he was no longer angry with her, and that she might safely return, which he engaged to urge to the king with all his power, he would re-conduct her and her children to his majesty. And in case the king should not have changed his opinion concerning her, he would maintain her according to her rank in the duchy of Luxembourg, were any of the nobles, or even the king or others to visit her. The better to colour his wicked designs, he gave the queen to understand that this project must be kept secret, and executed with much caution, lest she and her family should be stopped on the road to Luxembourg. He advised her to undertake a pilgrimage with her children to St Fiacre, and thence to our Lady at Liesse, whence he would escort her to Luxembourg, and give her such an establishment as should be suitable for her and her children’s rank, until the present dispositions of the king should be changed.

‘He frequently pressed the queen on this subject, using nearly the words I have related, all tending to put the queen and her children in his power to do with them as he pleased. They certainly were in great danger,—and it would have increased, if some worthy persons, real friends to the queen, had not informed her, that all she had heard was false, which made her alter her intentions the moment she discovered the wicked and damnable designs of the duke of Orleans. She determined, in consequence, not to undertake this journey.—Thus concludes the second article of my minor, which plainly proves the late duke of Orleans guilty of high treason against the person of the queen of France.

‘I shall now show, that the duke of Orleans has been guilty of high treason in the third degree, by three different crimes: the first, by poisons and intoxications; the second, by fallacious deceptions; the third, by his false representations to the pope.

‘In regard to my first charge, I declare the late duke of Orleans guilty of intending the death of the late dauphin by means of a poisoned apple which was given to a child, with orders to offer it to my lord the late dauphin, and to none other, which was done. It chanced as he was carrying this apple, he passed through the gardens of the hôtel de St Pol, where he met the nurse to the children of the duke of Orleans, carrying one of them in her arms. The apple seemed so beautiful that she bade the child give it to her, that she might present it to the infant she was carrying,—but he said he would not give it to any one but my lord the dauphin. Seeing the boy so obstinate, the nurse took the apple from him by force and gave it her child to eat, who soon after fell sick and died.

‘I here ask one question. This innocent died of the poisoned apple: ought the boy who brought it, or the nurse who gave it the child, be punished? I reply, No, neither of them; but the crime must be attributed to those who poisoned it, or caused it to be carried.

‘In regard to my second charge, of fallacious deceptions, I have already touched upon them, in his treacherous conduct and advice to the queen, to quit the kingdom for the duchy of Luxembourg.

‘As to my third charge, it is well known, that the duke of Orleans, persevering in his wicked designs, has personally, and by ambassadors, often practised with the pope to deprive the king of his crown and kingdom.

To succeed in this damnable conspiracy, he falsely and wickedly charged the king with crimes affecting his royal progeny, which he gave the pope to understand were such as required him to declare the king and his posterity unworthy to hold or succeed to the crown of France. He also requested the pope to grant absolution to all who should act contrary to the oath of fidelity they had been constrained to take to the king, and to declare the next of his blood the successor to the crown and government of France.

‘The better to secure the pope in his interests, he has always favoured and supported him by divers ways, as is apparent from his conduct, in the cession and restitution of the monies from the hospital of Toulouse.

‘Thus the third article of my minor is made clear, notwithstanding there are very many other horrible crimes of high treason in the third degree, committed by the late duke of Orleans, unnoticed, which my lord of Burgundy has reserved to himself, to bring forward or not as he may see occasion.

‘I now come to the fourth article of my minor, which is, that the late duke of Orleans, has been guilty of high treason in the fourth degree, namely, of offending against the public welfare.

‘Although I have before noticed his alliance with the enemies of the realm, which is acting positively against the public good, I shall show how he has otherwise committed this crime. In the first place, by keeping men at arms in different parts of the realm, who did nothing but plunder the people, rob all travellers, and force women. He moreover, placed their captains in the strongest castles, and at all the passes, bridges and fords of rivers, the better to succeed in his wicked designs, namely, the usurpation of the government.

‘Secondly, He has imposed intolerable taxes on the subjects of the realm, pretending they were for the carrying on the war against the enemy, but giving from their amount large sums to the illwishers to the kingdom, to induce them to become his allies, and support him in his attempt to seize the crown.

‘Thus it appears that I have proved the duke of Orleans guilty of high treason in the fourth degree. There are beside many other facts more wicked and criminal than I have stated; but my lord of Burgundy has reserved them with others, to bring forward, if it be necessary, more strongly to convict the

duke of Orleans of having had the design of compassing the king's death, and the deaths of his royal family, that he might obtain the crown.

‘Now, if my hearers will unite my minor with my major, it will clearly follow, that my lord of Burgundy is not deserving of any blame whatever for what has happened to the criminal duke of Orleans; nor ought the king our lord to be dissatisfied with him, but, on the contrary, he should be pleased with what he had done, and requite him for it in three ways,—namely, in love, honour, and riches, after the example of the rewards given to my lord the archangel St Michael, and to the valiant man Phineas, which I have already mentioned in my major.

‘According to my plain understanding, I think our lord and king ought to declare his attachment to my aforesaid lord of Burgundy, and publish his good fame both within and without the kingdom, by his letters patent, in the manner of epistles or otherwise; and God grant it may be so done, ‘Qui est benedictus in secula seculorum. Amen.’

After master John Petit had finished his harangue, he requested of the duke of Burgundy that he would vouch for all he had said, which the duke granted, and avowed the whole of what master John Petit had laid to the charge of the late duke of Orleans, in the presence of the dauphin, who represented the person of the king, and all the other princes and lords before particularized. The orator, after this, declared that the duke of Burgundy had reserved some charges of a deeper nature to lay before the king personally, when a proper occasion should offer.

The assembly now broke up, and the princes and lords retired to their different hôtels. The duke of Burgundy was escorted to his hôtel d’Artois by a large body of men at arms and archers.

There were great murmurings in Paris among all ranks, for the assembly had been open to all, respecting the charges made against the late duke of Orleans, and various were the opinions concerning them. Those attached to the Orleans-party declared they were all false, whilst the Burgundians maintained the contrary.

Shortly afterward, queen Isabella of France, apprehensive of consequences to herself and children, set out from Paris with her son the duke of Aquitaine and the others, accompanied by Louis duke of Bavaria, her

brother, and fixed her residence in the castle of Melun. The king, who had been very ill of his disorder for some time, now recovered: the duke of Burgundy waited on him, and was not only reconciled but obtained letters sealed with the king's seal and signed with his own hand, by which he was pardoned for what had lately happened to the duke of Orleans, to the astonishment of many great lords and wise men, but at this moment it could not be otherwise.

CHAP. XL.

THE KING OF FRANCE SENDS A SOLEMN EMBASSY TO THE POPE.—THE ANSWER THEY RECEIVE.— THE POPE EXCOMMUNICATES THE KING AND HIS ADHERENTS.

About this period, some persons came to the king and the lords then at Paris, to inform them, that the pope and his rival would neither of them resign the popedom, as they had promised in the city of Savona,—but by various deceitful means kept up the schism that had so long hurt the true interests of the church. The king, in consequence, wrote letters to the pope, and sent them by Jean de Château-morant and Jean de Coursen, knights, his ambassadors, to declare, that if peace were not firmly established throughout the Christian church by Ascension day next ensuing, he himself and the clergy, nobles and people of his realm and of Dauphiny, would no longer obey him or his adversary.

Pope Benedict was not well pleased with the contents of these letters, nor with the embassy, although he dissembled with the ambassadors. He made them a short answer, saying he would speedily reply to the letters they had brought, after which they took leave of him and returned to Paris, to make the king and council acquainted with all that had passed. It was not long before a messenger from the pope arrived at Paris, who went to the hôtel de St Pol, and, understanding the king was in his oratory at the commencement of the mass, proceeded thither, and presenting the king with an apostolical letter instantly departed.

When mass was over, the king caused the letter to be opened, and deliberately read, by which he learnt that he himself and all his subjects were excommunicated.

Search was instantly made in Paris after the person who had brought this excommunication, but in vain, for he had quitted the city as secretly and suddenly as he could. The king and his council, noticing the manner and form of this act, in compliance with the exhortations of the university of Paris, the greater part of his council, and the princes of the blood, who were all much angered with the pope, he withdrew himself from his obedience to the holy see.

THE APOSTOLICAL LETTER RECEIVED BY THE KING.

‘Benedict, bishop and servant to the servants of God, to his very dear son in JESUS CHRIST, Charles king of France, sends health and apostolical benediction.

‘Would to God, very dear son, that thou knewest the love and affection we bear to thy noble and potent person, and didst understand the purity of our mind, thou wouldest then be sensible of the great joy we feel in thy prosperity, and of our grief at any tribulations that befall thee. If of this thou hadst knowledge, thou wouldest not listen to those detractors, who by false tales endeavour to set thy heart against us, but love us, as a son should love a father, and then the disturbances in thy kingdom, raised up by thy persecutions against our holy church, would cease.

‘Thou knowest well, glorious prince, and hast also heard from public report, how constantly and diligently we have laboured to restore union to the church; and the advances we have made, in order to obtain peace, toward those who have foolishly encouraged the unfortunate schism, by claiming the right of enjoying the holy see, and more particularly toward Angelo Corrario, who calls himself Gregory, and is at present the adversary to the church. He, however, refuses to perform the promises he had made in various places to resign his pretensions, and prolongs the division in the holy church under frivolous and false pretences. It is, however, notorious, and cannot be denied, that it has not been owing to any fault in us that peace has not been given to the church, and all cause for schism annihilated.

‘Notwithstanding this, there are some, we hear, who are very busy in their endeavours to defame us to thee, and to lessen, in as much as they can, the purity of our good fame. Others, we learn, are weakening thy devotion, and that of the princes of thy blood, by unjustly blaming us, and charging us

most falsely with want of diligence in re-establishing the union of the holy church.

‘In truth, such persons should be answered by stating the real facts, which would destroy their fictions and falsehoods; and we believe that they have been the cause why we have not received any thing in our treasury from thy kingdom for the space of two years, an edict having been issued from thy court, which has deprived us of our rights, and we are no longer obeyed in thy realm. We look, however, for consolation and assistance from thee; for thy predecessors, in times past, have laboured to destroy the schisms and errors in the church, and to preserve peace and union. But some in thy kingdom have lately rebelled against the holy see, by appealing from us, against the constitutions of the canon,—and they have been permitted to spread abroad divers errors, contrary to the purity of true religion.

‘In addition to what we have stated, we have been much hurt and affected by the conduct of thy ambassadors in this town, and in our presence. Our very dear sons Jean de Château-Morant and Jean de Coursen, noble men and thy ambassadors, have come to us from thee, and brought us letters sealed with thy seal, by which thou makest known to us, that if by the feast of Ascension next coming, union be not established throughout our holy church, and one pope or pastor of that church be elected, thyself, the clergy, nobles and people of thy realm, and of the duchy of Guienne, will observe a strict neutrality, and will not pay obedience to either of the popes, nor wilt thou suffer thy subjects to pay any attention to our mandates.

‘Thou mayest consider, very dear son, if we had not cause for grief at heart, on reading these harsh expressions. They are little proofs of that love a child owes a father, and have been followed by serious consequences; for when thou and the princes of thy blood make use of such expressions, others may carry their meaning to a farther extent, and may include thee in the perdition that may befall them.

‘Thy good renown has been also wounded by the sin thou hast committed in wishing to set bounds to divine mercy. The union thou thinkest to obtain is sinful, and a perseverance in schism; for our adversary and his followers, swollen up with pride, will not bend nor incline to peace, but will acquire greater obstinacy from the hopes thy conduct will have given them, that we shall be deprived of any power over thy subjects and kingdom. Thus those

who were dejected and in despair will, from our oppressions, regain strength and courage.

‘Truly, most dear son, we to whom God has intrusted the care of his people, cannot longer suffer such things as may be injurious to the divine Majesty, and may cause the peril of souls, and tend to keep alive the schism in the holy church, and to invalidate my election and reputation.

‘We grieve much at thy deception, and at the wicked counsels thou hast received,—and we exhort and entreat of thee, in the name of our blessed Saviour, that thou wouldst not listen to such wicked men, who seek their own profit from the losses of the church, and from the quarrels they may excite in thy family.

‘With regard to our proceedings, thou hast had full knowledge of them, from what we have written to thee on the subject. Consider, therefore, coolly with thy council, the purity of our intentions: have the goodness to revoke and annul all edicts that may be injurious to us and to the church, and use thy endeavours to bring thine and all other kingdoms to that obedience originally due to us. We also must tell thee, that we will not act as thou hast written to us, for it does no honour to thy excellent understanding.

‘If thou wilt obey the mandates and exhortations of thy father, thou wilt gain great merit with God, and, by inclining thyself to the holy apostolical see, much praise from man. Beloved son, be on thy guard against deceivers. We will also, that thou shouldst know, and by these presents do make known to thee, that beside the pains and punishments pronounced by the law, we have lately made other constitutions, which we send thee with our bull, by which thyself and all other such delinquents and disobedient children (which God avert!) will be punished. We have done this to preserve thee and other princes from the heinous offence of high treason, so great is our paternal love toward thee and them, in order that at the day of judgment we may be blameless, by endeavouring to prevent, as much as in us lies, any soul from perishing.

‘Given at Porto Venere, in the diocese of Genoa, the 23d day of March, in the 14th year of our papacy.’

THE BULL OF THE POPE DELLA LUNA, BY WHICH HE
EXCOMMUNICATES THE KING OF FRANCE AND
OTHERS.

‘Benedict, bishop and servant of the servants of God, in perpetual memory of the increase of wickedness among mankind,—We behold the world daily becoming worse, and the thoughts of mankind so bent on evil that they add crime to crime,—That the good who may be intermixed with the bad may not be corrupted through malice and error, and that the boldness and presumption of vice may be somewhat restrained by fear of punishment.

‘It has come to our knowledge by public report, that certain children of perdition, as well churchmen as seculars, who, ambitious of rising higher than becomes them, may thence dangerously fall, having been deceived by him who changes himself into the form of an angel of light that he may afterward deceive others, have given great scandal to the simple and weak, and much offence to those of firmer minds, from their attempts to destroy and divide the catholic church by schism, and to prevent the re-union of it, which was taking place when we were elected sovereign and apostolical bishop.

‘Two years before this period, when we were of mature age^[122], we laboured hard to put an end to this schism, which has divided the church of God for nearly thirty years, to the great grief of all sincere Christians, and it still continues through the perverseness of man.

‘We have declared to Angelo Corrario, (who has thrust himself into the apostolical chair, and is called by those under his obedience by the name of Gregory,) the mode of renunciation frankly and sincerely offered by us, and which in our apostolical letters, given at Marseilles the 2d day of February of the aforesaid year of our papacy, is more fully explained. We have again offered to Angelo Corrario to appear in person at a proper and convenient place, that measures may be the more speedily adopted for the success of so desirable an event as the re-union of the holy church.

‘Notwithstanding this, the sons of iniquity exert all their powers, by means of fraud and hypocrisy, to prevent us and our brother cardinals from executing so salutary an object, despising the bonds of the holy church, and pretending an ardent desire for its union, while they wickedly withdraw

themselves from its obedience, and in their defence appealing from us, which, however, they have not the right to do.

‘We have patiently suffered all this, in the hope it may excite in them repentance and a desire to return to their duty: nevertheless, they persevere with greater boldness and presumption.

‘In order, therefore, to check this, we, having duly considered the weightiness of the matter, do, according to the powers vested in us, pronounce sentence of excommunication against all who knowingly shall obstruct the union of the holy church, or shall impede ourself and our venerable brethren the cardinals in the execution of the aforesaid things offered by us, and agreed to by Angelo Corrario or his ambassadors, or all who may appeal against us or our successors, bishops of Rome, legally elected to that dignity, or whoever may countenance and support such appeals, subtractions or perturbations, under any pretence or colour.

‘We likewise include in this our sentence those who may perversely affirm they are not bound to obey our mandates, whatever may be their rank, whether cardinal, patriarch, archbishop, bishop, or of imperial or kingly dignity, and of whatever rank in church or state. From this sentence none can be absolved but by the pope, excepting when in ‘*articulo mortis*.’ And should it happen that any may thus have received absolution, and recover their health, we will and command, that instantly on their recovery, they present themselves before the holy see to receive absolution again, and to make such satisfaction as may appear reasonable and conformable to justice.

‘Should this sentence be endured through obstinacy and hardness of heart for the space of twenty days, by any one of any estate or degree above mentioned, be the same a prince or other secular of any description whatsoever, we subject him to the interdict of the church, with all the lands, towns, cities and castles, and every sort of inheritance that may belong to him. Universities continuing in the same perverseness shall be also subject to this interdict of the holy church.

‘And as it has been found necessary, through the ingratitude of men, sometimes to revoke benefices, all such and each of them, as well churchmen as seculars, who shall give aid or counsel against this sentence, and suffer it to remain for the space of twenty days, shall be deprived of the

benefit of all indulgences, privileges, and other graces granted to them by the holy apostolic see. Such clerks will likewise be deprived of all benefices and dignities in the church, whether with or without cure; and should their rank be that of cardinals, patriarchs, archbishops or bishops, or other dignities, we declare them, by full authority and power vested in us, deprived of the same; and their vassals or other dependants, who have been bound on oath to serve them, we declare absolved from such oaths, and their fiefs, honours and dependencies on the church, whether moveable or immoveable, shall revert to the governors thereof, for them to dispose of according to their will and pleasure.

‘No judicial hearing will be granted to the sinners and transgressors above mentioned, and their suits, if proceeded on by public notaries, will be null and void.

‘All persons who may aid and abet, openly or secretly, those who, through perverseness of mind, shall resist this sentence, be they single individuals, cities, castles or places, shall undergo the same punishment of excommunication; and we will and command that the penalties ordained by our predecessors for similar crimes shall have their full effect and force, notwithstanding any constitutions, ordinances, liberties, graces, or apostolical indulgences that may have been formerly granted to these transgressors by us, or by our predecessors the bishops of Rome,—all which we revoke, as being contrary to the tenor of this present bull. It is unlawful, therefore, for any person to oppose or infringe this our declaration, by any way or means whatever; and should any dare attempt it, they shall know that they will incur the indignation of an all-powerful God, and of his blessed apostles St Peter and St Paul.

‘Given at St Victor de Marseilles, the 23d of March, in the 13th year of our papacy.’

[A. D. 1408.]

CHAP. XLI.

THE UNIVERSITY OF PARIS DECLARES AGAINST THE POPE DELLA LUNA, IN THE PRESENCE OF THE KING OF FRANCE.—KING LOUIS OF SICILY LEAVES PARIS.—OF THE BORGNE DE LA HEUSE.

At the beginning of this year, the university of Paris declared against pope Benedict, in the manner following, by master Jean Courteheuse, a native of Normandy. The assembly was held in the great hall of the palace, in the presence of the kings of France and Sicily, the dukes of Berry, Burgundy, Bar and Brabant,—the counts de Mortaign^[123], de Nevers, de St Pol, de Tancarville^[124],—the rector of the university, with deputies from that body,—the earl of Warwick from England, ambassadors from Scotland and Wales, and a great multitude of clergy and people of Paris.

Master Jean Courteheuse took his text from the 7th Psalm: ‘Convertetur dolor in caput ejus, et in verticem ipsius iniquitas ejus descendet.’ Which is, For his travail shall come upon his own head, and his wickedness shall fall on his own pate.

He divided his speech into six conclusions. First, That Pietro della Luna was obstinately schismatic, not to say an heretic, a disturber of the peace and union of the church.

Secondly, That the said Pietro ought not to bear the name of Benedict, pope, cardinal, or any other title of dignity,—and that he ought not to be obeyed as pastor of the church, under penalty of suffering the sentences pronounced against those who favour schismatics.

Thirdly, That the provisions, sentences and declarations of the bull, and the pains and penalties therein threatened, are of no value.

Fourthly, That the contents of the said bull and letter are wicked, seditious, full of deceit, and tending to disturb the king's peace.

Fifthly, That no one whatever may pay the smallest attention to them, without being guilty of the crime of favouring schismatics.

Sixthly, That such as may favour or support their contents may be lawfully proceeded against in the courts of justice.

After master Jean Courteheuse had made all his conclusions, he offered certain requests on the part of the university of Paris to the king of France. The first was, That great diligence should be used in searching after copies of Pietro della Luna's letter, and that all who might conceal them should be punished according to their deserts; that many of his supporters existed within the kingdom, whom the university would denounce in due time and place.

The second request was, That henceforward neither the king nor any of his realm would receive letters from Pietro della Luna.

The third, That the king would command his daughter the university to preach the true doctrine throughout the kingdom.

The fourth, That the bishop of St Flour, who had been sent ambassador to the aforesaid Pietro, should be arrested and imprisoned, together with master Pierre de Courselles, Sansien le Leu, the dean of St Germain d'Auxerre, and punished according to their demerits,—and that the bull should be torn to pieces, as injurious and offensive to the royal majesty.

The university declared, that it would proceed to greater objects touching the faith, and demonstrate and explain these things before those whom it might concern in proper time and place.

The king instantly assented to the requests made by the university; and then the bull was torn in pieces by the rector of the university, in the presence of the whole assembly. The dean of St Germain d'Auxerre, being there, was arrested, and put into confinement.

Shortly after, the abbot of Saint Denis, master Jean de Sains, formerly secretary to the king, and many others of name, were imprisoned at the

Louvre.

Such diligence was used that the king's officers overtook the messenger who had brought the bull at Lyons, and brought him back a prisoner to Paris, with the aforesaid Sansien le Leu, who had been taken in the church of Clervaulx; for the king and all the princes were very indignant against the pope della Luna.

This pope, hearing how he had excited the anger of the king of France, of the princes, and of the university of Paris, began to be much alarmed, and, in consequence, embarked at Porto Venere, attended by four cardinals only, and went first to Arragon, and thence to Perpignan.

About this time, king Louis of Sicily took leave of the king of France, and left Paris for Provence, to oppose some who were favourable to his adversary king Ladislaus. The queen of France was still at Melun, whither the king went, and after some days stay returned to Paris, where the ambassadors from Scotland were waiting for him. When they had received a large sum of money from the king to carry on the war against the English, they took leave and returned home.

The king of France also granted to the ambassadors from Wales, for the same object, three hundred men at arms and two hundred cross-bows, to be maintained at his expense for one whole year. They were to be commanded by the borgne de la Heuse, a knight of great renown, and a native of Normandy, to whom the king ordered vessels and money to be delivered, that he might embark for Wales.

CHAP. XLII.

THE DUKE OF BURGUNDY DEPARTS FROM PARIS, ON
ACCOUNT OF THE AFFAIRS OF LIEGE.—THE KING
OF SPAIN COMBATS THE SARACEN FLEET.—THE
KING OF HUNGARY WRITES TO THE UNIVERSITY
OF PARIS.

On the 5th day of July, the duke of Burgundy left Paris, attended by his two brothers, to the great vexation of many princes, governors of the realm. The object of his journey was to celebrate in Arras the birth-day of the bishop of that city, whose name was Martin Porée, of the order of Preachers, and also his confessor. He went thence to Ghent to visit his duchess.

He made great preparations to march to the assistance of his brother-in-law John of Bavaria, bishop of Liege, whom the Liegeois had deprived of his bishoprick, and banished their country. He had taken refuge with many gentlemen of his party in the town of Maestricht, wherein he was besieged by his enemies under the command of the lord de Pieruels and his son, whom the Liegeois had elected bishop in his stead.

On the other hand, duke William count of Hainault, brother to John of Bavaria, the count de Conversent^[125], lord of Anghien, and many other great lords of the country, assembled a large body of men at arms, who, when joined by the lords de Croy and de Hely with their men, sent by the duke of Burgundy, amounted to a very considerable force.

They marched toward the country of Liege, to make war upon it, for the cause before mentioned, and first burnt a house and farm belonging to a church of the order of Cistercians. They then advanced to Fosse and Florennes^[126], where they committed much destruction by fire and sword, as well as throughout the whole country on the banks of the Sambre. They

took several forts by storm, and put to death all found therein; nor were the lives of any spared, of whatever sex or rank, in those parts.

On this expedition some new knights were made, among whom were Pierre de Luxembourg count de Conversent, Engilbert d'Anghien, and many more. When duke William had despoiled the country, suspecting the Liegeois would march against him to offer battle, and knowing they were in superior numbers, he retreated homeward, burning every house or village he passed; and his men were loaded with the booty they had made.

When he was returned home, he raised another army in conjunction with the duke of Burgundy, with the intent of marching again toward Liege and offering battle to the Liegeois.

At this time, a severe war was carrying on between the Spaniards and the Saracens of the kingdom of Granada. The king of Spain^[127], magnificently attended by his Spaniards, and sir Robinet de Braquemont, a knight from Normandy, embarked on board twenty-four gallies, well provided with men at arms and stores, to combat the Saracens, who were at sea with twenty-two gallies. These last were defeated, and all on board put to death.

At this period also the king of Hungary wrote to the university of Paris a letter, the contents of which were as follows. It was addressed, 'To the learned, sage and prudent men, the rector and university of Paris, our love and affection.' Then follows the letter. 'Noble personages, and very renowned in science throughout the world, we have with pleasure received your epistle, full of sense and eloquence, which no doubt will be very agreeable to our Lord and the Holy Spirit, and most profitable to all true Christians; for such is the abomination at present existing in the church of God, that every sincere and pious Christian should offer up his prayers to God that out of his grace he would provide a remedy, by which this abomination, namely, the schism and division that has existed in the church for thirty years may be destroyed, and put to a final end by the re-union of the whole church.

'Should not this union be speedily effected, it is to be feared, that from this double division three others may spring up; and it is on this account, and some others, we have sent our orator to that most Christian prince the king of France our lord, in order that the object of our legation to him may not be frustrated by unbelievers and others. We have requested of him by our

ambassadors to send us some one of his noble race to aid and counsel us in our affairs, which we hope he will comply with, knowing that, if he grants us this favour, we shall be alway ready, as heretofore, to serve him.—Given at Rome, the 11th day of June, in the 22d year of our reign.'

CHAP. XLIII.

HOW ALL THE PRELATES AND CLERGY OF FRANCE WERE SUMMONED TO PARIS.—THE ARRIVAL OF THE QUEEN AND OF THE DUCHESS OF ORLEANS.

In these days, the prelates and clergy, or their procurators, were summoned from the greater part of France and Dauphiny to attend the king and his council, to give their opinions respecting an union of the church, and other matters touching the person of the king and his realm.

They attended in great numbers, and on the vigil of the feast of St Laurence assembled at eight o'clock in the morning in the great hall of the palace. The chancellor of France presided for the king, who was indisposed. When the mass of the Holy Ghost had been solemnly celebrated by the archbishop of Toulouse, a very renowned doctor in theology, of the order of Friars Preachers, harangued notably in the presence of the dukes of Orleans, of Berry, and many great lords, the rector, the university, and a large body of clergy.

He chose for his text, '*Quæ pacis sunt sectemur, et quæ ædificationis sunt invicem custodiamus,*' Rom. iv. c. That is to say, St Paul tells the Romans, in the 4th chapter of his epistle to them, to follow the things of peace, and be careful of what may bring edification. The doctor harangued much respecting the union of the church, and uttered many invectives against Pietro della Luna, who, he said, from first to last, had opposed this so-much-to-be-desired union, and that he was a schismatic-heretic, obstinate in his wickedness.

He proved this by six arguments; and after declaring that the king of France had formerly been neuter, but had since withdrawn himself from his obedience, on account of the letter and bull lately issued, which was full of

falsehoods and deceit, and highly offensive to the royal majesty, he said that it was on this account the assembly was held, that it might be notified to the members of it, for them to consider the business, and on the means of obtaining a solid peace and re-union of the church.

While these things were passing, master Sausien and the messenger from Pietro della Luna, who had brought the letter and bull of excommunication to the king, both of them Arragonians, with mitres on their heads, and having surcoats emblazoned with the arms of Pietro della Luna reversed, were carried most disgracefully in a dung cart from the Louvre to the court of the palace; and shortly after, near the marble table, at the end of the steps, were set on a pillory. They were thus exhibited, for a very long time, to all who wished to see them, having labels on the mitres, on which was written, 'Disloyal traitors to the church and king.'

They were then carried back in the aforesaid cart to the Louvre; and on the morrow the assembly met again at the palace, when the chancellor of France presided instead of the king.

A celebrated doctor in theology, called master Ursin Talvande, a native of Normandy, harangued the assembly in the name of the university of Paris, and took his text from the hundredth Psalm, 'Fiat pax in virtute tua.' He addressed himself to the throne, and to the princes of the blood and other nobles there present, exhorting them to attempt every possible means to restore peace and union to the church, by putting an end to the dangerous schism,—proving to them the wickedness of Pietro della Luna, that he was an incorrigible heretic, and ought not to be styled pope Benedict, nor enjoy the dignity of cardinal or any other,—and that they were not bound to obey him, and indeed could not without incurring the penalties due to favourers of heresy and schismatics.

He brought forward many examples of former popes, which were favourable to his arguments, and the determination of the last council, when it had been resolved, that if Pietro della Luna and his adversary did not establish peace within the church before Ascension-day, as they had promised, the kingdom of France in general, and the inhabitants of Dauphiny would withdraw themselves from his obedience; for such had been the conclusion of the prelates who had attended this council, as was apparent from their letters to the university of Paris,—in consequence of

which the aforesaid obedience had been withdrawn by order of the king of France, until one properly-elected head of the church should be chosen. The doctor then proposed the means for granting dispensations and collations to benefices in the interim, as well for Dauphiny as for France, and also other measures proper to be taken during this neutrality.

It was at length concluded, that no one should obey either of the popes after a certain day, under pain of suffering the before mentioned penalties, and without incurring the indignation of the king. The doctor insisted, that the bull of excommunication, and some letters which had been brought from Toulouse, should be publicly destroyed, which was done.

The prelates and clergy were then ordered to proclaim their neutrality throughout their dioceses and parishes, and different documents were given them by the university to teach them how they were to govern themselves respecting the several points of this neutrality. When this had been done, every one retired to his home.

On the morrow, the two Arragonians were again carried through Paris, and pilloried, in the same manner as before. The queen, who had remained some time at Melun, returned to Paris with her son the dauphin. He was mounted on a white horse led by four footmen, and followed the car of the queen. The dukes of Berry, of Brittany and Bourbon, the counts de Mortaign, de Clermont, de Vendôme, and a numerous train of nobles, as well churchmen as seculars, and esquires followed the dauphin. Great rejoicings were made on their return by the Parisians, and carols were sung in many of the streets.

The queen, the dauphin, and the lord Louis of Bavaria her brother, took up their lodgings in the castle of the Louvre. On the morrow, the duchess-dowager of Orleans came likewise to Paris with her daughter-in-law Isabella, eldest daughter to the king of France, accompanied by many noble persons, knights and others, dressed in mourning. All the before-mentioned princes went out of Paris to meet them, and conducted them to the queen and the duke of Aquitaine, to request of them justice and reparation for the melancholy death of the late duke of Orleans, and also permission to make a reply to charges which John duke of Burgundy had publicly brought against her late lord and husband the deceased duke of Orleans,—which last request she at length obtained.

CHAP. XLIV.

THE DUCHESS-DOWAGER OF ORLEANS AND HER SON CAUSE A PUBLIC ANSWER TO BE MADE, AT PARIS, TO THE CHARGES OF THE DUKE OF BURGUNDY AGAINST THE LATE DUKE OF ORLEANS, AND CHALLENGE THE DUKE OF BURGUNDY FOR HIS MURDER.

Eight days after, the duke of Orleans, attended by about three hundred men at arms, came to Paris. He was met by the duke of Berry and other great lords, his relations, without the gate of St Antoine, and went to wait on the queen and the duke of Aquitaine, his cousin-german, at the castle of the Louvre.

Having strongly recommended his cause to them, he took leave and hastened to visit the duchess his mother, and his wife. They were incessant in their petitions to the king and council to do them justice on John duke of Burgundy and his accomplices for the murder of the duke of Orleans, and obtained leave to make any reply they might please against the duke of Burgundy.

In consequence, the duke of Aquitaine, as representative of his father, and the queen, both dressed in royal robes, went, by command of the king, to the great hall of the Louvre, where were present the dukes of Berry, of Brittany, of Bourbon, the counts d'Alençon, de Clermont, de Mortaign, de Vendôme, and many more lords of the council; with numbers of knights, the rector of the university of Paris, and great crowds of common people. The duchess-dowager, attended by her son the duke of Orleans, master Pierre l'Orfevre, his chancellor, master Pierre Cousinet, advocate in parliament, and by a large train of friends and familiars, entered the hall. She then caused to be read aloud by the abbot of Saint Fiacre, of the order of St

Benedict, the contents of a book, written in French, which she gave to him publicly, and which were confirmed by quotations from the writings of the prophets, in both the Old and New Testaments, as well as from those of philosophers and historians. The contents of the book were as follows.

‘Most Christian king, most noble and sovereign prince, and fountain of justice, to thee do I address my speech; for thou art competent to display justice to all thy subjects of the realm of France, inasmuch as not only the neighbouring, but even the most distant nations may take example from the conscientiousness of thy judgments, which flow from thee and thy council, as from the fountains of justice and truth. I address myself to thee in the names of my highly honoured and most noble lady the duchess of Orleans and of my lords her children, who in their deplorable state present to thee their complaints with lamentations and tears, seeing that after God there can be no relief but in thy pity and compassion.

‘That what I have to say may not have the smallest appearance of fallacy, but may be perfectly clear, I shall divide my discourse into three parts, or principal divisions. In the first, I shall show, to the utmost of my ability, that kings, as sovereigns, are bounden to do justice to all their subjects, and to maintain peace within their realms.

‘Secondly, That our adversary, John duke of Burgundy, and his abettors, have, by counsel and otherwise, been instrumental in unjustly and disgracefully murdering the late duke of Orleans, whose soul may God receive!

‘Thirdly, That my aforesaid lord, the late duke of Orleans, has been wickedly and unjustly accused of several crimes of high treason of which he has been no way guilty, as shall appear hereafter.

‘It is, beside, my intention to divide these three points into six other divisions: thus, therefore, my discourse will consist of eighteen divisions.

‘In regard to the first point, it appears very clear to me, that the king is singularly obliged to do justice in this case, and especially for six reasons. The first of which constrains him to do justice from the consideration of his power and dignity, which not only binds him to do it of his own will, but as matter of right from his title of office; for kings are so called on account of doing justice, and not for anything else.

‘The second reason is founded on his paternal love,—for, as the common proverb says, ‘Nature cannot belie herself:’ the king, therefore, as sovereign and brother, is bound from reason and justice to support his right.

‘Thirdly, From the melancholy state of my lady of Orleans, now reduced to widowhood and despair, who with her disconsolate young children, and many knights, are overwhelmed with grief by the cruel death of her lord and husband.

‘The fourth reason is, The enormity of the crime, which can scarcely have its parallel found; for all who have heard of this scandalous deed have thought it abominable, and have declared, that if the king did not provide a remedy for it, he could not be considered as sovereign of his kingdom when he is thus forced to humiliate himself before his subjects.

‘Fifthly, If this crime be not punished, innumerable evils will ensue,—such as the destruction of cities and towns, murders, and rebellion of subjects.

‘Sixthly, The wickedness of our enemy, who by force of arms seeks to maintain his crime, and who pleads his cause with a drawn sword in his hand. And in these six reasons consist the grounds of our proceedings.

‘With respect to my second point, I will demonstrate by six reasons, that our adverse party has so greatly sinned that it is impossible for any reparation to make amends.

‘My first reason is, That our opponent had no authority whatever for murdering so great and so noble a person as the late duke of Orleans.

‘Secondly, That he followed no forms of law or justice in putting my late lord to such a death; and even supposing that he had any authority over him, which was not the case, it was illegal to put him to death without hearing what he might have to say in his own defence; and seeing that he had not any authority, his crime will appear so much the deeper.

‘Thirdly, From the alliances formed between these two dukes, I do not mean those of blood, but the engagements mutually entered into, to avoid the inconveniences that might arise from their quarrels, by which they were bounden not to annoy or attack each other without having sent a previous challenge. In confirmation of this, they had several times sworn to the same on the holy Scriptures, and on the cross of our Lord, giving to each other letters signed with their seals.

‘Fourthly, The death of my said lord of Orleans was so sudden that no true Christian can say it was not damnable to those who committed the crime, as well as to those who had commanded it.

‘Fifthly, I shall demonstrate clearly, that our opponent did not cause the late duke of Orleans to be murdered for any good purpose, nor for the public welfare, but solely through ambition and covetousness, from a lust of power, and in order to make his dependants rich, and from the great hatred that had been long fostered at his heart.

‘Sixthly, That the death of the late duke of Orleans was not sufficient for our adversary, but that he has exerted himself to the utmost to blast and scandalize his memory by defamatory libels, and by supporting traitors and murderers. This regards the second part of my discourse.

‘In respect to my third point, I shall produce six arguments, in opposition to the six false accusations brought by our adversary against the late duke of Orleans, and which shall clearly prove the innocence of the defunct. Such will be my third division.

‘I have thus shown you my three divisions. The first regards justice,—the second declares the malice of our adversaries,—and the third exonerates the late duke of Orleans from the false charges brought against him. Before I proceed further, I must here solemnly declare, that I intend not to say any thing but the exact truth, or to advance more than has been enjoined me by my foresaid lady of Orleans, and my lords her children.

‘It is true, indeed, that the defender of our adversary has very unadvisedly called my late lord of Orleans criminal, although he has no way proven it; nevertheless I shall not use this expression in speaking of our adversary, though I repute all murderers criminal, and him in particular, not from any suspicion, but from the confession made by himself; and as wisdom conquers malice, according to the holy Scriptures, it will be sufficient for me to name the adverse party, the party of Burgundy; for it will be better that I first demonstrate the crimes, and then show the duke of Burgundy guilty of them, than to follow his example, and call him criminal without any proof or verification. I shall now, having divided my subject into three divisions, enter on my first point, which treats of the justice of the king, and quote the words of the prophet which say, ‘*Justitia et judicium præparatio sedis tuæ.*’ These words are in the lxxviiiith Psalm, and declare to the king

that his throne is founded on justice and judgment. I shall quote in regard to my second division, which relates to the malice of our adversary, the very words his defender made use of, namely, ‘*Radix omnium malorum cupiditas, quam quidem appetentes erraverunt a fide.*’ These words are taken from the first epistle of St Paul to Timothy, in the last chapter, and which mean, That covetousness is the root of all evil, and causes a defalcation from the faith.

‘In regard to my third division, respecting the innocence of the late duke of Orleans, I shall use the words of the Psalmist in the seventh Psalm, ‘*Judica me secundum justitiam tuam et secundum innocentiam meam super me;*’ that is to say, Do me right according to thy justice, and judge me according to my innocence.

‘I shall now return to my first point, and repeat the words of the Psalmist, ‘*Justitia et judicium præparatio sedis tua.*’ This expression I may address personally to the king our lord, in saying, ‘Justice and judgment are the foundations of thy royal throne;’ for royalty without justice is undeserving of the name, and should be called a robbery according to St Austin, in the 10th chapter of his 9th book, ‘*De Civitate Dei:*’ ‘*Regna, inquit, remota a justitia, quid sint nisi magna latrocinia.*’

‘It appears, therefore, that the king is bound to do justice to all his subjects, and to preserve to every one his right, and that for the six reasons touched upon at the beginning of my speech,—my first reason being founded on the regard due to the royal dignity, which dignity has been instituted principally in order to do justice, the king being truly, in respect to his subjects, what a shepherd is to his flock, as Aristotle says in his 8th chapter of ethics, or in the 5th of his politics, on the government of cities; and it is also declared, in his book on the ruling of princes, that they are bounden to preserve justice.

“*Justitia inquit regnantis utilior est subditis quam fertilitas ipsius;*’ which means, That the justice of the governing powers is more advantageous to the subject than fertility or riches. The Psalmist, on this matter, says, ‘*Honor inquit regis judicium diligit;*’ that is, The honour of the king loves justice and judgment. The justice here spoken of is nothing else than to preserve to every one his right, which is also declared by the emperor Justinian, in the first book of his Constitutions.

“Justitia est constans voluntas unicuique jus suum tribuens,” meaning, That justice is firm and stable, giving to every one his due; and it should be considered that justice is not to be administered according to pleasure, but as the written laws prescribe. Weigh well, therefore, how much you are bounden to do justice.

‘To you, then, my lady of Orleans and her children address themselves, requiring from you justice, which is the brightest jewel in your crown. Recollect the numerous examples of kings, your predecessors, who so much loved justice, and particularly that bright instance of a king, who seeing that his son had deserved, by the laws of that time, to lose both his eyes, ordered one of his eyes to be put out, and had at the same time one of his own destroyed, that the law might not be violated nor infringed.

‘Valerius also mentions, in his 6th book, a king called Cambyses, who commanded a false judge to be flayed, and his skin to be placed on the judge’s seat, and then ordered the son of the late judge to sit on the skin of his father, telling him, ‘When thou judgest any cause, let what I have done to thy father be an example to thee; and let his skin, forming thy seat, always keep thee in remembrance.’

‘O, king of France! thou rememberest what David said, when king Saul unjustly persecuted him, ‘Dominus inquit retribuet unicuique secundum justitiam tuam;’ that is to say, The Lord God will repay every one according to his justice. These words are written in the second chapter of the first book of Kings.

‘Thou oughtest, therefore, like a true follower of our lord, to do in like manner according to thy power, and aid and support such as have been unjustly wounded and persecuted. Thou canst not have forgotten, how Andronicus, a cruel murderer, was condemned to death on the spot where he had slain the high priest, as it is written in the book of Machabees.

‘O, king of France! take example from king Darius, who caused those that had falsely accused the prophet Daniel to be thrown into the lion’s den to be devoured. Recollect the justice that was executed on the two elders who, from false charges, had accused and condemned Susanna. These examples are written in the sixth and fourteenth chapters of the book of Daniel the prophet, and ought to stimulate thee to do justice as king and sovereign,—for it is in doing thus that thy subjects will be obedient to thee, and in such

wise art thou bound to do them justice, and which will cause them to be highly criminal when disobedient to thee.

‘Some indeed have doubted whether the subject may not withdraw his allegiance from the sovereign on a refusal of justice and equity. May it please thee, therefore, sire, to consider this well, for thou wilt not have any thing to fear in doing justice, as I shall hereafter demonstrate; and in conclusion of this my first reason, I shall quote the words of the third chapter of Job: ‘Cum justitia indutus sum, et vestivi me vestimento et diademate in coronatione mea;’ that is to say, I am clothed with justice, and have invested myself with it, as the robe and diadem of my coronation.

‘Consequently, most noble prince, I say that fraternal love ought greatly to urge thee to do justice; for I do not believe that greater love ever existed between two brothers than what you both felt. Be then the true friend to thy brother in justice and judgment; for it will be the greatest disgrace to thee and to the crown of France, throughout the world, if justice and reparation be not made for the infamous and cruel murder of thy brother. It is now time for thee to show thy brotherly affection; and be not like to those friends spoken of by the wise man, in the 8th chapter of Ecclesiasticus, as follows: ‘Est amicus socius mensæ et non permanebit in die necessitatis.’ That is, There are friends who are companions at table, and in prosperity, but who are no longer such in the day of adversity.

‘At this moment, necessity and affection united call upon thee to prove thyself such a friend that the world may not call thee a faint hearted friend, of whom Aristotle speaks, in his 9th chapter of ethics: ‘Qui, inquit, fingit se esse amicum, et non est; pejor est eo qui facit falsam monetam.’ A faint friend is worse than a coiner of base money. Should some tell thee, that our opponent is of thy blood, and thy relation, thou oughtest, nevertheless, to abominate his crime, and do strict justice between two friends, according to what Aristotle says, in his second book of ethics: ‘Duobus existentibus amicis, sanctum est præhonorare virtutem.’—That is, It is praiseworthy to give the preference to virtue between two friends.

‘Thou rememberest the strong love that subsisted between thee and thy brother; not that I wish to obtain any favour by that remembrance, but solely to exhort thee to justice and truth. Alas! it would be of little value the being son or brother to a king, if such a cruel murder were passed over

without any punishment inflicted on the guilty, nor any reparation made for it,—more especially as he who caused his death ought to have loved him as a brother; for in the holy Scriptures nephews and cousins-german are called brothers, as appears from the book of Genesis, where Abraham says to his nephew Lot, ‘Ne sit jurgium inter te et me, fratres enim sumus.’ Let there be no strife between thee and me, for we are brothers.

‘Saint James is also called the brother of our Lord, when they were only cousins-german. Thou mayest repeat to our adversary the words which God said to Cain, after he had murdered his brother, ‘Vox sanguinis fratris tui clamat ad me de terra.’ The voice of thy brother’s blood cries to me from the earth; and certainly in our case the earth and blood do cry.

‘There cannot be a man of common feelings who has not compassion for such a death as that of my late lord of Orleans; and it must not be wondered at if I compare our adversary to Cain, for in them I see many features of resemblance. Cain, moved by envy, slew his brother, because the Lord had accepted of his brother’s offerings, and had not received his sacrifice, because he was practising in his heart how he could kill his brother. In like manner, the duke of Burgundy, because my lord of Orleans was the more agreeable to the king, in his heart meditated his death, and in the end had him treacherously and infamously murdered, as shall be fully proven. As Cain, instigated by covetousness, committed his crime, so our adversary, urged on by similar passions, did the act we complain of, as shall be demonstrated from his conduct previous to and after the death of the late duke of Orleans. I find, likewise, that the word *Cain*, by interpretation, signifies, ‘acquired’ or ‘acquisition.’ By the same name our adverse party may be called, for vengeance is acquired by the king in body and goods; but let justice take its course, and events will happen according to the good pleasure of God. It therefore seems very reasonable that I compare the duke of Burgundy to Cain.

‘Sire, remember, I pray thee, the words addressed to Cain, namely, ‘Vox sanguinis.’ The voice of thy brother’s blood. It is the voice of the lady of Orleans, and of her children, crying to thee, and demanding justice. Alas! my lord king, to whom wouldst thou wish to do justice, if thou refusest to do it for the love of thy own brother? If thou be not a friend to thy blood, to whom wouldst thou be a friend, seeing we ask no more than justice? O, most noble prince, consider that thy brother has been torn from thee for

ever! Thou wilt never again see him, for the duke of Burgundy has cruelly caused him to be put to death.

‘Recollect he was thy brother, and thou wilt find how greatly he is to be compassioned. He, like thee, was equally fond of the queen and thy children, and, from his natural good sense, honoured all the royal blood of France; and few could be found more eloquent than he was when addressing nobles, clergy or laymen.

‘Our Lord had given him what king Solomon had demanded, prudence and wisdom; for every one knows, that he was adorned with an excellent understanding,—and of him may be said as of David, in the chapter of the Acts of the Apostles,—‘*Sapiebat sicut angelus Domini.*’ He was endowed with wisdom like to an angel of God.

‘Were I to speak of the beauty of his person, I could only say, that he was thy image and resemblance, with this good quality that he was perfectly courteous to all, and never caused any one to be beaten, or put to death, nor did he ever procure the death of any one. He possessed, however, the power of so doing, even to his enemies, who were notoriously defaming him, and attributing to him evils which he never thought of: he could, more especially, have had our adversary put to death several times, had he so pleased,—for no great power is requisite to have any one treacherously murdered.

‘But, in good truth, such thoughts were not in his heart; for the property of royal blood is to have such compassion and mercy that it cannot suffer any cruelty, murder or treason whatever; and of this blood my late lord of Orleans had a large share, for he was the son of a king and queen.

‘O, king Charles! if thou wert now alive, what wouldst thou say? What tears could appease thee? What would have hindered thee from doing justice for so base a murder? Alas! how hast thou loved, and to what honour hast thou diligently trained the tree that has brought forth the fruit which has put to death thy very dear son? Alas! king Charles, thou mayest now say with Jacob, ‘*Fera pessima devoravit filium meum.*’ The worst of beasts has devoured my son.

‘Our adversary has made a miserable return to thee, oh Charles! for all the great riches thou hast heaped on his father. This is the gratitude for the

expedition to Flanders, wherein thou and thy kingdom were in such peril out of love to him. In truth, all the magnificent gifts thou madest the father are already forgotten. Sire, look down, and hear the lady of Orleans, crying in the words of the Psalmist, 'Domine deduc me in justitia tua propter inimicos meos.' Lord, lead me to thy judgment on account of mine enemies.

'This concludes my second argument. My third is founded on pity, considering the desolate state of the supplicants, namely, the widowed lady of Orleans, in despair, with her innocent children, thy nephews, now become orphans, having no other father to look to but thee. It becomes thee, therefore, to incline thyself diligently to do them justice, as they have no other refuge but in thee, who art their lord and sovereign; and they are beside thy very near relations, as thou well knowest.

'Let pity move thy breast; for as Saint James the apostle says, 'Religio munda et immaculata est visitare pupillos et viduas in tribulatione eorum.' To visit orphans and widows in their distress is the duty of a pure and undefiled religion. It is melancholy that so great a lady should suffer thus undeservedly; and she may be compared to her whom Valerius speaks of in the sixth book. A widow had a son who had been unjustly slain: she went to the emperor Octavian to demand justice, and said, 'Sire, do me justice for the cruel death of my son.' The emperor had already mounted his horse, to perform a long journey, but replied, 'Woman, wait until I be returned, when I will do thee justice.' The woman answered instantly, 'Alas! my lord, thou knowest not if ever thou shalt return, and I wish not justice to be delayed.' The emperor said, 'Should I not return, my successor will see thee righted;' but the widow replied, 'Sire, thou knowest not if thy successor would wish to see me righted: he may, perhaps, have something to prevent it like to thee; and supposing that he should do me justice, what honour would it be to thee, or what merit canst thou claim for it from the gods? Thou art bound to do me justice: wherefore then seekest thou to throw the burden on others?'

'The emperor, observing the firmness of the woman and the reasonableness of her arguments, dismounted, and, without more delay, did her ample justice. It was for this meritorious conduct, that when the emperor died, five years after, in the pagan faith, he was brought to life again by the prayers of St Gregory, then pope, and baptised, as the histories relate.

‘The example of this emperor, O king of France! thou oughtest to follow in regard to the disconsolate widow of the late duke of Orleans, who is now a suppliant to thee, and has formerly demanded, and now again demands justice, for the inhuman and barbarous murder of her lord and husband, who was thy brother. Delays, or reference to thy successors, will have no avail; for thou, as king, art singularly obliged to do this, considering the rank of the supplicants, the duchess of Orleans and her children.

‘This lady is like to the widow of whom St Jerome speaks, in his second book against Jovinian, wherein he relates, that the daughter of Cato, after the death of her husband, was in the deepest sorrow, uttering nothing but groans and lamentations. Her relations and neighbours asked her how long this grief was to last,—when she replied, that her life and her sorrow would end together. Such, without doubt, is the state of my lady the duchess,—for she can have no remedy for her loss but by means of the justice she is soliciting. In truth, she does not require any hostile measures,—for were that the case, she and her children, with their allies, are so much more powerful than the duke of Burgundy that they are well able to avenge themselves.

‘This act of justice thou canst not refuse, nor can the adverse party raise any objections to it, considering the persons who demand it. O, sovereign king! act in such wise that the words the Psalmist spoke of the Lord may be applied to thee: ‘Justus Dominus et justitias dilexit, æquitatem vidit vultus ejus.’ Our Lord is judgment, and loves justice: equity is the light of his countenance.—This concludes my third argument.

‘My fourth argument is founded partly on the act itself, which was so abominably cruel, the like was never seen; and all men of understanding must feel compassion for it. This, if duly considered, should incline thee the more to do justice, from the usages of the ancient kings, who, through compassion, bewailed even the death of an enemy: how much the more then does it become thee to bewail the death of thy brother, and to exert thy courage to punish the authors of it? Should it not be so, great disgrace will attach to thee and to many others.

‘We read, that Cæsar seeing the head of his enemy Pompey wept, and said, that such a man ought not to have died. He was also very much grieved at the death of Cato, though his enemy, and did all in his power to aid and

console his children. O, most courteous king of France! thou oughtest likewise to give consolation for the death of thy brother, who was thy dear and loyal friend. Weigh well the manner of his death, which was piteously lamentable. Alas! my lord, could the spirit of thy brother speak, what would it not say? It would certainly address thee in words similar to these:

‘Oh, my lord and brother, see how through thee I have received my death,—for it was on account of the great affection that subsisted between us! Look at my wounds, five of which are mortal. See my body beat to the ground, and covered with mud! behold my arm cut off, and my brains scattered about! See if any pains were equal to my sufferings. It was not, alas! sufficient for mine enemy to take away my life so cruelly, and without cause; but he suddenly surprised me when coming from the residence of the queen to thee, which has put me in danger of damnation; and even after my death, he has attempted to blast my reputation by his false and defamatory libel.

‘My sovereign king, attend to these words as if thy brother had spoken them; for such they would have been, could he have addressed thee. Be then more active to do justice; and having heard the petition of my lady of Orleans, act so that thou mayest verify what is said in the second chapter of the first book of Kings: ‘*Dominus retribuet unicuique secundum justitiam suam.*’ Our Lord will render to all according to his justice. And this concludes my fourth argument.

‘My fifth is grounded on the great evils and mischiefs that might ensue if justice be not done on such crimes,—for every one will in future take the law into his own hand, and be judge and party. Treasons and murders will be the consequence, by which the kingdom may be ruined, as I shall demonstrate; for, according to the doctors, the surest way to preserve peace in a country is to do equal justice to all. St Cyprian declares this, in his book on the twelve errors, saying, ‘*Justitia regis, pax populorum, tutamen pueris, munimentum gentis, terræ fœcunditas, solatium pauperum, hereditas filiorum, et sibimet spes futuræ beatitudinis.*’ The justice of a king is peace to the people, the defender of orphans, the safety of the subject, the fertility of the earth, the comfort of the poor, the inheritance of sons, and to himself a hope of future happiness. It is an everlasting glory. And on this occasion the Psalmist says, ‘*Justitia et pax osculatæ sunt.*’ Righteousness and peace have kissed each other.

‘Should it be urged, that if due punishment be inflicted on this crime, greater evils might ensue from the reputed power of the duke of Burgundy. To this, which has more of appearance than reality, it may be answered, That the duke of Burgundy is as nothing compared with the power of the monarch; for what power or force can he have but what thou givest him or sufferest him to enjoy?

‘Justice and truth, however they may be delayed, always in the end, through Divine mercy, are the mistresses, and there is no security like working for them. Who are the knights or esquires that would dare to serve him against thee? or where are the strangers that would risk their lives in his traitorous quarrel? Certainly none.

‘O! ye knights of Burgundy and Flanders, clerks and laymen, and all ye vassals of our adversary, send hither men unbiassed by favour or hatred, to hear this cause pleaded, truth declared, and justice adjudged to the right, according as it shall be plainly shown.

‘O! most Christian king, ye dukes, counts and princes, have the goodness to give your aid that justice may be administered, for which end you have been principally constituted and ordained.

‘O, my lord king! consider how small a power, when compared with thine, thy ancestors enjoyed, and yet they punished criminals of yet superior rank to our opponent, as any one may see who shall read our history of former times. Beside, who are they that would dare to oppose their sovereign lord, who, doing an act of justice according to the evidence of truth, becomes a true and upright judge, as Tully sheweth, in his second book of Offices: ‘Judicis est semper verum sequi.’ A good judge should give judgment according to truth.

‘The same author says, in one of his orations before he went into banishment,—‘*Nemo tam facinorosus inventus est vita, ut non tamen judicium prius sententiis convinceretur, quam suppliciis applicaretur.*’ No one has led so wicked a life but that a verdict has been passed upon his case before he was put to the torture.

‘Thou art bounden, most potent king, to do justice; and should any evil result from it, it will fall on the adverse party, on account of his crimes, as I shall show to you hereafter. The judgment of our LORD JESUS CHRIST will not

certainly fail of having its effect: 'Qui de gladio percutit, gladio peribit.' Whoso kills with the sword shall die by the sword. And Ovid, in his Art of Love, says, 'Neque lex est æquior ulla, quam necis artifices arte perire sua.' No law is more just than that murderers should perish by their own arts.

'O, my lord king! open the gates of justice, and listen to the very reasonable complaints which my lady of Orleans makes to thee, that thou mayest verify in thyself the words of the prophet, 'Dilexisti justitiam et odisti iniquitatem propterea unxit te Deus tuus oleo leticiæ præ consortibus tuis;' that is to say, Thou hast loved justice, and hast hated iniquity, wherefore the Lord thy God has anointed thee with the oil of gladness above thy fellows;—and this finishes my fifth argument.

'My sixth and last argument, for the present, is founded on the conduct and demeanour of our opponent after this cruel and detestable crime.

'There is nothing in this world a king should so much dread and check as the overbearing pride of any subject in regard to his government; and thou, O king! oughtest to follow, in thy governance, the example of the King of kings, of whom holy writ says, 'Deus superbis resistit, humilibus autem dat gratiam.' God humbles the proud, and raises up the weak-hearted. Thou art therefore bound to humble the pride of our opponent, which has increased to such a pitch as to make him resist thy power in the support of this his wicked deed.

'Oh! king of France, and all ye my lords, weigh well then the rebellion and disobedience of our adversary, not only against the commands of the king, but contrary to the orders of the whole royal council. It is a well known fact, that the king of Sicily, my lord of Berry, and several others, went lately to Amiens, notwithstanding the great severity of the season, to attempt bringing about a reconciliation between the parties, for the general good of the king and kingdom; but these lords, in truth, could not effect this, though they signified to our opponent the king's commands,—but he contended that he would not wait upon his sovereign until he should be sent for by the king himself.

'When the aforesaid lords advised him to obey the king's commands, they could scarcely obtain from him a promise not to come to the king with a great power of men at arms; and even then he delayed his coming for fifteen days. Consider, my lords, what sort of obedience this is, and what

fatal consequences may ensue from it. After the conference at Amiens, what was his conduct? Why, he assembled so large a force of men at arms, that when he came to Paris, he seemed as if he would conquer the whole kingdom.

‘It is true, indeed, that the king and the princes of his blood, hearing of this, collected a sufficient power to provide a remedy. But when the king had commanded him, by especial messengers, not to enter Paris with more than two hundred men at arms, he came accompanied by more than six hundred, in direct opposition to the king’s orders.—On his arrival in Paris with so large a force, it seemed to him that the king, queen, and other princes ought to act according to his will; and for certain, such was the state of affairs that nothing was refused him, but the whole court behaved courteously toward him, to appease his anger.

‘O, government of France! if thou wilt suffer such things to pass with impunity, thou wilt soon have cause for lamentations. Our adversary next caused all the barricadoes and defences round the king’s palace to be taken away, that his wicked intentions, already begun, might be completed. Such deeds are strong proofs of subjects having evil designs against their king. It behoved him to have come to humble himself and seek for pardon; but, on the contrary, he came with his sword drawn, and accompanied by a numerous body of men at arms, the greater part of whom were foreigners.—During his residence in Paris, he frequently excited to rebellion the simple inhabitants, by spreading abroad his defamatory libels, and various false promises. The citizens, believing he was to do wonders, and to be the regent of the kingdom, have been so much deceived by him that they paid great honour to him and to his writings, even by cries of joy, and shoutings of the populace whenever he appeared; by which and other like means, his pride and cruelty are increased, and make him obstinately persist in his iniquities.

‘Alas! my lord king, is it not the very height of presumption to ride through Paris openly armed, after having committed such a crime, and to attend thy peaceful council with his battle-axes and lances? where thou oughtest not to have suffered any one to have entered more armed than thyself, lest the devil, who had instigated him to commit the base act he did, should unfortunately have urged him to commit a still greater, because the princes of the council did not approve of the wickedness he had done. Therefore

thou shouldest never allow any one culpable like him, who takes the law into his own hands, to be in thy presence, more strongly armed than thou art thyself; for it is possible for such as him to beguile the people by the means before mentioned, and to lead them to thy own destruction as well as that of thy realm.

‘Be pleased, therefore, to humiliate our opponent, and shew thyself an upright and fearless judge in the cause of truth, that it may be said of thee as it is written in the 8th chapter of the 3d book of kings,—‘*Judicabit servos suos, justificans quod justum est, attribuens eis secundum justitiam.*’ He will judge his servants, justifying them that are upright, and giving to each according to his deserts. From this, as well as from the preceding arguments, it plainly appears, that thou art bounden to do the justice required by my lady of Orleans.

‘I shall now demonstrate the crime of our adversary, and how he perpetrated such an unpardonable deed, to which I shall add six arguments to prove the fealty and loyalty of my lord of Orleans, taking for my theme the words of the advocate of our opponent,—namely, ‘*Radix omnium malorum cupiditas.*’

‘It seems to me, that covetousness has been the original cause of this murder,—not covetousness of wealth alone, but likewise covetousness of honours and ambition.—Covetousness has then been the original cause, as shall more plainly be shown hereafter.

‘To prove the greatness and abomination of this crime, I shall use six arguments. The first is founded on our adversary having not the power or authority of a judge over the deceased.

‘Secondly, Supposing he may have had any authority over him, he proceeded in his own way, contrary to every maxim of law and of justice.

‘My third argument is grounded on the strict alliance that had been formed between my late lord of Orleans and our adversary.

‘Fourthly, That this is a damnable murder, and cannot any way be defended or explained.

‘Fifthly, That our opponent caused my lord of Orleans to be slain with a wicked intention.

‘Sixthly, That, not satisfied with having caused the duke of Orleans to be deprived of his life, he has exerted himself to disgrace his fame, by defamatory libels,—thus, as it were, slaying him a second time.

‘As to my first argument, it plainly appears, that the malice of our adversary is incorrigible, seeing that he had not any authority over the deceased; for, according to the laws and decrees, as well as to reason and the holy Scriptures, no one can put another to death without authority from the judge or judicial. Otherwise, any one may slay another at his pleasure, and tumults and confusion would reign without any chief or head, and every one would alternately, when strongest, make himself king.

‘So far was our adversary from having any power or authority over my lord of Orleans that he was bound to do him honour and reverence as son to a king, and to call him his lord, and respect him in his words and actions, for such are the privileges and prerogatives belonging to the sons of kings. This usurpation, therefore, of authority is apparent in our adversary, and consequently his wickedness has been unjustly perpetrated.

‘That authority is required as essential to enable any one to put another to death appears clearly in many parts of the holy Scriptures: and in fact, St Austin, when discussing the saying of our Lord, in the 26th chapter of the gospel of St Matthew, ‘*Omnis qui gladium acceperit, gladio peribit;*’ that is, Whosoever useth the sword shall perish by the sword; adds, ‘All who shall, without lawful authority, make use of the sword, or shall arm himself against another, is bold in his wickedness.’ He afterwards asserts, that even a malefactor cannot be put to death without lawful authority; for in his *Civitas Dei*, ‘*Qui, inquit, sine publica administratione maleficum interfecerit, velut homicida judicabitur.*’ That is, Whoever shall slay a malefactor without the forms of public administration of justice shall be judged guilty of murder. This the law confirms, ‘*Vigor, inquit, publicus tutela in medio constituta est, ne quis de aliquo, etiam sceleribus implicato sumere valeat ultionem:*’—which is, That the public strength is as a defence constituted and ordained to prevent any one from taking vengeance, even upon him who is involved in great and abominable crimes.

‘In truth, the advocate for our adversary may say, that the laws should only take cognizance of such as act contrary to law; and that as a tyrant proceeds directly in opposition to them, he will affirm that this murder is no way

contrary to the law. Alas! and does the advocate of our opponent know that my late lord of Orleans was a tyrant? Who is the judge that declares him such?

‘The fallacy of this assertion must be strictly examined, for on this deception is founded the supposition of my lord being a tyrant; and as our adversary groundlessly asserts, that the late duke of Orleans was a tyrant in the eye of reason, he concludes that it was lawful to put him to death. Let us, however, consider the properties of tyranny, and who should be accounted tyrants.

‘The philosopher says, in his 4th chapter on morals, ‘*Tyrannus est, cum aliquis princeps, vi et violentia potestatis, sine titulo terram usurpat alienam, et de facto aliquam occupat civitatem vel patriam et qui incorrigibilis est, et nulli obediens.*’ Now let us see whether my lord of Orleans had these properties. Certainly not; for he never took possession of another’s land: if any one know the contrary, let him say so.

‘Our opponent, therefore, ought not to have called the duke of Orleans a tyrant, for he never usurped any dominion, excepting over such places as were given him as appanages by the king, or what he had himself justly acquired. The duke of Burgundy, on the contrary, withholds three castles and their dependencies, without any just title, from the inheritance and domain of the king, namely, Lille, Douay and Orchies, notwithstanding his oaths on the holy sacrament to the king, that he would restore them to the crown, according to the conditions and agreements then made.

‘My lord of Orleans was never incorrigible; for I firmly believe that never did so great a prince pay more respect and honour to the laws.

‘Let our opponent say what acts or opposition the duke of Orleans ever committed or made against the laws. There are many noble persons now living, who can testify that no lord ever supported or maintained the dignity of justice more than the duke of Orleans during his whole life.

‘If we consider the properties of a tyrant according to the philosophers, they declare that a tyrant bends his whole mind to slay and destroy the prudent and wise: he seeks the ruin of churches and colleges of learning, and is solely occupied with destruction. He is much to be feared for his wickedness, whilst he studies to preserve his personal safety by strong

guards. Such were not the qualities of my late lord, for his were the direct opposite.

‘In the first place, he never caused either wise men or fools to be put to death, but was particularly fond of the learned, and desirous of seeing any new improvements. In regard to churches, so far from destroying them, he repaired many, and founded some new ones, to which he gave large estates, as is well known. As for guarding his personal safety, he felt himself so innocent and pure toward all mankind, that he suspected no one of attempting to hurt him, and took no precautions, as you have seen, against his murderers. In fact, had he been of a suspicious temper, he would not have been thus treacherously slain.

‘It is therefore wonderfully astonishing how our adversary should have dared to have called the duke of Orleans a tyrant, by way of excusing his abominable act, when it is apparent that his qualities were directly the reverse to those of a tyrant. This I think a sufficient answer to the damnable proposition of our opponent.

‘But the advocate for our adversary says, That whatever he may have done contrary to the letter of the law was not, however, contrary to the intention of the maker of the law, nor contrary to its spirit, but through love of God. Who is he that has thus revealed to him the intention of the Maker of the law, and that it is the object of laws to cause men to be put to death without authority or sentence of the law? The consequence would be, that any prince may be made away with, under pretence that he was a tyrant; for every one would interpret the law according to his fancy, which would create the greatest misfortunes. ‘Cujus est leges condere ejus est interpretari.’ It is therefore clear, that our opponent could not establish laws binding on the duke of Orleans, who was not his subject, or interpret the law in respect to him. For although his advocate styles him dean of the peers, it does not follow that he had any authority over the defunct; for if so, he would have authority over the whole kingdom, and be equal to the king. What though he be a peer? he has no power but over his own lands; and in so much as he attributes to himself the power of another over the realm, he appropriates to himself kingly domination.

‘His advocate has indeed alledged twelve reasons to prove that his lord might lawfully put to death the duke of Orleans without orders from any

one whatever. The three first are founded on the declarations of three doctors in theology, and three others on the writings of three moral philosophers,—three on the civil law, and the three last on examples drawn from the holy Scriptures.

‘With regard to the first, taken from the writings of St Thomas Aquinas, who says,—‘*Quando aliquis aliquod dominium sibi per violentiam suscipit nolentibus subditis, vel sine consensu communitatis et non est recursus ad superiorem per quem de tali invasore iudicium posset fieri, tunc qui ad liberationem patriæ talem tyrannum occidit laudatur et præmium accipit.*’ To this I reply, that it is no way applicable to the case; for my lord of Orleans never intruded on any other’s domination by violence, nor did he attempt to usurp the power and authority of the king. I say, he never even thought of such a thing, as will more amply be shown in the third part of my defence of him.

‘I am therefore right in saying, that Saint Thomas speaks of him who may be proved a tyrant,—but my lord of Orleans was not one. On this subject St Austin proposes a question, whether it be lawful for a pilgrim to kill a robber, who is on the watch on the highway? and from his conclusion it is apparent, that he does not think it lawful for any man to put another to death without sentence of the law, as Henry de Gand afterward determined.

‘I shall add, that supposing my lord of Orleans was such a person as our opponent describes him, but which I deny, he had a safe resort to the king, when he was in good health and cheerful with the queen and the princes of his blood,—none of whom would have hesitated to have personally exposed himself in bringing to punishment the duke of Orleans, had he been proven guilty of usurping the king’s authority. Most certainly, my late lord had too good an understanding to imagine he could ever succeed to the crown, when so many obstacles were against him and the king assured of successors.

‘The second reason is founded on the authority of St Peter, who says, ‘*Subditi, estote regi quasi præcellenti sive ducibus tanquam ab eo missis ad vindictam malefactorum, laudem vero bonorum quia hæc est voluntas Dei.*’ These words appear to me of no weight in the present case; for it would seem that the Apostle would not that any duke should have dominion over a whole kingdom, but solely in his own country: otherwise it would follow

that Brittany, Berry, and the other duchies within the realm, should obey the duke of Burgundy.—The advocate has, therefore, wrongfully perverted the holy Scripture to his purpose.

‘His third reason is drawn from what Sabellicus says, in the fifteenth chapter of his third book, ‘*Tyranno licet adulari quem licet occidere.*’ That is to say, It is lawful to flatter and deceive a tyrant who may legally be put to death; but Sabellicus here speaks of such as have been proven and known for tyrants.

‘The fourth reason is founded on what Aristotle says, in his book on the government of cities, That it is lawful, and even praiseworthy, to slay a tyrant. But Aristotle alludes to a public tyrant; and such was not my lord of Orleans, as I have before shown.

‘The fifth reason is grounded on the praise Tully, in his book ‘*de Officiis*,’ gives to those who killed Cæsar. To this I reply, that although Tully was a man of great ability, he here speaks as an ill-wisher to Cæsar; for he was always of the party, and supported the cause of Pompey the rival and adversary to Cæsar,—and Cæsar perpetrated many deeds which my lord of Orleans never thought of.

‘The sixth reason is grounded on what is said in the sixth chapter of the second book of the Misfortunes of great Men: ‘*Res est valde meritoria occidere tyrannum.*’ To this I answer, That it must apply only in cases where no other remedy can be had; and the conduct of our opponent has been illegal and wicked.

‘The seventh and two following reasons are founded on the civil laws, which declare there are three sorts of men who may lawfully be put to death,—namely, such as disgrace their knighthood, highway robbers, and housebreakers found during the night within any dwelling. Now my lord of Orleans cannot be included with any one of the above three classes. He was ever attended by a noble body of chivalry, and was fond of it beyond measure. And in regard to the two other cases, I maintain that the law does not command such to be slain except when the danger is most inevitable. They can in no wise be applicable to my lord of Orleans, who, thank God, was no waylayer on the high roads, nor a housebreaker; and there is no law in the world that can excuse our adversary.

‘The example of Moses, who slew an Egyptian without any authority, is produced to support the tenth reason. To this I say, according to the opinion of St Austin and many other doctors, that Moses sinned in killing the Egyptian; and although Moses and St Peter both acted contrary to the rules of justice, their cases are not similar,—for Moses was a Hebrew, and noticing an unbeliever moving towards his brother, to slay him, put him to death to prevent him from so doing.

‘The eleventh reason is grounded on the instance of Phineas, who slew Zambry without orders, and not only remained unpunished, but was remunerated for it. Thomas Aquinas says, in exculpation of this act, that he did it as a teacher of the law, for he was the son of the high priest, and, on this account, had power and public authority. This is also inapplicable to the question before us, as history will show.

‘The twelfth reason is founded on Saint Michael having slain Lucifer without the Divine command. For this he was rewarded with riches and power, as our opponent says. To this I reply, That St Michael did not slay Lucifer,—and the assertion that he did so is deserving only of derision; for the slaying of Lucifer is nothing more than the deprivation of the Divine grace, and of the sovereign glory of paradise, whence he was cast out by God for his inordinate pride. O, my lords! in what book has this advocate learned such theology? I am confounded at the boldness of his assertions, for there is not certainly any book in which it can be found. On the contrary, we see in the epistle of St Jude, that St Michael dared not to rail against Lucifer, although he had power over him, nor command him to do any thing; but he only said, ‘Our Lord commands thee;’ and thus it clearly appears, that the arguments which our adversary has produced are no way applicable to his case, nor can they serve to justify his disloyal and treacherous act.

‘I repeat, that such murders as the above, which our opponent has brought forward, are not of any consequence as examples; for many things have been suffered, that are mentioned in the Old Testament, which are now forbidden. As for instance, Samuel, as a churchman, put to death the king Amalech,—but at this day it is not lawful for a churchman to commit such crimes. To Moses was given the power of repudiation from the marriage-vow, which is now forbidden. The doctrine, therefore, which is here attempted, and the examples quoted to palliate and even justify this

atrocious crime, cannot be supported; and truly princes would be in constant dread of death, if this deed go unpunished,—for should any evil report be spread abroad of them, some one of their subjects might take it into his head to punish them himself for it.

‘O, princes! consider well, that if such doctrines are supported, any man may say, ‘I also may kill him as such a one did.’ You will therefore be pleased to condemn this false doctrine as dangerous, seditious and abominable. Our adversary, and all those of his party, may then say with Jeremiah, in his twentieth chapter, ‘Confundantur vehementer qui non intellexerunt opprobrium sempiternum quod nunquam delebitur.’

‘The second argument is founded upon this consideration, that the cruel death of the duke of Orleans was not accomplished according to the way of justice; and supposing our adversary had the right to inflict it, he was, notwithstanding, bound to do so according to the forms of law, by information, and on the testimony of irreproachable witnesses. But he no way followed this course; for he first kills the duke of Orleans, and then seeks for reasons to exculpate himself for so doing. O, God! what a trial, and what a judge!! O, justice! do thy duty; and what thou owest to thyself, defend thy own cause against one who seeks to reduce thee to nothing. In truth, every law ordains that causes should be first tried, and sentences examined, before they are put into execution; and to this purpose Julius Cæsar, according to what Sallust relates, said, That when judges shall put men to death before they be condemned, the greatest evils may arise, and no man live in security. He brings, as an example, the Lacedemonians, who, after their victory over the Athenians, constituted thirty persons to govern the public state, who put to death numbers without any previous trial, which caused great misfortunes.

‘The like will befall us, if such crimes are suffered to go unpunished. Sallust tells us, that when Cataline and his associates were intending to burn the city of Rome and murder its senators, Tully was then consul; but although he was fully acquainted with the plot, he did not cause one of the conspirators to be put to death until he had fully proved their guilt. Now, my lords, as I have fully and clearly proved the heinousness of the crime with which I have charged the duke of Burgundy; and as it was done contrary to all law and justice, I trust it will not remain unpunished,

according to the words of our Lord by the prophet Isaiah, in his 47th chap.:
'Videbitur opprobrium tuum, ultionem capiam, et non resistet mihi homo.'

'My third argument is grounded on our adversary's having entered into the strongest possible alliance with the duke of Orleans, in the presence of many of their dependants; and a twelvemonth prior to the murder of the above duke this alliance was renewed before several prelates, nobles, clergymen and counsellors of each side, when the two dukes swore on the crucifix, with the holy evangelists in their hands, to the due and faithful observance of it, promising, on the salvation of their souls, and by their honour, that henceforward they would be to each other as brothers and companions in arms, engaging to reveal mutually any evil designs that might be plotted or meditated against their persons or interests. They then agreed to wear each other's badge, which was done. And at the last feast at Compiègne, for the greater confirmation of the above, my lord of Orleans and our adversary made many of their knights and dependants alternately swear, that they would loyally and truly abide by and support the bonds of friendship entered into between them, through love and attachment to their persons,—and would make known to each party any thing that should be imagined against their persons or estate.

'Moreover, my lord of Orleans and our adversary entered into other private engagements, promising and swearing on the true cross, that they would mutually defend and guard each other's person and honour against all who should attack them. This agreement was signed with their own hands and seals.

'What now, O duke of Burgundy! canst thou say to these things? Who now can put any confidence in thee? for thou canst not deny the above alliance, as there are many witnesses to it now living: thou hast been publicly seen by the whole city wearing the badge of the duke of Orleans.

'How did my late lord act? Certainly in no way hurtful to our opponent; for from that time no reproachful or angry words passed between them, that could any how be ill interpreted. It is plain, therefore, that our adversary has wickedly and treacherously put to death him who had the fullest confidence in his honour.

'O duke! what reply canst thou make to this? Shouldst thou say, that thou didst cause him to be put to death on account of the wickedness which thou

hast by thy command caused to be imputed to him,—say, then, why thou enteredst into any alliance or bonds of friendship with such an infamous traitor as thou hast had him painted. Thou knowest, that loyal men will never form a friendship with traitors. Thou sayest, that the duke of Orleans was a traitor to his king: thou therefore makest thyself a traitor by the act of forming an alliance with him.

‘Thou hast accused my lord of Orleans of having made an alliance with Henry of Lancaster: what wilt thou say to the alliances thou thyself afterward enteredst into with the duke of Orleans. If these things had happened after thy alliance with my late lord, thou wouldst have had some colour to have broken with him, although even this would have been barely sufficient; but thou knowest well that thou hast not alledged any thing against him, in thy scandalous libel, posterior to these alliances.

‘O, abominable treason! what can be offered in thy excuse? O ye knights, who consider honour as your judge! God will never suffer you to approve of such deeds.

‘O, duke of Burgundy! thou hast frequently visited the duke of Orleans, when alive: thou hast eaten and drank with him: thou hast even taken spices out of the same dish with him, in token of friendship. In short, on the Tuesday preceding his death, he most kindly invited thee to dine with him the Sunday following, which thou promisedst to do in the presence of my lord of Berry, now here. Assuredly my lord of Orleans might have quoted the words of JESUS CHRIST to the traitor Judas, ‘*Qui mittit manum mecum in paropside, hic me tradet.*’

‘O, my lords! weigh well this treason, and apply a remedy to it. Consider how strongly the faith and loyalty of chivalry should be guarded and the words of Vegetius, when speaking of chivalry, ‘*Milites jurata sua omnia custodiant.*’ To the observance of this, all princes are bound,—for he who shall disgrace his loyalty or honour is unworthy of being called a knight.

‘My fourth argument is founded on this consideration, that the death of my late lord, the duke of Orleans, was damnable and disloyal,—and any one who should maintain or assert the contrary would not be a good Christian. We see that the secular justice allows to malefactors time for repentance,—but thou, cruel adversary! thou hast caused my lord so suddenly to be put to death that, inasmuch as in thee lay, he died without repenting of his sins. It

seems, therefore, that thou hast exerted all thy influence to procure the eternal damnation of his soul when thou destroyedst his body; and most assuredly thou wilt find great difficulty to make thy peace with God,—for insomuch as thou believest him the greater sinner, so much the more need had he, as thou mayst suppose, of a fuller and longer repentance.—It follows, then, that thou hast deprived him, to the utmost of thy power, of any possibility of repentance,—and consequently thy sin becomes the more grievous and inexcuseable, more especially as my lord was no way expecting to die when he was thus suddenly and cruelly cut off.—Nevertheless, I trust that our Lord may have granted that he died in his grace; and I the more readily believe it, inasmuch as, a short time before this sad event, he had most devoutly confessed himself.

‘I repeat, that it is the deed of a wicked Christian thus to put a man to death; and whoever may say the contrary, or maintain that it is meritorious, I tell him, that he speaks wickedly and erroneously, according to the theologians.

‘Hear, my lords, and consider the conduct of our adversary after the death of the duke of Orleans,—how on the Thursday following his murder, clothed in black, and with tears and every sign of grief, he accompanied the dead body from the church of the Guillemins to that of the Celestins! Weigh well, my lords, this treachery and dissimulation! O Lord God, what tears and groans!!! O, Earth! how couldst thou bear such wickedness? Open thy mouth, and swallow up all who commit such dreadful sins.

‘Recollect, that on the ensuing Friday, at the hôtel of the duke of Berry, in his presence and in that of the king of Sicily, our adversary advanced towards the servants of the late duke of Orleans, entreating them to make every inquiry after the author of this murder, and begging them to recommend him to the duchess of Orleans and to her children: then the three noble persons having conferred together, the duke of Berry declared the request was proper, and that they would exert themselves as much as possible to discover the person who had committed this atrocious act.

‘O, duke of Burgundy! thou promisedst to do this, by the mouth of my lord of Berry, whereas thou didst the worst thou could; for, not satisfied with having caused the murder of his body, thou seekest to destroy the reputation of the defunct. Thou promisedst to seek most diligently after the murderer, while thou knewest it was thyself that wast the criminal.

‘Now, my lords, consider well, that after a resolution had been taken to seek after the author of this crime, our adversary, the duke of Burgundy, conscious of his guilt, confessed that it was he who had caused the death of the duke of Orleans. When he made this confession on his knees to the king and my lord the duke of Berry, he affirmed, that what he had done was by the instigation of the devil; and certainly in this instance he spoke the truth, for he was urged to it by jealousy and ambition.

‘O, my lords! weigh well this confession, and how our adversary contradicts himself,—for when he first confessed his guilt, he said he had been instigated to it by the devil; but afterward he commands it to be argued, that he committed so atrocious a deed legally and justifiably. If he feel no shame for his wickedness, he ought at least to be sensible of his thus meanly contradicting himself. Consider also, that he was desirous of concealing his crime; and God knows, that if his deed had been of that worth as has been advanced for him, he would have gloried in having so done, and not have wished to remain undiscovered as the perpetrator. And why did he own his guilt? Because it could no longer be concealed. That this was the cause is apparent; for when he perceived that it must be known, he fled most precipitately from Paris, like to one in despair. He might have said, with Judas the traitor, ‘*Peccavi tradens sanguinem justum.*’

‘O Philip, duke of Burgundy! wert thou now alive, thou wouldst not have approved the conduct of our adversary, but wouldst have said thy son had degenerated. Thou wert surnamed The Bold,—but he was always fearful and suspicious, consequently a traitor. Thou mightst have truly applied to him what is written in the fifth chapter of the Acts of the Apostles, ‘*Cur temptavit sathanas cor tuum mentiri te Spiritui Sancto? non es mentitus hominibus sed Deo.*’

‘My fifth argument is grounded on the falsehood of the declarations of our opponent, that he had caused the death of the duke of Orleans with the purest intentions; for, on the contrary, he committed this crime through lust of power, and to gain greater authority over the kingdom, and also to possess himself of the royal treasury, that he might more largely gratify and increase his dependants. This is evident from the conduct of our adversary before and after the death of the duke of Orleans.

‘It is a truth, that shortly after the death of his father the duke of Burgundy, he exerted himself to the utmost to obtain similar power in this realm, and with the same pensions and authority as his late father had enjoyed. But this was not granted to him, because his father had been uncle to the king, and was a man of great prudence and understanding, qualities not possessed by our adversary.

‘Having been disappointed, he instantly began to practise how he could better obtain his object; and for this end, prior to the death of the duke of Orleans, he caused reports to be circulated throughout the kingdom of his affection to the public weal, and that he alone was the fittest person to govern it. When he perceived, that in spite of his fictions, the duke of Orleans still possessed the authority he was panting for, because he was the son of a king, and the only brother to the king, and more fit for the government than the duke of Burgundy,—seeing, therefore, all his plans frustrated, he conspired to take away the life of the duke of Orleans, expecting that when he should be made away with, no other person would dare to dispute his having the sole government of the kingdom.

‘This is the principal cause of so barbarous a murder, notwithstanding the arguments that have been urged in his excuse, as is well known to all. His conduct, likewise, after the death of my late lord of Orleans, confirms it; for instantly, on his return to Paris, he began to push forward those that were his dependants and supporters, by depriving many valiant and deserving men of places which they held under the king, without any other cause but that they had been appointed to them by my lord of Orleans, as others had been, and giving their offices to such as he pleased, in order to gain more authority and power. He also endeavoured to make all placemen, particularly those who had the management of the royal treasury, subservient to him, that they might not refuse him any thing.

‘Our adversary was most anxious to have the government of the treasury, and obtained from it the sum of two hundred thousand livres, by warrants thereon, or otherwise, great part of which he distributed among his people, as is well known to the clerks of the treasury; and this was his principal object in putting to death his rival in power, my late lord of Orleans, namely, covetousness of the king’s money, and to give it away and enrich his followers. It appears, therefore, that covetousness and pride have been the springs of his actions; but, please God, he shall not in this instance

profit from them,—and the words of Job, in his seventh chapter, shall be verified, ‘Cum habuerit quod cupierit, possidere non poterit.’

‘My sixth and last argument is founded on the conduct of our adversary, who, not satisfied with having murdered the late duke of Orleans, attempts, in conjunction with his followers, to deprive him of his good fame and renown, by defamatory libels, wherein he groundlessly and falsely charges him with the crimes of divine and human high treason, of which he was perfectly innocent, as has been, and shall be again demonstrated.

‘It may be said, that this justification is even more scandalous than the fact itself; for to fall into sin is the lot of humanity, but obstinately to persevere in it is diabolical. And this manner of justifying murder is the defence of his own sin, and daring to do what God hates: he follows not the example of David when he said, ‘Non declines cor meum in verba maliciæ ad excusandas excusationes in peccatis.’

‘I come now to my third division, in which I shall reply to the defamatory libel, and to the accusations therein, that were made by our adversary against the character of my late lord of Orleans. I may fairly quote the words of the Psalmist, on the part of my late lord, ‘Judica me Domine secundum justitiam meam, et secundum innocentiam meam super me.’ This request the Psalmist makes to God, and such a request, O king! does the duchess of Orleans now make to thee, as she requires nothing but judgment and justice. May it please thee to listen to the answers of my lady of Orleans to the six charges brought against her late lord, and thou wilt then judge whether he has not been unjustly accused.

‘The first charge brought against the late duke of Orleans by the advocate of the duke of Burgundy is, That during his lifetime he committed the crime of high treason in the highest degree, by his idolatrous conduct in witchcrafts and sorceries, contrary to the Christian faith and the honour of God. It is true, that in regard to this accusation, the advocate did not pursue it very far, saying, that the judgment of such crimes belonged to God, the sovereign Lord,—meaning, that no human judge was competent to it.

‘When making this charge, he spoke of an apostate monk and several sorcerers, in whom my late lord of Orleans put confidence, according to his allegations. I shall scarcely offer any reply to this accusation, but, in like manner as he has done, refer the whole to the judgment of God. It will be

sufficient for me to show, in the first place, That my late lord of Orleans was a good and true Christian; that he never committed any sorceries or idolatries, nor ever departed from the faith of JESUS CHRIST.

‘I may likewise add, That from his youth upward, he was of a religious turn of mind,—for, notwithstanding his fondness for amusements, his reliance was in God, to whom he very often confessed himself. Nay, the very Saturday preceding his death, he had most devoutly confessed himself, with many signs of contrition, declaring he would not longer follow youthful pastimes, but solely devote himself to the service of God, and to that of the public welfare. That I may not be suspected of uttering falsehoods, many religious as well as others, are now alive, to whom he had made such declarations; and, without saying more, let his uncle the duke of Bourbon be heard, who knows what promises he made to God,—for a little before his decease, he assured him, that henceforward his conduct should be such as to merit the approbation of God and mankind, and that all the inhabitants of this kingdom should be bound to pray for him.

‘I know not if our adversary had heard of these wise declarations, or whether he was afraid of their being effected, as they were quite in opposition to his wish for the government; for he well knew that if my lord of Orleans should act as he had said he would, his authority in the kingdom would have been very small indeed. It may therefore be presumed, it was for this that he was so eager to have my lord of Orleans put to death.

‘O, Lord God! thou knowest how well he was inclined toward thee at the time of his being murdered, which gives me confidence in his salvation; for the holy Scripture says, ‘*Justus si morte præoccupatus fuerit in refrigerio erit.*’ It is, however, evident, that our adversary did all he could to destroy his soul, and afterward heard mass most devoutly in appearance, putting what had passed out of his thoughts, and daily saying his canonical prayers.

‘O, duke of Burgundy! why hast thou done all this through hypocrisy and fiction? Who has revealed to thee the secrets of hearts? and who has made thee the judge of men’s thoughts? Thou resemblest the Pharisees, who called CHRIST a deceiver and posset of a devil! Thou knowest, that even angels are ignorant of the secrets of our hearts, and yet thou pretendest to judge them! O! how well does the Psalmist exclaim, ‘*Tu solus es scrutans renes et corda!*’

‘It is notorious, that my late lord founded many masses and private chapels, doing much service to the church: let then his last will, so devoutly written, be considered with what I have before said, and any one may decide whether he was an idolater or sorcerer. It is true, indeed, that the advocate for our adversary refers to the judgment of God all that respects divine high treason, saying that he will not make this an especial charge against the late duke of Orleans.

‘But I now ask why he thus acts? Because he knows the charge is groundless, and that in many places human judges may and do punish sorcerers and idolaters according to their power; and that numbers have for these crimes been condemned to death, because they were bad Christians, and that from such errors of the faith proceed heresies. It is written in the second book of Kings, that Josias killed and extirpated diviners and sorcerers; and in the tenth chapter of Zacharias, ‘*Divini viderunt mendacium et somniatores locuti sunt frustra.*’ It is also written in the nineteenth chapter of Leviticus, ‘*Ne declinetis ad magos, nec ab ariolis aliquid sciscitemini.*’

‘The reason why the advocate passed so rapidly over this charge was, that he knew nothing against my lord of Orleans that could prove him a bad Christian, or that he was not firm in his belief of religion. O, lord king! my lady of Orleans supplicates thee, that the words of Job, in the twenty-second chapter, may be verified,—‘*Salvabitur innocens in munditia manuum suarum.*’

‘The second accusation was, That my lord of Orleans favoured the schism in the church, by affording aid to Pietro della Luna, formerly called Pope Benedict, and was consequently guilty of high treason in the second degree. In reply, I say, that my lord of Orleans gave no aid nor showed any favour, but with the laudable end of making an honourable peace in the church, and particularly when he considered Benedict as the true pope. It is well known, that our obedience to the church would have been brought about more to our honour if Pietro della Luna had done his duty, by yielding up his claims, for the union of the church, than by violently supporting them. My lord of Orleans may have said, it will be better to wait a little, for the above Pietro to send in his cession, than by hurrying make affairs worse. In this there could not be any evil intentions; for it is a fact, that he was anxious for the union of the church, and believed firmly that Pietro della Luna was willing

to abdicate his claims, whenever the roman pontiff should be ready to do the same.

‘Many are now living who have heard the duke swear, that if he knew Pietro della Luna was unwilling to yield up his pretensions, when the other pope should resign his, he would be the bitterest enemy he had in the world; and should it be thought necessary, they are ready to prove it. Now let us consider what advantage the division of the church could be of to him. He was wise enough to see all the evils that flowed from it, and not so weak as to found confidence on a man so old as Pietro della Luna. He knew, besides, that by the union of the church more spiritual and temporal advantages would fall to the share of himself and friends, without comparison, than if the schism were continued.

‘To show more evidently the earnest desire my lord of Orleans had for an union of the church, I will mention a proposal which he made to the university of Paris three weeks before his death. When he perceived that the roman pontiff would neither come to Genoa nor Savoy, nor accept as hostages those who had been presented to him by the mareschal de Boucicaut, and that nothing else prevented the union of the church, for Pietro della Luna was ready to go to either of these places, he addressed the following speech to the members of the university: ‘O rector, and you all my good friends! see I pray ye that we may shortly, through the grace of God, restore peace to the church, and may give satisfactory security, that the roman pope may come to Genoa. I have offered him the choice of one of my sons, as his hostage, and am ready to send him, at my own expense, to Venice, or elsewhere. Write, therefore, such letters as you shall think proper to him, and I will sign them. Tell what I have said to the whole university, and bring me their opinions on it.’

‘The heads of the university thanked him very warmly for his offer,—adding, that he could not make a more generous proposal, and that he had demonstrated by it the affection he bore to the church. There are persons still living whom he had ordered to go to Rome and Venice to give notice of the offer he had made. Now, my lords, could he have done more than to give his own flesh and blood for an hostage? And our witnesses of this act are neither weak nor ignorant persons, but doctors and professors of theology.

‘O, duke of Burgundy! this will show to thee how false has been thy accusation; and on this charge thou oughtest to have been silent, knowing as thou must how anxious thou wert to acquire the friendship of Pietro della Luna. At the time when Pietro was in the greatest disgrace, thou didst write and send to him to obtain bishopricks and other preferments for thy dependants; and thy messengers were not pages nor common persons, but the guardian of thy soul, namely, thy confessor, that he might the more clearly and securely explain thy meaning.

‘It was also said, that my lord of Orleans consented to the malicious excommunication sent by Pietro della Luna to induce the king to continue his obedience to him. Now it is quite clear that this wicked excommunication carries no effect against Pietro della Luna, except in case the king should become disobedient, and that he had given his consent to the said excommunication, which, as has been said, was to have no effect, except in case of renunciation of allegiance or disobedience. It is certain that Pietro della Luna was of a temper obstinate enough to do such things, and that he acted thus without consulting any one, and as certain that my lord of Orleans was unfavourable to this act,—for it was not put in force until after his death.

‘Weigh, at the same time, my lords, the misconduct of our adversary, and the innocence of the duke of Orleans, who may say with the Psalmist, ‘*Os peccatoris et os dolosi super me apertum est, locuti sunt adversum me lingua dolosa, et sermonibus odii circumdederunt me.*’

‘The third charge of our adversary is, that my late lord of Orleans practised different means to cause the death of his prince and lord, the king of France: first, as it is said, by sorceries, witchcrafts and superstitions;—secondly, by poisons;—thirdly, by fire, water, or other violent injections, which consequently inculpates my lord of Orleans in the crime of human high treason, in the person of the king our lord.

‘In regard to the first part of the charge relative to poison, supposed to be administered by a monk under the forms of a sword, a buckler, a ring, or a wand,—and that, to accomplish this, my lord of Orleans had sent for this monk, a knight, an esquire and a varlet, to whom, our adversary says, he gave large sums of money,—all this I deny as absolute falsehoods, for my said lord of Orleans never consented to sorceries or such forbidden deeds.

‘Should this monk have done such sorceries, it was no way through the exhortation of my lord of Orleans, nor ought this to have been so lightly alledged against him,—for there was a long trial held of this monk before the ministers of the king, from whom the truth may be known. It was then discovered by the confession of the monk, that my lord had forbidden him to use any magic arts that would any way prove to the prejudice of the king’s person; and God knows, if there had been any truth in the charge, it would not have been concealed until after my lord’s death.

‘By this, the falsehood of the accusation is evident; and although my foresaid lord may have at times held some conversation with this monk, let it be remembered that he was then young, not more than eighteen years old, and that princes of that age are frequently deceived by artful talkers, to gain money from them.

‘With respect to the bone wrapped up in a small linen bag which he wore between his shirt and skin, as our adversary says, until it was torn from him by a knight, whom he hated ever after, and continued to persecute until he had ruined him in his fortune, and procured his banishment out of the realm,—this is most assuredly false; for the knight was banished the kingdom by sentence of the courts of justice for a very notorious cause, and this odious circumstance was never mentioned but by this knight who published it, and who, according to our adversary, was suspected of hatred to the duke of Orleans, and consequently not a competent witness to be admitted against the defunct.

‘Consider, my lords, what falsehoods are contained in the accusations of our adversary, and that such as read his libel must be deceived. It behoves, therefore, the reverend professors of theology to correct it as soon as possible, for they know that such libels ought not to be written nor published; but the most marvellous circumstance of all is, that this libel and these falsehoods have been suffered and made public by a theologian in the presence of the king’s majesty.

‘We are at present in a similar situation to that in which Saint Austin represents the companion of the physician and astrologer disputing on twin children, the one fat and the other lean. The astrologer attributing the difference to the ascendancy of the stars,—the physician declaring, that the fat one received the soul first, and, being the strongest, sucked nearly the

whole of the food,—which ought to be believed? The physician, certainly, as St Austin says. We, in like manner, may give greater credit to the faculty of medicine in this manner than to the faculty of theology: the professor has very foolishly argued his case.

‘O, most merciful God! apply a remedy to this, for thou seest theologians affirm that sorcerers may succeed in their incantations; and it is erring against the holy Scriptures to say, that sorcerers are others than liars. And the wise Solomon makes this answer to those who asserted similar errors, in the 33d chapter of Ecclesiasticus,—‘*Quod divinatio erroris, et arguta mendacia et somnia maleficiorum vanitas est.*’ Thomas Aquinas quotes this authority to prove that sorcerers cannot succeed.

‘O, thou university of Paris! please to correct thyself; for such absurd sciences are not only forbidden, as being contrary to the honour of God, but as containing nothing true, which is confirmed by the workers of magic.

‘Ovid says, in his book, ‘*De Remedia Amoris,*’

‘*Fallitur Hermionæ si quis mala pabula terræ:
Et magicas artes posse juvare putat.*’

‘Master John de Bar, who was very expert in this accursed art, and who was burnt, with all his books, declared, at his last confession, that the devil never appeared to him, and that his invocations and sorceries never succeeded, although many said the contrary. He added, that he had practised this art to obtain money from persons of high rank. It is therefore most strange to charge the duke of Orleans with such vain and foolish sorceries, as there never was a man who hated them more, or who persecuted such as practised them with greater rigour.

‘Every one knows that my late lord was the principal cause of the trial of John de Bar and of two augustan friars, before the king’s council and clergy summoned for this purpose, and were in consequence executed for their evil deeds.

‘With regard to what the advocate for our opponent says, that the late lord of Milan only gave his daughter to the duke of Orleans in the hope of her being queen of France; and that, on her taking leave of him, he should say, ‘*Adieu! my child: I never wish to see thee again but as queen of France.*’

This is absolutely false; for my lord of Milan was in treaty with the duke of Gueldres, brother to the king of the Romans, to marry his daughter: ambassadors were even on their road to Milan to conclude the match, when Bertrand Gaad, at that time tutor to the count de Vertus, was sent by the king and the dukes of Berry and Burgundy, (whose soul may God receive!) to propose the alliance of the duke of Orleans.

‘The lord of Milan, preferring the honour of a connexion with France, consented to give his daughter to the duke of Orleans, ceased to treat with the duke of Gueldres, and recalled the ambassadors he had sent to him. As to the words the lord of Milan has been supposed to address to his daughter on her taking leave of him, they are also false,—for he left Pavia without seeing or speaking to her, because he could not have done either without weeping. The advocate for our adversary utters another falsehood, when he says, that the lord of Milan expressed his astonishment to a french knight, on his telling him the king of France was in good health, replying, ‘Thou sayest, that the king of France is in good health: how can that possibly be?’ My lord of Milan is too reserved ever to have held such a conversation; and it is well known to many now alive, that my lord of Milan loved the king of France above all other princes, and was very much attached to his family. This he always testified by the honours and presents he lavished on ambassadors and nobles of France, who travelled through his country, all from his respect to the king and his royal blood.

‘With regard to the history of that gallant man, sir Philip de Mezieres, whom the advocate has most scandalously defamed,—it is true, that when sir Philip came from Cyprus, king Charles, whom God pardon! retained him, and made him his chamberlain. After the death of the king, sir Philip put on the humble dress of a monk, in the church of the Celestins, where he devoutly remained until his death. The late duke of Burgundy had a friendship for the lord of Milan, and, perceiving sir Philip to be a man of ability and prowess, sent him to Milan to propose a croisade to the holy land: the lord of Milan received him honourably, and willingly listened to all he had to say.

‘Before that time, sir Philip had never resided in Milan, nor had any connexion with the lord Bernabo, uncle to the present lord. Sir Philip had left Milan very long before any mention was made of the marriage of the

duke of Orleans with the present duchess, which clearly proves how ill founded have been the imputations of our adversary.

‘Another infamous falsehood has been boldly advanced, namely, that my lord of Orleans, seeing he could not compass the king’s death by sorceries, practised other means to accomplish it, that he might succeed to the crown of France, by promising to one man four thousand francs, to another five thousand, to make up and administer different poisons,—and that some accepted his offers, and others refused them. Most assuredly, if there had been such loyal persons as to refuse these great sums of money, they would not have hesitated to reveal the matter, that it might be inquired into and punished; but as they have not done so, we may safely conclude the assertion is false.

‘Our adversary has alledged, that at a dinner at the queen’s palace, the duke of Orleans threw some powder over the king’s dish. This may be proved to be false, for no mention was made during the dinner of any such act,—for it is clear, that if the queen had observed any thing of the sort at her dinner, she would have denounced it to the servants and family of the king, otherwise she would not have been loyal.

‘As to the story of the queen’s almoner, which our adversary has brought forward,—namely, his falling down dead and losing his hair and nails,—it is notoriously false, for he lived five or six years after the time when he was supposed thus suddenly to die. I may therefore apply to our opponent the words of the prophet Jeremiah, in his seventh chapter, ‘*Ecce vos confiditis in sermonibus mendacii, sed non proderunt vobis.*’

‘Our adversary next advances, that my lord of Orleans, finding he could not destroy the king by poisons or sorceries, attempted to do it by fire and other means; that my lord of Orleans, in consequence, proposed a masquerade dance of persons dressed as savages, in cloth covered with pitch and tow, and other inflammable materials,—among the number of whom was the king,—and that the duke of Orleans caused his dress to be made too tight, that he might be excused from being of the party. Our adversary adds, that when one of the king’s servants was warning him of the danger that might ensue from such dresses, the duke of Orleans was greatly enraged and gave him much abusive language: in short, that my lord of Orleans set fire to the king’s dress, who was in the utmost peril of death, had not God, and certain

ladies by their exertions, prevented it.—Now, in answer to this heavy charge, I shall reply, that my lord of Orleans did not provide the dresses, nor could he then have known where to have sought for them.

‘The dukes of Berry and Burgundy, lately deceased, well knew who were the proposers of this dance, and that it was not the duke of Orleans. Had he been the author of it, he would not have escaped death, or very great blame, considering the commotion it caused, for he had then scarcely any power. As to what our adversary says, that the dress of the duke of Orleans was purposely made too tight, there is not the smallest appearance of truth in it, for at that time the duke was the thinnest of the company.

‘It is true, that my lord of Orleans and the lord Philip de Bar had gone before the commencement of this ball to visit the lady of Clermont, who had not come to the wedding held at the hôtel de St Pol, for which this entertainment was given, and on their return they found all the dresses had been made use of. This was the sole cause why the duke of Orleans was not dressed to make one of the party.

‘It is an infamous lie to say, as our opponent has done, that the duke of Orleans wished to burn the king our lord; for the duke and the lord Philip de Bar intended dressing themselves in these clothes, and, without thinking or intending any ill, they both told Peter de Navarre to set fire to the dresses of the savages, that when on fire they might run among the ladies to frighten them. Peter de Navarre is living, and he can prove the truth of this to the king. Let us suppose, that in this youthful frolic, my lord of Orleans should have set fire to one of the dresses, as he had ordered the same to be done to all, it is not credible that it could have been done through malice or evil intentions. It is then apparent, that what our adversary has asserted is a lie; and I comfort myself with the words of the prophet,—‘Perdes omnes qui loquuntur mendacium,’—and in the 20th chapter of Proverbs, ‘Qui profert mendacia peribit.’

‘As to the alliances which our opponent says the duke of Orleans entered into with Henry of Lancaster, at present calling himself king of England, to the prejudice of the king and realm, and colouring his assertion by adding, that Richard, late king of England, had assured the king of France, that his infirmities were solely owing to the machinations of the dukes of Milan and Orleans,—I answer, that they are wicked falsehoods; for when Henry of

Lancaster came to France, he was most honourably received by the princes of the royal family as their relation, and frequented the company of the duke of Orleans and others of the blood royal as of their kindred, when, as a friend to the king, he formed an alliance with the duke of Orleans publicly, and in the presence of the king and princes of the blood, which at the time was considered as perfectly lawful, and for the good of the kingdom. This plainly shows, that my lord of Orleans had made no alliance against king Richard; but what is more, at the treaty of marriage of the king's daughter, now duchess of Orleans, with king Richard, the duke of Orleans and king Richard formed an alliance similar to that which the latter had formed with the king of France.

‘After this, my lord of Orleans went to Calais, where he was most amicably received by king Richard as a very dear brother. In addition, when king Richard died, the duke of Orleans showed great grief for it, and made an enemy of king Henry of Lancaster, by the challenges he sent him, accusing him of being guilty of the crime of high treason against his sovereign lord king Richard, offering to fight the said king Henry, in revenge for the death of Richard, either in single combat, or with any number of persons he might choose.

‘These and many more circumstances can be brought forward to prove that my lord of Orleans had a strong affection for king Richard, from his alliance by marriage with the king of France, and that he hated king Henry for having laid hands on his sovereign.

‘There is not more truth in what our adversary has advanced, that my lord of Orleans, when with Pietro della Luna, exerted himself to obtain bulls to the prejudice of the king and his family, and on this account always favoured the said Pietro; for at that time my lord of Orleans had procured with this Pietro, then called Benedict, a very advantageous alliance for the king of France, by which he engaged to support the king and his family by every means in his power, as may be seen in the bulls issued to this effect. It is therefore very extraordinary, that any man endowed with common sense should have asserted publicly things that are evidently false.

‘As to what our adversary says, that my lord of Orleans supported Pietro della Luna, I have before answered it; and my lord proposed himself, that if

the two rival popes did not speedily agree to send commissioners to the council, France should withdraw itself from their obedience.

‘This was more displeasing to Pietro della Luna than any thing that had been done in this kingdom relative to church-affairs, and is not a sign that my lord of Orleans was desirous of retarding an union of the church in favour of Pietro della Luna. It is therefore evident, that the duke of Orleans is innocent of the charges that have been brought against him.

‘O, lord king! may it please thee to guard his innocence by means of thy justice, according as it is written in the 13th chapter of Job, ‘*Justitia custodit innocentis viam.*’

‘The fourth accusation of our adversary is, That for the space of three whole years my lord of Orleans, by his artful and deceitful tales, and advice to the queen, attempted to prevail on her to quit the kingdom, with her children, and reside in the county of Luxembourg, that he might enjoy greater power in the government of the realm. So far is this charge from being true, that my lord of Orleans did every thing in his power to honour and support the queen during the melancholy illness of the king, of which it does not become me to say more, for, thanks to God, she is now present, and knows full well the truth of this, and which she may more fully declare whenever it may be her good pleasure so to do. I do not, however, know that she made any complaints on this subject to our adversary, or to any other persons. I believe the contrary, to this charge of our opponent, will be found to be the truth; and that it has been purposely brought forward to defame the reputation of the deceased.

‘The fifth accusation is, That my lord of Orleans committed the crime of high treason in the third degree, on the person of my lord the dauphin, whose soul may God pardon! by compassing his death by means of a poisoned apple given to a child, from whom one of the nurses of the children of the duke of Orleans took it by force, and gave it to one of the children of the duke of Orleans, and caused its death, as well as that of the dauphin, who also ate of it.

‘This is an absolute falsehood. True it is, that one of the duke of Orleans’ children died about the time when this fact was supposed to have taken place, of a bowel complaint, which was then very prevalent, and carried off many others. Let the physicians, master William le Boucher and master

John de Beaumont, be examined, who visited this child, and they will declare the truth, that it did not die of poison.

‘Consider, my lords, the improbability of a nurse of the children of the duke of Orleans daring to give an apple or pear to any of them without the express orders of the duchess of Orleans; and that when the nurse went to these gardens with the child she was accompanied by several women of character, who would not have suffered her to give it an apple, or any suchlike thing.

‘O most noble and well-beloved duke of Aquitaine! while young, learn to love justice, and act like Solomon. Consider the evils that may happen unless justice be observed; and if thou neglectest it, thou wilt not love thy brothers, for they will be in danger of death if the doctrines of our adversary be not checked. The prophet says, *‘Justitiæ Domini rectæ lætificantes corda.’*

‘The sixth crime alledged against the duke of Orleans is, That he committed high treason in the fourth degree, by ruining the king in his finances, and by oppressing the people with intolerable taxes, and quartering large bodies of men at arms in various parts of the country. My lords, it is very astonishing that our adversary should have made this charge; for it is notorious to every one, that these taxes were not levied in this kingdom for its own concerns, nor were they for the profit of the duke of Orleans: they were proposed with great deliberation of the king, the princes of his blood, and his council, for the benefit of our adversary himself, in his expedition to Hungary, and for the payment of the ransom of himself and his army. This was the cause of such heavy taxes being raised throughout the kingdom, and of immense sums of money being sent to Turkey, and other distant places, to the irreparable loss of the country.

‘When our adversary charges the duke of Orleans with having taken four thousand francs from the tower of the palace, and one hundred thousand from the castle of Melun,—I reply, that it is false: if any sums of money were in the tower of the palace, they were distributed according to orders from the king. In regard to the hundred thousand francs in the castle of Melun, it is well known that the queen and the duke of Orleans went thither to amuse themselves,—during which time, our adversary very improperly came to Paris with a large body of men at arms, and forced the duke of

Acquitaine to return thither, instead of going, as he intended, to join his mother the queen. He had collected this force of men at arms with the design of attacking the queen and the duke of Orleans in Melun, which, of course, made it necessary for her majesty to raise an army for her own defence, and for the security of the king and kingdom.

‘She was therefore advised to make use of the money in the castle of Melun for the pay of the men at arms, but my lord of Orleans never touched one penny of it; and when it came to the knowledge of the king, he was well satisfied that it had been so applied.

‘It therefore appears, that this sum of money was expended to oppose the damnable act of our adversary, and for no other cause. In regard to the men at arms said to have been kept on foot by my lord of Orleans, certainly some bodies of them, being quartered over the country, declared they were sent thither by command of the duke of Orleans, in order that no one might dare to molest them,—but they had no letters or commissions from him. On the contrary, he was greatly displeased at the evil acts they at times committed.

‘When their conduct was laid before the king and council, the duke of Orleans caused letters to be sent in the king’s name to all bailiffs and other officers throughout the realm, ordering them to assemble the nobles and gentlemen of the country to force those who committed such disgraceful acts to quit the kingdom, having first punished them for their wicked conduct.

‘O, duke of Burgundy! recollect the irreparable damages that have been done to many parts of this realm by the bodies of men at arms which thou hast introduced within it, many of whom were foreigners, who wasted the countries they passed through, and every one should feel compassion for events of so pitiable a nature: they can never be enough bewailed.

‘O, thou king of France! most excellent prince, deplore the death of thy only brother; for thou hast lost the most precious jewel in thy crown, which thy justice ought to avenge, if no other way be found.

‘O, thou most noble queen! weep for a prince who so greatly honoured thee, and whom thou hast seen so infamously murdered.

‘O thou, my most redoubted lord, duke of Aquitaine! lament that thou hast lost the most precious member of thy blood, council and state, which has caused thee to fall from peace into great tribulation.

‘O, thou duke of Berry! grieve that thou hast seen the brother of the king thy nephew thus disgracefully end his days, solely because he was brother to the king, and for no other reason.

‘O, duke of Brittany! thou hast lost the brother to thy duchess, who greatly loved thee.

‘O, thou duke of Bourbon! weep that thy friend is now buried under ground; and ye other princes! join in lamentations, for the way is now opened to put ye all to death most traitorously and unexpectedly.

‘Mourn, men and women, old and young, rich and poor! for the sweetness of peace and tranquillity is now torn from ye, by this assertion of the doctrine of assassinating princes, whence wars and destruction must fall upon you.

‘O, ye churchmen! deplore the loss of a prince who was much attached to you, and who greatly respected all who performed the divine service, from his love to God.

‘Ye clerks, and nobles of all degrees! consider how ye will henceforward act; for our opponent has deceived you by his false arguments, and caused you to favour his wickedness. But as ye are now aware of the murder committed on the person of the duke of Orleans, of the falsity and lies published in our adversary’s defamatory libel, and consequently of the innocence of my lord of Orleans,—should ye, from this time forth, in any way support the party of our adversary, know that it will be treason against the king, and you will then incur the danger of losing your lives and fortunes, as usual in such cases.

‘Understand then, princes and men of all degrees, that ye are bounden to assist in maintaining the laws against the duke of Burgundy, who, by this murderous act, has usurped the power and authority of the king and his sons, and has deprived them of great aid and consolation; for he has brought the commonweal into grievous tribulation by shamelessly violating the wholesome statutes in vindicating his offence against nobility, kindred, oaths, alliances and assurances,—against God and all his saints. This

mischief cannot be amended except by the laws. To obtain this reparation, my lady of Orleans and her children are now come before thee, O lord king! and the princes of thy royal blood, supplicating you all to weigh well the injury that has been done to them, and to make them amends in the manner required by her council, or in any other way, so that it may be publicly known that her lord was cruelly murdered, and unjustly and falsely accused and defamed. By doing this, you will perform your duty as you are bounden to do, and acquire eternal life, as it is written in the 21st chapter of Proverbs, ‘Qui sequitur justitiam inveniet vitam et gloriam,’—which may God, who reigns and lives for ever and ever, grant. Amen.’

END OF THE FIRST VOLUME.

AT THE HAFOD PRESS,
BY JA. HENDERSON.

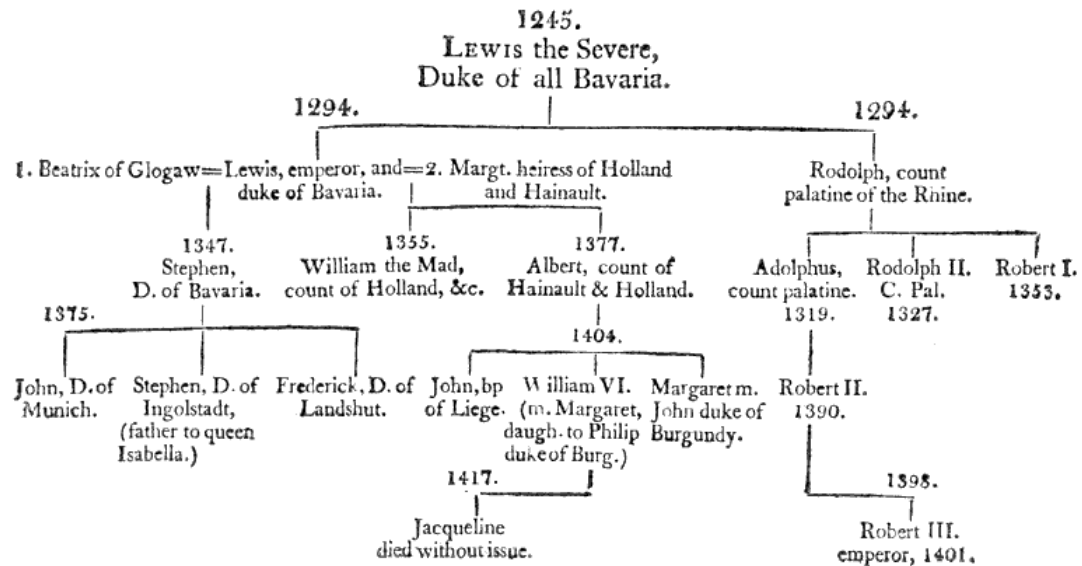
Footnotes:

1. These deeds, and the greater part of others quoted in these memoirs, are preserved in the Chartulary of Cambray. Extracts from them were communicated by M. Mutte, dean of Cambray, to M. de Foncemagne, who lent, them to M. Dacier.
2. They are preserved in MS. by the regular canons of St Aubert in Cambray.
3. 'This extract was published by M. Villaret in the xiith vol. of his 'Histoire de France,' edition in 12mo. page 119.'
4. 'The text of Monstrelet is *Pâques Communiaux*. This expression has seemed to some learned men to be equally applicable to Palm as to Easter Sunday. M. Secousse, in a note on these words, which he has added to page 480 of the ixth volume of Ordinances, reports both opinions, without deciding on either. But the sense is absolutely determined as to Easter-day in this passage of Monstrelet, and in a paper quoted by du Chesne, among the proofs to the genealogy of the house of Montmorenci, p. 224. It is a receipt from Anthony de Waevrans, esquire, châtelain of Lille, with this date,—'the 2d of April, on the vigil of *Pâques communiaux avant la cierge benit*, in the year 1490.' The circumstance of the paschal taper clearly shows it to have been written on holy Saturday, which fell that year on the 2d of April, since Easter-day of 1491 was on the 3d of the same month.—See l'Art de Verifier les Dates.'
5. Essais de Montaigne, liv. xi. chap. 10.
6. I have a copy of these corrections, which are introduced either into the body of the text or at the bottom of the page.
7. 'More slobbering than a mustard pot;' but Cotgrave translates this, 'Foaming at the mouth like a boar.'

8. 'Having compared these different chronicles, underneath is the result.

The truces between England and France, from the	Grandes Chroniques.
Measures taken by the king of France relative to the troubles in the church, by the election of the duke of Savoy to the popedom,	Ditto.
Continuation of the same subject,	Ditto.
Taking of Fougères,	Ditto, and in Jean Chartier.
Rebellion in London,	Ditto. Ditto.
Capture of Pont de l'Arche, &c.	Ditto. Ditto.
Events of War,	Ditto. Ditto.
From page 11. to page 23. in the original,	Ditto.
From page 141. to page 157.	Ditto.
With this difference, that the continuator of Monstrelet omits to report the treaties of surrender of many towns, and that he sometimes inverts the order of events.	
From page 29. to page 35. from the	Grandes Chroniques.
158.	164. Ditto.
35.	36. Do. but somewhat abridged.
36.	38. Ditto.
165.	171. Ditto.
38.	40. Ditto.

- [9.](#) From chapter ccxvii to ccxxxvi in the translation, third volume, 4to.
- [10.](#) 'The capture of Sandwich by the French has been twice told; and also the account of the embassy from Hungary,—the duke of Burgundy's entry into Ghent,—the proceedings against the duke of Alençon,—the account of what passed at the funeral of king Charles VII.'
- [11.](#) 'The copy of this chronicle, whence D. Berthod made his extract, is (or perhaps rather was) in the royal library at Brussels. Pere le Long and M. de Fontette notice another copy in the abbey of St Waast at Arras. This must be the original, for D. Berthod told me, that the one at Brussels was a copy.'
- [12.](#) 'Vol. xvi. of the Memoires de l'Académie, page 251.'
- [13.](#) See his preface at the head of the first volume, page 7.
- [14.](#) *Epistola plurium doctorum e societate Sorbonicâ ad illustrissimum marchionem Scipionem Maffeiûm, de ratione indicis Sorbonici, seu bibliothecæ alphabeticæ, quam adornant, &c. 1734.*
- [15.](#) This quaint expression is manifestly adopted from Froissart who uses it very often.
- [16.](#) The house of Bavaria was at this period split into so many branches, the males of every branch retaining, according to the german custom, the title of the head of the house, that it becomes a difficult task to point out their several degrees of affinity without having recourse to a genealogical table. The following will suffice for the purpose of explaining Monstrelet:



17. Q. Luttrell, or Latimer?

18. The whole of this romantic passage seems to refer to the ancient courts of love, the institution of which was considerably prior to the fifteenth century.

19. The wars for the succession of Arragon had terminated two years previous to this, otherwise we should be at no loss to account for the business which forced Michel d'Orris to return from France.

20. The kings of Castille were at this period styled kings of Spain, κατ' ἐξοχην.

21. This was the year of the jubilee. The plague raged at Rome, where, as Buoninsegni informs us, seven or eight hundred persons died daily. Few of the pilgrims returned. Many were murdered by the pope's soldiers, an universal confusion prevailing at that time throughout Italy.

22. John V. duke of Brittany, had issue, by his several wives, John VI. his successor, Arthur count of Richemont and duke of Brittany in 1457, Giles de Chambon and Richard count of Estampes. His daughters

were married to the duke of Alençon, count of Armagnac, viscount of Rohan, &c. John VI. married Joan of France, daughter of Charles VI.

23. Manuel Paleologus.

24. ‘The emperor of Constantinople came into Englande to require ayde against the Turkes, whome the king, with sumptuous preparation, met at Blacke-heath, upon St Thomas day the apostle, and brought him to London, and, paying for the charges of his lodging, presented him with giftes worthy of one of so high degree.’

STOWE, 326.

25. Waleran de Luxembourg III. count of St Pol, Ligny and Roussy, castellan of Lille, &c. &c. &c. a nobleman of very extensive and rich possessions, attached to the duke of Burgundy, through whose interest he obtained the posts of grand butler 1410, of governor of Paris and constable of France 1411. He died, 1415, leaving only one legitimate daughter, who, by marriage with Antony duke of Brabant, brought most of the family-posessions into the house of Burgundy.

26. Joan, daughter of Charles the bad, third wife of John V. Her mother was Joan of France, sister to Charles V. the duke of Burgundy, &c. Joan, duchess dowager of Bretagne, afterwards married Henry IV. of England.

27. After the death of Wenceslaus duke of Brabant and Luxembourg (the great friend and patron of Froissart), the latter duchy reverted, of right, to the crown of Bohemia. But during the inactive and dissolute reign of the emperor Wenceslaus, it seems to have been alternately possessed by himself, by governors under him nominally, but in fact supreme, or by Jodocus M. of Brandenburg and Moravia, his cousin. In the history of Luxembourg by Bertelius, several deeds and instruments are cited, which tend rather to perplex than elucidate. But he gives the following account of the transaction with Louis duke of Orleans: ‘Wenceslaus being seldom in those parts, and greatly preferring Bohemia, his native country, granted the government of

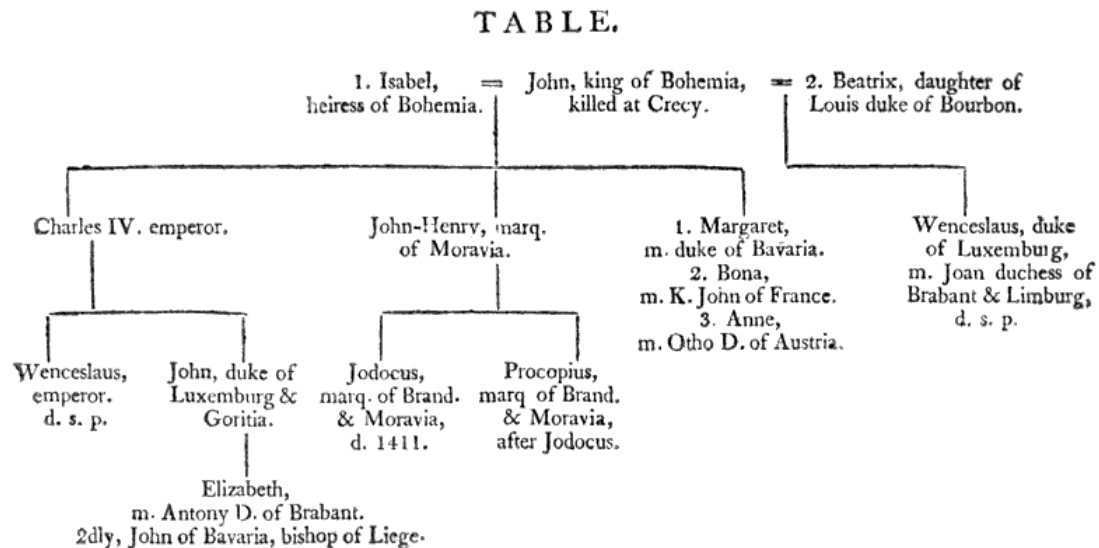
Luxembourg to his cousin the duke of Orleans; and moreover, for the sum of 56,337 golden crowns lent him by Louis, mortgaged to him the towns of Ivoy, Montmedy, Damvilliers and Orchiemont, with their appurtenances.’ In a deed of the year 1412, the duke of Orleans expresses himself as still retaining the government at the request of his dear nephew Jodocus; but this appears to be a mistake, since Jodocus was elected emperor in 1410, and died six months after, before his election could be confirmed. He was succeeded by his brother Procopius.

- [28.](#) Rupert, or Robert, elector palatine (see the genealogy, p. 12.) was elected emperor upon the deposition of Wenceslaus king of Bohemia.
- [29.](#) John Galeas Visconti, first duke of Milan, father of Valentina duchess of Orleans. During the reign of Wenceslaus, he had made the most violent aggressions on the free and imperial states of Lombardy, which it was the first object of the new emperor to chastise. The battle or skirmish here alluded to was fought near the walls of Brescia.
- [30.](#) This chapter presents a most extraordinary confusion of dates and events. The conclusion can refer only to the battle of Shrewsbury, which took place more than two years afterwards,—and is again mentioned in its proper place, chap. xv.: besides which, the facts are misrepresented. Monstrelet should have said, ‘The lord Thomas Percy (earl of Worcester) was beheaded after the battle, and his nephew Henry slain on the field.’ The year 1401 was, in fact, distinguished only by the war in Wales against Owen Glendower, in which Harry Percy commanded for, not against, the king. The Percies did not rebel till the year 1403.
- [31.](#) This John de Werchin, seneschal of Hainault, was connected by marriage with the house of Luxembourg St Pol.
- [32.](#) Enguerrand VII. lord of Coucy and count of Soissons, died a prisoner in Turkey, as related by Froissart. Mary, his daughter and co-heiress, sold her possessions, and this castle of Coucy among the rest, to Louis duke of Orleans. His other daughters were, Mary wife of

Robert Vere, duke of Ireland (the ill-fated favourite of Richard II.) and Isabel, married to Philip count of Nevers, youngest son of the duke of Burgundy.

[33.](#) Spinguchen. Q. Speenham?

[34.](#) Jodocus marquis of Moravia and Brandenburg, cousin-german to the emperor Wenceslaus, appears to be here meant. See the following



[35.](#) Charles the bold, married to a daughter of Robert of Bavaria, elector palatine, and afterwards emperor.

[36.](#) Adolphus II. duke of Cleves, married Mary daughter of the duke of Burgundy.

[37.](#) This seems to allude, in an enigmatical manner, to the charge of sorcery and witchcraft against the person of the king of France, of which the duke's enemies accused him, as we find afterwards in doctor Petit's justification of the duke of Burgundy.

[38.](#) This was the half-sister of Richard, and daughter of the countess of Kent, by her second husband, Thomas Holland, knight of the Garter,

and earl of Kent in right of his wife. She had been before separated from her first husband, William Montague, earl of Salisbury. Her third husband was Edward prince of Wales, by whom she had king Richard.

- [39.](#) Edward duke of Aumerle and earl of Rutland, son to Edmund duke of York, and cousin-german both to Richard II. and Henry IV. The reason of the personal hatred of the count de St Pol against this prince appears to be his having deserted and betrayed the conspirators at Windsor. The discovery of that plot probably hastened the death of Richard II.
- [40.](#) James II. count de la Marche, great chamberlain of France, succeeded to his father John in 1393, died 1438.
- [41.](#) Louis, count of Vendôme (the inheritance of his mother) second son of John count de la Marche, died 1446.
- [42.](#) John, lord of Clarency, third son of John count de la Marche, died 1458.
- [43.](#) Sallemue. Q. Saltash?
- [44.](#) Chastel, the name of a noble house in Brittany. Tanneguy, so often mentioned hereafter, was of the same family.
- [45.](#) Morlens. Q. Morlaix?
- [46.](#) Chastel-Pol. Q. St Pol de Leon?
- [47.](#) At the entrance of Brest harbour.
- [48.](#) In 1383, he was appointed to the office of grand treasurer.
- [49.](#) He is said, during his exile, to have signalized himself, like a true knight, in combating the Saracens, of whom he brought back to France so many prisoners that he constructed his magnificent castle of Seignelay without the aid of other labourers.—Paradin, cited by Moreri, Art. 'Savoisy.'

- [50.](#) William de Tignonville. The event here recorded happened in 1408. After the bodies were taken down from the gibbets, he was compelled to kiss them on the mouths.

MORERI.

- [51.](#) John, king of Arragon, was killed in 1395 by a fall from his horse while hunting. By Matthea of Armagnac, his queen, he had two daughters, of whom the eldest was married to Matthew viscount de Chateaubon and count of Foix, who claimed the crown in right of his wife, and invaded Arragon in support of his pretensions. But the principal nobility having, in the mean time, called over Martin king of Sicily, brother of John, to be his successor, a bloody war ensued, which terminated only with the death of the count de Foix. After that event (which took place in 1398), Martin remained in peaceable possession of the crown. The right to the crown, both by the general law of succession and by virtue of the marriage-contract, appears to have been in the countess of Foix; but the states of the kingdom here, as in some other instances, seem to have assumed a controuling, elective power. This authority, probably inherent in the constitution, was more signally exercised in the death of Martin without issue in the year 1410.

- [52.](#) Jean Carmen. Q. Carmaing?

- [53.](#) Pierre de Monstarde. Q. Peter de Moncada, the name of an illustrious family in Arragon?

- [54.](#) Duke de Caudie. Q. Duke of Gandia? Don Alphonso, a prince of the house of Arragon, was honoured with that title by Martin on his accession.

- [55.](#) De Sardonne. Q. Count of Cardona? He was one of the deputies from the states to don Martin, on the death of John.

- [56.](#) D'Aviemie. Q. Count of Ampurias? This nobleman was another descendant of the house of Arragon. He espoused at first the party of Foix, but soon reconciled himself to Martin.

- [57.](#) Before called Peter.
- [58.](#) Of this invasion, Stowe gives the following brief account: ‘The lord of Cassels, in Brytaine, arrived at Blackepoole, two miles out of Dartmouth, with a great navy, where, of the rustical people whom he ever despised, he was slaine.’
- [59.](#) John de Hangest, lord de Huqueville.
- [60.](#) Owen Glendower.
- [61.](#) Linorquie. Q. Glamorgan?
- [62.](#) Round Table. Q. Caerleon in Monmouthshire, one of Arthur’s seats?
- [63.](#) Regnault de Trie, lord of Fontenay, was *admiral* of France on the death of the lord de Vienne, killed at Nicopolis. He resigned, in 1405, in favour of Peter de *Breban*, lord of Landreville, surnamed Clugnet, and hereafter mentioned, but falsely, by the name of Clugnet de *Brabant*.
- [64.](#) This famous battle was fought at Angora in Galatia.
- [65.](#) Charles III. succeeded his father, Charles the bad, in 1386.
- [66.](#) This county descended to him from his great grandfather Louis, count of Evreux, son to Philip the bold, king of France. Philip, son of Louis, became king of Navarre in right of his wife Jane, daughter of Louis Hutin. He was father of Charles the bad.
- [67.](#) Mary of France, daughter of king John, married Robert duke of Bar, by whom she had issue Edward duke of Bar and Louis cardinal, hereafter mentioned, besides other children.
- [68.](#) Rather aunt. John III. duke of Brabant, dying in the year 1335, without male issue, left his dominions to his eldest daughter Joan, who married Wenceslaus duke of Luxembourg, and survived her husband many years, dying, at a very advanced age, in the year 1406. She is the princess here mentioned. Margaret, youngest daughter of

John III. married Louis de Male, earl of Flanders; and her only daughter Margaret (consequently niece of Joan duchess of Brabant) brought the inheritance of Flanders to Philip duke of Burgundy.

- [69.](#) The heiress of Flanders, mentioned in the preceding page.
- [70.](#) Catherine, married to Leopold the proud, duke of Austria.
- [71.](#) Margaret, married to William of Bavaria, (VI. of the name), count of Holland and Hainault.
- [72.](#) Mary, married to Amadeus VIII. first *duke* of Savoy, afterwards pope by the name of Felix V.
- [73.](#) Limbourg, on the death of its last duke, Henry, about 1300, was purchased, by John duke of Brabant, of Adolph count of Mons. Reginald duke of Gueldres claimed the succession; and his pretensions gave rise to the bloody war detailed by Froissart, which ended with the battle of Wareng.
- [74.](#) John, son of Louis the good, duke of Bourbon, so celebrated in the Chronicle of Froissart. The family was descended from Robert count of Clermont, son of St Louis who married the heiress of the ancient lords of the Bourbonnois. Louis, son of Robert, had two sons, Peter, the eldest (father of duke Louis the good) through whom descended the first line of Bourbon and that of Montpensier, both of which became extinct in the persons of Susannah, duchess of Bourbon, and Charles count of Montpensier her husband, the famous constable of France killed at the siege of Rome. James, the younger son of Louis I. was founder of the second line of Bourbon. John, count of la Marche, his son, became count of Vendôme in right of his wife, the heiress of that county. Anthony, fifth in lineal descent, became king of Navarre, in right also of his wife, and is well known as father of king Henry IV.
- [75.](#) Matthew count of Foix, the unsuccessful competitor for the crown of Arragon, was succeeded by his sister Isabel, the wife of Archambaud de Greilly, son of the famous captal de Buche, who became count of

Foix in her right. His son John, here called viscount de Châteaubon, was his successor.

- [76](#). Charles d'Albret, count of Dreux and viscount of Tartas, constable, lineal ancestor of John king of Navarre.

[77.](#) Carlefin. Q. Carlat?

[78.](#) Duke Albert had four other children not mentioned in this history, viz. Albert, who died young,—Catherine, married to the duke of Gueldres,—Anne, wife of the emperor Wenceslaus,—and Jane, married to Albert IV. duke of Austria, surnamed the Wonder of the World.

[79.](#) Peter de Luna, antipope of Avignon, elected after the death of Clement VII.

[80.](#) Hollingshed says, sir Philip Hall was governor of the castle of Mercq, ‘having with him four score archers and four-and-twenty other soldiers.’

The troops from Calais were commanded by sir Richard Aston, knight, ‘lieutenant of the english pale for the earl of Somerset, captain-general of those marches.’

[81.](#) Hangest, a noble family in Picardy. Rogues de Hangest was *grand pannetier* and maréchal of France in 1352. His son, John Rabache, died a hostage in London. John de Hangest, grandson of Rogues, is here meant. He was chamberlain to the king and much esteemed at court. His son Miles was the last male of the family.

[82.](#) Aynard de Clermont en Dauphinè married Jane de Maingret, heiress of Dampierre, about the middle of the 14th century. Probably their son was the lord de Dampierre here mentioned.

[83.](#) Andrew lord de Rambures was governor of Gravelines. His son, David, is the person here mentioned. He was appointed grand master of the cross-bows, and fell at the battle of Agincourt with three of his sons. Andrew II. his only surviving son, continued the line of Rambures.

[84.](#) John de Craon, lord of Montbazou and Sainte Maure, *grand echanson* de France, killed at Agincourt.

- [85.](#) Antoine de Vergy, count de Dammartin, maréchal of France in 1421.
- [86.](#) Hollingshed says, this expedition was commanded by king Henry's son, the lord Thomas of Lancaster, and the earl of Kent. He doubts the earl of Pembroke bring slain, for he writes, 'the person whom the Flemings called earl of Pembroke.' He also differs, as to the return of the English, from Monstrelet, and describes a sea-fight with four genoese carracks, when the victory was gained by the English, who afterward sailed to the coast of France, and burnt thirty-six towns in Normandy, &c.
- [87.](#) John lord of Croy, Renty, &c. counsellor and chamberlain to the two dukes of Burgundy, Philip and John, afterwards grand butler of France, killed at Agincourt.
- [88.](#) John de Montagu, vidame du Laonnois, lord of Montagu en Laye, counsellor and chamberlain of the king, and grand master of the household. He was the son of Gerard de Montagu, a bourgeois of Paris, secretary to king Charles V. Through his great interest at court, his two brothers were presented, one to the bishoprick of Paris, the other to the archbishoprick of Sens and office of chancellor.
- [89.](#) This term may excite a smile. Monstrelet was a staunch Burgundian.
- [90.](#) He styles himself count of Rethel, because, as duke of Limbourg, he was a member of the empire, and owed the king no homage.
- [91.](#) Brother of William count of Hainault.
- [92.](#) Philip the bold, king of France, gave the county of Alençon to his son Charles count of Valois, father of Philip VI. and of Charles II. count of Alençon, who was succeeded by his son Peter, the third count, who, dying in 1404, left it to his son, John, last count and first duke of Alençon, here mentioned. Alençon reverted to the crown on the death of Charles III. the last duke, in 1525.
- [93.](#) Louis II. son of Louis duke of Anjou and king of Naples, brother to king Charles V. whose expedition is recorded by Froissart.

- [94.](#) The devices of the two parties are different in Pontus Heuterus. (Rerum Burgundicarum, l. 3.) According to him, the Orleans-men bore on their lances a white pennon, with the inscription, *Jacio Aleam*; and the Burgundians set up in opposition pennons of purple, inscribed *Accipio conditionem*.
- [95.](#) William II. count of Namur.
- [96.](#) Monstrelet is mistaken as to the names of the english ambassadors. The first embassy took place the 22d March 1406, and the ambassadors were the bishop of Winchester, Thomas lord de Camoys, John Norbury, esquire, and master John Cateryk, treasurer of the cathedral of Lincoln.
- A second credential letter is given to the bishop of Winchester *alone*, of the same date. Another credential is given to the same prelate, bearing similar date, to contract a marriage with the eldest or any other daughter of the king of France, and Henry prince of Wales.
- See the Fœdera, anno 1406.
- [97.](#) This is a mistake. His true name was Peter de Breban, surnamed le Clugnet, lord of Landreville.
- [98.](#) Mary, daughter of William I. count of Namur, married first to Guy de Châtillon, count of Blois, and secondly to this admiral de Breban. On the deaths of both her brothers (William II. in 1418, and John III. in 1428) she became countess of Namur in her own right; and after her it came to Philip the good, duke of Burgundy, as a reversion to the earldom of Flanders.
- [99.](#) Frederick, second son of John duke of Lorraine, and brother of Charles the bold, obtained the county of Vaudemont (originally a branch of Lorraine) by marriage with Margaret daughter and heir of Henry V. count of Vaudemont and Joinville.
- [100.](#) Olivier de Blois, count of Penthievre and viscount of Limoges, grandson of Charles de Blois, the unfortunate competitor with John de Montfort for the duchy of Bretagne.

- [101.](#) Son to the duke of Bourbon.
- [102.](#) John de Hangest, lord of Huqueville.
- [103.](#) Called in the Catalogue of the Bishops of Liege, by Joannes Placentius, Henry lord of Parewis. The name of his son, the elected bishop, was Theodoric de Parewis. Pontus Heuterus says, they were descended from the ancient dukes of Brabant.
- [104.](#) He narrowly escaped being massacred, with all his household, at St Tron, by a body of the rabble, who burst into the monastery with that intent. His own personal courage alone saved him in that extremity.
- [105.](#) Angelus Corrarius, a noble Venetian, elected at Rome after the death of Innocent VII. He assumed the name of Gregory XII.
- [106.](#) See the Fœdera. The ambassadors were, sir Thomas Erpingham, John Cateryk, clerk, and Hugh Mortimer, treasurer to the prince of Wales.
- Other credentials are given in December of this year, wherein the bishop of Durham is added to the above ambassadors.
- [107.](#) It is not very easy to say to what this chapter can refer. There appears to have been no expedition into Scotland at this period, nor at any other, to which the facts here related bear the least resemblance. Is it entirely a fabrication of Monstrelet? I have looked at Hollingshed, Stowe and Henry.
- [108.](#) St Jangon—Perth, being probably a french corruption of St John's Town.
- [109.](#) Raoul d'Oquetonville, a knight of Normandy.
- [110.](#) The Guillemins were an order of hermits, instituted by Guillaume, duke of Guienne and count of Poitou. They succeeded to the church-convent of the Blanc-Manteaus, instituted by St Louis.
- [111.](#) The name of the adulteress was Marietta d'Enguien,—and the son he had by her the famous John, count of Dunois and of Longueville. Sir

Aubert de Canny was a knight of Picardy.

- [112.](#) *Præsentī animo*, says Heuterus.
- [113.](#) Consult Bayle and Brantôme for a singular anecdote respecting the private reasons which urged the duke to commit this murder.
- [114.](#) The monk of St Denis, author of the History of Charles VI. adds the following damning clause to his account of this foul transaction: —‘But what raised to the highest pitch the horror of the princes at the blackness of soul displayed by the duke was, that very shortly before, he not only was reconciled but entered into an alliance of brotherly love with the duke of Orleans. They had yet more recently confirmed it, both by letters and oaths, insomuch that they called God to witness it, and received the communion together. They had every appearance of an entire union in the conduct of the war which was committed to their charge: they had defended one another’s honour from the bad success which attended them: it seemed as if they had only one interest; and, for a yet greater token of union and of love, the duke of Burgundy, hearing that the duke of Orleans was indisposed, visited him with all the marks, I do not say of civility but, of tender affection, and even accepted an invitation to dine with him the next day, being Sunday. The other princes of the blood, knowing all this, could not but conceive the most extreme indignation at so horrible a procedure: they therefore refused to listen to his excuses,—and the next morning, when he came to the parliament-chamber, they forbade him entrance.’ See Bayle, Art. ‘Petit.’ The reconciliation here mentioned is also alluded to, ch. xliv.
- [115.](#) ‘The noble duke of Bourbon,’ says the monk of St Denis, ‘was nominated to this embassy, but he generously excused himself from it: he would not even remain any longer at court, but demanded leave to retire to his own estates; for he loved better to renounce the share which he had in the government than consent to compound with the state for the murder of his nephew, which made him exclaim loudly, and many times, as I have been assured, that he could never look with a favourable eye upon the author of a treason so cowardly and so infamous.’ See Bayle, *ubi supra*.

[116.](#) This shows how general wooden buildings were still in the 15th century.

[117.](#) The titles of Guienne and Aquitaine were always used indiscriminately.

[118.](#) Louis, cardinal de Bar, afterwards cardinal of the Twelve Apostles, youngest son of Robert, and brother of Edward, dukes of Bar, and heir to the duchy after the deaths of all his brothers.

[119.](#) John Petit, professor of theology in the university of Paris, ‘ame venale,’ says Bayle, ‘et vendue à l’iniquité.’ He was reputed a great orator, and had been employed twice before to plead on occasions of the first importance. The first was in favour of the university against some accusations of the cardinal-legate in 1406; the second, at Rome before pope Gregory, on the 20th of July 1407, on the subject of the king’s proposal for a termination of the schism. The very curious performance with which we are here presented was publicly condemned by the bishop of Paris and the university as soon as they were out of fear from the immediate presence of the duke of Burgundy, and burnt by the common hangman. See, in Bayle, further particulars of the work and its author.

[120.](#) See the 19th chap. 2 Samuel.

[121.](#) This is a very striking allusion to a particular custom at tournaments, and sometimes in actual fight, of which Sainte Palaye gives a most interesting account in the ‘Memoires sur l’Ancienne Chevalerie.’

The exclamation, ‘Aux filz des Preux!’ was evidently used to encourage young knights to emulate the glories of their ancestors, and to do nothing unworthy the noble title given them; and in many instances it was attended with the most animating consequences.

The greatest misfortune attending on a translation of french chronicles is the total absence in our language of an expression answerable to the french word ‘preux,’ which conveys in itself whole volumes of meaning. Spencer ventured to adapt the word in its superlative degree to the english tongue. He says somewhere ‘the

prowest knight alive.’ In fact, the word ‘preux’ may be considered as summing up the whole catalogue of knightly virtues in one expression.

The exclamation was sometimes varied,—‘Honneur aux filz des preux!’ which seems to be the original expression.

- [122.](#) Q. ‘Et aussi deux ans paravant que nous estiemes en meur estat?’
- [123.](#) Peter, youngest son of Charles the bad, and brother of Charles III. king of Navarre. He died without issue 1411.
- [124.](#) William count of Tancarville and viscount of Melun, great chamberlain, president of the chamber of accounts, great butler, &c. killed at Agincourt. His daughter and heiress Margaret, brought the county of Tancarville, &c. in marriage, to James de Harcourt.
- [125.](#) Peter de Luxembourg St Pol, count of Brienne and Conversano, created knight of the Golden Fleece in 1430; John de Luxembourg, his father, was brother to Walleran, and son to Guy, count of St Pol; and on the death of Walleran, without issue-male in 1415, Peter succeeded to his title and estates. His mother was heiress of the illustrious house of Brienne, emperors of Constantinople, kings of Jerusalem and dukes of Athens, &c. Anghien was one of the titles which she brought to the house of Luxembourg.
- [126.](#) Fosse and Florennes,—a small town and village in the bishoprick of Liege.
- [127.](#) This is a mistake. Henry III. king of Castille, dying in December 1406, was succeeded by his son, John II. an infant of 22 months. The battle here mentioned was fought in the ensuing year, D. Alphonso Henriques being admiral of Castille. Tarquet (Hist. d’Espagne) says, there were only 13 castillian against 23 moorish galleys, and that eight of the latter were taken in the engagement. Braquemont was rewarded for his extraordinary services by the grant of all conquests which he might make in the Canaries. This contingent benefit he resigned to his cousin, John de Betancourt, for more solid possessions

in Normandy; and, in the year 1417, he obtained the high dignity of admiral of France.

Transcriber's note:

Variations in spelling and diacritics have been retained. Outliers have been changed to conform to common spelling.

Format of chapter headings has been regularised.

Page vii, 'Frelun' changed to 'Fretun,' "Gilbert de Fretun makes"

Page viii, 'Tke' changed to 'The,' "The duke of Burgundy"

Page xiv, opening single quote inserted before 'According,'
"According to the historian"

Page xx, opening single quote inserted before 'Monstrelet,'
"Monstrelet was married to"

Pages xxx-xxxi, 'pursuivants' changed to 'poursuivants,' "heralds,
poursuivants, and kings at"

Page xxxii, opening single quote removed before 'Essais,' "Essais de
Montaigne"

Page xxxv, closing single quote inserted after 'moutarde,' "plus baveux
qu'un pot à moutarde."

Page xxxvii, colon changed to semicolon following 'them,' "none of
them; secondly"

Page xlvi, 'Monstrelent' changed to 'Monstrelet,' "of which Monstrelet,
who"

Page 23, second 'the' struck, "contained at the commencement"

Page 49, 'Luxemburg' changed to 'Luxembourg,' "with the house of
Luxembourg"

Page 56, 'wth' changed to 'with,' "with one hundred knights"

Page 58, 'LETTERS' changed to 'LETTER,' "TO THE LETTER OF"

Page 64, full stop inserted after 'marq,' "Procopius, marq. of Brand."

Page 85, 'appear' changed to 'appears,' "against this prince appears to be"

Page 89, 'FRELUN' changed to 'FRETUN,' "GILBERT DE FRETUN MAKES WAR"

Page 94, second 'long' struck, "Not long after this event"

Page 94, 'Morery' changed to 'Moreri.' in footnote, "Moreri."

Page 115, 'imbarked' changed to 'embarked,' "in consequence, re-embarked with his men"

Page 118, 'cross bows' changed to 'cross-bows,' "of cross-bows and archers"

Page 120, 'duk' changed to 'duke,' "Albert IV. duke of Austria"

Page 130, 'Ginenchy' changed to 'Givenchy,' "lord de Givenchy, with"

Page 155, 'confidental' changed to 'confidential,' "most confidential advisers"

Page 187, full stop inserted after 'passed,' "all that had passed. The"

Page 198, 'perpretrated' changed to 'perpetrated,' "been perpetrated by sir"

Page 198, 'wa' changed to 'was,' "Sir Aubert de Canny was"

Page 250, closing single quote inserted after 'slain!,' "from being slain!'"

Page 251, 'satisfiac' changed to 'satisfac,' "et alloquens satisfac servis"

Page 254, 'that' changed to 'That,' "That the two knights"

Page 261, 'Policratiri' changed to 'Policratici,' "in libro suo Policratici"

Page 262, passage beginning 'Ricardi de media villa' left as in original French language edition

Page 275, opening single quote inserted before "Ex," "Ex illo arguitur sic"

Page 277, closing single quote deleted after 'tyrant,' "blood of a tyrant."

Page 287, 'wordly' changed to 'worldly,' "honours and worldly riches"

Page 310, comma changed to full stop following 'punishment,' "by fear of punishment."

Page 340, opening single quote inserted before "Justitia," "'Justitia inquit regnantis"

Page 341, opening single quote inserted before "Justitia," "'Justitia est constans"

Page 345, 'Duobis' changed to 'Duobus,' "Duobus existentibus amicis"

Page 353, comma inserted after 'dilexit,' "dilexit, æquitatem vidit"

Page 374, 'Zambre' changed to 'Zambry,' "who slew Zambry without"

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13] ***

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